

VA REQUEST FOR LEASE PROPOSALS NO.36C25025R0029 FLORENCE, OH

**Offers due
by
4/20/2026**

In order to be considered for award, offers conforming to the requirements of the RLP shall be received no later than **3pm local time** on the date above. See "Receipt Of Lease Proposals" herein for additional information.

This Request for Lease Proposals ("RLP") sets forth instructions and requirements for proposals for a Lease described in the RLP documents. Proposals conforming to the RLP requirements will be evaluated in accordance with the Method of Award set forth herein to select an Offeror for award. The Government will award the Lease to the selected Offeror, subject to the conditions herein.

The information collection requirements contained in this Solicitation/Contract, that are not required by regulation, have been approved by the Office of Management and Budget pursuant to the Paperwork Reduction Act and assigned the OMB Control No. 3090-0086.

**GLOBAL RLP
R100 (6/25)**

TABLE OF CONTENTS

GLOBAL RLP	1
SECTION 1 STATEMENT OF REQUIREMENTS	1
1.01 GENERAL INFORMATION (OCT 2023).....	1
1.02 AMOUNT AND TYPE OF SPACE, LEASE TERM, AND OCCUPANCY DATE (OCT 2022).....	1
1.03 AREA OF CONSIDERATION (OCT 2021).....	2
1.04 UNIQUE REQUIREMENTS (OCT 2021)	3
1.05 NEIGHBORHOOD, PARKING, LOCATION AMENITIES, AND PUBLIC TRANSPORTATION (MAY 2025).....	3
1.06 LIST OF RLP DOCUMENTS (OCT 2024).....	4
1.07 AMENDMENTS TO THE RLP (JUN 2012)	4
1.08 LEASE DESCRIPTION (MAY 2025)	4
1.09 RELATIONSHIP OF RLP BUILDING MINIMUM REQUIREMENTS AND LEASE OBLIGATIONS (OCT 2016).....	5
1.10 PRICING OF SECURITY REQUIREMENTS (OCT 2022)	5
1.11 SECURITY LEVEL DETERMINATION FOR FACILITY HOUSING OTHER FEDERAL TENANTS (APR 2011).....	5
1.12 AUTHORIZED REPRESENTATIVES (OCT 2020)	5
1.13 BROKER COMMISSION AND COMMISSION CREDIT (OCT 2020) INTENTIONALLY DELETED.....	5
1.14 NORTH AMERICAN INDUSTRY CLASSIFICATION SYSTEM (NAICS) CODE AND SMALL BUSINESS SIZE STANDARD (OCT 2023).....	5
SECTION 2 ELIGIBILITY AND PREFERENCES FOR AWARD	7
2.01 EFFICIENCY OF LAYOUT (AUG 2011)	7
2.02 FLOODPLAINS (OCT 2022).....	7
2.03 SEISMIC SAFETY – MODERATE SEISMICITY (MAY 2025) INTENTIONALLY DELETED.....	7
2.04 SEISMIC SAFETY – HIGH SEISMICITY (MAY 2025) INTENTIONALLY DELETED.....	7
2.05 ASBESTOS (MAY 2025).....	7
2.06 ACCESSIBILITY (SEP 2013)	7
2.07 FIRE PROTECTION AND LIFE SAFETY (SEP 2013)	8
2.08 ENERGY INDEPENDENCE AND SECURITY ACT (MAY 2025)	8
2.09 ENVIRONMENTAL CONSIDERATIONS (SEP 2013)	9
2.10 DUE DILIGENCE AND NATIONAL ENVIRONMENTAL POLICY ACT REQUIREMENTS - RLP (OCT 2023).....	9
2.11 NATIONAL HISTORIC PRESERVATION ACT REQUIREMENTS - RLP (OCT 2023).....	10
SECTION 3 HOW TO OFFER.....	11
3.01 GENERAL INSTRUCTIONS (JUN 2012).....	11
3.02 RECEIPT OF LEASE PROPOSALS (OCT 2024).....	11
3.03 PRICING TERMS (OCT 2022).....	12
3.04 BUDGET SCOREKEEPING; OPERATING LEASE TREATMENT (APR 2011)	12
3.05 PROSPECTUS LEASE (OCT 2022)	13
3.06 ADDITIONAL SUBMITTALS (OCT 2024)	13
3.07 TENANT IMPROVEMENTS INCLUDED IN OFFER (OCT 2020).....	15
3.08 TURNKEY PRICING WITH DESIGN INTENT DRAWINGS PRIOR TO AWARD (OCT 2017).....	16
3.09 SECURITY IMPROVEMENTS INCLUDED IN OFFER (OCT 2022).....	16
3.10 HIGH-PERFORMANCE BUILDING RATING CERTIFICATION FOR TENANT INTERIORS (MAY 2025).....	16
3.11 OPERATING COSTS REQUIREMENTS INCLUDED IN OFFER (JUN 2012).....	16

3.12	UTILITIES SEPARATE FROM RENTAL / BUILDING OPERATING PLAN (JUN 2012) INTENTIONALLY DELETED	17
SECTION 4	METHOD OF AWARD	18
4.01	NEGOTIATIONS (OCT 2023)	18
4.02	HUBZONE SMALL BUSINESS CONCERN PRICE PREFERENCE WAIVER (OCT 2023)	18
4.03	AWARD BASED ON PRICE (OCT 2023)	18
4.04	OTHER EVALUATION FACTORS (OCT 2023)	18
4.05	EVALUATION FACTOR DESCRIPTIONS (OCT 2023)	20
4.06	EVALUATION FACTOR MINIMUM STANDARDS (OCT 2023) INTENTIONALLY DELETED.....	Error! Bookmark not defined.
4.07	EVALUATION FACTOR SUBMITTAL REQUIREMENTS (OCT 2023)	Error! Bookmark not defined.
4.08	EVALUATION DOCUMENTATION REQUIREMENTS (OCT 2023) INTENTIONALLY DELETED.	24
4.09	PRESENT VALUE PRICE EVALUATION (OCT 2024)	24
4.10	AWARD (OCT 2024)	25
SECTION 5	ADDITIONAL TERMS AND CONDITIONS	26
5.01	MODIFIED RLP PARAGRAPHS (OCT 2016)	26
5.02	SWING SPACE RLP (OCT 2022) INTENTIONALLY DELETED	26

REQUEST FOR LEASE PROPOSALS NO. **36C25025R0029**

GLOBAL RLP R100 (JUN 2025)

SECTION 1 STATEMENT OF REQUIREMENTS

1.01 GENERAL INFORMATION (OCT 2023)

- A. This Request for Lease Proposals (RLP) sets forth instructions and requirements for proposals for a Lease described in the RLP documents. The Government will evaluate proposals conforming to the RLP requirements in accordance with the Method of Award set forth below to select an Offeror for award. The Government will award the Lease to the selected Offeror, subject to the conditions below. **This requirement has been set-aside for Service-Disabled Veteran Owned Small Business (SDVOSB)**
- B. Included in the RLP documents is a lease template setting forth the lease term and other terms and conditions of the Lease contemplated by this RLP and a GSA Proposal to Lease Space (GSA Form 1364) on which Offeror shall submit its offered rent and other price data, together with required information and submissions. The Lease paragraph titled "Definitions and General Terms" shall apply to the terms of this RLP.
- C. Do not attempt to complete the lease template. Upon selection for award, VA will transcribe the successful Offeror's final offered rent and other price data included on the GSA Form 1364 into the lease and transmit the completed Lease, including any appropriate attachments, to the successful Offeror for execution. Neither the RLP nor any other part of an Offeror's proposal shall be part of the Lease except to the extent expressly incorporated therein. The Offeror should review the completed Lease for accuracy and consistency with his or her proposal, sign and date the first page, initial each subsequent page of the Lease, and return it to the Lease Contracting Officer (LCO).
- D. The Offeror's executed Lease shall constitute a firm offer. No Lease shall be formed until the LCO executes the Lease and delivers a signed copy to the Offeror.
- E. Offeror may not use Federal agency name(s) and/or acronym(s), e.g., Veterans Administration, Veterans Health; VA; VHA; or "Veteran(s)" in the entity name that owns and/or leases the Space to VA.

1.02 AMOUNT AND TYPE OF SPACE, LEASE TERM, AND OCCUPANCY DATE (OCT 2022)

- A. The Government is seeking 16,500 of American National Standards Institute/Building Owners and Managers Association (ANSI/BOMA) Occupant Area (ABOA) square feet (SF) of contiguous space within the Area of Consideration set forth below, and not to exceed 23,389 RSF. See Section 2 of the Lease for applicable ANSI/BOMA standards
- B. The Space shall be located in a modern quality Building of sound and substantial construction with a facade of stone, marble, brick, stainless steel, aluminum or other permanent materials in good condition and acceptable to the LCO. If not a new Building, the Space offered shall be in a Building that has undergone, or will complete by occupancy, modernization or adaptive reuse for the Space with modern conveniences.
- C. The Government requires **150 surface/outside parking spaces**, inclusive of Fifteen **(15) ADA compliant parking spaces, reserved for the exclusive use of the VA**. All parking spaces shall be on-site. These spaces must be secured and lit in accordance with the Security Requirements set forth in the Lease. Offeror shall include the cost of this parking as part of the rental consideration.
- D. As part of the rental consideration, the Government may require use of part of the Building roof for the installation of antenna(s). If antenna space is required, specifications regarding the type of antenna(s) and mounting requirements are included in the agency requirements information provided with this RLP.
- E. The Government may provide vending machines within the Government's leased area under the provisions of the Randolph-Sheppard Act (20 USC 107 et. seq.). If the Government chooses to provide vending facilities, the Government will control the number, kind, and locations of vending facilities and will control and receive income from all automatic vending machines. Offeror shall provide necessary utilities and make related alterations. The cost of the improvements is part of Tenant Improvement (TI) costs. The Government will not compete with other facilities having exclusive rights in the Building. The Offeror shall advise the Government if such rights exist.
- F. The lease term may be up to 20 years, inclusive of all "non-firm" (soft) terms; with Government **termination rights**, in whole or in parts, effective at any time after the Firm Term of the Lease by providing not less than **90 days prior written notice**. The Offeror must submit price proposals for each of the following scenarios:
- Alternative A) 20 years firm term.
 - Alternative B) 20-year Term; 15-year firm.
 - Alternative C) 15-year Term; 10 Firm
- The LCO reserves the right to award a lease based on any alternate lease term listed above and may select the number of non-firm term years, in the best interest of the Government. For instance, the CO could elect to award either of term scenarios stated above, i.e., 20 Year Firm, or 20 Year/15-year Firm. All the terms and conditions contained herein shall prevail throughout the term of the lease, including all non-firm terms. **The Offeror is advised that it must submit pricing for all alternates listed above to be considered acceptable. An Offeror submitting different or fewer pricing alternates may be rejected as unacceptable by the Lease Contracting Officer.**

The Government reserves the right in the Lease to not include an option, or to reduce the length of an option if the inclusion of the option would cause the Lease to score as a capital lease, in accordance with the Budget Scorekeeping: Operating Lease Treatment paragraph of this RLP.

G. The Lease Term Commencement Date will be on or about **June 2027**, or upon acceptance of the Space, whichever is later.

1.03 AREA OF CONSIDERATION (OCT 2021)

The Government requests Space in an area bounded as follows:

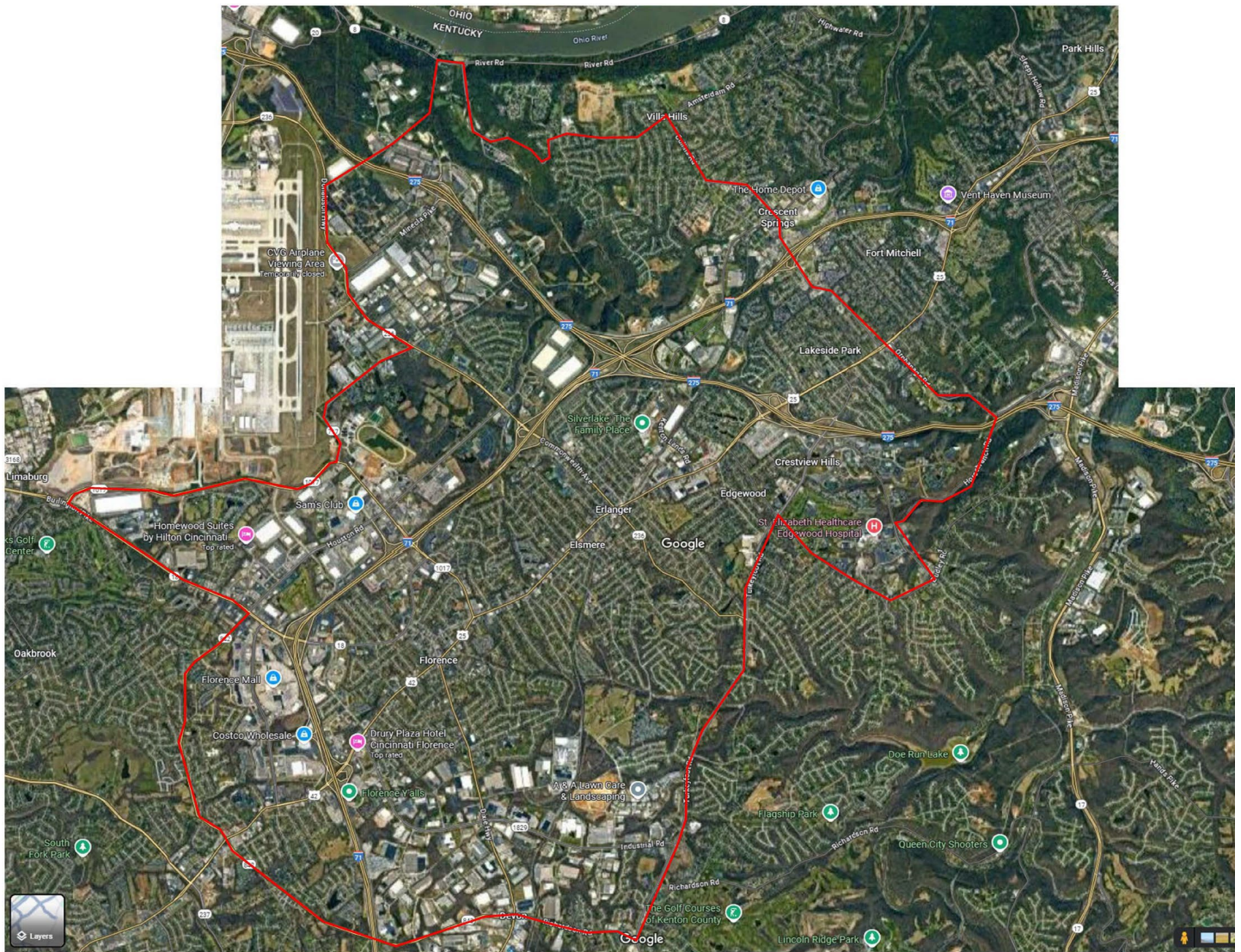
North: Aero Parkway, Donaldson Hwy, Point Pleasant Rd., River Rd, Amsterdam Rd, Collins Rd. Buttermilk Pike, Orphanage Rd.

East: Horsebranch Rd, Thomas More Pkwy, Dudley Rd, Turkeyfoot Rd.

South: Richardson Rd, Weaver Rd, Burlington Pike

West: Hopeful Church Rd, Aero Pkwy, Turfway Rd, Donaldson Hwy

*****The below map is for illustrative purposes; the above-written boundaries control.**



Buildings with Property boundaries on the boundary streets are deemed to be within the delineated Area of Consideration.

1.04 UNIQUE REQUIREMENTS (OCT 2021)

The offered Building and/or Property must have the following features as a minimum requirement:

- A. Offered Space shall be located on a single floor within one building; preferably be located on the first (1st) floor. If the offered space is above the first (1st) floor, the space shall be equipped with a minimum of one (1) passenger elevator able to accommodate a standard ambulance gurney and one (1) combination (passenger/freight) elevator.
- B. Bifurcated sites, inclusive of parking, are not permissible.
- C. The following space configurations will not be considered: Space with atriums, extremely long or narrow runs of space (more than twice as long as wide), irregularly shaped space configurations or other unusual building features adversely affecting usage.
- D. Column size shall not exceed two (2) feet square and space between columns and/or walls shall not be less than twenty (20') feet.
- E. Offered space shall not be in the FEMA 100-year flood plain.
- F. Offered space shall be zoned for VA's intended use by the time initial offers are due, or that it will be zoned accordingly by the time of award.
- G. Offered space will not be considered if located in close proximity to a property with incompatible uses, including, but not limited to the following uses: liquor establishments, cannabis dispensaries, drug and alcohol treatment centers, correctional facilities, establishments where firearms are sold/discharged, railroad tracks, or within flight paths.
- H. Offered space will not be considered if located in close proximity to residential neighborhoods or industrial areas.
- I. Space will not be considered where apartment space or other living quarters are located within the same building.
- J. Offered space must be located in close proximity to amenities including but not limited to restaurants, hotels, pharmacies, and shopping.
- K. Offered space must be located in close proximity to a hospital or stand-alone emergency room center or EMS / fire department.
- L. Offered space must be easily accessible to multiple major roadways which provide multiple routes of travel.
- M. Structured parking under the space is not permissible.
- N. Offered space must meet Federal and Local Government requirements for fire safety, physical security, accessibility, seismic, and sustainability standards per the terms of the solicitation for offers or requests for proposals.
- O. A fully serviced lease is required.
- P. Offered space must be compatible with VA's intended use.

1.05 NEIGHBORHOOD, PARKING, LOCATION AMENITIES, AND PUBLIC TRANSPORTATION (MAY 2025)

- A. Neighborhood and Parking. The Government requires **150 surface/outside parking spaces**, inclusive of **Fifteen (15) ADA compliant parking spaces, reserved for the exclusive use of the VA.** All parking spaces shall be on-site. These spaces must be secured and lit in accordance with the Security Requirements set forth in the Lease. Offeror shall include the cost of this parking as part of the rental consideration
- B. Neighborhood and Parking. Outside City Center: Space must be located 1) in an office, research, technology, or business park that is modern in design with a campus-like atmosphere; or 2) on an attractively landscaped site presenting as professional and prestigious in appearance with the surrounding development well maintained and in consonance with a professional image. The parking-to-square-foot ratio available on site shall at least meet current RLP requirements; and all local codes.
- C. Walkability and Amenities.
 - 1. Employee and visitor entrances of the Building must be connected to public sidewalks by continuous, accessible sidewalks.
 - 2. A variety of employee services, such as restaurants, retail shops, cleaners, and banks, shall be located within the immediate vicinity of the Building. Amenities must be existing or the Offeror must demonstrate to the Government's reasonable satisfaction that such amenities will exist by the Government's required occupancy date.
- D. Transit Accessibility. All reasonable efforts must be deployed to obtain a bus rapid transit stop located within the immediate vicinity of the Building, but generally not exceeding a safely accessible, walkable 2,640 feet from the principal functional entrance of the building, as determined by the LCO; if one does not already exist. **OFFERORS MUST DEMONSTRATE PROPOSED BUS STOP LOCATIONS AS WELL AS (i) PLANS and (ii) INITIAL ENGAGEMENT WITH MUNICIPAL OFFICIALS REGARDING REQUESTED APPROVAL.** Existing bus stops must be clearly identified in the offer documents.

1.06 LIST OF RLP DOCUMENTS (OCT 2024)

A. The following documents are attached to and included as part of this RLP package:

Document Name	No. Pages	of	Exhibit
Lease No. XXXXXX (GSA Form L100)	45		A
Agency's Specific Requirements (ASR)	47		B
Janitorial Requirements	7		C
Conceptual Floor Plan, Finishes, Program for Design	1		D
FSL Security Requirements for Level II	19		E
GSA Form 3516, Solicitation Provisions (Feb 2025)	7		F
GSA Form 3517B, General Clauses (Feb 2025)	23		G
GSA Form 1364, Proposal to Lease Space	4		H
GSA Form 1217, Lessor's Annual Cost Statement	3		I
GSA Form 12000 for Prelease Fire Protection and Life Safety Evaluation for an Office Building (Part A or Part B) (See Section 3 for applicable requirements)	6		J
Tenant Improvements Cost Summary TICS (Build Out)	Excel		K
DOL Wage Determination WD# MI20240087 (01 25 2024 (SAM.gov)	7		L
Offering Entity Acknowledgement Form	1		M
Contractor Confidentiality Certificate	1		N
VA Alternative Protest Procedure Real Property Lease Procurements	1		O
Past Performance Questionnaire (For References)	3		P
AbilityOne Offeror Certification Submittal	1		Q
Certificate of Bldg Performance	1		R
FAR 52.204-24, Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment	4		S

B. INTENTIONALLY DELETED

1.07 AMENDMENTS TO THE RLP (JUN 2012)

This RLP may be amended by notice from the LCO. Amendments may modify the terms of this RLP, or the terms, conditions, and requirements of the Lease contemplated by the RLP.

1.08 LEASE DESCRIPTION (MAY 2025)

- A. Offeror shall examine the Lease template included in the RLP documents to understand the Government's and the Lessor's respective rights and responsibilities under the contemplated Lease.
- B. The Lease contemplated by this RLP includes:
1. The term of the Lease, and renewal option, if any.
 2. Terms and Conditions of the Lease, including Definitions, Standards, and Formulas applicable to the Lease and this RLP.
 3. Building Shell standards and requirements.
 4. Information concerning the tenant agency's buildout requirements, to be supplemented after award.
 5. Security Requirements.
 6. A description of all services to be provided by the Lessor.
 7. Any other information the LCO determines appropriate
- C. Should the Offeror be awarded the Lease, the terms of the Lease shall be binding upon the Lessor without regard to any statements contained in this RLP.
- D. The Lease contemplated by this RLP is a fully serviced, turnkey Lease with rent that covers all Lessor costs including all shell upgrades, TIs, operating costs, real estate taxes, and security upgrades. Rent will be based upon a proposed rental rate per rentable square foot (RSF), limited by the offered rate and the maximum ABOA SF solicited under this RLP. The Tenant Improvements to be delivered by the Lessor shall be based upon information provided with this RLP and Lease, including Agency Specific Requirements (ASR). The Lessor shall design and build the TIs and will be compensated for the TI costs based upon turnkey pricing established under the Lease.
- Offerors are required to prepare Design Intent Drawings (DIDs) prior to Lease Award. See Paragraph TURNKEY PRICING WITH DESIGN INTENT DRAWINGS PRIOR TO AWARD for further details. (PRE-AWARD DIDS)**
- E. The security pricing process is described in a separate paragraph.

- F. Upon completion and acceptance of the leased Space, the Space will be measured for establishing the actual annual rent, and the lease term shall commence. In instances involving an incumbent Lessor where the Government commences the lease term pending completion of TI and/or BSAC alterations, the Government shall withhold TI and/or BSAC rent pursuant to Section 1 of the Lease until such time as the TI and/or BSAC is completed and accepted by the Government. During the term of the Lease, rent will be adjusted for changes to the Lessor's operating costs and real estate taxes, pursuant to paragraphs set forth in the Lease.
- G. Offerors are advised that doing business with the Government carries special responsibilities with respect to fire protection and life safety, and security, as well as other requirements not typically found in private commercial leases. These are set forth both in the lease template and in the GSA 3517B, General Clauses, and will be made part of the Lease.

1.09 RELATIONSHIP OF RLP BUILDING MINIMUM REQUIREMENTS AND LEASE OBLIGATIONS (OCT 2016)

The Lease establishes various requirements relating to the Building shell. Such requirements are not deemed TIs. There are certain Building requirements that are established as minimum requirements in this RLP. If the Lessor's Building does not meet the requirements at the time of award, the Lessor may still be awarded the Lease. However, as a condition of award, the Government will require Lessor to identify those Building improvements that will bring the Building into compliance with RLP requirements. Upon award of the Lease, completion of those Building improvements will become Lease obligations.

1.10 PRICING OF SECURITY REQUIREMENTS (OCT 2022)

- A. The proposed Lease contains an attachment with the security requirements and obligations for the building, which are based on the facility security level (FSL). The Federal Government determines the facility's FSL rating, which ranges from FSL I to FSL IV. The FSL is based on client agency mix, required size of space, number of employees, use of the space, location, configuration of the site and lot, and public access into and around the facility.
- B. The security requirements attached to this Lease include a general list of countermeasures that may be installed in the leased Space as part of the tenant improvement costs. The final list of security countermeasures will be determined during the design phase and identified in the design intent drawings and construction documents. After the design phase, the Offeror shall submit a list of the itemized FSL tenant improvement costs. Such costs shall be subject to negotiation. The Lessor shall design and build the FSL requirements and will be compensated for FSL tenant improvement costs, together with design and project management fees, and these will be paid under final tenant improvements lump sum amount.
- C. There shall be no charge to the Government for any items that already exist in the offered Building or facility.

1.11 SECURITY LEVEL DETERMINATION FOR FACILITY HOUSING OTHER FEDERAL TENANTS (APR 2011)

If an Offeror is offering Space in a facility currently housing a federal agency, the security requirements of the facility may be increased and the Offeror may be required to adhere to a higher security standard than other Offerors competing for the same space requirement. If two or more Federal space requirements are being competed at the same time, an Offeror submitting on both or more space requirements may be subject to a higher security standard if the Offeror is determined to be the successful Offeror on more than one space requirement. It is incumbent upon the Offeror to prepare the Offeror's proposal accordingly.

1.12 AUTHORIZED REPRESENTATIVES (OCT 2020)

With respect to all matters relating to this RLP, only the Government's LCO designated below shall have the authority to amend the RLP and award a Lease. The Government shall have the right to substitute its LCO by notice, without an express delegation by the prior LCO.

Lease LCO:

Lee Grant
8888 Keystone Crossing, Suite 325
Indianapolis, IN 46240
Office: (317) 988-1520
Email Address: lee.grant@va.gov

As to all other matters, Offerors may contact the Alternate Government Contact designated below.

Alternate Government Contact:

Lease Contract Specialist
Kenneth Staiduhar
8888 Keystone Crossing, Suite 325 Indianapolis, IN
46240
Office: 216-707-7775
Email Address: kenneth.staiduhar@va.gov

1.13 ~~BROKER COMMISSION AND COMMISSION CREDIT (OCT 2020)~~ INTENTIONALLY DELETED

1.14 NORTH AMERICAN INDUSTRY CLASSIFICATION SYSTEM (NAICS) CODE AND SMALL BUSINESS SIZE STANDARD (OCT 2023)

- A. The North American Industry Classification System (NAICS) code for this acquisition is 531120 (Exception).
- B. The small business size standard for the applicable NAICS code is found [HTTPS://WWW.SBA.GOV/SIZE-STANDARDS/](https://www.sba.gov/size-standards/).

SECTION 2 ELIGIBILITY AND PREFERENCES FOR AWARD

2.01 EFFICIENCY OF LAYOUT (AUG 2011)

- A. In order to be acceptable for the award, Space offered must provide a test fit layout for an efficient layout as determined by the LCO.
- B. To demonstrate potential for efficient layout, Offeror shall provide a test fit layout at the Offeror's expense, with initial proposal. The Government will advise the Offeror if the test fit layout demonstrates that the Government's requirement cannot be accommodated within the Space offered. The Offeror will have the option of increasing the ABOA square footage offered, if it does not exceed the maximum ABOA square footage in this RLP offer package. If the Offeror is already providing the maximum ABOA square footage and cannot house the Government's space requirements efficiently, then the Government will advise the Offeror that the offer is unacceptable.

2.02 FLOODPLAINS (OCT 2022)

A Lease will not be awarded for any offered Property located within a 1-percent-annual-chance floodplain (formerly referred to as 100-year floodplain) unless the Government has determined that there is no practicable alternative. An Offeror may offer less than its entire site in order to exclude a portion of the site that falls within a floodplain, so long as the portion offered meets all the requirements of this RLP and does not impact the Government's full use and enjoyment of the Premises. If an Offeror intends that the offered Property that will become the Premises for purposes of this Lease will be something other than the entire site as recorded in tax or other property records the Offeror shall clearly demarcate the offered Property on its site plan/map submissions and shall propose an adjustment to property taxes on an appropriate pro rata basis. For such an offer, the Government may determine that the offered Property does not adequately avoid development in a 1-percent-annual-chance floodplain.

In addition, a Lease will not be awarded for any offered Property adjacent to a 1-percent-annual-chance floodplain, where such an adjacency would, as determined by the Government, restrict ingress or egress to the Premises in the event of a flood, unless there is no practicable alternative.

2.03 ~~SEISMIC SAFETY—MODERATE SEISMICITY (MAY 2025)~~ INTENTIONALLY DELETED

2.04 ~~SEISMIC SAFETY—HIGH SEISMICITY (MAY 2025)~~ INTENTIONALLY DELETED

2.05 ASBESTOS (MAY 2025)

- A. The Government requires space with no asbestos-containing materials (ACM), or with undamaged, nonfriable ACM. For purposes of this paragraph, "space" includes the 1) space offered for lease; 2) common building area; 3) ventilation systems and zones serving the space offered; and 4) the area above suspended ceilings and engineering space in the same ventilation zone as the space offered. Notwithstanding the preceding, if no offers are received for such space, the Government may consider space with thermal system insulation ACM (e.g., wrapped pipe or boiler lagging), which is not damaged or subject to damage by routine operations.
- B. ACM is defined as any material with a trace or more of asbestos quantity present.
- C. Space with ACM of any type or condition may be upgraded by the Offeror to meet conditions described in sub-paragraph A by abatement (removal, enclosure, encapsulation, or repair) of ACM not meeting those conditions. If any offer involving abatement of ACM is accepted by the Government, the successful Offeror will be required to successfully complete the abatement in accordance with OSHA (29 CFR § 1910.1001, 29 CFR § 1926.1101), EPA (40 CFR Part 61 - National Emission Standards for Hazardous Air Pollutants and Part 763), state, and local regulations and guidance prior to occupancy.
- D. Management Plan and Reinspection Report Submittals. If space is offered which contains ACM, the Offeror shall submit a current asbestos-related management plan or operations and maintenance plan, along with a current asbestos re-inspection report (performed within the past 5 years) that includes a list of all ACM and their condition for acceptance by the Government prior to lease award. The management plan or operations and maintenance plan, and re-inspection report shall conform to generally accepted industry practice in accordance with OSHA (29 CFR § 1910.1001, 29 CFR § 1926.1101), EPA (40 CFR Part 61 - National Emission Standards for Hazardous Air Pollutants and Part 763).
- E. The Government reserves the right to review Offeror's existing records for compliance.

2.06 ACCESSIBILITY (SEP 2013)

The Lease contemplated by this RLP contains requirements for Accessibility. In order to be eligible for award, Offeror must either:

- A. Verify in the Lease proposal that the Building, offered Space, and areas serving the offered Space meet the Lease accessibility requirements, or
- B. Include as a specific obligation in its Lease proposal that improvements to bring the Building, offered Space, and areas serving the offered Space into compliance with Lease accessibility requirements will be completed prior to acceptance of the Space.

2.07 FIRE PROTECTION AND LIFE SAFETY (SEP 2013)

The Lease contemplated by this RLP contains Building requirements for Means of Egress, Automatic Fire Sprinkler System, and Fire Alarm System. In order to be eligible for award, Offeror must:

- A. Verify in the Lease proposal that the building in which Space is offered meets the Means of Egress, Automatic Fire Sprinkler System, and Fire Alarm System requirements of the Lease; or
- B. Include as a specific obligation in its Lease proposal that improvements to bring the building into compliance with Lease requirements will be completed prior to acceptance of the Space.

2.08 ENERGY INDEPENDENCE AND SECURITY ACT (MAY 2025)

- A. The Energy Independence and Security Act (EISA) establish requirements for Government leases relating to energy efficiency standards and potential cost-effective energy efficiency and conservation improvements.
- B. Subject to the exceptions below, unless one of the statutory exceptions listed in sub-paragraph C below applies, VA may award a lease for a Building only if the building has earned the ENERGY STAR® label conferred by the U.S. Environmental Protection Agency (EPA) within the most recent year prior to the due date for final proposal revisions. The term "most recent year" means that the date of award of the ENERGY STAR® label by EPA must not be more than 1 year prior to the due date of final proposal revisions. For example, an ENERGY STAR® label awarded by EPA on October 1, 2023, is valid for all lease procurements where final proposal revisions are due on or before September 30, 2024. Notwithstanding the above, buildings that meet any of the following are considered as equivalent to having an Energy Star label in the most recent year, provided they achieve an ENERGY STAR® label within 18 months after occupancy by the Government:
 - 1. All new Buildings being specifically constructed for the Government, provided they achieve an ENERGY STAR® label within 18 months after occupancy by the Government, and received the "Designed to Earn the Energy Star®" certification prior to construction;
 - 2. All existing Buildings that have had an Energy Star® label but are unable to obtain a label in the most recent year (i.e., within 12 months prior to the due date for final proposal revisions) because of insufficient occupancy;
 - 3. Newly built Buildings that have used Energy® Star's Target Finder tool and either achieved a "Designed to Earn the Energy Star®" certification or received an unofficial score (in strict adherence to Target Finder's usage instructions, including the use of required energy modeling) of 75 or higher prior to the due date for final proposal revisions and who are unable to obtain a label in the most recent year because of insufficient occupancy; or
 - 4. An existing Building that is unable to obtain a label because of insufficient occupancy but that can produce an indication, through the use of energy modeling or past utility and occupancy data input into Energy Star's® Portfolio Manager tool or Target Finder, that it can receive an unofficial score of 75 or higher using all other requirements of Target Finder or Portfolio Manager, except for actual data from the most recent year..
- C. Subject to subparagraph D below, EISA allows a federal agency to lease Space in a Building that does not have an ENERGY STAR® Label if:
 - 1. No Space is offered in a Building with an ENERGY STAR® Label that meets RLP requirements, including locational needs;
 - 2. The agency will remain in a Building it currently occupies;
 - 3. The Lease will be in a Building of historical, architectural, or cultural significance listed or eligible to be listed on the National Register of Historic Places; or
 - 4. The Lease is for 10,000 RSF or less.
- D. If one or more of the statutory exceptions applies, and the offered Space is not in a Building that has earned the ENERGY STAR® Label within one year prior to the due date for final proposal revisions, Offerors are required to include in their lease proposal an agreement to renovate the Building for all energy efficiency and conservation improvements that it has determined would be cost effective over the Firm Term of the Lease, if any, prior to acceptance of the Space (or not later than one year after the Lease Award Date of a succeeding or superseding lease). Such improvements may consist of, but are not limited to, the following:
 - 1. Heating, Ventilating, and Air Conditioning (HVAC) upgrades, including boilers, chillers, and Building Automation System (BAS) /Monitoring/Control System (EMCS).
 - 2. Lighting Improvements.
 - 3. Building Envelope Modifications.
- E. The term "cost effective" means an improvement that will result in substantial operational cost savings to the landlord by reducing electricity or fossil fuel consumption, water, or other utility costs. The term "operational cost savings" means a reduction in operational costs to the landlord

through the application of Building improvements that achieve cost savings over the Firm Term of the Lease sufficient to pay the incremental additional costs of making the building improvements.

- F. Instructions for obtaining an ENERGY STAR® Label are provided at [HTTP://WWW.ENERGYSTAR.GOV/BUILDINGS/FACILITY-OWNERS-AND-MANAGERS/EXISTING-BUILDINGS/EARN-RECOGNITION/](http://www.energystar.gov/buildings/facility-owners-and-managers/existing-buildings/earn-recognition/) (use "Portfolio Manager" to apply). The ENERGY STAR® Building Upgrade Manual ([HTTP://WWW.ENERGYSTAR.GOV/BUILDINGS/FACILITY-OWNERS-AND-MANAGERS/EXISTING-BUILDINGS/SAVE-ENERGY/](http://www.energystar.gov/buildings/facility-owners-and-managers/existing-buildings/save-energy/)) and Building Upgrade Value Calculator ([HTTP://WWW.ENERGYSTAR.GOV/BUILDINGS/TOOLS-AND-RESOURCES/BUILDING-UPGRADE-VALUE-CALCULATOR](http://www.energystar.gov/buildings/tools-and-resources/building-upgrade-value-calculator/)) are tools which can be useful in considering energy efficiency and conservation improvements to Buildings.
- G. If one or more of the statutory exceptions applies, and the offered Space is not in a Building that has earned the ENERGY STAR® Label within one year prior to the due date for final proposal revisions, the successful Offeror will be excused from performing any agreed-to energy efficiency and conservation renovations, and benchmarking with public disclosure (as provided in (I) below, if it obtains the ENERGY STAR® Label prior to the Government's acceptance of the Space (or not later than one year after the Lease Award Date for succeeding and superseding leases).
- H. If no improvements are proposed, the Offeror must demonstrate to the Government using the ENERGY STAR® Online Tools why no energy efficiency and conservation improvements are cost effective. If such explanation is unreasonable, the offer may be rejected.
- I. As described in Section 3 of the Lease, successful Offerors meeting one of the statutory exceptions above must agree to benchmark and publicly disclose the building's current ENERGY STAR® score, using EPA's Portfolio Manager online software application. See the Lease for additional details.
- J. All new Buildings being specifically constructed for the Government must achieve the ENERGY STAR® Label within 18 months after occupancy by the Government.
- K. INTENTIONALLY DELETED

2.09 ENVIRONMENTAL CONSIDERATIONS (SEP 2013)

- A. The Government requests space with no known hazardous conditions or recognized environmental conditions that would pose a health and safety risk or environmental liability to the Government.
- B. Upon request by the Government, Offeror must provide all known previous use of the building.
- C. Offeror must indicate in its written offer any known hazardous conditions or environmental releases with/from the offered Space, Building or Property.

2.10 DUE DILIGENCE AND NATIONAL ENVIRONMENTAL POLICY ACT REQUIREMENTS - RLP (OCT 2023)

- A. Environmental Due Diligence.
 - 1. At the direction of the LCO, the Offeror must provide, at the Offeror's sole cost and expense, a current Phase I Environmental Site Assessment (ESA), using the American Society for Testing and Materials (ASTM) Standard E1527-21 and timeline, as such standard may be revised from time to time. In accordance with ASTM standards, the study must be performed by an environmental professional with qualifications that meet ASTM standards. This Phase I ESA must be prepared with a focus on the Government being the "user" of the Phase I, as the term "user" is defined in E1527-21. Failure to submit the required study may result in dismissal from consideration.
 - 2. If the Phase I ESA identifies any recognized environmental conditions (RECs), the Offeror will be responsible for addressing such RECs, at its sole cost and expense, including performing any necessary Phase II ESA (using ASTM Standard E1903-11), performing any necessary cleanup actions in accordance with federal and state standards and requirements and submitting a proposed schedule for complying with these obligations. The Government will evaluate whether the nature of any of the RECs, the results of the Phase II, any completed cleanup, and the proposed schedule meet the Government's needs.
- B. National Environmental Policy Act.
 - 1. While the Offeror is responsible for performing all environmental due diligence studies of the offered Property, the Government is responsible for compliance with NEPA, whether in whole or in part, on its own or with the assistance of the Offerors. NEPA requires federal agencies to consider the effects of their actions on the quality of the human environment as part of the federal decision-making process and, to that end, the Government's obligations may, and in some cases will, be augmented by the Offerors as described in greater detail in the RLP.
 - 2. The Government may either request information from the Offerors to help it meet its obligations under NEPA or share information provided in response to this provision with federal, state and local regulatory agencies as part of its compliance responsibilities under NEPA and other applicable federal, state and local environmental laws and regulations. Further consultation with these regulatory agencies may be necessary as part of the NEPA process.
 - 3. The Offerors are advised that the Government may be required to release the location of each offered site and other building specific information in public hearings or in public NEPA documents. By submitting an offer in response to this RLP and without the need for any further documentation, the Offeror acknowledges and consents to such release.

4. The Government reserves the right to reject any offer where (i) the NEPA-related documentation provided by the Offeror for the offered Property is inadequate, (ii) the offer entails unacceptably adverse impacts on the human environment, (iii) the identified adverse impacts cannot be readily mitigated, or (iv) the level of NEPA analysis is more extensive than is acceptable to the Government.
5. An Offeror must allow the Government access to the offered Property to conduct studies in furtherance of NEPA compliance. This requires research and field surveys to assess the potential impacts to the natural, social and cultural environments. Any recent studies previously conducted by the Offeror may be submitted to be included in the NEPA process.
6. The Government will not proceed with Lease award until the NEPA process is complete as evidenced by the Government's issuance of a completed CATEX, EA or Environmental Impact Statement (EIS). Upon Lease award, any mitigation measures, whether optional or mandatory, identified and adopted by the Government will become Lease obligations. All costs and expenses for development of design alternatives, mitigation measures and review submittals for work to be performed under the Lease will be the sole responsibility of Lessor.

2.11 NATIONAL HISTORIC PRESERVATION ACT REQUIREMENTS - RLP (OCT 2023)

- A. The Government is responsible for complying with section 106 of the National Historic Preservation Act of 1966, as amended, 54 U.S.C. § 306108 (Section 106). Section 106 requires federal agencies to consider the effects of their actions on historic properties prior to expending any federal funds on the undertaking. The Government is responsible for identifying whether any historic properties exist in, on, under, or near the offered Property that could be affected by the leasing action. Historic properties include both above-grade (*i.e.*, buildings and historic districts) and below-grade (*i.e.*, archeological sites) resources. The Government is responsible for assessing effects to identified historic properties and for consulting with the State Historic Preservation Officer (SHPO), the Tribal Historic Preservation Officer (THPO), if applicable, any local Historic Preservation or Landmarks Commission, and other interested parties, if applicable, in accordance with the implementing regulations set forth at 36 C.F.R. part 800 (Protection of Historic Properties).
- B. An Offeror must allow the Government access to the offered Property to conduct studies in furtherance of the Section 106 compliance. This requires research and field surveys to assess the potential presence of historic properties that may be affected by construction activity, both above- and below-grade. Compliance also may require below-grade testing to determine the presence of archeological resources and possible artifact recovery, recordation and interpretation mitigation measures.
- C. Demolition or destruction of a historic property by an Offeror in anticipation of an award of a Government lease may disqualify the Offeror from further consideration.
- D. The Government reserves the right to reject any offer where documentation for the offered Property is inadequate or otherwise indicates preservation concerns or adverse effects to historic properties that cannot be minimized or reasonably mitigated, or where the level of NHPA analysis is more extensive than is acceptable to the Government.
- E. If the Government determines that the leasing action could affect historic property, the Offeror of any Property that the Government determines could affect historic property will be required to retain, at its sole cost and expense, the services of a preservation architect who meets or exceeds the *Secretary of the Interior's Professional Qualifications Standards for Historic Architecture*, as amended and annotated and previously published in the Code of Federal Regulations, 36 C.F.R. part 61, and the GSA's *Qualification Requirements for Preservation Architects and Other Specialists*. These standards are available at: [HTTPS://WWW.GSA.GOV/REAL-ESTATE/HISTORIC-PRESERVATION/HISTORIC-PRESERVATION-POLICY-TOOLS/](https://www.gsa.gov/real-estate/historic-preservation/historic-preservation-policy-tools/). The preservation architect will be responsible for developing preservation design solutions and project documentation required for review by the Government, the SHPO, the THPO, if applicable, and other consulting parties in accordance with Section 106. For Tenant Improvements and other tenant-driven alterations within an existing historic building, the preservation architect must develop context-sensitive design options consistent with the *Secretary of the Interior's Standards for the Treatment of Historic Properties*. Where new construction or exterior alterations, or both, are located within a historic district, may be visible from historic properties or may affect archeological resources, compliance may require tailoring the design of the improvements to be compatible with the surrounding area. Design review may require multiple revised submissions, depending on the complexity of the project and potential for adverse effects to historic properties, to respond to comments from the Government and the other consulting parties. Within GSA, the Regional Historic Preservation Officer is solely responsible for corresponding with the SHPO, the THPO, if applicable, and any other consulting party. All design costs and expenses relating to satisfying the requirements of this paragraph will be borne solely by the Offeror.

SECTION 3 HOW TO OFFER

3.01 GENERAL INSTRUCTIONS (JUN 2012)

Offeror shall prepare a complete offer, using the forms provided with this RLP, and submit the completed lease proposal package to the Government as indicated below.

3.02 RECEIPT OF LEASE PROPOSALS (OCT 2024)

A. Electronic Method

1. Offeror is authorized to transmit its lease proposal as an attachment to an email or via VA accessible cloud/SharePoint/server. Offeror's email shall include the name, address and telephone number of the Offeror, and identify the name and title of the individual signing on behalf of the Offeror. Offeror's signed lease proposal must be saved in a generally accessible format (such as portable document format (pdf)), which displays a visible image of all original document signatures and must be transmitted as an attachment to the email. Only emails transmitted to, and received at, the VA email addresses identified in the RLP will be accepted (or via VA accessible cloud/server). Offeror submitting a lease proposal by email shall retain in its possession, and make available upon VA's request, its original signed proposal. **ONLY OFFERS SUBMITTED VIA EMAIL OR VA ACCESSIBLE CLOUD/SERVER SHALL BE ACCEPTED.** There is no paper-based submission process under this RLP and paper submissions will not be considered, unless otherwise authorized by the LCO.

2. In order to be considered for award, offers conforming to the requirements of the RLP shall be received:

No later than **3:00PM Local Time** on the following date at the following email address:

Date: **April 21, 2026**
Email: KENNETH.STAIDUHAR@VA.GOV
LEE.GRANT@VA.GOV

3. VA currently anticipates award on or before September 1, 2026. Offers must remain open and pricing must remain valid, until award date.
 - a. Offers shall be submitted to the VA, at the above reference emails (or to those emails via VA accessible cloud/sharepoint/server).
 - b. **Offers shall be properly signed, initialed, converted to a .PDF file and indexed with bookmarks, is preferred, a Table of Contents page is mandatory.**
 - c. The technical proposal shall not contain any pricing information.
 - d. Forms are applicable to offeror's proposal. Please fully read the RLP to make sure offeror is submitting all required documents.
 - e. **To the extent items are missing and/or are not adequately addressed, the Contracting Officer may determine the proposal to be unacceptable and therefore excluded from the competition, at the sole discretion of the Contracting Officer.**
4. Offers transmitted through email shall be deemed late if received at the designated email address after the date and time established for receipt of offers unless it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one Working Day prior to the date specified for receipt of proposals. **Offeror must limit email attachments to less than 20 megabytes (MB), per email. Emails transmitted with attachments exceeding this 20 MB limit will not be deemed in receipt by the Contracting office. Offerors are required to send separate emails with attachments conforming to the 20 MB limit.**
5. Offers delivered through any means authorized by the RLP may be also deemed timely if there is acceptable evidence to establish that it was received at the Government installation designated for receipt of proposals and was under the Government's control prior to the time set for receipt of proposals; or if it was the only proposal received.

VA is providing the following framework as an example only (noting that attachment(s) under any email would need to meet the 20 MB requirement of Section 3.02(4):

***EXAMPLE RLP EMAIL SUBMISSION FRAMEWORK:**

****EMAIL 1:** Factor 1 PDF submission;
****EMAIL 2:** Factor 2 PDF submission;
****EMAIL 3:** Factor 3 PDF submission;
****EMAIL 4:** Factor 4 PDF submission;
****EMAIL 5:** Factor 5 PDF submission;
****EMAIL 6:** Factor 6 PDF submission;
****EMAIL 7:** Technical Compliance Documentation and RLP Section 3.06 Additional submittals (including:
(a) All required submittals under RLP Section 3.06; (b) all Offeror executed documentation under RLP Section 1.06; (c) required SDVOSB verification documentation under RLP Section 4.04, and (d) all other other required documentation).

* Offerors are **not required** to submit under the VA example framework provided. All Offerors may deviate as would allow for successful transmission of their offer to the VA, under the terms of the RLP, however, **factor submissions must be clearly identified under the submission (SEE RLP Section 3.02(A)(3)(b)).**

- B. There will be no public opening of offers, and all offers will be confidential until the Lease has been awarded. However, the Government may release proposals outside the Government such as to support contractors to assist in the evaluation of offers. Such Government contractors shall be required to protect the data from unauthorized disclosure.

3.03 PRICING TERMS (OCT 2022)

Offeror shall provide the following pricing information with its offer:

- A. GSA Form 1217, Lessor's Annual Cost Statement. Complete all sections of 1217.
- B. GSA Form 1364, Proposal to Lease Space. Complete all sections of 1364, including, but not limited to:
1. A fully serviced Lease rate (gross rate) per ABOA and RSF, clearly itemizing the total Building shell rental, TI rate, operating costs, and parking (itemizing all costs of parking above base local code requirements or otherwise already included in shell rent).
 2. Improvements. All improvements in the base Building, lobbies, common areas, and core areas shall be provided by the Lessor, at the Lessor's expense. This Building shell rental rate shall also include, but is not limited to, property financing (exclusive of TIs), insurance, taxes, management, profit, etc., for the building. The building shell rental rate shall also include all basic Building systems and common area buildout, including base Building lobbies, common areas, core areas, etc., exclusive of the ABOA Space offered as required in this RLP.
 3. The annual cost per ABOA and rentable square foot (RSF) for the cost of services and utilities. This equals line 27 of GSA Form 1217, Lessor's Annual Cost Statement, divided by the building size (shown on the top of both GSA Form 1364, Proposal to Lease Space, and Form 1217) for ABOA and RSF, respectively.
 4. The annual rent to amortize the Tenant Improvements. Such amortization shall be expressed as a cost per ABOA and RSF per year. This shall be all alterations for the Space above the Building shell. Such alterations shall be described and identified in the drawings used to construct the Space. If the Offeror chooses to amortize the TI for a period exceeding the Firm Term of the Lease, the Offeror shall indicate the extended time in the offer. If the Government terminates the Lease after the Firm Term or does not otherwise renew or extend the term beyond the Firm Term, the Government shall not be liable for any unamortized TI costs resulting from an extended amortization period.
 5. INTENTIONALLY DELETED.
 6. A shell rate per ABOA and RSF for that portion of the lease term extending beyond the Firm Term. The rate proposed for this portion of the term shall not reflect any Tis, as they will have been fully amortized over the Firm Term.
 7. **The VA prefers not to pay for overtime use of utility services**. However, an hourly overtime rate for overtime use of heating and cooling, and, if applicable, Adjustment for Reduced Services. Note. Refer to the Lease document for additional guidance.
 8. Adjustment for Vacant Leased Premises. Note. Refer to the Lease document for additional guidance.
 9. Lessor's Fees to complete Tenant Improvements. Provide a listing of proposed (i) Lessor's Project Management fee and (ii) Lessor's A/E design costs to prepare construction documents, to complete the Tenant Improvements, if applicable. State the basis for determining each component, (e.g., flat fee, cost per ABOA SF, etc.). State any assumptions used to compute the dollar costs for each fee component.
 10. Rent concessions being offered. Indicate either on the GSA Form 1364 Proposal to Lease Space or in separate correspondence.
 11. INTENTIONALLY DELETED.
- C. **Federal Security Level (FSL) Exhibit**. The Offeror shall consider the required shell and tenant improvement security measures recited under the FSL Exhibit and provide a cost breakdown of the security countermeasures which are outlined in the FSL Exhibit. FSL Exhibit includes various improvements and services to be provided by the Lessor. **Each item is classified as part of the shell or tenant improvements**. There shall be no charge to the Government for any items that already exist in the offered Building or facility.
- D. INTENTIONALLY DELETED
- E. INTENTIONALLY DELETED

3.04 BUDGET SCOREKEEPING; OPERATING LEASE TREATMENT (APR 2011)

The Government will award a Lease pursuant to this RLP only if the Lease will score as an operating lease under Office of Management and Budget Circular A-11, Appendix B. Only offers that are compliant with operating lease limitations will be eligible for award. Offerors are obligated to provide supporting documentation at the request of the LCO to facilitate the Government's determination in this regard.

3.05 PROSPECTUS LEASE (OCT 2022)

This RLP is subject to the Prospectus threshold set forth in 40 USC § 3307. The Government will award a Lease pursuant to this RLP only if the offered rental rate does not exceed the then current rent threshold. The current threshold is available from the LCO or at the GSA Web site, [HTTP://WWW.GSA.GOV](http://www.gsa.gov), using the keyword "prospectus."

3.06 ADDITIONAL SUBMITTALS (OCT 2024)

Offeror shall also submit with its offer the following:

- A. If the offeror is not the owner of the Property, authorization from the ownership entity to submit an offer on the ownership entity's behalf.
- B. Satisfactory evidence of at least a conditional commitment of funds in an amount necessary to prepare the Space, including Shell, TI, and BSAC improvements. Such commitments shall be signed by an authorized bank officer, or other legally authorized financing official, and at a minimum shall state: amount of loan, term in years, annual percentage rate, and length of loan commitment. Alternatively, if the Offeror is self-financing, Offeror must demonstrate, to the satisfaction of the LCO, that it has adequate financial resources to self-finance the necessary improvements, e.g., income statements, cash flow statements, balance sheets, three (3) months of bank statements showing sufficient on hand stable cash reserves to fund the improvements, letter from the entity's financial officer.
- C. Evidence that the Property is zoned in compliance with local zoning laws, including evidence of variances, if any, approved by the proper local authority. If the current zoning is not in compliance, the Offeror must submit a plan and time schedule outlining how they will obtain all necessary zoning approvals prior to construction and how long the necessary zoning approvals will take.
- D. Evidence of ownership or control of Building or site. If the Offeror owns the Property being offered or has a long-term leasehold interest, the deed or lease must be submitted to the LCO evidencing the Offeror's stated interest in the Property and any encumbrances on the Property.
- E. If the Offeror does not yet have a vested interest in the Property, but rather has a written agreement to acquire an interest, then the Offeror shall submit a fully executed copy of the written agreement with its offer, together with a statement from the current owner that the agreement is in full force and effect and that the Offeror has performed all conditions precedent to closing, or other form of documentation satisfactory to the LCO prior to award. These submittals must remain current. The Offeror is required to submit updated documents as required.
- F. Required Proof of Signing Authority: As a condition of lease award, the Government will require one of the following forms of proof of signing authority before the Government executes the Lease:
 - 1. Corporation. Copy of Articles of Incorporation and bylaws. In addition, a copy of the resolution, signed by the necessary directors of the corporation authorizing the corporate officer who will sign the lease to bind the corporation to the Lease.
 - 2. Partnership. Copy of Partnership Agreement, Statement of Partnership, or Statement of Limited Partnership and evidence of authority of signatory to bind the partnership if not expressly authorized by the Partnership Agreement.
 - 3. Limited Liability Company. Copy of the Articles of Organization and Operating Agreement. Also, evidence of the authority of the signing manager (if company is manager owned) or member (if the company is member managed) to sign, if not expressly authorized by the Articles of Organization and/or Operating Agreement.
 - 4. Joint Venture. Copy of Joint Venture Agreement and evidence of authority of signatory to bind the Joint Venture to the Lease.
- G. If there is a potential for conflict of interest because of a single agent representing multiple owners, present evidence that the agent disclosed the multiple representation to each entity and has authorization from each ownership entity offering in response to this RLP package. Owners and agents in conflicting interest situations are advised to exercise due diligence with regard to ethics, independent pricing, and Government procurement integrity requirements. In such cases, the Government reserves the right to negotiate with the owner directly.
- H. The Offeror must have an active registration in the System for Award Management (SAM), via the Internet at [HTTPS://WWW.SAM.GOV/SAM/](https://www.sam.gov/SAM/) prior to the Lease Award Date. Offerors must be registered for purposes of "All Awards," including completion of all required representations and certifications within SAM. This registration service is free of charge.
- I. The Offeror must submit the Fire Protection and Life Safety (FPLS) Information in subparagraph 1, unless the Building meets either exemption in subparagraphs 2 or 3 below.
 - 1. FPLS Submittal Information.
 - a. Completed GSA Form 12000, Prelease Fire Protection and Life Safety Evaluation for an Office Building (Part A or Part B, as applicable).
 - b. A copy of the previous year's fire alarm system maintenance record showing compliance with the requirements in NFPA 72 (if a system is installed in the Building).
 - c. A copy of the previous year's automatic fire sprinkler system maintenance record showing compliance with the requirements in NFPA 25 (if a system is installed in the Building).

- d. A valid Building Certificate of Occupancy (C of O) issued by the local jurisdiction. If the Building C of O is not available or the local jurisdiction does not issue a Building C of O, provide either:
 - I. A report prepared by a licensed fire protection engineer with their assessment of the Building regarding compliance with all applicable local Fire Protection and Life Safety-related codes and ordinances or,
 - II. For offers of new construction only, documentation indicating the Building Code (including edition) to which the Building is being constructed and a written commitment to meet all of the mandatory FPLS lease requirements in the Lease.
2. If the Space offered is 10,000 RSF or less in area and is located on the 1st floor of the Building, Offeror is not required to submit to VA the Fire Protection and Life Safety (FPLS) Submittal Information listed in 1.a through 1.d above.
3. If the Offeror provides a Building C of O obtained under any edition of the International Building Code (IBC), and the offered Space meets or will meet all the requirements of the Lease with regard to Means of Egress, Automatic Fire Sprinkler System, and Fire Alarm System prior to occupancy, then the Offeror is not required to submit to VA the FPLS Submittal Information listed in 1 above.
- J. The legal description of the Property and tax ID number associated with the Property, copies of prior year tax notices and prior year tax bills, as well as any other information (such as a fact sheet, 5" wide x 3" high or larger color photograph, site plan, location map, and tax parcel map) in case of multiple tax parcels for an offered Building, or multiple buildings on a tax parcel, and any other information that may affect the assessed value, in order for the Government to perform a complete and adequate analysis of the offered Property. The Offeror is to provide a detailed overview and documentation of any Tax Abatements on the Property as outlined in the "Real Estate Tax Adjustment" paragraph of the Lease.
- K. A plan and short narrative as necessary to explain how the Offeror will meet the parking requirements.
- L. The architectural plans for modernization, if the offered Building is not a modern office Building.
- M. A current asbestos management plan or operations and management plan, along with a current reinspection report (performed within the past 5 years), if the offered Building contains asbestos-containing materials.
- N. Computer generated plans set to 1/8" = 1'-0" (preferred meeting sub-paragraphs 1 through 5 noted below):
 1. All plans submitted for consideration shall include floor plan(s) for which Space is being offered and floor plan(s) of the floor(s) of exit discharge (e.g., street level(s)). Each plan submitted shall include the locations of all exit stairs, elevators, and the Space(s) being offered to the Government. In addition, where Building exit stairs are interrupted or discontinued before the level of exit discharge, additional floor plans for the level(s) where exit stairs are interrupted or discontinued must also be provided.
 2. All plans submitted for consideration shall have been generated by a Computer Aided Design (CAD) program which is compatible with the latest release of AutoCAD. The required file extension is .DWG. Plans shall include a proposed corridor pattern for typical floors and/or partial floors. The CAD file showing the offered Space should show the Poly-Line utilized to determine the square footage on a separate and unique layer. All submissions shall be accompanied with a written matrix indicating the layering standard to verify that all information is recoverable. All architectural features of the Space shall be accurately shown.
 3. All architectural features of the Space shall be accurately shown. If conversion or renovation of the Building is planned, alterations to meet this RLP shall be indicated.
 4. Plans shall reflect corridors in place or the proposed corridor pattern for both a typical full (single tenant) floor and/or partial (multi-tenant) floor. The corridors in place or proposed corridors shall meet local code requirements for issuance of occupancy permits.
 5. VA will review all plans submitted to determine if an acceptable level of safety is provided. In addition, VA will review the common corridors in place and/or proposed corridor pattern to determine whether these achieve an acceptable level of safety as well as to verify that the corridors provide public access to all essential Building elements. The Offeror will be advised of any adjustments that are required to the corridors for determining the ABOA Space. The required corridors may or may not be defined by ceiling-high partitions. Actual corridors in the approved layout for the successful Offeror's Space may differ from the corridors used in determining the ABOA square footage for the lease award. Additional egress corridors required by the tenant agency's design intent drawings will not be deducted from the ABOA square footage that the most efficient corridor pattern would have yielded.
- O. As provided in the "Amount and Type of Space, Lease Term, and Occupancy Date" paragraph in the RLP, advise whether there are existing vending facilities in the offered Building which have exclusive rights in the Building.
- P. Provide evidence demonstrating amenities do or will exist by the Government's required occupancy date. Such evidence shall include copies of signed leases, construction contracts, or other documentation as deemed acceptable by the LCO.
- Q. No later than the due date for final proposal revisions, the Offeror must submit to the LCO:
 1. Evidence of an Energy Star® label obtained within the 12 months prior to the due date of final proposal revisions,
 2. Offerors falling under a statutory exception must also indicate by the due date for final proposal revisions what cost effective energy efficiency and conservation improvements they are proposing to make.

3. If no cost-effective improvements can be made, the Offeror must demonstrate to the Government using the ENERGY STAR® Online Tools referenced in the RLP paragraph, entitled "ENERGY INDEPENDENCE AND SECURITY ACT," why no energy efficiency and conservation improvements are cost effective. This explanation will be subject to review by the LCO. If the explanation is considered unreasonable, the offer may be considered technically unacceptable.
 4. If the Offeror is claiming eligibility for additional time to obtain the Energy Star® label per sub-paragraph B of the RLP paragraph entitled "Energy Independence and Security Act," then the Offeror shall provide such indication with its initial offer and also must provide by the due date for final proposal revisions evidence substantiating their claim for additional time to obtain the Energy Star® label and substantiating their capability of earning the Energy Star®.
 5. For new construction, the Offeror need not submit anything regarding compliance with EISA by the date of final proposal revisions, but shall be required to produce prior to the issuance of a permit for building construction a Statement of Energy Design Intent (SEDI) using Energy Star's® Target Finder online tool reflecting an Energy Star® benchmark score of 75 or higher and a certification from EPA of being Designed to Earn the Energy Star®.
- S. For projects 10,000 RSF and above, the Offeror must provide documentation of the proposed Leadership in Energy and Environmental Design® for New Construction (LEED®-NC) credits for Silver level certification. For LEED®, this documentation is the LEED®-NC scorecard. Along with the proposed scorecard or checklist, the Offeror shall submit a brief statement outlining how each of the proposed credits will be achieved. If pursuing LEED®-NC, the Offeror must identify the U.S. Green Building Council LEED® Accredited Professionals as team members, including their roles throughout the project.
- T. The Offeror must provide a Leadership in Energy and Environmental Design® for Interior Design and Construction (LEED®-ID+C) scorecard documenting the proposed credits to meet LEED® certification (at the minimum Certified level). Along with the proposed LEED®-ID+C scorecard, the Offeror shall submit a brief statement outlining how each of the Credits proposed on the scorecard or checklist will be achieved. In addition, the Offeror must identify the U.S. Green Building Council LEED® accredited professionals as team members, including their roles throughout the project.
- U. Evidence of seismic safety compliance as required in Section 2 of this RLP.
- V. If applicable, information required under paragraph entitled "DUE DILIGENCE AND NATIONAL ENVIRONMENTAL POLICY ACT REQUIREMENTS - RLP."
- W. If applicable, information required under paragraph entitled "NATIONAL HISTORIC PRESERVATION ACT REQUIREMENTS - RLP."
- X. If the Offeror requests any deviations, all deviations must be documented on Form 1364 in block labeled "Additional Remarks or Conditions with Respect to this Offer." GSA at its sole discretion will make the decision whether or not to accept the deviation. Any deviations must be requested prior to the request for final proposal revisions. If the Offeror requests any deviations, VA at its sole discretion will make the decision whether to accept the deviation.
- Y. If more than 5,000 square feet of land area is to be disturbed in order to meet the Government's requirements, (as more fully described in the lease paragraph named ENERGY INDEPENDENCE AND SECURITY ACT, sub-paragraph (B)(1)(b)), a statement from Offeror that the Offeror is aware of and will comply with the specific Lease requirements concerning maintenance and restoration of the real property's hydrology.
- Z. INTENTIONALLY DELETED
- AA. INTENTIONALLY DELETED
- AB. FAR 52.204-24, Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment, as applicable.
- AC. A construction schedule giving the dates on which the various phases of permitting, design and construction (including principal categories of work) will be completed to coincide with the Government's required occupancy date and the milestones as outlined under the Lease.
- AD. INTENTIONALLY DELETED
- AE. The Offeror must have an established vendor account at the VA Customer Engagement Portal located at <https://www.cep.fsc.va.gov/>; and have submitted and established payment records with the VA Financial Services Center (FSC), via the modernized webform (VA10091) prior to the Lease Award Date. .
- AF. Offerors are required to complete, execute (or initial where applicable); and return all RLP Exhibits recited in RLP Section 1.06.

3.07 TENANT IMPROVEMENTS INCLUDED IN OFFER (OCT 2020)

- A. Tenant Improvement Turnkey Pricing.
An Agency Specific Requirements (ASR) package is provided with this RLP to all Offerors upon which to base their TI pricing. (TIs are the finishes and fixtures that typically take Space from the "shell" condition to a finished, usable condition.) All TIs required by the Government for occupancy shall be performed by the successful Offeror as part of the rental consideration and all improvements shall meet the quality standards and requirements of this RLP and its attachments.

- B. The Tenant Improvements shall include all the Offeror's administrative costs, general contractor fees, subcontractor's profit and overhead costs, Offeror's Project Management fee, design costs, and other associated project fees necessary to prepare construction documents and to complete the TIs. It is the successful Offeror's responsibility to prepare all documentation (working/construction drawings, etc.) required to receive construction permits. NO COSTS ASSOCIATED WITH THE BUILDING SHELL SHALL BE INCLUDED IN THE TI PRICING.

3.08 TURNKEY PRICING WITH DESIGN INTENT DRAWINGS PRIOR TO AWARD (OCT 2017)

- A. Following the receipt of initial offers, all Offerors comprising the competitive range must coordinate for pre-award DIDs workshops between their respective design and construction teams, and the tenant agency. These workshops are to develop, review, and complete final DIDs before final pricing is submitted, and prior to award of the Lease. The Government will advise Offerors when the workshops will commence. The Offeror shall base the TI portion of its overall pricing on the final approved DIDs and the specifications in this RLP and attachments. **This TI price will become a firm-fixed price which the Offeror will include in the final lease proposal's TICS form and be paid by the VA in lump sum upon space acceptance.** The Government reserves the right to make no-cost tradeoffs in the TIs after award. No costs associated with the Building shell shall be included in the TI pricing. Two DIDs meetings will be held with each offeror.
- B. DIDs, for the purposes of the Lease, are defined as layout line drawings of the leased Space, reflecting all Lease requirements, showing partitions and doors; schematic demolition; voice, data, and electrical outlet locations; finishes; generic furniture layout, and any additional details necessary to communicate the design intent to the lessor's architect for the purpose of preparing the construction documents (CDs). A full DID set must include the following elements:
- Level 1.
1. Cover Sheet;
 2. Site Plan
 3. Parking Plan
 4. Demolition Plan (if applicable);
 5. Construction (Partition) Plan:
 - a. Must include:
 - I. Floor Plan
 - II. RSF and ABOA Square Footage Plan
 6. Power/Data/Communication (Electrical) Plan (OIT room/ Cameras/Access Control/Network Switches/ Generator);
 7. Furniture Plan (estimated); and
 8. Finish Plan.
- C. At the DID workshop, the Lessor shall provide a minimum of three (3) **COLOR** options to include coordinated samples of finishes for all interior elements such as paint, wall coverings, base coving, carpet, window treatments, laminates, and flooring. All samples provided must comply with specifications set forth elsewhere in the Lease. The finish options shall be approved by the Government at the DID workshop. The Lessor may not make any substitutions after the finish option is selected.

3.09 SECURITY IMPROVEMENTS INCLUDED IN OFFER (OCT 2022)

- A. FSL Tenant Improvements Pricing. The FSL Tenant Improvement amount is to be included in the final Tenant Improvement firm fixed price offer. The FSL requirements are to be build-out as the security-related improvements in the Building in accordance with the Government-approved design intent drawings, where applicable. All security countermeasures required by the Government for occupancy shall be performed by the successful Offeror as part of the rental consideration, and all improvements shall meet the quality standards and requirements of this RLP package and its attachments.
- B. The FSL tenant improvement items shall include all the Offeror's administrative costs, general contractor fees, subcontractor's profit and overhead costs, Offeror's Project Management fee, design costs, and other associated project fees necessary to prepare construction documents and to complete the security countermeasures. It is the successful Offeror's responsibility to prepare all documentation (working/construction drawings, etc.) required to receive construction permits.

3.10 HIGH-PERFORMANCE BUILDING RATING CERTIFICATION FOR TENANT INTERIORS (MAY 2025)

The project TIs shall incorporate any necessary design parameters for the Space to meet Leadership in Energy and Environmental Design for Interior Design and Construction requirements (at the minimum Certified level) into the Design Intent Drawings (DIDs), if applicable, or Construction Drawings.

The Lessor must coordinate TI and shell requirements as necessary to meet the certification.

3.11 OPERATING COSTS REQUIREMENTS INCLUDED IN OFFER (JUN 2012)

The Government requires a fully serviced Lease as part of the rental consideration. The base for the operating costs adjustment will be established during negotiations based upon rentable SF. The proposed methodology for operating costs adjustment shall include all items specified in the attached Lease document. The minimum requirements for normal hours, utilities, and janitorial services are specified in the attached Lease document. The offer shall clearly state whether the rental is firm throughout the term of the Lease or if it is subject to annual adjustment of operating costs as indicated above. If operating costs will be subject to adjustment, those costs shall be specified in the proposal.

3.12 UTILITIES SEPARATE FROM RENTAL / BUILDING OPERATING PLAN (JUN 2012) INTENTIONALLY DELETED

SECTION 4 METHOD OF AWARD

4.01 NEGOTIATIONS (OCT 2023)

Negotiations may be conducted on behalf of the Government by the VA LCO or designated representative. When negotiations are conducted, VA will negotiate the rental price for the initial term, any renewal periods, and any other aspect of the offer as deemed necessary. The Offeror shall not enter into negotiations concerning the Space leased or to be leased with representatives of Federal agencies other than the LCO or their designee. The LCO or their designated representative will conduct oral or written negotiations with all Offerors that are within the competitive range. The competitive range will be established by the LCO based on cost or price and other factors (if any) that are stated in this RLP and will include all of the most highly rated proposals, unless the range is further reduced for purposes of efficiency. Offerors who are not included in the competitive range will be notified in writing.

All Offerors within the competitive range will be provided a reasonable opportunity to submit revisions to their initial offer including any cost or price, technical, or other revisions that may result from the negotiations. Negotiations will be closed with submission of final proposal revisions.

4.02 HUBZONE SMALL BUSINESS CONCERN PRICE PREFERENCE WAIVER (OCT 2023)

A HUBZone small business concern (SBC) Offeror may elect to waive the price evaluation preference provided in the "Award Based On Price" paragraph or the "Other Evaluation Factors" paragraph of the RLP by so indicating on the GSA Form 1364, Proposal to Lease Space. In such a case, no price evaluation preference shall apply to the evaluation of the HUBZone SBC.

4.03 ~~AWARD-BASED ON PRICE (OCT 2023)~~

4.04 OTHER EVALUATION FACTORS (OCT 2023)

- A. The Lease will be awarded to the responsible Offeror whose offer conforms to the requirements of this RLP package and will be most advantageous to the Government, price and technical evaluation factors listed below considered. The best value tradeoff process permits tradeoffs among price and technical factors, allowing the Government to make an award to other than the lowest priced Offeror or other than the highest technically rated Offeror.
- B. The combination of factors below is **significantly less important than price**. As proposals become more equal in price, their technical merit becomes more important. Likewise, as technical factors become more equalized, price becomes the most important component.
- C. The following evaluation factor(s) will be considered :
 - 1. Factor 1 **Price**
 - 2. Factor 2 **Technical Quality**
 - a. Space Layout
 - b. Quality of Site Characteristics & Location
 - c. Operations & Maintenance Plan
 - 3. Factor 3 **Past Performance**
- D. See FAR Clause 52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns, as listed under the attached GSA 3517, General Clauses.
- E. If an offer contains terms modifying any Lease provision, the Government will not be under any obligation to award a Lease in response to that offer.

4.05 EVALUATION FACTOR DESCRIPTION

- A. FACTOR 1: Price:** The basic price offered will be the rate per ABOA. This price shall be used to determine the total annual rental to be paid, adjusted for any discrepancies in the quality of space delivered against the amount offered and accepted, as described elsewhere in this Solicitation.
- B. FACTOR 2: Technical Quality:** The offeror must address space layout and flexibility, this considers, the interior functional and special relationships shown in the test-fit-layout and compliance with the VA's requirements. The building can be new construction or existing of permanent materials and shall be compatible with its surroundings. Acceptable facades include stone, brick or aluminum curtain wall systems, architectural metal panel systems, or other permanent materials as indicated on contract documents.

The factor considers the interior functional and spatial relationships shown in the VA approved DIDs. The space offered shall be of shape and dimensions that will accommodate the space program and interior functional requirements. Consideration will be given to the building efficiency, functionality, energy conservation, and the way natural daylight is accessed within the building design (e.g., number of windows and skylights as well as their location). Consideration will be given to the number and size of floors, column placement, shape of footprint and circulation systems. Consideration will be given to the age of the building, building or space systems, modernization or upgrades recently made to the building or space. The Leasing Contracting Officer will reject buildings that are unsuitable in configuration. Site and building design plans shall present a clear and direct entry sequence staff. Overall, the building must project a professional and aesthetically pleasing appearance.

VA will evaluate the quality of the site based on how it accommodates the ingresses and egresses to and from the main entrances (public), emergency, and staff entrances; and delivery area and service entrances; accessible parking lots and walkways; traffic patterns to maximize the flow of vehicles to and from the main thoroughfare; and how the landscaping design fits the surrounding areas, adheres to local landscaping codes, and provides a pleasing atmosphere. Storm water management best practices are addressed and compliant with local code and any covenants or use restrictions on the site. Aesthetics such as screening of trash areas and storage areas, as well as exterior lighting, will be evaluated as well as any enhancements offered which are functionally useful to patients, visitors, and/or staff.

- a. **Space Layout:** VA will evaluate the interior functional and spatial relationships shown in the Offerors floor plan or Test-Fit Layout and compliance with the VA's requirements. It is the Offeror's responsibility to ensure all code requirements are met. Consideration will be given to the column location, shape of footprint, circulation area, and placement of mechanical, plumbing, and electrical service space.
 - b. **Quality of Site Characteristics & Location :** VA will evaluate the site location, if located near other like or similar businesses (medical offices, hospitals) as VA's intended use, must be within delineated area, access to public transportation, the ingresses and egresses, parking and walkways, traffic patterns to maximize the flow of vehicles to and from the main thoroughfare, and how the landscaping design fits the surrounding area, adheres to local landscaping codes and provides an aesthetically pleasing atmosphere. Characteristics of the parking lot and spaces will be considered.
 - c. **Operations & Maintenance Plan:** Operations and Maintenance Plans will be evaluated for the adequacy and efficiency of operations to maintain standards of cleanliness, orderliness, and repair for the entire proposed facility, pursuant to the size, scope and complexity of the facility's mission requirements. An Operations and Maintenance Plan that demonstrates that the Offeror will keep the facility and site in prime condition and operating order for the entire lease term, and that emergencies will be quickly and effectively addressed, will be evaluated most favorably.
 - i. Interior and Exterior Routine Maintenance Plan: The plan should address scheduled, routine and long term maintenance of building systems (e.g. HVAC) and infrastructure (e.g. walking paths and parking areas) at the facility.
 - ii. Emergency Response Plan: the offeror should describe in narrative format how emergencies will be addressed by lessor's personnel and communication infrastructure. This should describe actions which will be taken during emergency weather alerts, duress situations (e.g. lockdowns) and other emergency situations
 - iii. Staffing Plan, Administrative Procedures, & Quality Control Plan: This plan should describe how the janitorial staff will meet the requirements described in the Lease regarding rescheduling, personnel handling emergency, patient related cleanup.
- C. FACTOR 3: Past Performance:** The Government will conduct a structured Past Performance / Risk Assessment that examines an Offeror's relevant present and past performance record to determine the performance risk associated with each proposal and the degree of confidence for successful performance based on the Offeror's demonstrated record of performance on similar contracts. An Offeror's past performance is important in determining its ability to successfully perform required services. The Government is especially interested in recent and relevant past performance that relates to the ability to provide quality construction contractors and providing and managing leased space. The Government will evaluate the offerors previous performance in the following areas; 1) ability to manage and maintain leased space, 2) customer satisfaction, 3) responsiveness or timeliness. The Government may evaluate information on problems identified and encountered on previous contracts and corrective actions taken by the offeror. The currency and relevance of the past performance information, source of the information, context of the data, and general trends in contractor's performance shall be considered. Offerors who have more recent and relevant past performance shall be considered more favorably than offerors who do not.
- a. Performance Confidence will be evaluated in accordance with FAR 15.305(a)(2). Performance confidence ratings assess the probability of the offeror successfully accomplishing the proposed effort based on the offerors past performance. In assessing past performance confidence, the evaluators will primarily rely on information provided by offerors completed past performance questionnaires.
 - b. However, the Government may use data independently obtained from other government and commercial sources to be used in the evaluation process.

4.06 EVALUATION FACTOR MINIMUM STANDARDS (OCT-2023) INTENTIONALLY DELETED

4.07 EVALUATION FACTOR SUBMITTAL REQUIREMENTS (OCT 2023)

A. Factor 1: Price:

Offerors shall submit:

- A. Annual CPI adjustment or fixed rate amount.
- B. Rentable Square Feet and ABOA offered
- C. GSA Form 1364, Proposal to Lease Space, price shall be used to determine the total annual rent to be paid per RSF and ABOA.
 - 1. Offered RSF Price
 - 2. Offered ABOA Price
 - 3. Offered Management Fee
 - 4. Offered A & E Fees
- D. GSA Form 1217
 - 1. Total Annual Operating Costs and per SF
 - 2. Total Real Estate Taxes Costs
 - 3. Total Insurance Costs
 - 4. Total Management Costs
- E. TICS Table Pricing
 - 1. Breakdown of Costs by Division for TI and Shell Costs
 - 2. Price per RSF

The base price offered will be the rate per ABOA. Annual adjustments in operating expenses will be made if the Offeror so indicates on GSA Form 1364. The Offeror shall submit the offer with the total "gross" annual price per NUSF and a breakout of the "base" price per ABOA for services and utilities (operating expenses) to be provided by the Lessor, GSA Form 1217. The net and base prices combined are the total "gross" annual per square foot price offered. The base price from which adjustments are made will be the base price for the term of the lease, including any options periods. The "gross" price shall include the "base" price.

Security Unit Price. The Offeror shall use the Security Unit Price list to provide a cost breakdown of the security countermeasures, which were outlined in the security requirements attachment. The Security Unit Price list includes various improvements and services to be provided by the Lessor. Each item is classified as part of the shell, tenant improvements, or BSAC. There shall be no charge to the government for any items that already exist in the offered Building or facility.

This price shall be used to determine the total annual rental to be paid, adjusted for any discrepancies in the quality of space delivered against the amount offered and accepted, as described elsewhere in this RLP.

- B. Factor 2: Technical Quality:** The Government has included an adjacency matrix for the facility as well as conceptual layout. The Offeror shall expound on the Government's concepts and provide sufficient narrative detail and drawings (as described above), to present a facility with shape and dimensions, and access and adjacencies, that optimize the space program and all functional requirements of the facility. The Offeror should address functional as well as aesthetic components of the facility in sufficient detail. The Offeror shall submit evidence that all Facility requirements within the RLP are met.

The Offeror shall provide a conceptual design and provide sufficient narrative detail and drawings, to present a site that accommodates VA's conceptual design, building footprint, parking and physical security requirements. The Offeror should address functional as well as aesthetic components of the site in sufficient detail so that the Government may conduct a comprehensive evaluation of the environments being proposed. The Offeror shall submit evidence that all Site requirements within the RLP are met.

The Offeror's response shall:

- 1) Provide sufficient evidence that all requirements within the RLP are met.
- 2) Provide detailed narratives and clear, detailed drawings/renderings illustrating the proposed building/design/architectural concept, with specific emphasis on shell-related considerations.
- 3) Demonstrate an understanding of the design requirements in VA's Basis of Design in Exhibit B (Agency Specific Requirements) and Exhibit D (FSL II);
- 4) Clearly describe specifications/calculations for building and/or systems, to include, but not limited to structural; HVAC; electrical; building physical security.
- 5) Clearly illustrate and describe any proposed enhancements/value-added design that are useful to patients, visitors, and/or staff.
- 6) Ensure proposed facility is constructed of permanent materials and is compatible with its surroundings; provide detailed narratives and illustrations defining construction materials, to include qualities and/or value-add considerations.
- 7) Landscaping is integrated with the site design and building aesthetics, and Offeror has optimized the landscaping opportunities to provide a welcoming, pleasant environment.
- 8) Provide detailed drawings/renderings illustrating the proposed quality of site development.
- 9) Clearly illustrate and describe any proposed enhancements/value-add offered that are useful to patients, visitors, and/or staff.
- 10) Clearly illustrate and describe site advantages, to include, but not limited to: proximity to amenities, accessibility from major thoroughfares; visibility, proximity to emergency services; etc.
- 11) Provide detailed narratives and clear, detailed drawings/renderings illustrating the proposed site physical security considerations and threat mitigation plan.
- 12) Provide detailed narratives demonstrating approach to achieve proposed levels of sustainable design/energy efficiency.

C. Factor 3: Past Performance:

Provide a minimum of 3 and a maximum of 5 references. A Past Performance Survey is Exhibit O of this Solicitation and must be submitted with offers.

4.08 EVALUATION DOCUMENTATION REQUIREMENTS (OCT 2023)

Proposal Evaluation Documentation must be saved in a generally accessible format (such as portable document format (pdf)), which displays a visible image of all original document signatures and must be transmitted as an attachment to the email.

Shall consist of the following documents organized as set forth in this subsection. To the extent items are missing, the LCO may determine the proposal to be unacceptable and therefore excluded from the competition, at the sole discretion of the Leasing Contracting Officer. Items must be provided in the order set forth below, and each of the sub-headers below should be treated as a bookmarked chapter within the Volume. Any Documents can be added to support the offeror as needed.

Volume	Header	Sub-Headers Required Document/Response
1	Technical Response	Building Design: Plans, written narratives, design concept, calculations, mechanical and electrical systems, and energy efficiency of the proposed building
		Building Drawings: All applicable drawings to include floor plan, adjacencies and existing ABOA and rentable square footage of proposed space
		Site Plans: Site plan depicting the property boundaries, building, landscaping, parking, ingress/egress and pedestrian circulation
		Project Management Plan
		Detailed Operations and Maintenance Plan
		Additional Submittals: Any additional applicable technical submittal requirements which are listed in 3.06 of the RLP
		Green Globes Scoresheet & Sustainability Approach Narrative
Volume	Header	Sub-Headers Required Document/Response
2	Site Information	FEMA Map: FEMA map, clearly illustrates the specific site location, and evidencing that the property lies outside the 1-percent-annual-chance floodplain (formerly referred to as 100-year floodplain)
		Location Map: Location on map, demonstrating the building or land lies within the delineated area
		Public Transportation: Narrative and map describing the proximity of the building or land to the nearest bus and/or train stop, and major transportation routes
		Adjacent Uses: Description of the uses of adjacent property(ies)
		Ownership/Control: Documentation of ownership or control of the property and evidence of the signature authority of the party(ies) who will sign lease documents and ability to meet the minimum site requirements (addressed to and signed by Offering Entity)
		Current Title: A current title report for each property or properties being offered which should include a chain of title including all deeds referenced in the chain of title (current within 60 days). Copies of all instruments associated with the title commitment, which created rights, interests, or encumbrances on the proposed easement property, and disclose the names of each person with an interest in the property
		Zoning: A letter/letters from the AHJ providing evidence of the current zoning of the property/properties being offered at the time of initial proposal submission that the property/properties as zoned meets VA's intended use
		Utilities & Emergency Services: A letter/letters from the local Authority Having Jurisdiction (AHJ) and/or local utilities indicating that there are adequate public services - fire, police, emergency services – serving the subject property to support VA's proposed use
3	Past Performance	Phase I: Phase I Environmental Site Assessment & All additional site due diligence
		Past Performance List
		Organizational Chart: Organizational Chart Illustrating Key Personnel and Major Subcontractors
		Teaming Agreements: Fully executed Teaming Agreements with Architect/Engineering firm and General Contracting firm (if needed)
		Small Business Subcontracting Plan (requirement for large business offerors) (if needed)
Volume	Header	Sub-Headers Required Document/Response
4	Design/A/E/GC	A/E Firm Experience Narrative
		A/E State Licensure: Proof of Architect/Engineering firm's state license
		Design Team Key Personnel Experience
		GC Experience Narrative
		GC Key Personnel Resumes
5	Pricing Forms	GC State Licensure: Proof of General Contracting firm's state license
		GSA Form 1364 – Proposal to Lease Space
		GSA Form 1217 – Lessor's Annual Cost Statement
		FSC Level II Security Price List
		Completed TICS Table

- A. If annual CPI adjustments in operating expenses are included, the Offeror shall be required to submit the offer with the total "gross" annual price per RSF and per ABOA SF and a breakout of the "base" price per RSF and ABOA SF for services and utilities (operating expenses) to be provided by the Lessor. The "gross" price shall include the "base" price. The base price per ABOA SF from which adjustments are made will be the base price for the term of the Lease, including any option periods.
- B. The Offeror must submit plans and any other information to demonstrate that the Rentable Space yields ABOA space within the required ABOA range. The Government will verify the amount of ABOA SF and will convert the rentable prices offered to ABOA prices, which will subsequently be used in the price evaluation.
- C. Evaluation of offered prices will be based on the annual price per ABOA SF, including all required non-firm term periods. The Government will perform present value price evaluation by reducing the prices per ABOA SF to a composite annual ABOA SF price, as follows:
 1. Parking and wareyard areas will be excluded from the total square footage but not from the price. For different types of space, the gross annual per ABOA SF price will be determined by dividing the total annual rental by the total ABOA square footage excluding these areas.
 2. Free rent will be evaluated in the year in which it is offered. The gross annual price is adjusted to reflect free rent.
 3. Prior to the discounting procedure below, the total dollar amount of the Commission Credit (if applicable) will be subtracted from the first year's gross annual rent, unless the provision of free rent causes the credit to apply against rent beyond the first year's term, in which case the Commission Credit will be allocated proportionately against the appropriate year's gross rent.
 4. Also as stated in the "Broker Commission and Commission Credit" paragraph, the amount of any commission paid to GSA's Broker will not be considered separately as part of this price evaluation since the value of the commission is subsumed in the gross rent rate.
 5. If annual adjustments in operating expenses will not be made, the gross annual price, minus the Commission Credit (if applicable), will be discounted annually at 5 percent to yield a gross present value cost (PVC).
 6. If annual adjustments in operating expenses will be made, the annual price, minus the Commission Credit (if applicable) and minus the base cost of operating expenses, will be discounted annually at 5 percent to yield net PVC. The operating expenses will be both escalated at 2.5 percent compounded annually and discounted annually at 5 percent, then added to the net PVC to yield the gross PVC.
 7. To the gross PVC will be added:
 - a. For lease acquisitions where the Government is considering less than fully-serviced offers, the cost of Government-provided services (e.g., utilities, janitorial) not included in the rental escalated at 2.5 percent compounded annually and discounted annually at 5 percent.
 - b. The annualized (over the full term) cost of any items, which are to be reimbursed in a lump sum payment. (The cost of these items is present value; therefore, it will not be discounted.)
 - c. The annual price for parking to accommodate the minimum number of spaces required for government vehicles, if not included in the shell rent and charged separately. The price will be discounted annually at 5 percent.
 - d. The cost of relocation of furniture, telecommunications, replications costs, and other move-related costs, if applicable.
 - e. The fees for architectural and engineering design (A/E) services and the Offeror's project management fees associated with Tenant Improvements (TI) and BSAC, if applicable. The Offeror is required as part of their offer to identify on GSA Form 1364 any and all fees to complete the TI and BSAC, broken down into two components: (1) Fees for architectural and engineering design services (A/E fees), which may be offered as a rate per ABOA SF, percentage rate, or flat fee, and (2) Lessor's overhead, administrative costs, profit, and fees (Lessor's PM fees), which may be only offered as a percentage rate. These fees will be evaluated in a multi-step process, as follows and using the example with a \$150,000 TI Allowance and a \$50,000 BSAC amount to illustrate scenarios.
 - I. A/E Fees Calculation - Percentage Rate Offered. For evaluation purposes, the fee is a percentage of the TI Allowance and BSAC amount. For example, a 5% A/E fee results in an A/E fee amount of \$10,000
 - (i) $(\text{TI Allowance} + \text{BSAC amount}) \times \text{A/E Fee percentage} = \text{A/E fee amount}$

- (ii) $(\$150,000 + \$50,000) \times 0.05 = \$10,000$
- II. Lessor's PM Fees Calculation. For evaluation purposes, the PM fee is a percentage of the TI Allowance and BSAC amount. For example, a 5% PM fee results in a PM fee amount of \$10,000.
- (i) $(\text{TI Allowance} + \text{BSAC amount}) \times \text{Lessor's PM fee percentage} = \text{PM fee amount}$
- (ii) $(\$150,000 + \$50,000) \times 0.05 = \$10,000$
- III. Total Fee Percentage Calculated and Applied to Buildout Amortization. For evaluation purposes, the A/E fees and Lessor's PM fees are not evaluated as lump sum amounts. The sum of the A/E and PM fees is computed as a percentage of the total combined TI Allowance and BSAC amount and added to the annual amortized rate for the separate TI and BSAC rents. Using the above examples, the annual amortized rate added to the TI Allowance and BSAC amount rents is calculated to be 10%.
- (i) $\text{A/E fees} + \text{Lessor's PM fees} = \text{Total fees}$
- (ii) $\$10,000 + \$10,000 = \$20,000$
- (iii) $\text{Total fees} / (\text{TI Allowance} + \text{BSAC amount})$
- (iv) $\$20,000 / (\$150,000 + \$50,000) = 10\%$
- f. The annual cost of overtime HVAC based on the offered hourly overtime rate and an estimated usage of 0 hours of overtime HVAC per year for the Space. This cost will be discounted annually at 5 percent.
8. The sum of either sub-paragraphs 5 and 7 or sub-paragraphs 6 and 7, divided by the ABOA SF will be the present value cost per ABOA SF of the offer for price evaluation purposes.

4.10 AWARD (OCT 2024)

- A. To document the agreement between the parties, the successful Offeror and the VA LCO will execute a Lease prepared by VA LCO, which incorporates the agreement of the parties. The Lease shall consist of the following, with additional documents added as determined by the LCO:

Document Name	Lease Exhibit
Lease No. 36C25026L0004(Form L100)	TBD
DID's Approved VA Drawings	TBD
Offerors Technical and Price Proposals, TICS (Build Out)	TBD
: Agency Specific Requirements	TBD
: Agency Specific Requirements OI&T requirements, low voltage for clinic	TBD
: Agency-Specific Requirements Janitorial Services	TBD
FSC Level II Security Requirements and Price List	TBD
GSA Form 3517B, General Clauses	TBD
GSA Form 1364, Proposal to Lease Space	TBD
GSA Form 1217, Lessor's Annual Cost Statement	TBD
VA6500.6 Contractor Security IT Handbook - Appendix D	TBD
DOL Wage Rates	TBD
Offering Entity Acknowledgement Form	TBD
Revision(s) to Lease Issued under RLP Amendment Number(s)	TBD

- B. The acceptance of the offer and award of the Lease by the Government occurs upon execution of the Lease by the LCO and mailing or otherwise furnishing written notification of the executed Lease to the successful Offeror.

SECTION 5 ADDITIONAL TERMS AND CONDITIONS

5.01 MODIFIED RLP PARAGRAPHS (OCT 2016)

The following paragraphs have been modified in this RLP:

1.02; 1.03; 1.04; 1.05; 1.06; 1.10; 1.12; 3.02; 3.05; 3.06; 3.07; 3.08; 3.09; 4.04; 4.05; and 4.07.

5.02 ~~SWING SPACE – RLP (OCT 2022)~~ INTENTIONALLY DELETED

EXHIBIT A

LEASE NO. 36C25025L0015

Global Lease
GSA TEMPLATE L100 (10/2024)

INSTRUCTIONS TO OFFEROR: Do not attempt to complete this lease (GSA Lease Template L100, hereinafter Lease Template). Upon selection for award, the Government will transcribe the successful Offeror's final offered rent and other price data included on Offeror's submitted GSA Lease Proposal Form 1364, (hereinafter Lease Proposal Form) into a Lease Template, and transmit the completed Lease Template, together with appropriate attachments, to the successful Offeror for execution.

A. This Lease is made and entered into between

Lessor's Name

(Lessor), whose principal place of business is [ADDRESS], and whose interest in the Property described herein is that of Fee Owner, and
The United States of America

(Government), acting by and through the designated representative of the Department of Veterans Affairs, upon the terms and conditions set forth herein.

B. Witnesseth: The parties hereto, for the consideration hereinafter mentioned, covenant and agree as follows:

Lessor hereby leases to the Government the Premises described herein, being all or a portion of the Property located at

[Address]

and more fully described in Section 1 and Exhibit **XX**, together with rights to the use of parking and other areas as set forth herein, to be used for such purposes as determined by the Government.

C. LEASE TERM

To Have and To Hold the said Premises with its appurtenances for the term beginning upon acceptance of the Premises as required by this Lease and continuing for a period of

To Have and To Hold the said Premises with its appurtenances for the term beginning either upon **MONTH DAY, YEAR** or upon acceptance of the Premises as required by this Lease, whichever is later, and continuing for a period of

X Years, X Years Firm,

In Witness Whereof, the parties to this Lease evidence their agreement to all terms and conditions set forth herein by their signatures below, to be effective as of the date of delivery of the fully executed Lease to the Lessor.

FOR THE LESSOR:

Name: _____
Title: _____
Entity: _____
Date: _____

FOR THE GOVERNMENT:

Name: _____
Title: Lease Contracting Officer
General Services Administration, Public Buildings Service
Date: _____

WITNESSED FOR THE LESSOR BY:

Name: _____
Title: _____
Date: _____

The information collection requirements contained in this Solicitation/Contract, that are not required by regulation, have been approved by the Office of Management and Budget pursuant to the Paperwork Reduction Act and assigned the OMB Control No. 3090-0086.

subject to termination and renewal rights as may be hereinafter set forth. The commencement date of this Lease, along with any applicable termination and renewal rights, shall be more specifically set forth in a Lease Amendment upon substantial completion and acceptance of the Space by the Government.

SECTION 1	THE PREMISES, RENT, AND OTHER TERMS	6
1.01	THE PREMISES (OCT 2024).....	6
1.02	EXPRESS APPURTENANT RIGHTS (SEP 2013).....	6
1.03	RENT AND OTHER CONSIDERATION (OCT 2023).....	6
1.04	BROKER COMMISSION AND COMMISSION CREDIT (OCT 2016) INTENTIONALLY DELETED	7
1.05	TERMINATION RIGHTS (OCT 2016)	7
1.06	RENEWAL RIGHTS (OCT 2016)	7
1.07	DOCUMENTS INCORPORATED IN THE LEASE (OCT 2023).....	8
1.08	TENANT IMPROVEMENT RENTAL ADJUSTMENT (OCT 2016)	8
1.09	TENANT IMPROVEMENT AND BSAC FEE SCHEDULE (OCT 2024)	8
1.10	BUILDING SPECIFIC AMORTIZED CAPITAL (SEP 2012) INTENTIONALLY DELETED	8
1.11	BUILDING SPECIFIC AMORTIZED CAPITAL RENTAL ADJUSTMENT (SEP 2013) INTENTIONALLY DELETED	8
1.12	PERCENTAGE OF OCCUPANCY FOR TAX ADJUSTMENT (OCT 2024).....	8
1.13	REAL ESTATE TAX BASE (SEP 2013)	8
1.14	OPERATING COST BASE (OCT 2016)	8
1.15	RATE FOR ADJUSTMENT FOR VACANT LEASED PREMISES (SEP 2013)	8
1.16	HOURLY OVERTIME HVAC RATES (OCT 2016).....	9
1.17	PERIODIC LEASE ABOVE STANDARD SERVICES (LASS) RATES — OTHER THAN HVAC (OCT 2024) INTENTIONALLY DELETED	9
1.18	ADJUSTMENT FOR REDUCED SERVICES (OCT 2018).....	9
1.19	BUILDING IMPROVEMENTS (OCT 2023)	9
1.20	LESSOR'S UNIQUE ENTITY IDENTIFIER (OCT 2022)	9
SECTION 2	GENERAL TERMS, CONDITIONS, AND STANDARDS	10
2.01	DEFINITIONS AND GENERAL TERMS (OCT 2023)	10
2.02	AUTHORIZED REPRESENTATIVES (OCT 2016)	11
2.03	ALTERATIONS REQUESTED BY THE GOVERNMENT (OCT 2022)	11
2.04	WAIVER OF RESTORATION (OCT 2023)	11
2.05	PAYMENT OF BROKER (OCT 2024) INTENTIONALLY DELETED	12
2.06	CHANGE OF OWNERSHIP/NOVATION (OCT 2024)	12
2.07	REAL ESTATE TAX ADJUSTMENT (OCT 2023)	12
2.08	GSAR 552.270-16 ADJUSTMENT FOR VACANT PREMISES (DEVIATION) (SEP 2022).....	14
2.09	OPERATING COSTS ADJUSTMENT (JUN 2012)	14
2.10	ADDITIONAL POST-AWARD FINANCIAL AND TECHNICAL DELIVERABLES (OCT 2023)	14
2.11	RELOCATION ASSISTANCE ACT (APR 2011) INTENTIONALLY DELETED	15
2.12	ENTITY NAME (OCT 2023)	15
SECTION 3	CONSTRUCTION STANDARDS AND SHELL COMPONENTS	16
3.01	LABOR STANDARDS (OCT 2024)	16
3.02	WORK PERFORMANCE (JUN 2012).....	16
3.03	EXISTING FIT-OUT, SALVAGED, OR REUSED BUILDING MATERIAL (OCT 2024)	16
3.04	CONSTRUCTION WASTE MANAGEMENT (OCT 2021).....	16
3.05	WOOD PRODUCTS (OCT 2023)	17
3.06	ADHESIVES AND SEALANTS (OCT 2022).....	17
3.07	BUILDING SHELL REQUIREMENTS (OCT 2016).....	17
3.08	RESPONSIBILITY OF THE LESSOR AND LESSOR'S ARCHITECT/ENGINEER (OCT 2022).....	17
3.09	QUALITY AND APPEARANCE OF BUILDING (JUN 2012)	18
3.10	VESTIBULES (OCT 2020)	18
3.11	MEANS OF EGRESS (MAY 2015)	18
3.12	AUTOMATIC FIRE SPRINKLER SYSTEM (OCT 2023).....	18
3.13	FIRE ALARM SYSTEM (SEP 2013)	18
3.14	ENERGY INDEPENDENCE AND SECURITY ACT (OCT 2024)	19
3.15	ELEVATORS (OCT 2020).....	19
3.16	BUILDING DIRECTORY (OCT 2024) INTENTIONALLY DELETED	20
3.17	FLAGPOLE (SEP 2013)	20
3.18	DEMOLITION (JUN 2012).....	20
3.19	ACCESSIBILITY (OCT 2024)	20
3.20	CEILINGS (OCT 2022).....	20
3.21	EXTERIOR AND COMMON AREA DOORS AND HARDWARE (SEP 2013)	21
3.22	DOORS: IDENTIFICATION (APR 2011).....	21
3.23	WINDOWS (OCT 2020)	21
3.24	PARTITIONS: GENERAL (OCT 2023)	21
3.25	PARTITIONS: PERMANENT (OCT 2023).....	21
3.26	INSULATION: THERMAL, ACOUSTIC, AND HVAC (OCT 2022).....	21
3.27	WALL FINISHES – SHELL (SEP 2015)	22
3.28	PAINTING – SHELL (OCT 2022).....	22
3.29	FLOORS AND FLOOR LOAD (OCT 2019)	22
3.30	FLOOR COVERING AND PERIMETERS – SHELL (OCT 2022)	22
3.31	MECHANICAL, ELECTRICAL, PLUMBING: GENERAL (APR 2011)	22

3.32	BUILDING SYSTEMS (APR 2011)	22
3.33	ELECTRICAL (OCT 2023)	22
3.34	ADDITIONAL ELECTRICAL CONTROLS (JUN 2012) INTENTIONALLY DELETED	23
3.35	PLUMBING (JUN 2012)	23
3.36	DRINKING FOUNTAINS (OCT 2023)	23
3.37	RESTROOMS (OCT 2022)	23
3.38	PLUMBING FIXTURES: WATER CONSERVATION (OCT 2022)	24
3.39	JANITOR CLOSETS (SEP 2015)	24
3.40	HEATING, VENTILATION, AND AIR CONDITIONING - SHELL (OCT 2023)	24
3.41	TELECOMMUNICATIONS: DISTRIBUTION AND EQUIPMENT (OCT 2023)	25
3.42	TELECOMMUNICATIONS: LOCAL EXCHANGE ACCESS (JUN 2012)	25
3.43	LIGHTING: INTERIOR AND PARKING - SHELL (OCT 2023)	25
3.44	ACOUSTICAL REQUIREMENTS (OCT 2022)	26
3.45	SECURITY FOR NEW CONSTRUCTION (OCT 2022)	26
3.46	SEISMIC SAFETY FOR NEW CONSTRUCTION (OCT 2020) INTENTIONALLY DELETED	27
3.47	FIRE PROTECTION FOR NEW CONSTRUCTION (APR 2015)	27
3.48	GREEN BUILDING RATING CERTIFICATION FOR NEW CONSTRUCTION (OCT 2016)	27
3.49	GREEN BUILDING RATING CERTIFICATION FOR TENANT INTERIORS (OCT 2023)	27
3.50	INDOOR AIR QUALITY DURING CONSTRUCTION (OCT 2021)	28
3.51	SYSTEMS COMMISSIONING (OCT 2023)	28
3.52	DUE DILIGENCE AND NATIONAL ENVIRONMENTAL POLICY ACT REQUIREMENTS – LEASE (OCT 2023)	28
3.53	NATIONAL HISTORIC PRESERVATION ACT REQUIREMENTS - LEASE (SEP 2014)	29
 SECTION 4 DESIGN, CONSTRUCTION, AND POST AWARD ACTIVITIES		30
4.01	SCHEDULE FOR COMPLETION OF SPACE (OCT 2024)	30
4.02	CONSTRUCTION DOCUMENTS (OCT 2023)	30
4.03	TENANT IMPROVEMENTS PRICE PROPOSAL (OCT 2023) INTENTIONALLY DELETED	30
4.04	BUILDING SPECIFIC AMORTIZED CAPITAL (BSAC) PRICE PROPOSAL (OCT 2023) INTENTIONALLY DELETED	30
4.05	GREEN LEASE SUBMITTALS (OCT 2023)	30
4.06	CONSTRUCTION SCHEDULE AND INITIAL CONSTRUCTION MEETING (OCT 2024)	31
4.07	PROGRESS REPORTS (OCT 2023)	31
4.08	CONSTRUCTION INSPECTIONS (OCT 2023)	31
4.09	ACCESS BY THE GOVERNMENT PRIOR TO ACCEPTANCE (OCT 2022)	31
4.10	ACCEPTANCE OF SPACE AND CERTIFICATE OF OCCUPANCY (OCT 2021)	31
4.11	LEASE TERM COMMENCEMENT DATE AND RENT RECONCILIATION (OCT 2021)	32
4.12	AS-BUILT DRAWINGS (OCT 2021)	32
4.13	GSAR 552-270-15 LIQUIDATED DAMAGES (DEVIATION) (SEP 2022) INTENTIONALLY DELETED	32
4.14	SEISMIC RETROFIT (OCT 2020) INTENTIONALLY DELETED	32
4.15	LESSOR'S PROJECT MANAGEMENT RESPONSIBILITIES (OCT 2023)	32
4.16	GOVERNMENT PROJECT MANAGEMENT SYSTEM (OCT 2023)	32
 SECTION 5 TENANT IMPROVEMENT COMPONENTS		34
5.01	TENANT IMPROVEMENT REQUIREMENTS (OCT 2016)	34
5.02	TENANT IMPROVEMENT SPECIFICATIONS (SEP 2015)	34
5.03	FINISH SELECTIONS (SEP 2015) INTENTIONALLY DELETED	34
5.04	WINDOW COVERINGS (OCT 2023)	34
5.05	DOORS: SUITE ENTRY (OCT 2022)	34
5.06	DOORS: INTERIOR (OCT 2022)	34
5.07	DOORS: HARDWARE (SEP 2013)	34
5.08	DOORS: IDENTIFICATION (JUN 2012)	35
5.09	PARTITIONS: SUBDIVIDING (OCT 2023)	35
5.10	WALL FINISHES (OCT 2019)	35
5.11	PAINTING – TI (OCT 2022)	35
5.12	FLOOR COVERINGS AND PERIMETERS (OCT 2023)	35
5.13	HEATING AND AIR CONDITIONING (JUN 2012)	36
5.14	ELECTRICAL: DISTRIBUTION (SEP 2015)	36
5.15	TELECOMMUNICATIONS: DISTRIBUTION AND EQUIPMENT (JUN 2012)	36
5.16	TELECOMMUNICATIONS: LOCAL EXCHANGE ACCESS (AUG 2008)	36
5.17	DATA DISTRIBUTION (OCT 2020)	36
5.18	ELECTRICAL, TELEPHONE, DATA FOR SYSTEMS FURNITURE (OCT 2022)	36
5.19	LIGHTING: INTERIOR AND PARKING – TI (SEP 2015)	37
5.20	AUTOMATIC FIRE SPRINKLER SYSTEM - TI (OCT 2016)	37
 SECTION 6 UTILITIES, SERVICES, AND OBLIGATIONS DURING THE LEASE TERM		38
6.01	PROVISION OF SERVICES, ACCESS, AND NORMAL HOURS (OCT 2022)	38
6.02	UTILITIES (OCT 2024)	38
6.03	UTILITIES SEPARATE FROM RENTAL/BUILDING OPERATING PLAN (OCT 2020) INTENTIONALLY DELETED	38
6.04	GSAR 552-270-99 LESSOR REPORTING OF GREEN BUILDING EFFICIENCY (SEP 2023) INTENTIONALLY DELETED	38
6.05	HEATING AND AIR CONDITIONING (OCT 2024)	38

6.06	OVERTIME HVAC USAGE (OCT 2023)	38
6.07	PERIODIC LEASE ABOVE STANDARD SERVICES (LASS) — OTHER THAN HVAC (OCT 2024) INTENTIONALLY DELETED	38
6.08	JANITORIAL SERVICES (OCT 2021)	39
6.09	SELECTION OF CLEANING PRODUCTS (OCT 2022)	39
6.10	SELECTION OF PAPER PRODUCTS (OCT 2022)	39
6.11	SNOW REMOVAL (OCT 2020)	39
6.12	MAINTENANCE AND TESTING OF SYSTEMS (OCT 2022)	39
6.13	MAINTENANCE OF PROVIDED FINISHES (OCT 2016)	39
6.14	ASBESTOS ABATEMENT (OCT 2021)	40
6.15	ONSITE LESSOR MANAGEMENT (APR 2011)	40
6.16	IDENTITY VERIFICATION OF PERSONNEL (OCT 2022)	40
6.17	SCHEDULE OF PERIODIC SERVICES (OCT 2020)	41
6.18	LANDSCAPING (OCT 2022)	41
6.19	LANDSCAPE MAINTENANCE (APR 2011)	41
6.20	RECYCLING AND COMPOSTING (OCT 2023)	41
6.21	RANDOLPH-SHEPPARD COMPLIANCE (SEP 2013)	41
6.22	SAFEGUARDING AND DISSEMINATION OF CONTROLLED UNCLASSIFIED INFORMATION (CUI) BUILDING INFORMATION (OCT 2022)	41
6.23	INDOOR AIR QUALITY (OCT 2024)	41
6.24	RADON IN AIR (OCT 2023)	42
6.25	RADON IN WATER (JUN 2012) INTENTIONALLY DELETED	43
6.26	HAZARDOUS MATERIALS (OCT 2023)	43
6.27	MOLD AND WATER INTRUSION (OCT 2023)	43
6.28	OCCUPANT EMERGENCY PLANS (OCT 2020)	44
6.29	FLAG DISPLAY (OCT 2016)	44
SECTION 7 ADDITIONAL TERMS AND CONDITIONS		45
7.01	SECURITY REQUIREMENTS (OCT 2021)	45
7.02	MODIFIED LEASE PARAGRAPHS (OCT 2016)	45
7.03	NO FEDERALLY ELECTED OFFICIALS TO BENEFIT (OCT 2023) INTENTIONALLY DELETED	45
7.04	DAILY OCCUPANCY DATA (OCT 2024) INTENTIONALLY DELETED	45
7.05	SWING SPACE — LEASE (OCT 2022) INTENTIONALLY DELETED	45

SECTION 1 THE PREMISES, RENT, AND OTHER TERMS

1.01 THE PREMISES (OCT 2024)

The Premises are described as follows:

- A. Office and Related Space. **XX** rentable square feet (RSF), yielding **XX** ANSI/BOMA Occupant Area (ABOA) square feet (SF) of office and related Space located on the **XX** floor(s) and known as Suite(s) **XX**, of the Building, as depicted on the floor plan(s) attached hereto as Exhibit **XX**.
- A. Office and Related Space. **XX** rentable square feet (RSF), yielding **XX** ANSI/BOMA Occupant Area (ABOA) square feet (SF) of office and related Space **and** an additional **XX** RSF, yielding **XX** ABOA SF of free space (for which the Government will not be charged rent, including real estate taxes and operating cost escalations) in excess of the total **XX** RSF/**XX** ABOA SF indicated above, for a total of **XX** RSF (yielding **XX** ABOA SF), located on the **XX** floor(s) and known as Suite(s) **XX**, of the Building, as depicted on the floor plan(s) attached hereto as Exhibit **XX**. All rights, responsibilities, and obligations that bind the Lessor and Government under this lease agreement, including the General Clauses, and any other attachments hereto, shall pertain to the entire space under lease, including the free space.
- B. Common Area Factor. The Common Area Factor (CAF), defined under Section 2 of the Lease, is established as **XX** percent. This factor, rounded to the nearest whole percentage, shall be used for purposes of rental adjustments in accordance with the Payment Clause of the General Clauses.
- C. INTENTIONALLY DELETED.

1.02 EXPRESS APPURTENANT RIGHTS (SEP 2013)

The Government shall have the non-exclusive right to the use of Appurtenant Areas and shall have the right to post Rules and Regulations Governing Conduct on Federal Property, Title 41, CFR, Part 102-74, Subpart C within such areas. The Government will coordinate with Lessor to ensure signage is consistent with Lessor's standards. Appurtenant to the Premises and included in the Lease are rights to use the following:

- A. Parking. **XX** parking spaces as depicted on the plan attached hereto as Exhibit **XX**, reserved for the exclusive use of the Government, of which **XX** shall be structured/inside parking spaces, and **XX** shall be surface/outside parking spaces. In addition, the Lessor shall provide such additional parking spaces as required by the applicable code of the local government entity having jurisdiction over the Property.
- B. Antennas, Satellite Dishes, and Related Transmission Devices. (1) Space located on the roof of the Building sufficient in size for the installation and placement of telecommunications equipment, (2) the right to access the roof of the Building, and (3) use of all Building areas (e.g., chases, plenums, etc.) necessary for the use, operation, and maintenance of such telecommunications equipment at all times during the term of this Lease.

1.03 RENT AND OTHER CONSIDERATION (OCT 2023)

- A. The Government shall pay the Lessor annual rent, payable in monthly installments in arrears, at the following rates:

	FIRM TERM	NON FIRM TERM
	ANNUAL RENT	ANNUAL RENT
SHELL RENT ¹	\$XXX,XXX.XX	\$XXX,XXX.XX
OPERATING COSTS ²	\$ XXX,XXX.XX	\$ XXX,XXX.XX
TENANT IMPROVEMENTS RENT ³	\$ XXX,XXX.XX	\$0.00
BUILDING SPECIFIC AMORTIZED CAPITAL (BSAC) ⁴	\$ XXX,XXX.XX	\$0.00
PARKING ⁵	\$ XXX,XXX.XX	\$ XXX,XXX.XX
TOTAL ANNUAL RENT ⁶	\$XXX,XXX.XX	\$XXX,XXX.XX

¹Shell rent reflects rental rates as follows:

(Firm Term) **XX** per RSF, as rounded to the nearest penny.

(Non Firm Term) **XX** per RSF, as rounded to the nearest penny.

²Operating Costs reflects a rate of **XX** per RSF, as rounded to the nearest penny.

³Tenant Improvements of **XX** are amortized at a rate of **X** percent per annum over **XX** years.

⁴Building Specific Amortized Capital (BSAC) of **XX** are amortized at a rate of **X** percent per annum over **XX** years.

⁵INTENTIONALLY DELETED

⁶Total Annual Rent does not reflect reduction for free rent (if applicable). See subparagraph C below.

- B. There shall not be any additional charge for parking.
- C. The Lessor has offered free rent for the first **XX (X)** months of the Lease (free rent includes shell, operating, TI, BSAC and parking rent). Therefore, the first **XX (X)** months of the Lease shall be provided at no cost to the Government.

- D. In instances where the Lessor amortizes either the TI or Building Specific Amortized Capital (BSAC) for a period exceeding the Firm Term of the Lease, should the Government terminate the Lease after the Firm Term or does not otherwise renew or extend the term beyond the Firm Term, the Government shall not be liable for any costs, including unamortized costs beyond the Firm Term.
- E. Rent is subject to adjustment based upon a mutual on-site measurement of the Space upon acceptance, not to exceed **XX** ABOA SF based upon the methodology outlined under the "Payment" clause of GSA 3517, General Clauses.
- F. Rent is subject to adjustment upon reconciliation from quantities in the Lease to the approved DIDs and post-DID change orders, based on unit prices negotiated and agreed upon prior to Lease award.
- G. INTENTIONALLY DELETED.
- H. If the Government leases the Premises for less than a full calendar month, then rent shall be prorated based on the actual number of days leased for that month.
- I. Rent shall be paid to Lessor by electronic funds transfer (EFT) in accordance with the provisions of the General Clauses. Rent shall be payable using the EFT information contained in the System for Award Management (SAM). In the event the EFT information changes, the Lessor shall be responsible for providing the updated information to SAM. Failure by the Lessor to maintain an active registration in SAM may result in delay of rental payments until such time as the SAM registration is activated.
- J. Lessor shall provide to the Government, in exchange for the payment of rental and other specified consideration, the following:
1. The leasehold interest in the Property described herein in the paragraph entitled "The Premises."
 2. All costs, expenses and fees to perform the work required for acceptance of the Premises in accordance with this Lease, including all costs for labor, materials, and equipment, professional fees, subcontractor fees, attorney fees, permit fees, inspection fees, and similar such fees, and all related expenses.
 3. Performance or satisfaction of all other obligations set forth in this Lease; and all services, utilities, and maintenance required for the proper operation of the Property, the Building, and the Premises in accordance with the terms of the Lease, including, but not limited to, all inspections, modifications, repairs, replacements, and improvements required to be made thereto to meet the requirements of this Lease.
- K. INTENTIONALLY DELETED.

1.04 ~~BROKER COMMISSION AND COMMISSION CREDIT (OCT 2016)~~ INTENTIONALLY DELETED

1.05 TERMINATION RIGHTS (OCT 2016)

The Government may terminate this Lease, in whole or in parts, at any time effective after the Firm Term of this Lease, by providing not less than **ninety (90)** days' prior written notice to the Lessor. The effective date of the termination shall be the day following the expiration of the required notice period or the termination date set forth in the notice, whichever is later. No rental shall accrue after the effective date of termination.

1.06 RENEWAL RIGHTS (OCT 2016)

- A. This Lease may be renewed at the option of the Government for a term of **XX YEARS** at the following rental rate(s):

	OPTION TERM, YEARS XX - XX	
	ANNUAL RENT	ANNUAL RATE / RSF
SHELL RENTAL RATE	\$XX	\$XX
OPERATING COSTS	OPERATING COST BASE SHALL CONTINUE FROM THE EFFECTIVE YEAR OF THE LEASE. OPTION TERM IS SUBJECT TO CONTINUING ANNUAL ADJUSTMENTS.	

provided notice is given to the Lessor at least **XX** days before the end of the original Lease term or any extension thereof; all other terms and conditions of this Lease, as same may have been amended, shall remain in full force and effect during any renewal term.

- B. Termination rights outlined in the "Termination Rights" paragraph apply to all renewal terms.

1.07 DOCUMENTS INCORPORATED IN THE LEASE (OCT 2023)

The following documents are attached to and made part of the Lease:

DOCUMENT NAME	NO. OF PAGES	EXHIBIT
FLOOR PLAN(S)		
PARKING PLAN(S)		
AGENCY REQUIREMENTS		
TENANT IMPROVEMENTS UNIT PRICE LIST		
SECURITY REQUIREMENTS		
SECURITY UNIT PRICE LIST		
GSA 3517B GENERAL CLAUSES		
JANITORIAL REQUIREMENTS		
GSA FORM 1217		
GSA FORM 1364		
DOL WAGE DETERMINATION		
REVISION(S) TO LEASE ISSUED UNDER RLP AMENDMENT NUMBER(S) X		

1.08 TENANT IMPROVEMENT RENTAL ADJUSTMENT (OCT 2016)

- A. The Lessor has agreed to total TI pricing of **\$XX,XXX** based on the approved DID's included in Exhibit **X**. This amount is amortized in the rent over the Firm Term of this Lease at an interest rate of **X** percent per year.
- B. The Government shall have the right to make lump sum payments for any or all work covered by the TI scope. That part of the TI amortized in the rent shall be reduced accordingly. At any time after occupancy and during the Firm Term of the Lease, the Government, at its sole discretion, may elect to pay lump sum for any part or all of the remaining unpaid amortized balance of the TI. If the Government elects to make a lump sum payment for the TI after occupancy, the payment of the TI by the Government will result in a decrease in the rent according to the amortization rate over the Firm Term of the Lease.

1.09 TENANT IMPROVEMENT AND BSAC FEE SCHEDULE (OCT 2024)

For pricing TI and BSAC costs, the following rates shall apply for the initial build-out of the Space.

	INITIAL BUILD-OUT
ARCHITECT/ENGINEER (A/E) FEES (\$ PER ABOA SF, \$ FLAT FEE, OR % OF TI AND BSAC CONSTRUCTION COSTS)	\$XX PER ABOA SF, \$XX FLAT FEE, OR XX%
LESSOR'S PROJECT MANAGEMENT FEE (% OF TI AND BSAC CONSTRUCTION COSTS)	XX%

1.10 BUILDING SPECIFIC AMORTIZED CAPITAL (SEP 2012) INTENTIONALLY DELETED**1.11 BUILDING SPECIFIC AMORTIZED CAPITAL RENTAL ADJUSTMENT (SEP 2013) INTENTIONALLY DELETED****1.12 PERCENTAGE OF OCCUPANCY FOR TAX ADJUSTMENT (OCT 2024)**

- A. As of the Lease Award Date, the Government's Percentage of Occupancy, as defined in the "Real Estate Tax Adjustment" paragraph of this Lease is **XX** percent. The Percentage of Occupancy is derived by dividing the total Government Space of **XX** RSF by the total Building space of **XX** RSF. The tax parcel number is **XX**.
- B. All relevant tax adjustment documentation (e.g., copies of paid tax receipts, invoices) must be submitted online at leasing.gsa.gov or a successor portal.

1.13 REAL ESTATE TAX BASE (SEP 2013)

The Real Estate Tax Base, as defined in the "Real Estate Tax Adjustment" paragraph of the Lease is **\$XX**. Tax adjustments shall not occur until the tax year following lease commencement has passed.

1.14 OPERATING COST BASE (OCT 2016)

The parties agree, for the purpose of applying the paragraph titled "Operating Costs Adjustment," that the Lessor's base rate for operating costs shall be **\$XX.XX** per RSF.

1.15 RATE FOR ADJUSTMENT FOR VACANT LEASED PREMISES (SEP 2013)

In accordance with the paragraph entitled "Adjustment for Vacant Premises," if the Government fails to occupy or vacates the entire or any portion of the Premises prior to expiration of the term of the Lease, the operating costs paid by the Government as part of the rent shall be reduced proportionately per ABOA SF of Space vacated by the Government.

1.16 HOURLY OVERTIME HVAC RATES (OCT 2016)

There is no overtime charge during weekend hours:

1.17 ~~PERIODIC LEASE ABOVE STANDARD SERVICES (LASS) RATES – OTHER THAN HVAC (OCT 2024)~~ INTENTIONALLY DELETED

1.18 ADJUSTMENT FOR REDUCED SERVICES (OCT 2018)

This Lease provides for normal hours of operation as outlined under Lease Paragraph 6.01, Provision of Services, Access, and Normal Hours. In the event the Government requires the following normal hours of operations: [8:00 AM to 5:00 PM, Monday through Friday, with the exception of Federal holidays], the rental rate and the base for operating cost adjustments will be reduced by ~~\$\$\$~~ per ABOA SF, adjusted to include any CPI adjustment as outlined under Lease paragraph entitled Operating Costs Adjustment. This reduction shall occur after the Government gives 30 calendar days' prior notice to the Lessor and shall continue in effect until the Lease expires or is terminated.

1.19 BUILDING IMPROVEMENTS (OCT 2023)

[To be completed following negotiations and before award]

Before the Government accepts the Space, the Lessor shall complete the following additional Building improvements, as part of shell rent:

- A. _____
- B. _____
- C. _____

1.20 LESSOR'S UNIQUE ENTITY IDENTIFIER (OCT 2022)

Lessor's Unique Entity Identifier (UEI)

UEI: ~~XXXXXXXXXXXX~~

SECTION 2 GENERAL TERMS, CONDITIONS, AND STANDARDS

2.01 DEFINITIONS AND GENERAL TERMS (OCT 2023)

Unless otherwise specifically noted, all terms and conditions set forth in this Lease shall be interpreted by reference to the following definitions, standards, and formulas:

A. General Contract Terms.

1. "Contract" means lease.
2. "Contractor" means Lessor.
3. "Days" means calendar days, unless specified otherwise.
4. "Delivery Date" means the date specified in or determined pursuant to the provisions of the lease for delivery of the premises to the Government, improved in accordance with the provisions of the lease and substantially complete, as such date may be modified in accordance with the provisions of the lease.
5. "Excusable Delays" mean delays arising without the fault or negligence of Lessor and Lessor's subcontractors and suppliers at any tier, and shall include, without limitation:
 - a. Acts of God or of the public enemy,
 - b. Acts of the United States of America in either its sovereign or contractual capacity,
 - c. Acts of another contractor in the performance of a contract with the Government,
 - d. Fires,
 - e. Floods,
 - f. Epidemics,
 - g. Quarantine restrictions,
 - h. Strikes,
 - i. Freight embargoes,
 - j. Unusually severe weather, or
 - k. Delays of subcontractors or suppliers at any tier arising from unforeseeable causes beyond the control and without the fault or negligence of both the Lessor and any such subcontractor or supplier.
6. "Lease Award Date" means the date the LCO executes the lease and furnishes written notification of the executed lease to the successful offeror (usually the date on which the parties' obligations under the lease begin).
7. "Lease Term Commencement Date" means the date on which the lease term commences.
8. "Substantially Complete" or "Substantial Completion" means that the work, the common and other areas of the building, and all other things necessary for the Government's access to the premises and occupancy, possession, use and enjoyment thereof, as provided in this lease, have been completed or obtained, excepting only such minor matters as do not interfere with or materially diminish such access, occupancy, possession, use or enjoyment. The space shall be considered substantially complete only if the space may be used for its intended purpose.
9. "Work" means all alterations, improvements, modifications, and other things required for the preparation or continued occupancy of the premises by the Government as specified in this lease.

B. Real Property Terms.

1. "ANSI/BOMA" is an acronym for American National Standards Institute/Building Owners and Managers Association.
2. "ANSI/BOMA Occupant Area" or "ABOA" means the measurement standard (Z65.1-2017) provided by ANSI/BOMA for Occupant Area, which is "the total aggregated area used by an Occupant before Load Factors are applied, consisting of Tenant Area and Tenant Ancillary Area." The Method A – Multiple Load Factor Method shall apply.

3. "Appurtenant Areas" means those areas and facilities on the property that are not located within the premises, or for which rights are expressly granted under this lease, or for which rights to use are reasonably necessary or reasonably anticipated with respect to the Government's enjoyment of the premises and express appurtenant rights (e.g., parking areas).
4. "Broker" means GSA's broker, if GSA awarded this lease using a contract real estate broker.
5. "Building" means building(s) situated on the property in which the premises are located.
6. "Commission Credit" means the amount of commission that is credited to the lease, if GSA's broker agreed to forgo a percentage of its commission, in connection with the award of this lease.
7. "Common Area Factor (CAF)" means a conversion factor determined and applied by the building owner to determine the rentable square feet for the leased space. The CAF is expressed as a percentage of the difference between the amount of rentable square feet (SF) and ABOA SF, divided by the ABOA SF. The CAF shall be determined in accordance with the applicable ANSI/BOMA standard for the type of space to which the CAF shall apply.
8. "Firm Term" means the part of the lease term that is not subject to termination rights.
9. "Non-Firm Term" means the part of the lease term following the end of the firm term, which is subject to termination rights.
10. "Premises" means the total occupant area or other type of space, together with all associated common areas described in the lease. Appurtenant areas (e.g., parking areas) to which the Government has rights under this lease are not included in the premises.
11. "Property" means the land and buildings in which the premises are located, including all appurtenant areas (e.g., parking areas) to which the Government is granted rights.
12. "Rentable Space or Rentable Square Feet (RSF)" means the area for which a tenant is charged rent. It is determined by the building owner and may vary by city or by building within the same city. Rentable space may include a share of common areas such as elevator lobbies, building corridors, and floor service areas. Floor service areas typically include restrooms, janitor rooms, telephone closets, electrical closets, and mechanical rooms. Rentable space does not include vertical building penetrations and their enclosing walls, such as stairs, elevator shafts, and vertical ducts. To determine the RSF, the ABOA SF is multiplied by the sum of one (1) plus the CAF, for each type of space included in the premises.
13. "Space" means that part of the premises to which the Government has exclusive use, such as occupant area, or other types of space. Appurtenant areas (e.g., parking areas) to which the Government has rights under the lease are not included in the space.

2.02 AUTHORIZED REPRESENTATIVES (OCT 2016)

Signatories to this Lease shall have full authority to bind their respective principals with regard to all matters relating to this Lease. No other persons shall be understood to have any authority to bind their respective principals, except to the extent that such authority may be explicitly delegated by notice to the other party, or to the extent that such authority is transferred by succession of interest. The Government shall have the right to substitute its Lease Contracting Officer (LCO) by notice, without an express delegation by the prior LCO.

2.03 ALTERATIONS REQUESTED BY THE GOVERNMENT (OCT 2022)

- A. The Government may request the Lessor to provide alterations during the term of the Lease. Alterations will be ordered by issuance of a Lease Amendment, GSA Form 300, Order for Supplies or Services, or a tenant agency-approved form when specifically authorized to do so by the LCO. The General Services Administration Acquisition Manual ("GSAM") clause, 552.270-31, Prompt Payment, including its invoice requirements, shall apply to orders for alterations. All orders are subject to the terms and conditions of this Lease and may be placed by the LCO or a warranted contracting officer's representative (COR) in GSA or the tenant agency when specifically authorized to do so by the LCO, subject to the threshold limitation below.
- B. Orders for alterations issued by an authorized COR are limited to no more than \$250,000 (LCOs are not subject to this threshold). This threshold will change according to future adjustments of the simplified acquisition threshold (see FAR 2.101). The LCO will provide the Lessor with a list of tenant agency officials authorized to place orders and will specify any limitations on the authority delegated to tenant agency officials. The tenant agency officials are not authorized to deal with the Lessor on any other matters.
- C. The Lessor may be required to use the Government's project management system, as outlined in Lease paragraph entitled "Government Project Management System."
- D. Payments for alterations ordered by the tenant agency under the authorization described in sub-paragraph B will be made directly by the tenant agency placing the order.

2.04 WAIVER OF RESTORATION (OCT 2023)

Lessor shall have no right to require the Government to restore the Premises upon expiration or earlier termination (full or partial) of the Lease, and waives all claims against the Government for:

- A. Waste, or,
- B. Damages, or restoration arising from or related to:

1. The Government's normal and customary use of the Premises during the term of the Lease (including any extensions thereof), as well as
2. Any initial or subsequent alteration to the Premises regardless of whether such alterations are performed by the Lessor or by the Government.

At its sole option, the Government may abandon property in the Space following expiration or earlier termination (full or partial) of the Lease, in which case the property will become the property of the Lessor and the Government will be relieved of any liability in connection therewith.

2.05 PAYMENT OF BROKER ~~(OCT 2021)~~ INTENTIONALLY DELETED

2.06 CHANGE OF OWNERSHIP/NOVATION (OCT 2024)

- A. If during the term of the Lease, title to the Property is transferred or the Lessor changes its legal name, the Lessor and its successor shall comply with the requirements of FAR Subpart 42.12. If title is transferred, the Lessor shall notify the Government within five days of the transfer of title.
- B. The Government and the Lessor may execute a Change of Name Agreement if the Lessor is changing only its legal name, and the Government's and the Lessor's respective rights and obligations remain unaffected.
- C. If title to the Property is transferred, the Government, the original Lessor (Transferor), and the new owner or assignee (Transferee) shall execute a Novation Agreement providing for the transfer of Transferor's rights and obligations under the Lease to the Transferee. When executed on behalf of the Government, a Novation Agreement will be made part of the Lease via Lease Amendment.
- D. In addition to all documents required by FAR 42.1204, the LCO may request additional information (e.g., copy of the deed, bill of sale, certificate of merger, contract, court decree, articles of incorporation, operation agreement, partnership certificate of good standing, etc.) from the Transferor or Transferee to verify the parties' representations regarding the transfer, and to determine whether the transfer of the Lease is in the Government's interest.
- E. If the LCO determines that recognizing the Transferee as the Lessor will not be in the Government's interest, the Transferor shall remain fully liable to the Government for the Transferee's performance of obligations under the Lease, notwithstanding the transfer. Under no condition shall the Government be obligated to release the Transferor of obligations prior to (a) the rent commencement date; and (b) any amounts due and owing to the Government under the Lease that have been paid in full or completely set off against the rental payments due under the Lease.
- F. As a condition for being recognized as the Lessor and entitlement to receiving rent, the Transferee must register in the System for Award Management (SAM) for purposes of "All Awards" (See FAR 52.232-33), and complete all required representations and certifications within SAM. In addition, for leases FSL III or above, the Transferee must also complete 552.270-33 Foreign Ownership and Financing Representation for High-Security Leased Space. This representation must be completed annually.
- G. If title to the Property is transferred, rent shall continue to be paid to the original Lessor, subject to the Government's rights as provided for in this Lease. The Government's obligation to pay rent to the Transferee shall commence on the effective date of the Lease Amendment incorporating the Novation Agreement. The Lease Amendment will not be issued until the Government has received all information reasonably required by the LCO, the Government has determined that recognizing the Transferee as the Lessor is in the Government's interest (which determination will be prompt and not unreasonably withheld), and the Transferee has met all conditions specified in sub-paragraph F. The original Lessor must maintain an active registration in SAM until the Novation process is complete.

2.07 REAL ESTATE TAX ADJUSTMENT (OCT 2023)

- A. Purpose. This paragraph provides for adjustment in the rent (tax adjustment) to account for increases or decreases in Real Estate Taxes for the Property after the establishment of the Real Estate Tax Base, as those terms are defined herein. Tax adjustments shall be calculated in accordance with this paragraph.
- B. Definitions. The following definitions apply to the use of the terms within this paragraph:
 1. Property is defined as the land and Buildings in which the Premises are located, including all Appurtenant Areas (e.g., parking areas to which the Government is granted rights).
 2. Real Estate Taxes are those taxes that are levied upon the owners of real property by a Taxing Authority (as hereinafter defined) of a state or local Government on an ad valorem basis to raise general revenue for funding the provision of government services. The term excludes, without limitation, special assessments for specific purposes, assessments for business improvement districts, and/or community development assessments.
 3. Taxing Authority is a state, commonwealth, territory, county, city, parish, or political subdivision thereof, authorized by law to levy, assess, and collect Real Estate Taxes.
 4. Tax Year refers to the 12-month period adopted by a Taxing Authority as its fiscal year for assessing Real Estate Taxes on an annual basis.
 5. Tax Abatement is an authorized reduction in the Lessor's liability for Real Estate Taxes below that determined by applying the generally applicable real estate tax rate to the Fully Assessed (as hereinafter defined) valuation of the Property.

6. Unadjusted Real Estate Taxes are the full amount of Real Estate Taxes that would be assessed for the Property for one full Tax Year without regard to the Lessor's entitlement to any Tax Abatements (except if such Tax Abatement came into effect after the date of award of the Lease), and not including any late charges, interest or penalties. If a Tax Abatement comes into effect after the date of award of the Lease, "unadjusted Real Estate Taxes" are the full amount of Real Estate Taxes assessed for the Property for one full Tax Year, less the amount of such Tax Abatement, and not including any late charges, interest, or penalties.
7. Real Estate Tax Base is the unadjusted Real Estate Taxes for the first full Tax Year following the commencement of the Lease term. If the Real Estate Taxes for that Tax Year are not based upon a Full Assessment of the Property, then the Real Estate Tax Base shall be the Unadjusted Real Estate Taxes for the Property for the first full Tax Year for which the Real Estate Taxes are based upon a Full Assessment. Such first full Tax Year may be hereinafter referred to as the Tax Base Year. Alternatively, the Real Estate Tax Base may be an amount negotiated by the parties that reflects an agreed upon base for a Fully Assessed value of the Property.
8. The Property is deemed to be Fully Assessed (and Real Estate Taxes are deemed to be based on a Full Assessment) only when a Taxing Authority has, for the purpose of determining the Lessor's liability for Real Estate Taxes, determined a value for the Property taking into account the value of all improvements contemplated for the Property pursuant to the Lease, and issued to the Lessor a tax bill or other notice of levy wherein the Real Estate Taxes for the full Tax Year are based upon such Full Assessment. At no time prior to the issuance of such a bill or notice shall the Property be deemed Fully Assessed.
9. Percentage of Occupancy refers to that portion of the Property exclusively occupied or used by the Government pursuant to the Lease. For Buildings, the Percentage of Occupancy is determined by calculating the ratio of the RSF occupied by the Government pursuant to the Lease to the total RSF in the Building or Buildings so occupied and shall not take into account the Government's ancillary rights including, but not limited to, parking or roof space for antennas (unless facilities for such ancillary rights are separately assessed). This percentage shall be subject to adjustment to take into account increases or decreases for Space leased by the Government or for rentable space on the Property.

C. Adjustment for changes in Real Estate Taxes. After the Property is Fully Assessed, the Government shall pay its share of any increases and shall receive its share of any decreases in the Real Estate Taxes for the Property, such share of increases or decreases to be referred to herein as "tax adjustment." The amount of the tax adjustment shall be determined by multiplying the Government's Percentage of Occupancy by the difference between the current year Unadjusted Real Estate Taxes and the Real Estate Tax Base, less the portion of such difference not paid due to a Tax Abatement (except if a Tax Abatement comes into effect after the date of award of the Lease). If a Tax Abatement comes into effect after the date of award of the Lease, the amount of the tax adjustment shall be determined by multiplying the Government's Percentage of Occupancy by the difference between the current year Unadjusted Real Estate Taxes and the Real Estate Tax Base. The Government shall pay the tax adjustment in a single annual lump sum payment to the Lessor. In the event that this tax adjustment results in a credit owed to the Government, the Government may elect to receive payment in the form of a rental credit or lump sum payment.

1. If the Property contains more than one separately assessed parcel, then more than one tax adjustment shall be determined based upon the Percentage of Occupancy, Real Estate Tax Base, and Real Estate Taxes for each respective parcel.
2. After commencement of the Lease term, the Lessor shall provide to the LCO copies of all real estate tax bills for the Property, all documentation of Tax Abatements, credits, or refunds, if any, and all notices which may affect the assessed valuation of the Property, for the Tax Year prior to the commencement of the Lease Term, and all such documentation for every year following. Lessor acknowledges that the LCO shall rely on the completeness and accuracy of these submissions in order to establish the Real Estate Tax Base and to determine tax adjustments. The LCO may memorialize the establishment of the Real Estate Tax Base by issuing a unilateral administrative lease amendment indicating the base year, the amount of the Real Estate Tax Base, and the Government's Percentage of Occupancy.
3. The Real Estate Tax Base is subject to adjustment when increases or decreases to Real Estate Taxes in any Tax Year are attributable to (a) improvements or renovations to the Property not required by this Lease, or (b) changes in net operating income for the Property not derived from this Lease. If either condition results in a change to the Real Estate Taxes, the LCO may re-establish the Real Estate Tax Base as the Unadjusted Real Estate Taxes for the Tax Year the Property is reassessed under such condition, less the amount by which the Unadjusted Real Estate Taxes for the Tax Year prior to reassessment exceeds the prior Real Estate Tax Base.
4. If this Lease includes any options to renew the term of the Lease, or be otherwise extended, the Real Estate Tax Base for determining tax adjustments during the renewal term or extension shall be the last Real Estate Tax Base established during the base term of the Lease.
5. If any Real Estate Taxes for the Property are retroactively reduced by a Taxing Authority during the term of the Lease, the Government shall be entitled to a proportional share of any tax refunds to which the Lessor is entitled, calculated in accordance with this Paragraph. Lessor acknowledges that it has an affirmative duty to disclose to the Government any decreases in the Real Estate Taxes paid for the Property during the term of the Lease. Lessor shall annually provide to the LCO all relevant tax records for determining whether a tax adjustment is due, irrespective of whether it seeks an adjustment in any Tax Year.
6. If the Lease terminates before the end of a Tax Year, or if rent has been suspended, payment for the real estate tax increase due because of this section for the Tax Year will be prorated based on the number of days that the Lease and the rent were in effect. Any credit due the Government after the expiration or earlier termination of the Lease shall be made by a lump sum payment to the Government or as a rental credit to any succeeding Lease, as determined in the LCO's sole discretion. Lessor shall remit any lump sum payment to the Government within 15 calendar days of payment or credit by the Taxing Authority to Lessor or Lessor's designee. If the credit due to the Government is not paid by the due date, interest shall accrue on the late payment at the rate established by the Secretary of the Treasury under Section 12 of the Contract Disputes Act of 1978, as amended (41 USC § 611), that is in effect on the day after the due date. The interest penalty shall accrue daily on the amount of the credit and shall be compounded in 30-day increments inclusive from the first day after the due date through the payment date. The Government shall have the right to pursue the outstanding balance of any tax credit

using all such collection methods as are available to the United States to collect debts. Such collection rights shall survive the expiration of this Lease.

7. In order to obtain a tax adjustment, the Lessor shall furnish the LCO with copies of all paid tax receipts, or other similar evidence of payment acceptable to the LCO, and a proper invoice (as described in GSA 3517, General Clauses, 552.270-31, Prompt Payment) for the requested tax adjustment, including the calculation thereof. All such documents must be received by the LCO within 60 calendar days after the last date the real estate tax payment is due from the Lessor to the Taxing Authority without payment of penalty or interest. FAILURE TO SUBMIT THE PROPER INVOICE AND EVIDENCE OF PAYMENT WITHIN SUCH TIME FRAME SHALL CONSTITUTE A WAIVER OF THE LESSOR'S RIGHT TO RECEIVE A TAX ADJUSTMENT PURSUANT TO THIS PARAGRAPH FOR THE TAX YEAR AFFECTED.

- D. Tax Appeals. If the Government occupies more than 50 percent of the Building by virtue of this and any other Government Lease(s), the Government may, upon reasonable notice, direct the Lessor to initiate a tax appeal, or the Government may elect to contest the assessed valuation on its own behalf or jointly on behalf of Government and the Lessor. If the Government elects to contest the assessed valuation on its own behalf or on behalf of the Government and the Lessor, the Lessor shall cooperate fully with this effort, including, without limitation, furnishing to the Government information necessary to contest the assessed valuation in accordance with the filing requirements of the Taxing Authority, executing documents, providing documentary and testimonial evidence, and verifying the accuracy and completeness of records. If the Lessor initiates an appeal at the direction of the Government, the Government shall have the right to approve the selection of counsel who shall represent the Lessor with regard to such appeal, which approval shall not be unreasonably withheld, conditioned or delayed, and the Lessor shall be entitled to a credit in the amount of its reasonable expenses in pursuing the appeal.

2.08 GSAR 552.270-16 ADJUSTMENT FOR VACANT PREMISES (DEVIATION) (SEP 2022)

- (a) If the Government fails to occupy any portion of the leased premises or vacates the premises in whole or in part prior to expiration of the term of the lease, the rental rate and the base for operating cost adjustments will be reduced using the figure specified in the "Rate for Adjustment for Vacant Leased Premises" paragraph of this Lease.
- (b) If no rate reduction has been established in this lease, the rate will be reduced by that portion of the costs per ABOA square foot of operating expenses not required to maintain the space.
- (c) Said reduction shall occur after the Government gives 30 calendar days' prior notice to the Lessor and shall continue in effect until the Government occupies the vacant premises or the lease expires or is terminated.

2.09 OPERATING COSTS ADJUSTMENT (JUN 2012)

- A. Beginning with the second year of the Lease and each year thereafter, the Government shall pay annual incremental adjusted rent for changes in costs for cleaning services, supplies, materials, maintenance, trash removal, landscaping, water, sewer charges, heating, electricity, and certain administrative expenses attributable to occupancy.
- B. The amount of adjustment will be determined by multiplying the base rate by the annual percent of change in the Cost-of-Living Index. The percent change will be computed by comparing the index figure published for the month prior to the Lease Term Commencement Date with the index figure published for the month prior which begins each successive 12-month period. For example, a Lease which commences in June of 2005 would use the index published for May of 2005, and that figure would be compared with the index published for May of 2006, May of 2007, and so on, to determine the percent change. The Cost-of-Living Index will be measured by the Department of Labor revised Consumer Price Index for Urban Wage Earners and Clerical Workers (CPI-W), U.S. city average, all items, (1982 to 1984 = 100) published by the Bureau of Labor Statistics. Payment will be made with the monthly installment of fixed rent. Rental adjustments will be effective on the anniversary date of the Lease; however, payment of the adjusted rental rate will become due on the first workday of the second month following the publication of the Cost-of-Living Index for the month prior to the commencement of each 12-month period.
- C. In the event of any decreases in the Cost-of-Living Index occurring during the term of the occupancy under the Lease, the rental amount will be reduced accordingly. The amount of such reductions will be determined in the same manner as increases in rent provided under this paragraph.
- D. If the Government exercises an option to extend the Lease term at the same rate as that of the original term, the option price will be based on the adjustment during the original term. Annual adjustments will continue.

2.10 ADDITIONAL POST-AWARD FINANCIAL AND TECHNICAL DELIVERABLES (OCT 2023)

- A. Within **ten (10)** days after Lease award, the Lessor shall provide to the LCO (or representative designated by the LCO) evidence of:
1. A firm commitment of funds in an amount sufficient to perform the work.
 2. The names of at least two proposed construction contractors, as well as evidence of the contractors' experience, competency, and performance capabilities with construction similar in scope to that which is required herein.
 3. The license or certification to practice in the state where the Building is located from the individual(s) and/or firm(s) providing architectural and engineering design services.
- B. The Government shall have the right to withhold approval of design intent drawings (DIDs) or issuance of a Notice to Proceed until the conditions specified in sub-paragraph A has been satisfied.

- C. Within ten (10) calendar days after the LCO issues the Notice To Proceed (NTP) for TI construction, the Lessor shall provide to the LCO evidence of:
1. Award of a construction contract for TIs with a firm completion date. This date must be in accordance with the construction schedule for TIs as described in the "Schedule for Completion of Space" paragraph of this Lease.
 2. Issuance of required permits for construction of the TIs.
- D. If the Lessor is not the fee simple owner at the time of award, the parties agree that within **thirty (30)** days after execution of this Lease, Lessor will demonstrate it has obtained satisfactory title showing fee simple ownership of the property. Fee simple title must be free of any encumbrances that may limit the rights, responsibilities, or liabilities of the parties to this Lease. Lessor's failure to provide evidence of fee simple ownership within the specified timeframe shall give VA an immediate right to terminate the Lease for default. If a termination for default occurs due to the lessor's failure to provide fee simple ownership within the specific timeframe, the Lessor will not be entitled to any payment whatsoever arising under or related to the Lease.

2.11 ~~RELOCATION ASSISTANCE ACT (APR 2014)~~ INTENTIONALLY DELETED

2.12 ENTITY NAME (OCT 2023)

Lessor may not use Federal agency name(s) and/or acronym(s), e.g., General Services Administration, GSA, in its entity name that owns and/or leases Space to GSA.

SECTION 3 CONSTRUCTION STANDARDS AND SHELL COMPONENTS

3.01 LABOR STANDARDS (OCT 2024)

If the Lessor proposes to satisfy the requirements of this Lease through the construction of a new Building or the complete rehabilitation or reconstruction of an existing Building, and the Government will be the sole or predominant tenant such that any other use of the Building will be functionally or quantitatively incidental to the Government's use and occupancy, the following FAR clauses shall apply to all work (including shell and TIs) performed prior to the Government's acceptance of space as substantially complete. Full text versions of these clauses are available upon request from the LCO. Full text versions are also available at [HTTPS://WWW.ACQUISITION.GOV/?Q=BROWSEFAR](https://www.acquisition.gov/?Q=BROWSEFAR).

- 52.222-4 Contract Work Hours and Safety Standards Act—Overtime Compensation
- 52.222-5 Construction Wage Rate Requirements - Secondary Site of the Work
- 52.222-6 Construction Wage Rate Requirements
- 52.222-7 Withholding of Funds
- 52.222-8 Payrolls and Basic Records
- 52.222-9 Apprentices and Trainees
- 52.222-10 Compliance with Copeland Act Requirements
- 52.222-11 Subcontracts (Labor Standards)
- 52.222-12 Contract Termination—Debarment
- 52.222-13 Compliance with Construction Wage Rate Requirements and Related Regulations
- 52.222-14 Disputes Concerning Labor Standards
- 52.222-15 Certification of Eligibility.
- 52.222-55 Minimum Wages for Contractor Workers Under Executive Order 14026
- 52.222-62 Paid Sick Leave Under Executive Order 13706.

3.02 WORK PERFORMANCE (JUN 2012)

All work in performance of this Lease shall be done by skilled workers or mechanics and shall be acceptable to the LCO. The LCO may reject the Lessor's workers 1) if such are unlicensed, unskilled, or otherwise incompetent, or 2) if such have demonstrated a history of either untimely or otherwise unacceptable performance in connection with work carried out in conjunction with either this contract or other government or private contracts.

3.03 EXISTING FIT-OUT, SALVAGED, OR REUSED BUILDING MATERIAL (OCT 2024)

- A. Items and materials existing in the Premises, or to be removed from the Premises during the demolition phase, are eligible for reuse in the construction phase of the project. The reuse of items and materials is preferable to recycling them; however, items considered for reuse shall be in refurbished condition and shall meet the quality standards set forth by the Government in this Lease. In the absence of definitive quality standards, the Lessor is responsible to confirm that the quality of the item(s) in question shall meet or exceed accepted industry or trade standards for first quality commercial grade applications.
- B. The Government will not pay for existing fixtures and other TIs accepted in place. However, the Government will reimburse the Lessor, as part of the TIA, the costs to repair or improve such fixtures or improvements identified on the reuse plan and approved by the LCO.
- C. Unless waived by the LCO, the Lessor shall submit a reuse plan for leases 10,000 RSF or greater.

3.04 CONSTRUCTION WASTE MANAGEMENT (OCT 2021)

For leases 10,000 RSF or greater, the requirements below apply:

- A. Recycling construction waste is mandatory for initial space alterations for TIs and subsequent alterations under the Lease.
- B. Submittal Requirement. Prior to construction commencement, a proposed plan following industry standards to recycle construction waste. The construction waste management plan shall quantify material diversion goals and maximize the materials to be recycled and/or salvaged (at least 50 percent) from construction, demolition, and packaging debris. Where the small quantity of material, the extraordinarily complex nature of the waste disposal method, or prohibitive expense for recycling would represent a genuine hardship, the Government, upon written request of the Lessor and approval of the LCO, may permit alternative means of disposal.
- C. The Lessor shall recycle the following items during both the demolition and construction phases of the project, subject to economic evaluation and feasibility: Ceiling grid and tile, light fixtures, including proper disposal of any transformers, ballasts, and fluorescent light bulbs, duct work and HVAC equipment, wiring and electrical equipment, aluminum and/or steel doors and frames, hardware, drywall, steel studs, carpet, carpet backing, and carpet padding, wood, insulation, cardboard packaging, pallets, windows and glazing materials, all miscellaneous metals (as in steel support frames for filing equipment), and all other finish and construction materials.
- D. If any waste materials encountered during the demolition or construction phase are found to contain lead, asbestos, polychlorinated biphenyls (PCBs) (such as fluorescent lamp ballasts), or other harmful substances, they shall be handled and removed in accordance with Federal and state laws and requirements concerning hazardous waste.
- E. In addition to providing "one time" removal and recycling of large-scale demolition items such as carpeting or drywall, the Lessor shall provide continuous facilities for the recycling of incidental construction waste during the initial construction.

- F. Construction materials recycling records shall be maintained by the Lessor and shall be accessible to the LCO. Records shall include materials recycled or land-filled, quantity, date, and identification of hazardous wastes.

3.05 WOOD PRODUCTS (OCT 2023)

- A. Particle board, medium-density fiberboard, and hardwood plywood shall be free of formaldehyde and labeled as Toxic Substances Control Act (TSCA) Title VI compliant. Other wood types such as strawboard shall be free of formaldehyde or sufficiently aged prior to use such that indoor air levels in the finished leased space shall not exceed 0.016 parts per million (ppm) of formaldehyde.
- B. All materials comprised of combustible substances, such as wood plywood and wood boards, shall be treated with fire retardant chemicals by a pressure impregnation process or other methods that treats the materials throughout as opposed to surface treatment.
- C. For leases 10,000 RSF or greater, new installations of wood products shall not contain wood from endangered wood species, as listed by the Convention on International Trade in Endangered Species. The list of species can be found at [HTTP://WWW.WOOD-DATABASE.COM/](http://www.wood-database.com/) or [HTTPS://WWW.FWS.GOV/PROGRAM/CITES](https://www.fws.gov/program/cites). In addition, the Lessor is encouraged to use independently certified forest products. For information on certification and certified wood products, refer to the Forest Stewardship Council United States ([HTTPS://US.FSC.ORG/EN-US](https://us.fsc.org/en-us)), or the Sustainable Forestry Initiative ([HTTP://WWW.SFIPROGRAM.ORG/](http://www.sfiprogram.org/)).

3.06 ADHESIVES AND SEALANTS (OCT 2022)

- A. All adhesives employed (including, but not limited to, adhesives for carpet, carpet tile, plastic laminate, wall coverings, adhesives for wood, or sealants) shall meet the requirements of the manufacturer of the products adhered or involved. The Lessor shall use adhesives and sealants with no heavy metals, and that do not result in indoor air levels above 0.016 parts per million (ppm) of formaldehyde. Adhesives and other materials used for the installation of carpets shall be limited to those having a flash point of 140 degrees F or higher.
- B. For leases 10,000 RSF or greater, the Lessor is encouraged to use applicable environmentally preferable criteria that are recommended in the Green Procurement Compilation at [HTTPS://SFTOOL.GOV/GREENPROCUREMENT/](https://sftool.gov/greenprocurement/).

3.07 BUILDING SHELL REQUIREMENTS (OCT 2016)

- A. The Building Shell shall be designed, constructed, and maintained in accordance with the standards set forth herein and completed prior to acceptance of Space. For pricing, fulfillment of all requirements not specifically designated as TIs, Building Specific Amortized Capital, Operating Costs, or other rent components as indicated shall be deemed included in the Shell Rent.
- B. Base structure and Building enclosure components shall be complete. All common areas accessible by the Government, such as lobbies, fire egress corridors and stairwells, elevators, garages, and service areas, shall be complete. Restrooms shall be complete and operational. All newly installed Building shell components, including but not limited to, heating, ventilation, and air conditioning (HVAC), electrical, ceilings, sprinklers, etc., shall be furnished, installed, and coordinated with TIs. Circulation corridors are provided as part of the base Building only on multi-tenanted floors where the corridor is common to more than one tenant. On single tenant floors, only the fire egress corridor(s) necessary to meet code is provided as part of the shell.
- C. The Building Shell rental rate shall also include, but is not limited to, costs included listed under Section II of GSA Form 1217, Lessor's Annual Cost Statement, including insurance, taxes, lease commission and management, in addition to profit, reserve costs and loan financing for the Building.

3.08 RESPONSIBILITY OF THE LESSOR AND LESSOR'S ARCHITECT/ENGINEER (OCT 2022)

- A. The Lessor shall be responsible for the professional quality, technical accuracy, and the coordination of all designs, drawings, specifications, and other services furnished by the Lessor under this contract. The Lessor shall, without additional compensation, correct or revise any errors or deficiencies in its designs, drawings, specifications, or other services.
- B. The Lessor remains solely responsible for designing, constructing, operating, and maintaining the leased premises in full accordance with the requirements of the Lease. The Government retains the right to review and approve many aspects of the Lessor's design, including without limitation, review of the Lessor's design and construction drawings, shop drawings, product data, finish samples, and completed base building and TI construction. Such review and approval are intended to identify potential design flaws, to minimize costly misdirection of effort, and to assist the Lessor in its effort to monitor whether such design and construction comply with applicable laws and satisfy all Lease requirements.
- C. Neither the Government's review, approval or acceptance of, nor payment through rent of the services required under this contract, shall be construed to operate as a waiver of any rights under this contract or of any cause of action arising out of the performance of this contract, and the Lessor shall be and remain liable to the Government in accordance with applicable law for all damages to the Government caused by the Lessor's negligent performance of any of the services required under this Lease.
- D. Design and construction and performance information is contained throughout several of the documents which comprise this Lease. The Lessor shall provide to space planners, architects, engineers, construction subcontractors, etc., all information required whether it is found in this Lease, special requirements and attachments, price lists, or design intent drawings. Reliance upon one of these documents to the exclusion of any other may result in an incomplete understanding of the scope of the work to be performed and/or services to be provided.

3.09 QUALITY AND APPEARANCE OF BUILDING (JUN 2012)

The Building in which the Premises are located shall be designed, built and maintained in good condition and in accordance with the Lease requirements. If not new or recent construction, the Building shall have undergone by occupancy, modernization, or adaptive reuse for office space with modern conveniences. The Building shall be compatible with its surroundings. Overall, the Building shall project a professional and aesthetically pleasing appearance including an attractive front and entrance way.

3.10 VESTIBULES (OCT 2020)

- A. Vestibules shall be provided at public entrances wherever entry to the Space is directly from the outside. In the event of negative air pressure conditions, provisions shall be made for equalizing air pressure. For measurement purposes, vestibules are considered building support space and not ABOA.
- B. The Lessor shall provide permanent entryway systems (such as grilles or grates) to control dirt and particulates from entering the Building at all primary exterior entryways.

3.11 MEANS OF EGRESS (MAY 2015)

- A. Prior to occupancy, the Premises and any parking garage areas shall meet or will be upgraded to meet, either the applicable egress requirements in the National Fire Protection Association, Life Safety Code (NFPA 101), or the International Code Council, International Building Code (IBC), each current as of the Lease Award Date, or use an alternative approach or method that achieves an equivalent level of safety deemed acceptable by the Government.
- B. The Space shall have unrestricted access to a minimum of two remote exits on each floor of Government occupancy.
- C. Interlocking or scissor stairs located on the floor(s) where Space is located shall only count as one exit stair.
- D. A fire escape located on the floor(s) where Space is located shall not be counted as an approved exit stair.
- E. Doors shall not be locked in the direction of egress unless equipped with special locking hardware in accordance with requirements of NFPA 101 or the IBC.

3.12 AUTOMATIC FIRE SPRINKLER SYSTEM (OCT 2023)

- A. Any portion of the Space located below-grade, including parking garage areas, and all areas in a Building referred to as "hazardous areas" (defined in National Fire Protection Association (NFPA) 101) that are located within the entire Building (including non-Government areas) shall be protected by an automatic fire sprinkler system or an equivalent level of safety.
- B. For Buildings in which any portion of the Space on or above the sixth floor, then, at a minimum, the Building up to and including the highest floor of Government occupancy shall be protected by an automatic fire sprinkler system or an equivalent level of safety.
- C. For Buildings in which the Government occupies, either through this Lease or in combination with other Government Leases in the Building any portion of the Space is on or above the sixth floor, and lease of the Space will result, either individually or in combination with other Government Leases in the Building, in the Government leasing 35,000 or more ANSI/BOMA Occupant Area SF of Space in the Building, then the entire Building shall be protected throughout by an automatic fire sprinkler system or an equivalent level of safety.
- D. Automatic fire sprinkler system(s) shall be installed in accordance with the requirements of NFPA 13, Standard for the Installation of Sprinkler Systems that was in effect on the actual date of installation.
- E. Automatic fire sprinkler system(s) shall be maintained in accordance with the requirements of NFPA 25, Standard for the Inspection, Testing, and Maintenance of Water-based Fire Protection Systems (current as of the Lease Award Date).
- F. "Equivalent level of safety" means an alternative design or system (which may include automatic fire sprinkler systems), based upon fire protection engineering analysis, which achieves a level of safety equal to or greater than that provided by automatic fire sprinkler systems.

3.13 FIRE ALARM SYSTEM (SEP 2013)

- A. A Building-wide fire alarm system shall be installed in the entire Building in which any portion of the Space is located on the 3rd floor or higher.
- B. The fire alarm system shall be installed in accordance with the requirements of NFPA 72, National Fire Alarm and Signaling Code, that was in effect on the actual date of installation.
- C. The fire alarm system shall be maintained in accordance with the requirements of NFPA 72, National Fire Alarm and Signaling Code (current as of the Lease Award Date).
- D. The fire alarm system shall transmit all fire alarm signals to the local fire department via any of the following means: directly to the local fire department, to the (911) public communications center, to a central station, to a remote supervising station, or to a proprietary supervising station.
- E. If the Building's fire alarm control unit is over 25 years old as of the date of award of this Lease, Lessor shall install a new fire alarm system in accordance with the requirements of NFPA 72, National Fire Alarm and Signaling Code (current as of the Lease Award Date), prior to Government acceptance and occupancy of the Space.

3.14 ENERGY INDEPENDENCE AND SECURITY ACT (OCT 2024)

A. Energy-related Requirements.

1. The Energy Independence and Security Act (EISA) establishes the following requirements for Government Leases in Buildings that have not earned the ENERGY STAR® Label conferred by the Environmental Protection Agency (EPA) within one year prior to the due date for final proposal revisions ("most recent year").
 2. If this Lease was awarded under any of EISA's Section 435 statutory exceptions, the Lessor shall either:
 - a. Earn the ENERGY STAR® Label prior to acceptance of the Space (or not later than one year after the Lease Award Date of a succeeding or superseding Lease); or
 - b.
 - I. Complete energy efficiency and conservation improvements if any, agreed to by Lessor in lieu of earning the ENERGY STAR® Label prior to acceptance of the Space (or not later than one year after the Lease Award Date of a succeeding or superseding Lease); and
 - II. Obtain and publicly disclose the Building's current ENERGY STAR® score (using EPA's Portfolio Manager tool), unless the Lessor cannot access whole building utility consumption data, or there is no building category within Portfolio Manager to benchmark against, including spaces—
 - (i) That are located in States with privacy laws that provide that utilities shall not provide such aggregated information to multitenant building owners; and
 - (ii) For which tenants do not provide energy consumption information to the commercial building owner in response to a request from the building owner. (A Federal agency that is a tenant of the space shall provide to the building owner, or authorize the owner to obtain from the utility, the energy consumption information of the space for the benchmarking and disclosure required by this subparagraph D).
 - (iii) That cannot be benchmarked (scored) using EPA's Portfolio Manager tool because of excessive vacancy; in which case Lessor agrees to obtain the score and publicly disclose it within 120 days of the eligibility to obtain a score using the EPA Portfolio Manager tool.
- Note: "public disclosure" means posting the Energy Star® score on state or local websites in those areas that have applicable disclosure mandates and reporting the score to the Government via Portfolio Manager. In the absence of an applicable state or local disclosure mandate, Lessor shall either generate and display the Energy Star® score in a public space at the building location or post the score on Lessor's or Lessor's Parent/Affiliate website.
3. If this Lease was awarded to a Building to be built or to a Building predominantly vacant as of the due date for final proposal revisions and was unable to earn the ENERGY STAR® label for the most recent year (as defined above) due to insufficient occupancy, but was able to demonstrate sufficient evidence of capability to earn the ENERGY STAR® label, then Lessor must earn the ENERGY STAR® label within 18 months after occupancy by the Government.

B. Hydrology-related Requirements. Per EISA Section 438, the sponsor of any development or redevelopment project involving a Federal facility with a footprint that exceeds 5,000 square feet shall use site planning, design, construction, and maintenance strategies for the property to maintain or restore, to the maximum extent technically feasible, the predevelopment hydrology of the Property with regard to the temperature, rate, volume, and duration of flow. If the Lessor proposes to satisfy the Government's space requirements through a development or redevelopment project, and the Government will be the sole or predominant tenant such that any other use of the Property will be functionally or quantitatively incidental to the Government's use, the Lessor is required to implement hydrology maintenance and restoration requirements as required by EISA Section 438.

1. For the purposes of applying EISA Section 438 in this Lease, "sponsor" shall mean "Lessor", and "exceeds 5,000 square feet" shall mean construction that disturbs 5,000 square feet or more of land area at the Property or on adjoining property to accommodate the Government's requirements, or at the Property for whatever reason. Information regarding implementation of the hydrology maintenance and restoration requirements can be found at: [HTTP://WWW.EPA.GOV/GREENINGEPA/](http://www.epa.gov/greeningepa/)
2. Lessor is required to implement these hydrology maintenance and restoration requirements to the maximum extent technically feasible, prior to acceptance of the Space, (or not later than one year after the Lease Award Date or Lease Term Commencement Date, whichever is later, of a succeeding or superseding Lease). Additionally, this Lease requires EISA Section 438 storm water compliance not later than one year from the date of any applicable disturbance (as defined in EISA Section 438) of more than 5,000 square feet of ground area if such disturbance occurs during the term of the Lease if the Government is the sole or predominant tenant. In the event the Lessor is required to comply with EISA Section 438, Lessor shall furnish the Government, prior to the filing for permits for the associated work, with a certification from Lessor's engineer that the design meets the hydrology maintenance and restoration requirements of EISA Section 438.

3.15 ELEVATORS (OCT 2020)

- #### A.
- The Lessor shall provide suitable passenger elevator and, when required by the Government, freight elevator service to any of the Premises not having ground level access. Service shall be available during the normal hours of operation specified in the in this Lease. However, one

passenger elevator and, when required by the Government, one freight elevator shall be available at all times for Government use. When a freight elevator is required by the Government, it shall be accessible to the loading areas. When possible, the Government shall be given 24-hour advance notice if the service is to be interrupted for more than 1-1/2 hours. Normal service interruption shall be scheduled outside of the Government's normal working hours. The Lessor shall also use best efforts to minimize the frequency and duration of unscheduled interruptions.

- B. Code. Elevators shall conform to the requirements of the American Society of Mechanical Engineers ASME A17.1/CSA B44, Safety Code for Elevators and Escalators that were in effect based on the elevator installation date code year. Elevators shall be provided with Phase I emergency recall operation and Phase II emergency in-car operation in accordance with ASME A17.1/CSA B44. Fire alarm initiating devices (e.g., smoke detectors) used to initiate Phase I emergency recall operation shall be installed in accordance with the requirements of NFPA 72, National Fire Alarm and Signaling Code. The elevators shall be inspected and maintained in accordance with the current edition of the ASME A17.2, Inspector's Manual for Elevators. Except for the reference to ASME A17.1 in ABAAS, Section F105.2.2, all elevators must meet ABAAS requirements for accessibility in Sections 407, 408, and 409 of ABAAS.
- C. Safety Systems. Elevators shall be equipped with telephones or other two-way emergency communication systems. The system used shall be marked and shall reach an emergency communication location staffed 24 hours per day, 7 days per week.
- D. Speed. The passenger elevators shall have a capacity to transport in 5 minutes 15 percent of the normal population of all upper floors (based on 150 SF per person). Further, the dispatch interval between elevators during the up-peak demand period shall not exceed 35 seconds.
- E. Interior Finishes. Elevator cab walls shall be hardwood, marble, granite, or an equivalent pre-approved by the LCO. Elevator cab floors shall be marble, granite, terrazzo, or an equivalent pre-approved by the LCO.

3.16 ~~BUILDING DIRECTORY (OCT 2024)~~ INTENTIONALLY DELETED

3.17 FLAGPOLE (SEP 2013)

If the Government is the sole occupant of the Building, a flagpole shall be provided at a location to be approved by the LCO. The flag of the United States of America will be provided by the Lessor, as part of shell rent, and replaced at all times during the Lease term when showing signs of wear.

3.18 DEMOLITION (JUN 2012)

The Lessor shall remove existing abandoned electric, telephone, and data cabling and devices, as well as any other improvements or fixtures in place to accommodate the Government's requirements. Any demolition of existing improvements that is necessary to satisfy the Government's layout shall be done at the Lessor's expense.

3.19 ACCESSIBILITY (OCT 2024)

The Building, leased Space, and areas serving the leased Space shall be accessible to persons with disabilities in accordance with the Architectural Barriers Act Accessibility Standard (ABAAS), Appendices C and D to 36 CFR Part 1191 (ABA Chapters 1 and 2, and Chapters 3 through 10) and 36 CFR 1190 to the extent applicable. To the extent the standards referenced in the preceding sentence conflicts with local accessibility requirements, the more stringent shall apply.

3.20 CEILINGS (OCT 2022)

A complete acoustical ceiling system (which includes grid and lay-in tiles or other Building standard ceiling system as approved by the LCO) throughout the Space and Premises shall be required. The acoustical ceiling system shall be furnished, installed, and coordinated with TIs.

- A. Ceilings shall be at a minimum 9 feet and 0 inches and no more than 12 feet and 0 inches measured from floor to the lowest obstruction. Areas with raised flooring shall maintain these ceiling-height limitations above the finished raised flooring. Bulkheads and hanging or surface mounted light fixtures which impede traffic ways shall be avoided. Ceilings shall be uniform in color and appearance throughout the Space, with no obvious damage to tiles or grid.
- B. Prior to closing the ceiling, the Lessor shall coordinate with the Government for the installation of any items above the ceiling.
- C. Should the ceiling be installed in the Space prior to construction of the TIs, then the Lessor shall be responsible for all costs in regard to the disassembly, storage during construction, and subsequent re-assembly of any of the ceiling components which may be required to complete the TIs. The Lessor shall also bear the risk for any damage to the ceiling or any components thereof during the construction of the TIs.
- D. Ceilings shall be a flat plane in each room and shall be suspended and finished as follows unless an alternate equivalent is pre-approved by the LCO:
 - 1. Restrooms. Plastered or spackled and taped gypsum board.
 - 2. Offices and conference rooms. Mineral and acoustical tile or lay in panels with textured or patterned surface and tegular edges or an equivalent pre-approved by the LCO. For leases 10,000 RSF or greater, newly installed tiles or panels shall meet applicable, statutory environmentally preferable criteria as outlined under the Green Procurement Compilation at [HTTPS://SFTOOL.GOV/GREENPROCUREMENT/](https://SFTOOL.GOV/GREENPROCUREMENT/). The Lessor shall use products with Environmental Product Declarations (EPDs) to the maximum extent practicable.
 - 3. Corridors and eating/galley areas. Plastered or spackled and taped gypsum board or mineral acoustical tile.

3.21 EXTERIOR AND COMMON AREA DOORS AND HARDWARE (SEP 2013)

- A. Exterior Building doors and doors necessary to the lobbies, common areas, and core areas shall be required. This does not include suite entry or interior doors specific to TIs.
- B. Exterior doors shall be weather tight and shall open outward. Hinges, pivots, and pins shall be installed in a manner which prevents removal when the door is closed and locked. These doors shall have a minimum clear opening of 32" clear wide x 80" high (per leaf). Doors shall be heavy duty, flush, (1) hollow steel construction, (2) solid core wood, or (3) insulated tempered glass. As a minimum requirement, hollow steel doors shall be fully insulated, flush, #16-gauge hollow steel. Solid-core wood doors and hollow steel doors shall be at least 1-3/4 inches thick. Door assemblies shall be of durable finish and shall have an aesthetically pleasing appearance acceptable to the LCO. The opening dimensions and operations shall conform to the governing building, fire safety, accessibility, and energy codes and/or requirements. Fire door assemblies shall be listed and labeled. Labels on fire door assemblies shall be maintained in a legible condition. Fire door assemblies and their accompanying hardware, including frames and closing devices shall be installed in accordance with the requirements of NFPA 80, Standard for Fire Doors and Other Opening Protectives.
- C. Exterior doors and all common area doors shall have door handles or door pulls with heavyweight hinges. All doors shall have corresponding doorstops (wall or floor mounted) and silencers. All public use doors and restroom doors shall be equipped with kick plates. All doors shall have automatic door closers. All Building exterior doors shall have locking devices installed to reasonably deter unauthorized entry.

3.22 DOORS: IDENTIFICATION (APR 2011)

All signage required in common areas unrelated to tenant identification shall be provided and installed by the Lessor.

3.23 WINDOWS (OCT 2020)

- A. Office Space shall have windows in each exterior bay unless waived by the LCO.
- B. All exterior window assemblies shall be weather resistant and watertight. Operable windows that open shall be equipped with secure latches. Off-street, ground-level windows and those accessible from adjacent roofs and other structures that can be opened must be fitted with a secure latch. Windows intended for use as a secondary means of egress must be openable from the egress side (e.g., inside) of the Building without the use of a key, tool, or special knowledge or effort for operation from the egress side.

3.24 PARTITIONS: GENERAL (OCT 2023)

- A. Partitions in public areas shall be marble, granite, hardwood, or drywall covered with durable wall covering or high-performance coating, or equivalent pre-approved by the LCO.
- B. For leases 10,000 RSF or greater where the Government is a sole tenant of the Building, the Lessor shall use materials for newly installed gypsum board meeting applicable environmentally preferable criteria that are recommended in the Green Procurement Compilation at <HTTPS://SFTOOL.GOV/GREENPROCUREMENT/>. The Lessor shall use products with Environmental Product Declarations (EPDs) to the maximum extent practicable.

3.25 PARTITIONS: PERMANENT (OCT 2023)

- A. Permanent partitions shall extend from the structural floor slab to the structural ceiling slab. They shall be provided by the Lessor as part of shell rent as necessary to surround the Space, stairs, corridors, elevator shafts, restrooms, all columns, and janitor closets. They shall have a flame spread rating of 25 or less and a smoke development rating of 450 or less (ASTM E-84). Stairs, elevators, and other floor openings shall be enclosed by partitions and shall have the fire resistance required by the applicable building code, fire code and ordinances adopted by the jurisdiction in which the Building is located (such as the International Building Code, etc.) current as of the Lease Award Date.
- B. For leases 10,000 RSF or greater where the Government is a sole tenant of the Building, the Lessor shall use materials for newly installed gypsum board meeting the applicable environmentally preferable criteria that are recommended in the Green Procurement Compilation at <HTTPS://SFTOOL.GOV/GREENPROCUREMENT/>. The Lessor shall use products with Environmental Product Declarations (EPDs) to the maximum extent practicable.

3.26 INSULATION: THERMAL, ACOUSTIC, AND HVAC (OCT 2022)

- A. No insulation installed with this project shall be material manufactured using chlorofluorocarbons (CFCs), nor shall CFCs be used in the installation of the product.
- B. All insulation containing fibrous materials exposed to air flow shall be rated for that exposure or shall be encapsulated.
- C. Insulating properties for all materials shall meet or exceed applicable industry standards. Polystyrene products shall meet American Society for Testing and Materials (ASTM) C578 91.
- D. All insulation shall contain low emitting volatiles and not result in indoor air levels above 0.016 parts per million (ppm) of formaldehyde.
- E. The maximum flame spread and smoke developed index for insulation shall meet the requirements of the applicable local codes and ordinances (current as of the Lease Award Date) adopted by the jurisdiction in which the Building is located.

- F. For leases 10,000 RSF or greater, all insulation products shall meet applicable, statutory environmentally preferable criteria as outlined in the Green Procurement Compilation at [HTTPS://SFTOOL.GOV/GREENPROCUREMENT/](https://SFTOOL.GOV/GREENPROCUREMENT/).

3.27 WALL FINISHES – SHELL (SEP 2015)

- A. All restrooms within the Building common areas of Government-occupied floors shall have 1) ceramic tile, recycled glass tile, or comparable wainscot from the finished floor to a minimum height of 4'-6" and 2) semigloss paint on remaining wall areas, or other finish approved by the Government.
- B. All elevator areas that access the Space and hallways accessing the Space shall be covered with wall coverings not less than 20 ounces per square yard, high performance paint, or an equivalent.

3.28 PAINTING – SHELL (OCT 2022)

- A. The Lessor shall bear the expense for all painting associated with the Building shell. These areas shall include all common areas. Exterior perimeter walls and interior core walls within the Space shall be spackled and prime painted. If any Building shell areas are already painted prior to TIs, then the Lessor shall repaint, at the Lessor's expense, as necessary during TIs.
- B. The costs for cyclical painting requirements as outlined in Section 6 shall be included in the shell rent.
- C. For leases 10,000 RSF or greater, primer shall meet applicable, statutory environmentally preferable criteria as outlined in the Green Procurement Compilation at [HTTPS://SFTOOL.GOV/GREENPROCUREMENT/](https://SFTOOL.GOV/GREENPROCUREMENT/).

3.29 FLOORS AND FLOOR LOAD (OCT 2019)

- A. All adjoining floor areas shall be of a common level not varying more than 1/4 inch over a 10-foot horizontal run in accordance with the American Concrete Institute standards, non-slip, and acceptable to the LCO.
- B. Under-floor surfaces shall be smooth and level. Office areas shall have a minimum live load capacity of 50 pounds per ABOA SF plus 20 pounds per ABOA SF for moveable partitions. Storage areas shall have a minimum live load capacity of 100 pounds per ABOA SF, including moveable partitions. Lessor may be required to provide a report by a registered structural engineer showing the floor load capacity, at the Lessor's expense. Calculations and structural drawings may also be required.

3.30 FLOOR COVERING AND PERIMETERS – SHELL (OCT 2022)

- A. Exposed interior floors in primary entrances and lobbies shall be marble, granite, or terrazzo. Exposed interior floors in secondary entrances, elevator lobbies, and primary interior corridors shall be high-grade carpet, marble, granite, or terrazzo. Resilient flooring shall be used in telecommunications rooms. Floor perimeters at partitions shall have wood, rubber, vinyl, marble, or carpet base.
- B. Terrazzo, unglazed ceramic tile, recycled glass tile, and/or quarry tile shall be used in all restroom and service areas of Government-occupied floors.
- C. Any alternate flooring must be pre-approved by the LCO.
- D. The costs for cyclical carpet replacement requirements as outlined in Section 6 shall be included in the shell rent.
- E. The Lessor shall use products with Environmental Product Declarations (EPDs) to the maximum extent practicable.

3.31 MECHANICAL, ELECTRICAL, PLUMBING: GENERAL (APR 2011)

The Lessor shall provide and operate all Building equipment and systems in accordance with applicable technical publications, manuals, and standard procedures. Mains, lines, and meters for utilities shall be provided by the Lessor. Exposed ducts, piping, and conduits are not permitted in office Space.

3.32 BUILDING SYSTEMS (APR 2011)

Whenever requested, the Lessor shall furnish to the Government as part of shell rent, a report by a registered professional engineer(s) showing that the Building and its systems as designed and constructed will satisfy the requirements of this Lease.

3.33 ELECTRICAL (OCT 2023)

- A. The Lessor shall be responsible for meeting the applicable requirements of local codes and ordinances. When codes conflict, the more stringent standard shall apply. Main service facilities shall be enclosed. The enclosure may not be used for storage or other purposes and shall have door(s) fitted with an automatic deadlocking latch bolt with a minimum throw of 1/2 inch. Main distribution system (all required electrical infrastructure up to and including the electrical panels enclosed in the electrical room as described in this section along with all electrical infrastructure needed to power appurtenances and the duplex utility outlets as described in Part C) for standard office occupancy shall be provided at the Lessor's expense. The electrical distribution panels enclosed in the electrical room shall include: single-phase 120/240 volt or 3-phase 120/208 volt service for leased spaces under 10,000 RSF; 3-phase 120/208 volt service for leased spaces between 10,000 and 25,000 RSF; and 3-phase 277/480 volt and 3-phase 120/208 volt service for leased spaces over 25,000 RSF. In no event shall such power distribution (not including lighting and HVAC) for the Space fall below 4 watts per ABOA SF.

- B. Main power distribution switchboards and distribution and lighting panel boards shall be circuit breaker type with copper buses that are properly rated to provide the calculated fault circuits. All power distribution panel boards shall be supplied with separate equipment ground buses. All power distribution equipment shall be required to handle the actual specified and projected loads and 10 percent spare load capacity. Distribution panels are required to accommodate circuit breakers for the actual calculated needs and 10 percent spare circuits that will be equivalent to the majority of other circuit breakers in the panel system. Fuses and circuit breakers shall be plainly marked or labeled to identify circuits or equipment supplied through them.
- C. Convenience outlets shall be installed in accordance with NFPA Standard 70, National Electrical Code, or local code, whichever is more stringent. The Lessor shall provide duplex utility outlets in restrooms, corridors, electrical/mechanical rooms, and dispensing areas.

3.34 ADDITIONAL ELECTRICAL CONTROLS (JUN 2012) INTENTIONALLY DELETED

3.35 PLUMBING (JUN 2012)

The Lessor shall include the cost of plumbing in common areas. Hot and cold-water risers and domestic waste and vent risers, installed and ready for connections that are required for TIs, shall be included in the shell rent.

3.36 DRINKING FOUNTAINS (OCT 2023)

On each floor of Government-occupied Space, the Lessor shall provide drinking fountain(s) with chilled potable water within 200 feet of travel from any Government-occupied area on the floor. The fountains shall comply with Section F211 of the Architectural Barriers Act Accessibility Standard. The Lessor shall provide two separate drinking fountains per F211.2 or a single drinking fountain per the F211.2 Exception. Either installation shall require compliance with 602.1 through 602.6 for the accessible fountain and 602.7 for the non-accessible fountain. Potable is defined as water meeting current EPA primary drinking water standards or more stringent, applicable state or local regulations. The Lessor shall serve as first responder to any occupant complaints about drinking water. The Lessor shall promptly investigate any such complaints and implement the necessary controls to address the complaints and maintain potable water conditions.

3.37 RESTROOMS (OCT 2022)

- A. If this Lease is satisfied by new construction or by renovations that include the construction of restrooms, Lessor shall provide water closets, sinks and urinals on each floor that is partially or fully occupied by the government per the schedule below. The schedule is per floor and based on a density of one person for each 135 ABOA SF of office Space, allocated as 50% women and 50% men. If future renovations requiring restroom construction occur during the term of this Lease, the number of fixtures then must meet the schedule as part of the major alterations.

ESTIMATED NUMBER OF EACH GENDER PER FLOOR			(WOMEN'S) WATER CLOSETS	(WOMEN'S) SINKS	(MEN'S) WATER CLOSETS	(MEN'S) URINALS	(MEN'S) SINKS
1	to	8	2	1	1	1	1
9	to	24	3	2	2	1	1
25	to	36	3	2	2	1	2
37	to	56	5	3	3	2	2
57	to	75	6	4	4	2	2
76	to	96	6	5	4	2	3
97	to	119	7	5	5	2	3
120	to	134	9	5	6	3	4
Above 135			3/40	1/24	1/20	1/40	1/30

- B. If no new construction of a restroom is occurring, at a minimum, separate restroom facilities for men and women shall be provided with sufficient fixtures (water closets, sinks and urinals), in accordance with local code or ordinances.
- C. Each restroom shall have water closets enclosed with stall partitions and doors, urinals (in men's room), and hot (set in accordance with applicable building codes) and cold water. Water closets and urinals shall not be visible when the exterior door is open. These facilities shall be located on each floor occupied by the Government in the Building and shall be located so that employees will not be required to travel more than 500 feet on one floor to reach the restrooms.
- D. Restrooms must meet ABAAS requirements as stated under this Lease.
- E. Each main restroom shall contain the following:
1. A mirror and shelf above the lavatory.
 2. A toilet paper dispenser in each water closet stall that will hold the equivalent of at least two standard-sized rolls and allow easy, unrestricted dispensing.
 3. A coat hook on the inside face of the door to each water closet stall and on several wall locations by the lavatories.
 4. At least one modern paper towel dispenser, soap dispenser, and waste receptacle for every two lavatories.
 5. A coin-operated sanitary napkin dispenser in women's restrooms with a waste receptacle in each water closet stall.
 6. A disposable toilet seat cover dispenser.

7. A counter area of at least 2 feet, 0 inches in length, exclusive of the lavatories (however, it may be attached to the lavatories) with a mirror above and a ground-fault interrupter-type convenience outlet located adjacent to the counter area. The counter should be installed to minimize pooling or spilling of water at the front edge.
8. A floor drain.
9. Newly installed restroom partitions shall be made from recovered materials as listed in EPA's CPG.

3.38 PLUMBING FIXTURES: WATER CONSERVATION (OCT 2022)

- A. For leases 10,000 RSF or greater, the specifications listed below apply to:
 1. New installations of plumbing fixtures,
 2. Replacement of existing plumbing fixtures, or
 3. Existing non-conforming fixtures where the Government occupies the full floor.
- B. Water closets must conform to EPA WaterSense or, alternatively, fixtures with equivalent flush volumes and performance requirements must be utilized.
- C. Urinals must conform to EPA WaterSense or, alternatively, fixtures with equivalent flush volumes must be utilized. Waterless urinals are acceptable.
- D. Lavatory faucets must have a flow rate of 0.5 gallons per minute or less.
- E. Pantry kitchen faucets must have a flow rate of 1.8 gallons per minute or less.

Information on EPA WaterSense fixtures can be found at [HTTP://WWW.EPA.GOV/WATERSENSE/](http://www.epa.gov/watersense/).

3.39 JANITOR CLOSETS (SEP 2015)

Janitor closets shall meet all local codes and ordinances. When not addressed by local code, Lessor shall provide containment drains plumbed for appropriate disposal of liquid wastes in spaces where water and chemical concentrate mixing occurs for maintenance purposes. Disposal is not permitted in restrooms.

3.40 HEATING, VENTILATION, AND AIR CONDITIONING - SHELL (OCT 2023)

- A. Central HVAC systems shall be installed and operational, including, as appropriate, main and branch lines, VAV boxes, dampers, flex ducts, and diffusers, for an open office layout, including all Building common areas. The Lessor shall provide conditioned air through medium pressure duct work at a rate of .75 cubic feet per minute per ABOA SF and systems shall be designed with sufficient systems capacity to meet all requirements in this Lease.
- B. Areas having excessive heat gain or heat loss, or affected by solar radiation at different times of the day, shall be independently controlled.
- C. Equipment Performance. Temperature control for office Spaces shall be provided by concealed central heating and air conditioning equipment. The equipment shall maintain Space temperature control over a range of internal load fluctuations of plus 0.5 W/SF to minus 1.5 W/SF from initial design requirements of the tenant.
- D. Ductwork Re-use and Cleaning. Any ductwork to be reused and/or to remain in place shall be cleaned, tested, and demonstrated to be clean in accordance with the standards set forth by NADCA. The cleaning, testing, and demonstration shall occur immediately prior to Government occupancy to avoid contamination from construction dust and other airborne particulates.
- E. During working hours in periods of heating and cooling, ventilation shall be provided in accordance with American National Standards Institute, American Society of Heating, Refrigeration and Air-Conditioning Engineers (ANSI/ASHRAE) Standard 62.1, Ventilation for Acceptable Indoor Air Quality. Lessors must comply with: (a) the version of ASHRAE Standard 62.1 that corresponds with how the HVAC system was designed to perform, or (b) ASHRAE Standard 62.1-2004 – whichever is later.
- F. For all refrigerant-containing equipment (i.e., containing chlorofluorocarbons (CFCs), hydrochlorofluorocarbons (HCFCs), and hydrofluorocarbons (HFCs)), the Lessor shall comply with the U.S. Environmental Protection Agency (EPA)'s Significant New Alternative Policy (SNAP) Program to use acceptable refrigerant substitutes when equipment is replaced, retrofitted, or when newly purchased. The Lessor must comply with EPA's Section 608 refrigerant management regulations. The Lessor must track the type and quantity of refrigerant used in each chiller, air conditioning, and refrigeration system containing 50 pounds or more of refrigerant. Upon request, the Lessor must provide the Government with the dates for planned replacement or retrofit of equipment with CFC or HCFC refrigerant. Upon request, the Lessor must provide the Government with the dates for planned replacement or retrofit of equipment with CFC or HCFC refrigerant.
- G. Heating and air-conditioning air distribution systems (air handling units, VAV boxes, fan coil units, etc.) for the Space shall be equipped with particulate matter air filters that meet the Minimum Efficiency Reporting Value (MERV) specified in the ANSI/ASHRAE Standard 62.1 version referenced in sub-paragraph E above. Where practicable, the Lessor is encouraged to use a MERV 13 air filter or the highest-level filter that is compatible with the HVAC system. Locations that do not meet the EPA National Ambient Air Quality Standards (NAAQS) for particulates (PM 10 or PM 2.5) must be equipped with additional filtration on outdoor air intakes as required in ANSI/ASHRAE Standard 62.1. NAAQS information can be found at [HTTPS://WWW.EPA.GOV/GREEN-BOOK](https://www.epa.gov/green-book).

H. Restrooms shall be properly exhausted, with a minimum of 10 air changes per hour.

1. INTENTIONALLY DELETED.

3.41 TELECOMMUNICATIONS: DISTRIBUTION AND EQUIPMENT (OCT 2023)

A. Sufficient space shall be provided on the floor(s) where the Government occupies Space for the purposes of terminating telecommunications service into the Building. The Building's telecommunications closets located on all floors shall be vertically stacked. Telecommunications switch rooms, wire closets, and related spaces shall be enclosed. The enclosure shall not be used for storage or other purposes and shall have door(s) fitted with an automatic door-closer and deadlocking latch bolt with a minimum throw of 1/2 inch. The telephone closets shall include a telephone backboard.

B. Telecommunications switch rooms, wire closets, and related spaces shall meet applicable Telecommunications Industry Association (TIA) and Electronic Industries Alliance (EIA) standards. These standards include the following:

1. TIA/EIA-568, Commercial Building Telecommunications Cabling Standard,
2. TIA/EIA 569, Commercial Building Standard for Telecommunications Pathways and Spaces,
3. TIA/EIA-570, Residential and Light Commercial Telecommunications Wiring Standard, and
4. TIA/EIA-607, Commercial Building Grounding and Bonding Requirements for Telecommunications Standard.

C. Telecommunications switch rooms, wire closets, and related spaces shall meet applicable NFPA standards. Bonding and grounding shall be in accordance with NFPA Standard 70, National Electrical Code, and other applicable NFPA standards and/or local code requirements.

Telecommunications switch rooms, wire closets, and related spaces shall meet applicable NFPA standards. Bonding and grounding shall be in accordance with NFPA Standard 70, National Electrical Code, and other applicable NFPA standards and/or local code requirements.

3.42 TELECOMMUNICATIONS: LOCAL EXCHANGE ACCESS (JUN 2012)

A. The Government may elect to contract its own telecommunications (voice, data, video, Internet or other emerging technologies) service in the Space. The Government may contract with one or more parties to have INS wiring (or other transmission medium) and telecommunications equipment installed.

B. The Lessor shall allow the Government's designated telecommunications providers access to utilize existing Building wiring to connect its services to the Government's Space. If the existing Building wiring is insufficient to handle the transmission requirements of the Government's designated telecommunications providers, the Lessor shall provide access from the point of entry into the Building to the Government's floor Space, subject to any inherent limitations in the pathway involved.

C. The Lessor shall allow the Government's designated telecommunications providers to affix telecommunications antennas (high frequency, mobile, microwave, satellite, or other emerging technologies), subject to weight and wind load conditions, to roof, parapet, or Building envelope as required. Access from the antennas to the Premises shall be provided.

D. The Lessor shall allow the Government's designated telecommunications providers to affix antennas and transmission devices throughout the Space and in appropriate common areas frequented by the Government's employees to allow the use of cellular telephones and communications devices necessary to conduct business.

3.43 LIGHTING: INTERIOR AND PARKING - SHELL (OCT 2023)

Note. For pricing estimating purposes, fixtures will be installed at the average ratio of 1 fixture per 80 ABOA SF.

A. Interior Fixtures. High efficiency T-8, T-5, or LED light fixtures (and associated ballasts or drivers) shall be installed to match the other luminaries in the Space as either ceiling grid or pendant mounted for an open-office plan. Newly installed lighting must use LED fixtures with replaceable dimmable drivers. The dimmable drivers must use 0-10V or digital control signals and shall be compatible with any existing control systems. Ceiling grid fixtures shall be either 2' wide by 4' long or 2' wide by 2' long. Lessor shall provide, as part of Shell Rent, a minimum overall lighting fixture efficiency of 85 percent. Lamps shall maintain a uniform color level throughout the lease term.

B. Lighting Levels. Fixtures shall have a minimum of two tubes and shall provide 50 foot-candles at desktop level (30" above finished floor) with a maximum uniformity ratio of 1.5:1. Lessor shall provide, as part of Shell Rent, 10 average foot-candles in all other Building areas within the Premises with a uniformity ratio of 4:1. Emergency egress lighting levels shall be provided in accordance with the local applicable building codes (but not less than 1 foot-candle, measured at the floor) by either an onsite emergency generator or fixture mounted battery packs.

Lighting

C. Power Density.

1. Existing Buildings. The maximum fixture power density shall not exceed 1.4 watts per ABOA SF.
2. New Construction. The maximum fixture power density shall not exceed 1.1 watts per ABOA SF.

D. Daylighting Controls. For leases 10,000 rentable SF or greater, the Lessor shall provide daylight dimming controls in atriums or within 15 feet of windows and skylights where daylight can contribute to energy savings. Daylight harvesting sensing and controls shall be either integral to the fixtures or ceiling mounted and shall maintain required lighting levels in workspaces.

- E. Occupancy/Vacancy Sensors. The Lessor shall provide ceiling or wall mounted occupancy sensors, or vacancy sensors (preferred), or scheduling controls through the building automation system (BAS) throughout the Space in order to reduce the hours that the lights are on when a particular space is unoccupied. No more than 1,000 square feet shall be controlled by any one sensor. Occupancy sensors in enclosed rooms shall continue to operate after the BAS has shut down the building at the end of the workday.
- F. Building Perimeter.
1. Exterior parking areas, vehicle driveways, pedestrian walks, and the Building perimeter lighting levels shall be designed per Illuminating Engineering Society (IES) standards. Provide 5 foot-candles for doorway areas, 3 foot-candles for transition areas and at least 1 foot-candle at the surface throughout the parking lot. Parking lot fixtures shall provide a maximum to minimum uniformity ratio of 15:1 and a maximum to average uniformity ratio of 4:1.
 2. If the leased space is 100 percent occupied by Government tenants, all exterior parking lot fixtures shall be "Dark Sky" compliant with no property line trespass.
- G. Parking Structures. The minimum illuminance level for parking structures is 5 foot-candles as measured on the floor with a uniformity ratio of 10:1.
- H. Parking Sensors. If the leased space is 100 percent occupied by Government tenants, exterior parking area and parking structure lighting shall be sensor or BAS controlled in order that it may be programmed to produce reduced lighting levels by a minimum of 50% during non-use. This non-use time period will normally be from 11:00 pm to 6:00 am.
- I. Exterior Power Backup. Exterior egress, walkway, parking lot, and parking structure lighting must have emergency power backup to provide for safe evacuation of the Building.
- J. Video Surveillance System (VSS). Lighting shall be provided in such a manner to adequately support VSS operations, and not limit or preclude adequate fields of view.
- K. Lighting Control. All lighting controls and programming for indoor and outdoor lighting shall comply with local energy codes.

3.44 ACOUSTICAL REQUIREMENTS (OCT 2022)

- A. Reverberation Control. Private office and conference rooms using suspended acoustical ceilings shall have a noise reduction coefficient (NRC) of not less than 0.75 in accordance with ASTM C-423. Open office using suspended acoustical ceilings shall have an NRC of not less than 0.80. Private offices, conference rooms, and open offices using acoustical cloud or acoustical wall panels with a minimum of 70% coverage shall have an NRC of not less than 0.80.
- B. Ambient Noise Control. Ambient noise from mechanical equipment shall not exceed noise criteria curve (NC) 35 in accordance with the ASHRAE Handbook of Fundamentals in offices; NC 20 in conference and teleconference rooms; NC 40 in corridors, cafeterias, lobbies, restrooms, and other spaces.
- C. Noise Isolation. Rooms separated from adjacent spaces by ceiling high partitions (not including doors) shall not be less than the following noise isolation class (NIC) standards when tested in accordance with ASTM E-336:
1. Conference Rooms. NIC 45
 2. Teleconference Rooms. NIC 48
 3. Private Offices. NIC 35 when sound masking is provided; NIC 40 if sound masking is not provided.
- D. Testing. The LCO may require, at Lessor's expense, test reports by a qualified acoustical consultant showing that acoustical requirements have been met.

3.45 SECURITY FOR NEW CONSTRUCTION (OCT 2022)

- A. Design-Basis Threat. The Design-Basis Threat (DBT) is the profile and estimate of the threats to a Government facility across a range of specific undesirable events and serves as the basis for determining appropriate security standards. The Lessor's technical consultant(s) shall work in conjunction with the Government, including the Federal Protective Service (FPS), to apply the DBT to the post-award risk assessment. The risk assessment identifies recommended countermeasures and security design features that achieve the minimum baseline level of protection for a particular facility. The baseline level of protection may be further customized to address facility-specific conditions. The Lessor is responsible for providing countermeasure provisions outlined in the attached FSL document, as well as for additional items identified during the post-award risk assessment. Any additional countermeasures identified during this assessment shall be priced as BSAC.
- B. Prior to occupancy, the Lessor shall provide a written certification from a licensed professional engineer with formal training in structural dynamics and experience with accepted blast resistant design, verifying that the Building conforms to a minimum of:
1. Window glazing, with a performance condition appropriate to the identified Facility Security Level.
 2. Setback distance, measured from the face of the Building's exterior to the protected/defended perimeter (i.e., any potential point of explosion). This means the distance from the Building to the curb or other boundary protected by bollards, planters or other street furniture. Such potential points of explosion may be, but are not limited to, such areas that could be accessible by any motorized vehicle (i.e., street, alley, sidewalk, driveway, parking lot).

3. Lobbies, mailrooms, and loading docks shall not share a return-air system with the remaining areas of the Building. The Lessor shall provide lobby, mailroom, and loading dock ventilation systems' outside air intakes and exhausts with low leakage, fast acting, isolation dampers that can be closed to isolate their systems. Dedicated HVAC shall be required for mailrooms only when the Government specifically requires a centrally operated mailroom. On Buildings of more than four stories, air intakes shall be located on the fourth floor or higher. On Buildings of three stories or less, air intakes shall be located on the roof or as high as practical. Locating intakes high on a wall is preferred over a roof location.
4. Blast Resistance Requirements.
 - a. Facade and Structure. Lessor shall use construction materials which have inherent ductility and which are able to respond to load reversals (e.g. cast in place reinforced concrete column construction).
 - b. Progressive Collapse. Lessor shall use construction materials which have inherent ductility and which are able to respond to load reversals (e.g. cast in place reinforced concrete and steel construction).
 - c. Under Building Parking. Lessor shall use construction materials which have inherent ductility and which are able to respond to load reversals (e.g. cast in place reinforced concrete and steel construction).

3.46 ~~SEISMIC SAFETY FOR NEW CONSTRUCTION (OCT 2020)~~ INTENTIONALLY DELETED
3.47 FIRE PROTECTION FOR NEW CONSTRUCTION (APR 2015)

- A. The new Building shall be protected throughout by an automatic fire sprinkler system designed in accordance with the National Fire Protection Association (NFPA) 13, *Installation of Sprinkler Systems* (current as of the Lease Award Date).
- B. When an electric fire pump is provided to support the design of the fire sprinkler system, a secondary power source shall be provided to the fire pump by a standby emergency generator or another means acceptable to the Government.
- C. The fire alarm system installed shall be an emergency voice/alarm communication system when any one of the following conditions exist:
 1. The Building is 2 or more stories in height above the level of exit discharge.
 2. The total calculated occupant load of the Building is 300 or more occupants.
 3. The Building is subject to 100 or more occupants above or below the level of exit discharge.

The emergency voice/alarm communication system shall be designed and installed to meet the requirements of NFPA 72 (current as of the Lease Award Date).

3.48 GREEN BUILDING RATING CERTIFICATION FOR NEW CONSTRUCTION (OCT 2016)

- A. Within 12 months of occupancy, the Lessor shall obtain certification at the Silver level from the U.S. Green Building Council (USGBC) -- LEED®-NC program. For requirements to achieve the Silver certification, Lessor must refer to the latest version at the time of submittal of the LEED®-NC Reference Guide (at [HTTP://WWW.USGBC.ORG/](http://www.usgbc.org/)). At completion of all documentation and receipt of final certification, the Lessor must provide the Government two electronic copies on compact disks, flash drives, or appropriate electronic media of all documentation submitted to USGBC. Acceptable file format is Adobe PDF from the LEED®-Online workspace and templates. In addition, the Lessor will provide the Government viewing access to the LEED®-Online workspace during design and through the term of the Lease.
- B. Prior to the end of the first year of occupancy, if the Lessor fails to achieve LEED® Silver certification, the Government may assist the Lessor in implementing a corrective action program to achieve a LEED® Silver certification and deduct its costs (including administrative costs) from the rent.

3.49 GREEN BUILDING RATING CERTIFICATION FOR TENANT INTERIORS (OCT 2023)

- A. The tenant Space must meet the requirements of Leadership in Energy and Environmental Design for Interior Design and Construction (LEED®-ID+C) at the Certified level, at a minimum. The Lessor, at the Lessor's expense, shall obtain certification from the U.S. Green Building Council (USGBC) for LEED® within 9 months of occupancy. For requirements to achieve certification, Lessor must refer to latest version at the time of submittal of the LEED®-ID+C Reference Guide (at [HTTP://WWW.USGBC.ORG/](http://www.usgbc.org/)). At completion of all documentation and receipt of final certification, the Lessor must provide the Government an electronic copy of all documentation submitted to the USGBC. Acceptable file format is Adobe PDF from the LEED®-Online workspace. In addition, the Lessor will provide the Government viewing access to the LEED®-Online workspace as applicable during design and through the term of the Lease.
- B. Prior to the end of the first 9 months of occupancy, if the Lessor fails to achieve LEED®-ID+C certification, the Government may assist the Lessor in implementing a corrective action program to achieve LEED®-ID+C certification and deduct its costs (including administrative costs) from the rent.
- C. Any Building shell modifications necessary for the Space to meet the requirements of LEED®-ID+C certification, shall be noted and incorporated into the construction documents and shall be included as part of the Building shell costs. The Lessor must coordinate TI and shell requirements as necessary to meet the certification.

3.50 INDOOR AIR QUALITY DURING CONSTRUCTION (OCT 2021)

- A. The Lessor shall provide to the Government safety data sheets (SDS) or other appropriate documents upon request, but prior to installation or use for the following products, including but not limited to, adhesives, caulking, sealants, insulating materials, fireproofing or fire stopping materials, paints, carpets, floor and wall patching or leveling materials, lubricants, clear finishes for wood surfaces, janitorial cleaning products, and pest control products.
- B. The LCO may eliminate from consideration products with significant quantities of toxic, flammable, corrosive, or carcinogenic material and products with potential for harmful chemical emissions. Materials used often or in large quantities will receive the greatest amount of review.
- C. Where demolition or construction work occurs adjacent to occupied Space, the Lessor shall erect appropriate barriers (noise, dust, odor, etc.) and take necessary steps to minimize interference with the occupants. This includes maintaining acceptable temperature, humidity, and ventilation in the occupied areas during window removal, window replacement, or similar types of work.
- D. HVAC during Construction: If air handlers are used during construction, the Lessor shall provide filtration media with a MERV of 8 at each return air grill, as determined by ANSI/ASHRAE Standard 52.2, Method of Testing General Ventilation Air Cleaning Devices for Removal Efficiency by Particle Size.
- E. Flush-Out Procedure.
 - 1. For leases 10,000 RSF or greater:
 - a. HVAC flush-out shall commence after construction ends and the Building has been completely cleaned. All interior finishes, such as millwork, doors, paint, carpet, acoustic tiles, and movable furnishings (e.g., workstations, partitions), must be installed, and major VOC punch list items must be finished.
 - b. Prior to occupancy, Lessor shall install new filtration media and perform a building flush-out by supplying a total air volume of 14,000 cubic feet of outdoor air per square foot of gross floor area while maintaining an internal temperature of at least 60°F (15°C) and no higher than 80°F (27°C) and relative humidity no higher than 60%.
 - c. If the LCO determines that occupancy is required before flush-out can be completed, the Space may be occupied only after delivery of a minimum of 3,500 cubic feet of outdoor air per square foot of gross floor area while maintaining an internal temperature of at least 60°F (15°C) and no higher than 80°F (27°C) and relative humidity no higher than 60%. Once the Space is occupied, it must be ventilated at a minimum rate of 0.30 cubic foot per minute (cfm) per square foot of outdoor air or greater. During each day of the flush-out period, ventilation must begin at least three hours before occupancy and continue during occupancy. These conditions must be maintained until a total of 14,000 cubic feet per square foot of outdoor air (4 270 liters of outdoor air per square meter) has been delivered to the space.
 - d. The Lessor shall provide a signed statement explaining how all HVAC systems serving the leased Space will achieve the desired ventilation of the Space during the flush-out period.
 - 2. For leases less than 10,000 RSF, the Lessor shall sufficiently flush-out or ventilate the area(s) following construction and prior to occupancy in order to remove any detectable odors or visible dust related to the work.

3.51 SYSTEMS COMMISSIONING (OCT 2023)

- A. The Lessor shall incorporate commissioning requirements to verify that the installation and performance of energy consuming systems meet the Government's project requirements. These systems include, at a minimum, heating, ventilating, air conditioning and refrigeration (HVAC&R) systems and associated controls, lighting controls, and domestic hot water systems. The commissioning shall cover work associated with TIs or alterations. Recommissioning is required to ensure that the systems are operating properly during the Lease term if Building systems are impacted by alterations. In the event the Government exercises a renewal option, recommissioning is required within 60 days after the exercising of the option.
- B. The Lessor shall submit a written commissioning plan prior to completion of CDs. In instances involving minimal improvements not requiring DIDs, the plan is due within 60 days prior to Space acceptance. The plan shall include:
 - 1. A schedule of systems commissioning (revised as needed during all construction phases of the project, with such revisions provided to the LCO immediately); and
 - 2. A description of how commissioning requirements will be met and confirmed.
- C. The Lessor shall submit a final commissioning report once tenant improvements are completed. The report shall include results and supporting documentation for each section of the commissioning plan. The final report shall be provided to the LCO or designated representative within 60 days after substantial completion.

3.52 DUE DILIGENCE AND NATIONAL ENVIRONMENTAL POLICY ACT REQUIREMENTS – LEASE (OCT 2023)

- A. Environmental Due Diligence. Lessor is responsible for performing all necessary "response" actions (as that term is defined at 42 U.S.C. § 9601(25) of the Comprehensive Environmental Response, Compensation and Liability Act (CERCLA)) with regard to all "recognized environmental conditions," as that term is defined in ASTM Standard E1527-21, as such standard may be revised from time to time. This

obligation extends to any contamination of the Property where such contamination is not attributable to the Government. Lessor must provide the Government with a summary report demonstrating completion of all required response actions prior to Substantial Completion. Any remediation performed by or on behalf of Lessor must be undertaken in strict compliance with all applicable federal, state and local laws and regulations.

- B. National Environmental Policy Act. The National Environmental Policy Act regulations provide for analyzing proposed major federal actions to determine if there are ways to mitigate the impact of the proposed actions to avoid, minimize, rectify, reduce, or compensate for environmental impacts associated with such actions. Where the Government has determined that any or all of these mitigation measures should be or must be adopted to lessen the impact of these proposed actions, Lessor must incorporate all mitigation measures identified and adopted by the Government in the design and construction drawings and specifications. All costs and expenses for development of design alternatives, mitigation measures and review submittals for work to be performed under the Lease are the sole responsibility of Lessor.

3.53 NATIONAL HISTORIC PRESERVATION ACT REQUIREMENTS - LEASE (SEP 2014)

- A. Where a Memorandum of Agreement or other pre-award agreement concluding the Section 106 consultation includes mitigation, design review or other continuing responsibilities of the Government, Lessor must allow the Government access to the Property to carry out compliance activities. Compliance may require excavation for artifact recovery, recordation and interpretation. For Tenant Improvements and other tenant-driven alterations within an existing historic building, new construction or exterior alterations that could affect historic properties, compliance also may require on-going design review. In these instances, Lessor will be required to retain, at its sole cost and expense, the services of a preservation architect who meets or exceeds the *Secretary of the Interior's Professional Qualifications Standards for Historic Architecture*, as amended and annotated and previously published in the Code of Federal Regulations, 36 C.F.R. part 61, and the *GSA Qualifications Standards for Preservation Architects*. These standards are available at: [HTTP://WWW.GSA.GOV/HISTORICPRESERVATION](http://www.gsa.gov/historicpreservation)>Project Management Tools> Qualification Requirements for Preservation Architects. The preservation architect will be responsible for developing preservation design solutions and project documentation required for review by the Government, the State Historic Preservation Officer (SHPO), the Tribal Historic Preservation Officer (THPO), if applicable, and other consulting parties in accordance with Section 106. For Tenant Improvements and other tenant-driven alterations within an existing historic building, the preservation architect must develop context-sensitive design options consistent with the *Secretary of the Interior's Standards for the Treatment of Historic Properties*. Where new construction or exterior alterations, or both, are located within a historic district, may be visible from historic properties or may affect archeological resources, compliance may require tailoring the design of the improvements to be compatible with the surrounding area. Design review may require multiple revised submissions, depending on the complexity of the project and potential for adverse effects to historic properties. The Government is responsible for corresponding with the SHPO, the THPO, if applicable, and any other consulting party.
- B. Compliance requirements under Section 106 apply to all historic property alterations and new construction, regardless of the magnitude, complexity or cost of the proposed scope of work.
- C. The costs for development of design alternatives and review submittals for work required under the Lease are the sole responsibility of Lessor. In addition, building shell costs relating to such design alternatives are the sole responsibility of Lessor and must be included in the shell rent. Such costs may be offset by federal, state or local preservation tax benefits. Lessor is encouraged to seek independent financial and legal advice concerning the availability of these tax benefits.

SECTION 4 DESIGN, CONSTRUCTION, AND POST AWARD ACTIVITIES

4.01 SCHEDULE FOR COMPLETION OF SPACE (OCT 2024)

- A. INTENTIONALLY DELETED
- B. INTENTIONALLY DELETED
- C. INTENTIONALLY DELETED
- D. The Lessor's preparation and submission of construction documents (CDs). The Lessor as part of the TI and BSAC must complete CDs conforming to the approved DIDs not later than **thirty (30)** Working Days following award. If during the preparation of CDs the Lessor becomes aware that any material requirement indicated in the approved DIDs cannot be reasonably achieved, the Lessor shall promptly notify the Government, and shall not proceed with completion of CDs until direction is received from the LCO. The LCO shall provide direction within **ten (10)** Working Days of such notice, but the Government shall not be responsible for delays to completion of CDs occasioned by such circumstances. For the purpose of this paragraph, a "material requirement" shall mean any requirement necessary for the Government's intended use of the Space as provided for in, or reasonably inferable from, the Lease and the approved DIDs (e.g., number of workstations and required adjacencies).
- E. Government review of CDs. The Government shall have **twenty (20)** Working Days to review CDs prior to issuing a Notice to Proceed (NTP). At any time during this period of review, the Government shall have the right to require the Lessor to modify the CDs to enforce conformance to Lease requirements and the approved DIDs.
- F. INTENTIONALLY DELETED.
- G. The Lessor's preparation and submission of the BSAC price proposal. The Lessor shall prepare and submit a complete BSAC price proposal in accordance with this Lease within **ten (10)** Working Days following the end of the Government CD review period.
- H. INTENTIONALLY DELETED.
- I. INTENTIONALLY DELETED.

4.02 CONSTRUCTION DOCUMENTS (OCT 2023)

The Lessor's CDs shall include, and not be limited to, all mechanical, electrical, plumbing, fire protection, life safety, lighting, structural, security, and architectural improvements scheduled for inclusion into the Space. CDs may also include signage, audio/visual, IT, furniture, and other specialties. CDs shall be annotated with all applicable specifications. CDs shall also clearly identify TIs already in place and the work to be done by the Lessor or others. Notwithstanding the Government's review of the CDs, the Lessor is solely responsible and liable for their technical accuracy and compliance with all applicable Lease requirements.

4.03 ~~TENANT IMPROVEMENTS PRICE PROPOSAL (OCT 2023)~~ INTENTIONALLY DELETED

4.04 ~~BUILDING SPECIFIC AMORTIZED CAPITAL (BSAC) PRICE PROPOSAL (OCT 2023)~~ INTENTIONALLY DELETED

4.05 GREEN LEASE SUBMITTALS (OCT 2023)

The Lessor shall submit to the LCO or designated representative:

- A. Product data sheets upon request for floor coverings, paints and wall coverings, ceiling materials, all adhesives, wood products, suite and interior doors, subdividing partitions, wall base, door hardware finishes, window coverings, millwork substrate and millwork finishes, lighting and lighting controls, and insulation to be used within the leased Space. This information must be submitted NO LATER THAN the submission of the DIDs, if applicable.
- B. SDS or other appropriate documents upon request for products listed in the Lease. All SDS shall comply with Occupational Safety and Health Administration (OSHA) requirements for the Globally Harmonized System of Classification and Labeling of Chemicals (GHS). The Lessor and its agents shall comply with all recommended measures in the SDS to protect the health and safety of personnel.
- C. Reuse plan, in accordance with the "Existing Fit-out, Salvaged, or Re-used Building Material" paragraph in the Lease, if applicable.
- D. If the Lessor is unable to comply with the environmentally preferable requirements stated throughout the Lease, he/she must submit a waiver request for each material within the TI pricing submittal. The waiver request shall be based on the following exceptions:
 - 1. Product cannot be acquired competitively within a reasonable performance schedule.
 - 2. Product cannot be acquired that meets reasonable performance requirements.
 - 3. Product cannot be acquired at a reasonable price.
 - 4. An exception is provided by statute.

The price shall be deemed unreasonable when the total life cycle costs are significantly higher for the sustainable product versus the non-sustainable product. Life cycle costs are determined by combining the initial costs of a product with any additional costs or revenues generated from that product during its entire life.

- E. Radon test results as may be required by the "Radon in Air" and "Radon in Water" paragraphs in the Lease.
- F. Submittal(s) requirements as may be required by the "Construction Waste Management" paragraph in the Lease.
- G. Recycling service plan as may be required by the "Recycling" paragraph in the Lease.
- H. Signed statement as may be required by the "Indoor Air Quality During Construction" paragraph in the Lease.
- I. Submittal(s) as may be required by the "Systems Commissioning" paragraph in the Lease.
- J. At completion of LEED®, documentation and receipt of final certification, along with an electronic copy of all supporting documentation for certification.
- K. If renewable source power is purchased, documentation within 9 months of occupancy.

4.06 CONSTRUCTION SCHEDULE AND INITIAL CONSTRUCTION MEETING (OCT 2024)

The Lessor shall furnish a detailed construction schedule (such as Critical Path Method) to the Government within **ten (10)** Working Days of issuance of the NTP. Such schedule shall also indicate the dates available for Government contractors to install telephone/data lines or equipment, if needed. Within **five (5)** Working Days of NTP, the Lessor shall initiate a construction meeting. This meeting may be held in person or virtually, at the discretion of the Government. The Lessor will have subcontractor representatives including its architects, engineers, general contractor and subcontractors' representatives in attendance. The Lessor shall keep meeting minutes of discussion topics and attendance and shall distribute to all parties within **three (3)** Working Days of the meeting.

4.07 PROGRESS REPORTS (OCT 2023)

After start of construction, the Lessor shall submit to the LCO or designated representative written progress reports at intervals of **ten (10)** Working Days. Each report shall include information as to the percentage of the work completed by phase and trade; along with labeled photographs, a statement as to expected completion and occupancy dates; changes introduced into the work; and general remarks on such items as material shortages, strikes, weather, etc., that may affect timely completion. In addition, at the Government's discretion, the Lessor shall conduct meetings every two weeks to brief Government personnel and/or contractors regarding the progress of design and construction of the Space. These meetings may be held in person or virtually, at the discretion of the Government. The Lessor shall be responsible for taking and distributing minutes of these meetings.

4.08 CONSTRUCTION INSPECTIONS (OCT 2023)

- A. The LCO or the LCO's designated technical representative may periodically inspect construction work to review compliance with Lease requirements and approved DIDs, if applicable.
- B. Periodic reviews, witnessing of tests, and inspections by the Government shall not constitute approval of the Lessor's apparent progress toward meeting the Government's objectives but are intended to discover any information which the LCO may be able to call to the Lessor's attention to prevent costly misdirection of effort. The Lessor shall remain responsible for designing, constructing, operating, and maintaining the Building in full accordance with the requirements of the Lease. At the discretion of the LCO, minutes from the progress meetings may satisfy the requirement for written progress reports.

4.09 ACCESS BY THE GOVERNMENT PRIOR TO ACCEPTANCE (OCT 2022)

The Government shall have the right to access any space within the Building during construction for the purposes of performing inspections or installing Government furnished equipment. The Government shall coordinate the activity of Government contractors with the Lessor to minimize conflicts with and disruption to other subcontractors on site. Access shall not be unreasonably denied to authorized Government officials including, but not limited to, Government contractors, subcontractors, or consultants acting on behalf of the Government on this project.

4.10 ACCEPTANCE OF SPACE AND CERTIFICATE OF OCCUPANCY (OCT 2021)

- A. Ten (10) Working Days prior to the completion of the Space, the Lessor shall issue written notice to the Government to schedule the inspection of the Space for acceptance. The Government shall accept the Space only if the construction of Building shell and TIs conforming to this Lease and the approved DIDs, if applicable, is substantially complete, a Certificate of Occupancy (C of O) has been issued as set forth below, and the Building improvements necessary for acceptance as described in the paragraph "Building Improvements" are completed.
- B. The Space shall be considered substantially complete only if the Space may be used for its intended purpose, and completion of remaining work will not interfere unreasonably with the Government's enjoyment of the Space. Acceptance shall be final and binding upon the Government with respect to conformance of the completed TIs to the approved DIDs, with the exception of items identified on a punch list generated as a result of the inspection, concealed conditions, latent defects, or fraud, but shall not relieve the Lessor of any other Lease requirements.
- C. The Lessor shall provide a valid C of O, issued by the local jurisdiction, for the intended use of the Government. If the local jurisdiction does not issue C of O's or if the C of O is not available, the Lessor may satisfy this condition by providing a report prepared by a licensed fire protection engineer that indicates the Space and Building are compliant with all applicable local codes and ordinances and all fire protection and life safety-related requirements of this Lease.

- D. The Government will not be required to accept space prior to the schedule outlined in this Lease.
- E. If applicable, upon acceptance of the Space, the Government will issue lump sum payment to the Lessor after substantial completion, in accordance with invoicing procedures outlined under any lease amendment(s) authorizing such lump sum payment. The Government shall not issue this payment in increments or as partial payments.

4.11 LEASE TERM COMMENCEMENT DATE AND RENT RECONCILIATION (OCT 2021)

At acceptance, the Space shall be measured in accordance with the standards set forth in this Lease to determine the total ABOA SF in the Space. The rent for the Space will be adjusted based upon the measured ABOA square footage as outlined under the Payment clause of the General Clauses. At acceptance, the Lease term shall commence. The Lease Term Commencement Date, final measurement of the Space, reconciliation of the annual rent, and amount of Commission Credit, if any, shall be memorialized by Lease Amendment.

4.12 AS-BUILT DRAWINGS (OCT 2021)

Not later than **thirty (30)** days after the acceptance of the Space, the Lessor, at Lessor's expense, shall furnish to the Government a complete set of Computer Aided Design (CAD) files of as-built floor plans showing the Space under Lease, as well as corridors, stairways, and core areas. As-built drawings shall include those for Civil, Architectural, Mechanical, Electrical, and Plumbing features, including, but not limited to, those for IT, Communications, Security, and Fire Protection. The plans shall have been generated by a CAD program which is compatible with the latest release of AutoCAD. The required file extension is ".DWG." Clean and purged files shall be submitted in a digital format. They shall be labeled with Building name, address, list of drawing(s), date of the drawing(s), and Lessor's architect and architect's phone number.

4.13 ~~GSAR 552.270-15 LIQUIDATED DAMAGES (DEVIATION) (SEP 2022)~~ INTENTIONALLY DELETED

4.14 ~~SEISMIC RETROFIT (OCT 2020)~~ INTENTIONALLY DELETED

4.15 LESSOR'S PROJECT MANAGEMENT RESPONSIBILITIES (OCT 2023)

- A. The Lessor's TI and BSAC rent, if applicable shall cover all of the Lessor's project management costs associated with the delivery of Tenant Improvements, including, but not limited to:
1. Legal fees
 2. Travel costs
 3. Insurance, e.g., performance bonds, builder's risk, general liability, etc.
 4. Home office overhead and other indirect costs
 5. Carrying costs, exclusive of the TI and BSAC amortization rate. Carrying costs are those costs of capital incurred for the delivery of TI and BSAC, for the period starting from Lessor's outlay of funds, until the Lease Term Commencement Date.
 6. Municipal, county, or state fees, including sales tax and construction permits associated with TI and BSAC buildout.
 7. TI and BSAC proposal preparation costs
 8. Lessor's labor costs related to the management of the TI and BSAC build-out. This includes, but is not limited to, progress reports, schedule management, meeting attendance, distribution of construction meeting minutes, on-site job supervision.
- B. At a minimum, the Lessor shall be responsible for performing the following services:
1. Provide assistance and expertise to the Government project team in the form of coordination, management, and administration of the design and construction process;
 2. Monitor performance of the general contractor and other subcontractors, control schedules, and oversee financial accounts;
 3. Conduct and document design and construction project meetings;
 4. Perform administrative tasks, including documentation, record keeping (issuing meeting minutes), and payment validation in addition to submittal and change order processing;
 5. Maintain Request for Information (RFI), submittal, and change order logs; and
 6. Provide technical expertise (e.g., testing, estimating, resolving claims, or responding to inquiries).

4.16 GOVERNMENT PROJECT MANAGEMENT SYSTEM (OCT 2023)

The Government may require the Lessor to use the Government's project management system for post-award and post-occupancy activities. This includes, but is not limited to, managing design submittals (DIDs, CD, as-builts), schedule submissions, pricing proposals, requests for information (RFI),

that are directed toward the Government, and Green Lease Submittals, such as reuse plans, commissioning plans, and product data sheets. Licensing costs and access to the system are the responsibility of the Government.

SECTION 5 TENANT IMPROVEMENT COMPONENTS

5.01 TENANT IMPROVEMENT REQUIREMENTS (OCT 2016)

The TIs shall be designed, constructed, and maintained in accordance with the standards set forth in this Lease. For pricing, only those requirements designated within this Section 5, or designated as TIs within the attached agency requirements and Security Requirements, shall be deemed to be TI costs.

5.02 TENANT IMPROVEMENT SPECIFICATIONS (SEP 2015)

With respect to the following bulleted paragraphs, the Government accepts the tenant improvements in their existing condition. Notwithstanding this acceptance, the requirements under these paragraphs shall pertain to future repair or replacement due to maintenance or alterations performed throughout the term of the Lease.

- A. DOORS: INTERIOR
- B. DOORS: HARDWARE
- C. PARTITIONS; SUBDIVIDING
- D. HEATING AND AIR CONDITIONING
- E. ELECTRICAL: DISTRIBUTION
- F. LIGHTING: INTERIOR AND PARKING – TI

5.03 ~~FINISH SELECTIONS (SEP 2015)~~ INTENTIONALLY DELETED

5.04 WINDOW COVERINGS (OCT 2023)

- A. Window Blinds. All exterior windows shall be equipped with window blinds in new or like new condition, which shall be provided as part of the TIs. The blinds may be aluminum or plastic vertical blinds, horizontal blinds with aluminum slats of one-inch width or less, solar fabric roller shades, or an equivalent product pre-approved by the Government. The window blinds shall have non-corroding mechanisms and synthetic tapes. Color selection will be made by the Government.
- B. INTENTIONALLY DELETED

5.05 DOORS: SUITE ENTRY (OCT 2022)

- A. Suite entry doors shall be provided as part of the TIs and shall have a minimum clear opening of 32" wide x 84" high (per leaf). Doors shall meet the requirements of being a flush, solid core, 1-3/4-inch thick, wood door with a natural wood veneer face or an equivalent pre-approved by the Government. Hollow core wood doors are not acceptable. They shall be operable by a single effort; and shall meet the requirement of NFPA 101, Life Safety Code or the International Building Code (current as of the Lease Award Date). Doors shall be installed in a metal frame assembly which is primed and finished with a low VOC semi-gloss oil-based paint finish that does not result in indoor air quality levels above 0.016 parts per million (ppm) of formaldehyde.
- B. For leases 10,000 RSF or greater, the paint finish must meet applicable, statutory environmentally preferable criteria as outlined in the Green Procurement Compilation at [HTTPS://SFTOOL.GOV/GREENPROCUREMENT/](https://SFTOOL.GOV/GREENPROCUREMENT/).

5.06 DOORS: INTERIOR (OCT 2022)

- A. Doors within the Space shall be provided as part of the TIs and shall have a minimum clear opening of 32" wide x 80" high. Doors shall be flush, solid core, wood with a natural wood veneer face or an equivalent door pre-approved by the LCO. Hollow core wood doors are not acceptable. They shall be operable with a single effort, and shall meet the requirements of NFPA 101, Life Safety Code or the International Building Code (current as of the Lease Award Date). Doors shall be installed in a metal frame assembly which is primed and finished with a low VOC semi-gloss oil-based paint and which does not result in indoor air quality levels above 0.016 parts per million (ppm) of formaldehyde.
- B. For leases 10,000 RSF or greater, the paint finish must meet applicable, statutory environmentally preferable criteria as outlined in the Green Procurement Compilation at [HTTPS://SFTOOL.GOV/GREENPROCUREMENT/](https://SFTOOL.GOV/GREENPROCUREMENT/).

5.07 DOORS: HARDWARE (SEP 2013)

Doors shall have door handles or door pulls with heavyweight hinges. The Lessor is encouraged to avoid the use of chrome-plated hardware. All doors shall have corresponding doorstops (wall- or floor-mounted) and silencers. All door entrances leading into the Space from public corridors and exterior doors shall have automatic door closers. Doors designated by the Government shall be equipped with 5-pin, tumbler cylinder locks and strike plates. All locks shall be master keyed. Furnish at least two master keys for each lock to the Government. Any exterior entrance shall have a high security lock, with appropriate key control procedures, as determined by Government specifications. Hinge pins and hasps shall be secured against unauthorized removal by using spot welds or pinned mounting bolts. The exterior side of the door shall have a lock guard or astragal to prevent tampering of the latch hardware. Doors used for egress only shall not have any operable exterior hardware. All security-locking arrangements on doors used for egress shall comply with requirements of NFPA 101 or the International Building Code current as of the Lease Award Date.

5.08 DOORS: IDENTIFICATION (JUN 2012)

Door identification shall be installed in approved locations adjacent to office entrances as part of the TIs. The form of door identification shall be approved by the Government.

5.09 PARTITIONS: SUBDIVIDING (OCT 2023)

- A. Office subdividing partitions shall comply with applicable building codes and local requirements and ordinances and shall be provided as part of the TIs. Partitioning shall be designed to provide a minimum sound transmission class (STC) of 45 with a noise isolation criteria (NIC) of no less than 35. The Government reserves the right to independently test these levels.
- B. Partitioning shall be installed by the Lessor at locations to be determined by the Government as identified in the DIDs, if applicable. They shall have a flame spread rating of 25 or less and a smoke development rating of 450 or less (ASTM E-84).
- C. HVAC shall be rebalanced and lighting repositioned, as appropriate, after installation of partitions.
- D. If installed in accordance with the "Automatic Fire Sprinkler System" and "Fire Alarm System" paragraphs, sprinklers and fire alarm notification appliances shall be repositioned as appropriate after installation of partitions to maintain the level of fire protection and life safety.
- E. Partitioning requirements may be satisfied with existing partitions if they meet the Government's standards and layout requirements.
- F. For leases 10,000 RSF or greater, the Lessor shall use materials for newly installed gypsum board meeting applicable environmentally preferable criteria that are recommended in the Green Procurement Compilation at [HTTPS://SFTOOL.GOV/GREENPROCUREMENT/GREEN-PRODUCTS/](https://SFTOOL.GOV/GREENPROCUREMENT/GREEN-PRODUCTS/). The Lessor shall use products with Environmental Product Declarations (EPDs) to the maximum extent practicable.

5.10 WALL FINISHES (OCT 2019)

If the Government chooses to install a wall covering, the following specifications shall apply:

- A. Commercial grade, weighing not less than 13 ounces per square yard.
- B. For leases 10,000 RSF or greater, wall covering shall be vinyl-free, chlorine-free, plasticizer-free, with recycled or bio-based content. If the Government chooses to install a high-performance paint coating, it shall comply with the VOC limits of the Green Seal Standard GS-11.

5.11 PAINTING – TI (OCT 2022)

- A. Prior to acceptance, all surfaces within the Space which are designated by the Government for painting shall be newly finished in colors and type of paint acceptable to the Government.
- B. For leases 10,000 RSF or greater, the Lessor shall provide interior paints, primers, coatings, stains, and sealers that meet applicable, statutory, environmentally preferable criteria as outlined under the Green Procurement Compilation at [HTTPS://SFTOOL.GOV/GREENPROCUREMENT/](https://SFTOOL.GOV/GREENPROCUREMENT/) and the [PAINT SECTION](#).

5.12 FLOOR COVERINGS AND PERIMETERS (OCT 2023)

- A. Broadloom carpet or carpet tiles shall meet the requirements set forth in the specifications below. Floor perimeters at partitions shall have wood, rubber, vinyl, or carpet base. Floor covering shall be installed in accordance with manufacturing instructions to lay smoothly and evenly.
- B. The use of existing carpet may be approved by the Government; however, existing carpet shall be repaired, stretched, and cleaned before occupancy and shall meet the static buildup requirement as stated in the specifications below.
- C. Any alternate flooring shall be pre-approved by the Government.
- D. SPECIFICATIONS FOR CARPET TO BE NEWLY INSTALLED OR REPLACED
 - 1. Product sustainability and environmental requirements. For leases 10,000 RSF or greater, floor covering and perimeter products must meet applicable, statutory, environmentally preferable criteria as outlined under the Green Procurement Compilation. See the sections on [CARPET](#), [FLOOR COVERINGS \(NON-CARPET\)](#), and [FLOOR TILES](#). The Lessor shall use products with Environmental Product Declarations (EPDs) to the maximum extent practicable.
 - 2. Face fiber content. Face yarn must be 100 percent nylon fiber. Loop Pile shall be 100 percent Bulk Continuous Filament (BCF); cut and loop shall be 100 percent BCF for the loop portion and may be BCF or staple for the cut portion; cut pile carpet shall be staple or BCF.
 - 3. Performance requirements for broadloom and modular tile.
 - a. Static. Less than or equal to 3.5 kV when tested by AATCC Test Method 134 (Step Test Option).
 - b. Flammability. Meets CPSC-FF-1-70, DOC-FF-1-70 Methenamine Tablet Test criteria.
 - c. Flooring Radiant Panel Test. Meets NFPA 253 Class I or II depending upon occupancy and fire code when tested under ASTM E-648 for glue down installation.

- d. Smoke Density. NBS Smoke Chamber - Less than 450 Flaming Mode when tested under ASTM E-662.

Note. Testing must be performed in a NVLAP accredited laboratory.

4. Texture Appearance Retention Rating (TARR). Carpet must meet TARR rating of at least 3.0 TARR for moderate traffic areas such as private offices, and heavy traffic areas such as training space, conference rooms, courtrooms, etc., and at least 3.5 TARR for severe traffic areas, including open office space, cafeteria, corridors and lobbies. The carpet must be evaluated using ASTM D-5252 Hexapod Drum Test as per the commercial carpet test procedure and the TARR classification determined using ASTM D-7330.
5. Carpet reclamation. Reclamation of existing carpet to be determined with potential vendor. When carpet is replaced, submit certification documentation from the reclamation facility to the LCO.
6. Warranty. Submit a copy of the manufacturer's standard warranty to the LCO within the first 60 days of Government occupancy. The Government is to be a beneficiary of the terms of this warranty.

5.13 HEATING AND AIR CONDITIONING (JUN 2012)

Zone Control. Provide individual thermostat control for office Space with control areas not to exceed 1,500 ABOA SF. Interior spaces must be separately zoned. Specialty occupancies (conference rooms, kitchens, etc.) must have active controls capable of sensing Space use and modulating HVAC system in response to Space demand. Areas that routinely have extended hours of operation shall be environmentally controlled through dedicated heating and air conditioning equipment. Special purpose areas (such as photocopy centers, large conference rooms, computer rooms, etc.) with an internal cooling load in excess of 5 tons shall be independently controlled. Provide concealed package air conditioning equipment to meet localized spot cooling of tenant special equipment. Portable space heaters are prohibited.

5.14 ELECTRICAL: DISTRIBUTION (SEP 2015)

- A. All electrical, telephone, and data outlets within the Space shall be installed by the Lessor in accordance with the DIDs, if applicable. All electrical outlets shall be installed in accordance with NFPA Standard 70.
- B. All outlets within the Space shall be marked and coded for ease of wire tracing; outlets shall be circuited separately from lighting. All floor outlets shall be flush with the plane of the finished floor. Outlet cover colors shall be coordinated with partition finish selections.
- C. The Lessor shall in all cases safely conceal outlets and associated wiring (for electricity, voice, and data) to the workstation(s) in partitions, ceiling plenums, in recessed floor ducts, under raised flooring, or by use of a method acceptable to the Government.

5.15 TELECOMMUNICATIONS: DISTRIBUTION AND EQUIPMENT (JUN 2012)

Telecommunications floor or wall outlets shall be provided as part of the TIs. At a minimum, each outlet shall house one 4-pair wire jack for voice and one 4-pair wire jack for data. The Lessor shall ensure that all outlets and associated wiring, copper, coaxial cable, optical fiber, or other transmission medium used to transmit telecommunications (voice, data, video, Internet, or other emerging technologies) service to the workstation shall be safely concealed under raised floors, in floor ducts, walls, columns, or molding. All outlets/junction boxes shall be provided with rings and pull strings to facilitate the installation of cable. Some transmission medium may require special conduit, inner duct, or shielding as specified by the Government.

5.16 TELECOMMUNICATIONS: LOCAL EXCHANGE ACCESS (AUG 2008)

Provide sealed conduit to house the agency telecommunications system when required.

5.17 DATA DISTRIBUTION (OCT 2020)

The Lessor shall purchase and install data cable as part of the tenant improvements. The Lessor shall safely conceal data outlets and the associated wiring used to transmit data to workstations in floor ducts, walls, columns, or below access flooring. When cable consists of multiple runs, the Lessor shall provide ladder type or other acceptable cable trays to prevent cable coming into contact with suspended ceilings or sprinkler piping. Cable trays shall form a loop around the perimeter of the Space such that they are within a 30-foot horizontal distance of any single drop. If the Government chooses to purchase and install data cabling, then the Lessor shall provide, as part of the tenant improvements, outlets with rings and pull strings to facilitate the installation of the data cable.

5.18 ELECTRICAL, TELEPHONE, DATA FOR SYSTEMS FURNITURE (OCT 2022)

- A. The Lessor shall provide as part of the TIs separate data, telephone, and electric junction boxes for the base feed connections to Government provided modular or systems furniture, when such feeds are supplied via wall outlets or floor penetrations. When overhead feeds are used, junction boxes shall be installed for electrical connections. Raceways shall be provided throughout the furniture panels to distribute the electrical, telephone, and data cable. The Lessor shall provide all electrical service wiring and connections to the furniture at designated junction points. Each electrical junction shall contain an 8-wire feed consisting of 3 general purpose 120-V circuits with 1 neutral and 1 ground wire, and a 120-V isolated ground circuit with 1 neutral and 1 isolated ground wire. A 20-ampere circuit shall have no more than 8 general purpose receptacles or 4 isolated ground "computer" receptacles.
- B. The Lessor shall purchase and install data and telecommunications cable. Said cable shall be installed and connected to systems furniture by the Lessor/subcontractor with the assistance and/or advice of the Government or computer vendor. The Lessor shall provide wall mounted data and telephone junction boxes. When cable consists of multiple runs, the Lessor shall provide ladder-type or other acceptable cable trays to prevent Government provided cable coming into contact with suspended ceilings or sprinkler piping. Cable trays shall form a loop around the

perimeter of the Space such that they are within a 30-foot horizontal distance of any single drop. Said cable trays shall provide access to both telecommunications data closets and telephone closets. If the Government chooses to purchase and install data and telecommunications cabling, then the Lessor shall provide, as part of the TIs, outlets with rings and pull strings to facilitate the installation of the data cable.

- C. The Lessor shall furnish and install suitably sized junction boxes near the "feeding points" of the furniture panels. All "feeding points" shall be shown on Government approved design intent drawings. The Lessor shall temporarily cap off the wiring in the junction boxes until the furniture is installed. The Lessor shall make all connections in the power panel and shall keep the circuit breakers off. The Lessor shall identify each circuit with the breaker number and shall identify the computer hardware to be connected to it. The Lessor shall identify each breaker at the panel and identify the devices that it serves.
- D. The Lessor's electrical subcontractor must connect power poles or base feeds in the junction boxes to the furniture electrical system and test all pre-wired receptacles in the systems furniture. Other Government contractors will be installing the data cable in the furniture panels for the terminal and printer locations, installing the connectors on the terminal/printer ends of the cable, and continuity testing each cable. Work shall be coordinated and performed in conjunction with the furniture, telephone, and data cable installers. Much of this work may occur over a weekend on a schedule that requires flexibility and on-call visits. The Lessor must coordinate the application of Certification of Occupancy with furniture installation.

5.19 LIGHTING: INTERIOR AND PARKING – TI (SEP 2015)

- A. Fixtures. Once the design intent drawings are approved, the Lessor shall design and provide interior lighting to comply with requirements under the paragraph, "Lighting: Interior and Parking – Shell." Any additional lighting fixtures and/or components required beyond what would have been provided for an open office plan (shell) are part of the TIs.
- B. Pendant Style Fixtures. If pendant style lighting fixtures are used, the increase between the number of fixtures required in the Building shell and the Space layout is part of the TIs.
- C. Mixed Fixtures. DIDs, if applicable, may require a mixed use of recessed or pendant style fixtures in the Space.
- D. Building Perimeter. There may be additional requirements for lighting in exterior parking areas, vehicle driveways, pedestrian walkways, and Building perimeter in the Security Requirements attached to this Lease.

5.20 AUTOMATIC FIRE SPRINKLER SYSTEM - TI (OCT 2016)

Where sprinklers are required in the Space, sprinkler mains and distribution piping in a "protection" layout (open plan) with heads turned down with an escutcheon or trim plate shall be provided as part of Shell rent. Any additional sprinkler fixtures and/or components required in the Space beyond what would have been provided for an open office plan (shell) are part of the TIs.

SECTION 6 UTILITIES, SERVICES, AND OBLIGATIONS DURING THE LEASE TERM

6.01 PROVISION OF SERVICES, ACCESS, AND NORMAL HOURS (OCT 2022)

- A. The Government's normal hours of operations are established as **7:00** AM to **5:00** PM, Monday through Friday, with the exception of Federal holidays. Services, maintenance, and utilities shall be provided during these hours. The Government shall have access to the Premises and its Appurtenant Areas at all times without additional payment, including the use, during other than normal hours, of necessary services and utilities such as elevators, restrooms, lights, and electric power. Cleaning shall be performed during normal hours.
- B. The Lessor and the Lessor's representatives, employees and subcontractors shall demonstrate a cooperative, positive, welcoming, respectful, professional and business-like demeanor and shall present a neat, clean, job-appropriate (professional) appearance.

6.02 UTILITIES (OCT 2024)

- A. The Lessor is responsible for providing all utilities necessary for base Building and tenant operations as part of the rental consideration.
- B. The Building operating plan shall conform with the 2021 International Energy Conservation Code (IECC) and the 2019 ASHRAE Standard 90.1. These standards specify energy conservation requirements for mechanical systems, building envelope efficiency, insulation, and lighting. More information on this Department of Energy rule can be found at: <HTTPS://WWW.ENERGY.GOV/>.
- C. The Lessor is encouraged to purchase at least 50 percent of the Government tenant's electricity from renewable sources.

~~6.03 UTILITIES SEPARATE FROM RENTAL/BUILDING OPERATING PLAN (OCT 2020) INTENTIONALLY DELETED~~

~~6.04 GSAR 552.270-99 LESSOR REPORTING OF GREEN BUILDING EFFICIENCY (SEP 2023) INTENTIONALLY DELETED~~

6.05 HEATING AND AIR CONDITIONING (OCT 2024)

- A. In all office areas, temperatures shall conform to local commercial equivalent temperature levels and operating practices in order to maximize tenant satisfaction. Thermostats shall be set to maintain temperatures of 72 degrees F (+/- 3 degrees) during the heating season and 75 degrees F (+/- 3 degrees) during the cooling season. These temperatures shall be maintained throughout the leased Premises and service areas, regardless of outside temperatures, during the hours of operation specified in the Lease. The Lessor shall perform any necessary systems start-up required to meet the commercially equivalent temperature levels prior to the first hour of each day's operation. At all times, the dew point shall be maintained below 55 degrees F in occupied spaces, and below 60 degrees F in unoccupied spaces.
- B. During non-working hours, heating temperatures shall be set no higher than 55 degrees F, and air conditioning shall not be provided except as necessary to return Space temperatures to a suitable level for the beginning of working hours. Thermostats shall be secured from manual operation by key or locked cage. A key shall be provided to the Government's designated representative.
- C. Warehouse or garage areas require heating and ventilation only. Cooling of this Space is not required. Temperature of warehouse or garage areas shall be maintained at a minimum of 50 degrees F.
- D. The Lessor shall conduct HVAC system balancing after any HVAC system alterations during the term of the Lease and shall make a reasonable attempt to schedule major construction outside of office hours.
- E. Normal HVAC systems' maintenance shall not disrupt tenant operations.
- F. **170** ABOA SF of the Premises shall receive cooling at all times (24 hrs. a day, 365 days a year) for purposes of cooling the designated server room. The BTU output of this room is established as **32,000 to 40,000** BTU per hour. The temperature of this room shall be maintained at **68** degrees F, with humidity control not to exceed 60% relative humidity, regardless of outside temperature or seasonal changes.
- G. In addition to the server room requirements stated above, the following areas shall receive HVAC at all times:
1. Supplies Storage Room
 2. Equipment Storage Room
- H. The 24 hour, 365 days a year HVAC service(s) stated above shall be provided by the Lessor as part of the operating rent established under the Lease.

6.06 OVERTIME HVAC USAGE (OCT 2023)

There shall be no additional charge for overtime HVAC usage.

~~6.07 PERIODIC LEASE ABOVE STANDARD SERVICES (LASS) — OTHER THAN HVAC (OCT 2024) INTENTIONALLY DELETED~~

6.08 JANITORIAL SERVICES (OCT 2021)

An entity of the Federal Government intending to procure a service listed on the AbilityOne Procurement List is required to procure the service from a qualified nonprofit agency (NPA) for the blind or a qualified NPA for other severely disabled in accordance with the regulations of the AbilityOne Commission, if there is a qualified NPA that is ready and able to perform the services on the AbilityOne Procurement List. See 41 U.S.C. §8504. The procurement list is located at [HTTPS://WWW.ABILITYONE.GOV/](https://www.abilityone.gov/).

Where a lease includes custodial services on the AbilityOne Procurement List, the Lessor SHALL procure the custodial services from a qualified NPA designated by the AbilityOne Commission that is ready and able to perform services on the AbilityOne Procurement List for this lease. If the qualified NPA is unable to provide the service included on the AbilityOne Procurement List, refer to the RLP for the AbilityOne Offeror Certification Submittal Requirement in Section 5 of the RLP.

The Lessor shall maintain the Premises and all areas of the Property to which the Government has routine access, including high-touch surfaces (e.g., door knobs, light switches, handles, handrails, and elevator buttons) in a clean condition and shall provide supplies and equipment for the term of the Lease. The following schedule describes the level of services intended. Performance will be based on the LCO's evaluation of results, not the frequency or method of performance.

The Government's Janitorial Requirements are as set forth in **Exhibit C**.

6.09 SELECTION OF CLEANING PRODUCTS (OCT 2022)

For leases 10,000 RSF or greater where the Government is a sole occupant of the Building, the Lessor shall use cleaning products (including general purpose cleaners, floor cleaners, hand soap, etc.) that meet applicable, statutory, environmentally preferable criteria as outlined under the Green Procurement Compilation at [HTTPS://SFTOOL.GOV/GREENPROCUREMENT/GREEN-PRODUCTS/5/CLEANING-PRODUCTS/0](https://SFTOOL.GOV/GREENPROCUREMENT/GREEN-PRODUCTS/5/CLEANING-PRODUCTS/0).

6.10 SELECTION OF PAPER PRODUCTS (OCT 2022)

For leases 10,000 RSF or greater where the Government is a sole occupant of the Building, the Lessor shall select paper and paper products (e.g., restroom tissue and paper towels) that meet applicable, statutory, environmentally preferable criteria as outlined under the Green Procurement Compilation at [HTTPS://SFTOOL.GOV/GREENPROCUREMENT/GREEN-PRODUCTS/5/CLEANING-PRODUCTS/0](https://SFTOOL.GOV/GREENPROCUREMENT/GREEN-PRODUCTS/5/CLEANING-PRODUCTS/0).

6.11 SNOW REMOVAL (OCT 2020)

Lessor shall provide snow removal services for the Government on all days for which this Lease has designated normal hours. Lessor shall clear parking lots if the accumulation of snow exceeds two inches. Lessor shall clear sidewalks, walkways and other entrances before accumulation exceeds 1.5 inches. The snow removal shall take place no later than 5:00 AM, without exception. Should accumulation continue throughout the day, the Lessor shall provide such additional snow removal services to prevent accumulation greater than the maximums specified in this paragraph. In addition to snow removal, the Lessor shall keep walkways, sidewalks and parking lots free of ice during the normal hours. The Lessor shall remove excess buildup of sand and/or ice melt to minimize slipping hazards. If the Building entrance(s) has a northern exposure, then Lessor shall take additional measures (e.g., more frequent snow removal or application of ice-melting agents, warning signs, etc.) to protect the safety of pedestrians.

6.12 MAINTENANCE AND TESTING OF SYSTEMS (OCT 2022)

- A. The Lessor is responsible for the total maintenance and repair of the leased Premises. Such maintenance and repairs include the site and private access roads. All equipment and systems shall be maintained to provide reliable, energy efficient service without unusual interruption, disturbing noises, exposure to fire or safety hazards, uncomfortable drafts, excessive air velocities, or unusual emissions of dirt. The Lessor's maintenance responsibility includes initial supply and replacement of all supplies, materials, and equipment necessary for such maintenance. Maintenance, testing, and inspection of appropriate equipment and systems shall be done in accordance with current applicable codes, and inspection certificates shall be displayed as appropriate. Upon request, copies of all records in this regard shall be forwarded to the Government's designated representative.
- B. At the Lessor's expense, the Government reserves the right to require documentation of proper operations, inspection, testing, and maintenance of fire protection systems, such as, but not limited to, fire alarm, fire sprinkler, standpipes, fire pump, emergency lighting, illuminated exit signs, emergency generator, prior to occupancy to ensure proper operation. These tests shall be witnessed by the Government's designated representative.

6.13 MAINTENANCE OF PROVIDED FINISHES (OCT 2016)

- A. Paint, wall coverings. Lessor shall maintain all wall coverings and high-performance paint coatings in "like new" condition for the life of the Lease. All painted surfaces shall be repainted at the Lessor's expense, including the moving and returning of furnishings, any time during the occupancy by the Government if the paint is peeling or permanently stained, except where damaged due to the negligence of the Government. All work shall be done after normal working hours as defined elsewhere in this Lease. In addition to the foregoing requirement,
 - 1. Lessor shall repaint common areas at least every three years.
 - 2. Lessor shall perform cyclical repainting of the Space every **five (5)** years of occupancy. This cost, including the moving and returning of furnishings, as well as disassembly and reassembly of systems furniture per manufacturer's warranty, shall be at the Lessor's expense.

B. Carpet and flooring.

1. Except when damaged by the Government, the Lessor shall repair or replace flooring at any time during the Lease term when:
 - a. Backing or underlayment is exposed;
 - b. There are noticeable variations in surface color or texture;
 - c. It has curls, upturned edges, or other noticeable variations in texture;
 - d. Tiles are loose; or,
 - e. Tears or tripping hazards are present.
2. Notwithstanding the foregoing, as part of the rental consideration, the Lessor shall replace all carpet and base coving in the Space every **five (5)** years, with a product which meets the requirements in the "Floor Coverings and Perimeters" paragraph in this Lease.
3. Repair or replacement shall include the moving and returning of furnishings, including disassembly and reassembly of systems furniture per manufacturer's warranty, if necessary. Work shall be performed after the normal hours established elsewhere in this Lease.

6.14 ASBESTOS ABATEMENT (OCT 2021)

If asbestos abatement work is to be performed in the Space after occupancy, the Lessor shall submit to the Government documentation that the abatement was done in accordance with OSHA, EPA, DOT, state, and local regulations and that final clearance is achieved.

6.15 ONSITE LESSOR MANAGEMENT (APR 2011)

The Lessor shall provide an onsite Building superintendent or a locally designated representative available to promptly respond to deficiencies, and immediately address all emergency situations.

6.16 IDENTITY VERIFICATION OF PERSONNEL (OCT 2022)

- A. The Government reserves the right to verify identities of personnel with routine and/or unaccompanied access to the Government's Space, including both pre and post occupancy periods. The Lessor shall comply with GSA personal identity verification requirements, identified in GSA Order 2181.1 GSA HSPD-12 Personal Identity Verification and Credentialing Handbook. The Lessor can find the policy and additional information at [HTTP://WWW.GSA.GOV/HSPD12](http://www.gsa.gov/hspd12). This policy requires the Government to conduct background investigations and make HSPD-12 compliant suitability determinations for all persons with routine or unaccompanied access to Government leased Space. By definition, this includes at a minimum each employee of the Lessor, as well as employees of the Lessor's contractors or subcontractors who will provide building operating services requiring routine access to the Government's leased Space for a period greater than 6 months. The Government may also require this information for the Lessor's employees, contractors, or subcontractors who will be engaged to perform alterations or emergency repairs in the Government's Space.
- B. Application Process: The background investigation will be done using the Government's prescribed process. The Lessor must provide information on each of their contractor/personnel meeting the above criteria to the Government, whereupon each identified contractor/personnel will be notified with instructions for completing the identity verification application within a given time frame. The application process will include completing supplemental information forms that must be inputted into the identity verification system in order for the application to be considered complete. Additionally, the Lessor must ensure prompt completion of the fingerprint process for their contractor/personnel. Email notifications will be sent with instructions on the steps to be taken to schedule an appointment for fingerprinting at an approved regional location along with instructions on how to complete the background investigation application.
- C. The Lessor must ensure the Lease Contracting Officer (or the Lease Contracting Officer's designated representative) has all of the requested documentation timely to ensure the completion of the investigation.
- D. Based on the information furnished, the Government will conduct background investigations. The Lease Contracting Officer will advise the Lessor in writing if a person fails the investigation, and, effective immediately, that person will no longer be allowed to work or be assigned to work in the Government's Space.
- E. Throughout the life of the Lease, the Lessor shall provide the same data for any new employees, contractors, or subcontractors who will be assigned to the Government's Space in accordance with the above criteria. All Lessor's contractor(s) and subcontractor(s) shall follow the requirements of background investigation in accordance with GSA HSPD-12 policy.
- F. The Lessor is accountable for not allowing contractors to start work without the successful completion of the appropriate background investigation as required by GSA policy.
- G. Access Card Retrieval/Return: Upon an Entry on Duty notification, the Government will issue a Personal Identity Verification (PIV) credential that is sometimes referred to as a GSA Access card. Lessors are responsible for all PIV credential issued to their contractors/personnel pursuant to this Lease. Lessors are specifically responsible for ensuring that all GSA PIV access cards are returned to the Lease Contracting Officer or their designee whenever their employees or a contractor no longer require access to the Space (such as When no longer needed for contract performance, upon completion of the Contractor employee's employment, and upon contract completion or termination). Additionally, the Lessor must notify the Lease Contracting Officer or their designee whenever a GSA PIV Access card is lost or stolen in which event the Lessor may be responsible for reimbursing the Government for replacement credentials at the current cost per PIV HSPD12 credential. Unreturned PIV Access cards will be considered as lost or stolen cards.
- H. The Government reserves the right to conduct additional background checks on Lessor personnel and contractors with routine access to Government leased Space throughout the term of the Lease to determine who may have access to the Premises.

- I. The Lease Contracting Officer may delay final payment under a contract if the Contractor fails to comply with these requirements.
- J. The Lessor shall insert this paragraph in all subcontracts when the subcontractor is required to have physical access to a federally controlled facility or access to a federal information system.

6.17 SCHEDULE OF PERIODIC SERVICES (OCT 2020)

Upon acceptance of the Space, the Lessor shall provide the LCO with a detailed written schedule of all periodic services and maintenance to be performed other than daily, weekly, or monthly.

6.18 LANDSCAPING (OCT 2022)

- A. For leases 10,000 RSF or greater where the Government is the sole occupant of the building, the Lessor shall use landscaping products that meet applicable, statutory, environmentally preferable criteria related to recycled content as outlined under the Green Procurement Compilation at [HTTPS://SFTOOL.GOV/GREENPROCUREMENT/](https://SFTOOL.GOV/GREENPROCUREMENT/) and the LANDSCAPING PRODUCTS SECTION.
- B. Landscape management practices shall prevent pollution by:
 - 1. Employing practices which avoid or minimize the need for herbicides, fertilizers and pesticides; and
 - 2. Composting/recycling all yard waste.
- C. For leases 10,000 RSF or greater where the Government is the sole occupant of the building, where technically feasible, cost-effective, and permitted by local laws and regulations, the Lessor shall utilize alternative sources of water for outdoor use, such as harvested water, treated wastewater, air handler condensate capture, gray water, or reclaimed water.
- D. For leases 10,000 RSF or greater where the Government is the sole occupant of the building, if the Lessor satisfies performance of this Lease by new construction, and where conditions permit, the site shall be landscaped for low maintenance and water conservation with plants that are either native or well-adapted to local growing conditions.

6.19 LANDSCAPE MAINTENANCE (APR 2011)

Landscape maintenance shall be performed during the growing season at not less than a weekly cycle and shall consist of watering, weeding, mowing, and policing the area to keep it free of debris. Pruning and fertilization shall be done on an as-needed basis. In addition, dead, dying, or damaged plants shall be replaced.

6.20 RECYCLING AND COMPOSTING (OCT 2023)

- A. For Leases 10,000 rentable SF or greater, with a Lease term greater than six months, the Lessor shall establish a recycling program for (at a minimum) paper, corrugated cardboard, glass, plastics, and metals where local markets for recovered materials exist.
- B. Where state or local law, code, or ordinance requires recycling programs for the Premises, Lessor shall comply with such state and/or local law, code, or ordinance.
- C. When implementing any recycling program, the Lessor shall provide an easily accessible, appropriately sized area (2 SF per 1,000 SF of Building gross floor area) that serves the Space for the collection and storage of materials for recycling. Telecom rooms are not acceptable as recycling space. During the Lease term, the Lessor agrees, upon request, to provide the Government with additional information concerning recycling programs maintained in the Building and in the Space.
- D. For leases 10,000 rentable SF or greater, the Lessor shall submit a Building recycling service plan with floor plans annotating recycling area(s) as part of DIDs, if applicable, to be reflected on the CD submission.
- E. INTENTIONALLY DELETED.

6.21 RANDOLPH-SHEPPARD COMPLIANCE (SEP 2013)

During the term of the Lease, the Lessor may not establish vending facilities within the leased Space that will compete with any Randolph-Sheppard vending facilities.

6.22 ~~SAFEGUARDING AND DISSEMINATION OF CONTROLLED UNCLASSIFIED INFORMATION (CUI) BUILDING INFORMATION (OCT 2022)~~ INTENTIONALLY DELETED

6.23 INDOOR AIR QUALITY (OCT 2024)

- A. The Lessor shall control airborne contaminants at the source and/or operate the Space in such a manner that indoor air quality action limits identified in the PBS Desk Guide for Indoor Air Quality Management (Companion to GSA Order PBS 1000.8), OSHA regulatory limits, and generally accepted consensus standards are not exceeded.
- B. The Lessor shall avoid the use of products containing toxic, hazardous, carcinogenic, flammable, or corrosive ingredients as determined from the product label or manufacturer's safety data sheet. The Lessor shall use available odor-free or low odor products when applying paints, glues, lubricants, and similar wet products. When such equivalent products are not available, lessor shall use the alternate products outside normal

working hours. Except in an emergency, the Lessor shall provide at least 72 hours advance notice to the Government before applying chemicals or products with noticeable odors in occupied Spaces and shall adequately ventilate those Spaces during and after application.

- C. The Lessor shall serve as first responder to any occupant complaints about indoor air quality (IAQ). The Lessor shall promptly investigate such complaints and implement the necessary controls to address each complaint. Investigations shall include testing as needed by a board-certified industrial hygienist, to ascertain the source and severity of the complaint. The hygienist shall inspect and evaluate the Space and air zones serving the Space; inspection shall take place as soon as possible but no later than 15 calendar days following the identification of a potential IAQ issue. Notwithstanding the above, when a board-certified industrial hygienist is not available to perform this inspection, the Lessor may, upon written request and the Government's approval, employ an environmental professional with documented experience performing IAQ assessments. The Lessor shall provide written results of any testing along with recommendations to the Government.
- D. The Government reserves the right to conduct independent IAQ assessments and detailed studies in Space that it occupies, as well as in space serving the Space (e.g., common use areas, mechanical rooms, HVAC systems, etc.). The Lessor shall assist the Government in its assessments and detailed studies by:
 - 1. Making available information on Building operations and Lessor activities;
 - 2. Providing access to Space for assessment and testing, if required; and
 - 3. Implementing corrective measures required by the LCO. The Lessor shall take corrective action to correct any tests or measurements that do not meet GSA policy action limits in the PBS Desk Guide for Indoor Air Quality Management (Companion to GSA Order PBS 1000.8), OSHA regulatory limits, and generally accepted consensus standards.
- E. The Lessor shall provide to the Government safety data sheets (SDS) upon request for the following products prior to their use during the term of the Lease: adhesives, caulking, sealants, insulating materials, fireproofing or firestopping materials, paints, carpets, floor and wall patching or leveling materials, lubricants, clear finish for wood surfaces, janitorial cleaning products, pesticides, rodenticides, and herbicides. The Government reserves the right to review such products used by the Lessor within the Space, common building areas, ventilation systems and zones serving the Space, and the area above suspended ceilings and engineering space in the same ventilation zone as the Space.
- F. The Lessor shall use high efficiency (HEPA) filtration vacuums for cleaning.
- G. Air handling units shall have the highest-level MERV filtration that is compatible with the HVAC system and does not significantly diminish airflow. Upon request, the Lessor shall provide to the Government a list of the highest-level of MERV filtration that each air handling unit is designed to handle.
- H. The Lessor is encouraged to comply with best practices outlined in Appendix D- Indoor Air Quality in GSA Leased Facilities (Best Practices) within the PBS Desk Guide for Indoor Air Quality Management (Companion to GSA Order PBS 1000.8).

6.24 RADON IN AIR (OCT 2023)

- A. The radon concentration in the air of the Space shall be less than 4 picoCuries per liter (pCi/L) for childcare and 25 pCi/L for all other space, herein called "GSA action levels." For further information on radon, go to [HTTP://WWW.EPA.GOV/RADON](http://www.epa.gov/radon).
- B. Testing Procedures. For the purposes of this paragraph, the following testing procedures shall be used when space planned for occupancy by the Government is located at or below grade level:
 - 1. Standard Test. Place alpha track detectors throughout the required area for 91 or more days so that each covers no more than 2,000 ABOA SF. Use only devices and laboratories listed in the National Radon Proficiency Program (NRPP), National Radon Safety Board (NRSB) or as required by local jurisdictions that have a program for evaluating and approving devices. Submit the results and supporting data (sample location, device type, duration, radon measurements, laboratory proficiency certification number, and the signature of a responsible laboratory official) within 30 days after the measurement.
 - 2. Short Test. Place alpha track detectors for at least 14 days, or charcoal canisters for 2 days to 3 days, throughout the required area so that each covers no more than 2,000 ABOA SF, starting not later than 7 days after award. Use only devices and laboratories listed in the National Radon Proficiency Program (NRPP), National Radon Safety Board (NRSB) or as required by local jurisdictions that have a program for evaluating and approving devices. Submit the results and supporting data within 30 days after the measurement. In addition, complete the standard test not later than 150 days after Government occupancy.
- C. Initial Testing.
 - 1. The Lessor shall:
 - a. Test for radon any portion of Space planned for occupancy by the Government at or below grade level;
 - b. Report the results to the LCO upon award; and
 - c. Promptly carry out a corrective action program for any radon concentration which equals or exceeds the GSA action levels.
 - 2. Testing sequence. The Lessor shall measure radon by the standard test in sub-paragraph B.1, completing the test not later than 150 days after award, unless the LCO decides that there is not enough time to complete the test before Government occupancy, in which case the Lessor shall perform the short test in sub-paragraph B.2, in addition to the standard test.

3. If the Space offered for Lease to the Government is in a Building under construction or proposed for construction, the Lessor, if possible, shall perform the standard test during buildout before Government occupancy of the Space. If the LCO decides that it is not possible to complete the standard test before occupancy, the Lessor shall complete the short test before occupancy and the standard test not later than 150 days after occupancy.

D. Additional Testing.

1. After a major disturbance (e.g., earthquake, road construction, seismic shift, etc.) or a construction or renovation project that could impact radon gas levels in the building (e.g., building foundation, subsurface plumbing, basement structure, or negative changes to the building air pressure, etc.), the Lessor shall:
 - a. Re-Test for radon that portion of Space occupied by the Government at or below grade level;
 - b. Report the results to the LCO; and
 - c. Promptly carry out a corrective action program for any radon concentration which equals or exceeds the GSA action levels.
2. Testing Sequence. The Lessor shall measure radon by the standard test outlined in paragraph B.1, completing the test not later than 150 days after the event outlined in D.1.

E. Corrective Action Program.

1. Program Initiation and Procedures.
 - a. If either the Government or the Lessor detects radon at or above the GSA action levels at any time before Government occupancy, the Lessor shall carry out a corrective action program which reduces the concentration to below the GSA action levels before Government occupancy.
 - b. If either the Government or the Lessor detects a radon concentration at or above the GSA action levels at any time after Government occupancy, the Lessor shall promptly carry out a corrective action program which reduces the concentration to below the GSA action levels.
 - c. If either the Government or the Lessor detects a radon concentration at or above the GSA action levels at any time after Government occupancy, the Lessor shall promptly restrict the use of the affected area and shall provide comparable temporary space for the tenants, as agreed to by the Government, until the Lessor carries out a prompt corrective action program which reduces the concentration to below the GSA action levels and certifies the Space for re-occupancy.
 - d. The Lessor shall provide the Government with prior written notice of any proposed corrective action or tenant relocation. The Lessor shall promptly revise the corrective action program upon any change in Building condition or operation which would affect the program or increase the radon concentration to or above the GSA action levels.
2. The Lessor shall perform the standard test in sub-paragraph B to assess the effectiveness of a corrective action program. The Lessor may also perform the short test in sub-paragraph B to determine whether the Space may be occupied but shall begin the standard test concurrently with the short test.
3. All measures to accommodate delay of occupancy, corrective action, tenant relocation, tenant re-occupancy, or follow-up measurement, shall be provided by the Lessor at no additional cost to the Government.
4. If the Lessor fails to exercise due diligence or is otherwise unable to reduce the radon concentration promptly to below the GSA action levels, the Government may implement a corrective action program and deduct its costs from the rent.

6.25 RADON IN WATER (JUN 2012) INTENTIONALLY DELETED

6.26 HAZARDOUS MATERIALS (OCT 2023)

- A. The leased Space shall be free of hazardous materials, hazardous substances, and hazardous wastes, as defined by and according to applicable Federal, state, and local environmental regulations. Should there be reason to suspect otherwise, the Government reserves the right, at Lessor's expense, to require documentation or testing to confirm that the Space is free of all hazardous materials, substances, and wastes.
- B. Lessor shall, to the extent of its knowledge, notify the Government of the introduction of any hazardous materials, substances, and wastes onto the Property by Lessor or others, including but not limited to, co-tenants occupying Space in the Building.
- C. Lessors are encouraged to prioritize products used in the build-out of Space that do not contain Per- and Polyfluoroalkyl Substances (PFAS). To view the current list of EPA standards and ecolabels that either restrict or eliminate the use of PFAS in certified products, visit [HTTPS://WWW.EPA.GOV/GREENERPRODUCTS/](https://www.epa.gov/greenerproducts/)

6.27 MOLD AND WATER INTRUSION (OCT 2023)

- A. Actionable Condition. An actionable condition is defined as either:

1. Visible mold or airborne mold of types and concentrations in excess of that found in the local outdoor air or non-problematic control areas elsewhere in the same building, whichever is lower, or
 2. Water-Damaged Building materials which could potentially create conditions for mold or microbial amplification.
- B. The Lessor shall provide Space to the Government that is free from ongoing water leaks or moisture infiltration. The Space and ventilation zones serving the Space shall also be free of actionable conditions, as defined by subparagraph A.
- C. Within 48 hours following a water intrusion event, such as a flood, plumbing leak, heavy rain, etc., whereby the Government Space or air zones serving the Space may have become moisture damaged, the Lessor shall repair any leakage sources and remediate the moisture damage per the EPA: Mold in Schools and Commercial Buildings (EPA 402-K-01-001, September 2008) and the current version of ANSI/IICRC: S500 Standard for Professional Water Damage Restoration using a qualified professional. Specific remediation methods shall be based on the water class and category defined by ANSI/IICRC. Whenever moisture damage or infiltration persists such that: mold is visible, mold odors are present, or occupants register complaints about mold, the Lessor shall employ a board-certified industrial hygienist to inspect and evaluate the Space and air zones serving the Space for actionable conditions; inspection shall take place as soon as possible but no later than 15 calendar days following identification of a potential mold issue as described above. Notwithstanding the above, when a board-certified industrial hygienist is not available to perform this inspection, the Lessor may, upon written request and the Government's approval, employ an environmental consultant experienced in water intrusion and mold assessments. The Lessor shall promptly furnish water intrusion and the mold assessment report to the Government. The Lessor shall safely remediate all actionable conditions identified by the consultant using a qualified remediation contractor following the methods identified in EPA's Mold Remediation in Schools and Commercial Buildings (EPA 402-K-01-001, September 2008 or the current version of ANSI/IICRC S520-2015: Standard for Professional Mold Remediation) and all applicable state laws pertaining to mold remediation practices. The Lessor shall provide GSA with a detailed work plan from the remediation contractor on how they plan to address the actionable conditions and include qualifications of the remediation contractor. Remediation shall be completed within a time frame acceptable to the Lease Contracting Officer which shall be no later than 90 calendar days following confirmation of the presence of an actionable condition. The Lessor shall employ a qualified industrial hygienist, independent of the remediation contractor to verify that remediation has been completed per the industry standards listed above and that the space is safe for re-occupancy.
- D. The presence of an actionable condition in the Premises may be treated as a Casualty, as determined by the Government, in accordance with the Fire and Other Casualty clause contained in the General Clauses of this Lease. In addition to the provisions of the Fire and Other Casualty clause of this Lease, should a portion of the Premises be determined by the Government to be un-tenantable due to an act of negligence by the Lessor or his agents, the Lessor shall provide reasonably acceptable alternative Space at the Lessor's expense, including the cost of moving, and any required alterations.

6.28 OCCUPANT EMERGENCY PLANS (OCT 2020)

The Lessor is required to cooperate, participate and comply with the development and implementation of the Government's Occupant Emergency Plan (OEP) and a supplemental Shelter-in Place (SIP) Plan. Periodically, the Government may request that the Lessor assist in reviewing and revising its OEP and SIP. The Plan, among other things, will include evacuation procedures and an annual emergency evacuation drill, emergency shutdown of air intake procedures, and emergency notification procedures for the Lessor's Building engineer or manager, Building security, local emergency personnel, and Government agency personnel.

6.29 FLAG DISPLAY (OCT 2016)

If the Lessor has supplied a flagpole on the Property as a requirement of this Lease, the Lessor shall be responsible for flag display on all workdays and Federal holidays. The Lessor may illuminate the flag in lieu of raising and lowering the flag daily. The Lessor shall register with the Federal Protective Service (FPS) MegaCenter in order to receive notifications regarding when flags shall be flown at half-staff, as determined by Executive Order.

SECTION 7 ADDITIONAL TERMS AND CONDITIONS

7.01 SECURITY REQUIREMENTS (OCT 2021)

The Lessor agrees to the requirements of Facility Security Level II attached to this Lease.

7.02 MODIFIED LEASE PARAGRAPHS (OCT 2016)

The following paragraphs have been modified in this Lease:

1.03(B)
1.15
1.16(B)
2.10(B)
2.10(D)
4.01(D)
6.06
6.08

7.03 ~~NO FEDERALLY ELECTED OFFICIALS TO BENEFIT (OCT 2023)~~ INTENTIONALLY DELETED

7.04 ~~DAILY OCCUPANCY DATA (OCT 2021)~~ INTENTIONALLY DELETED

7.05 ~~SWING SPACE — LEASE (OCT 2022)~~ INTENTIONALLY DELETED

VISN 10 – NCOD Replacement Lease **Agency Specific Requirements**

1. Offeror Instructions

The Offeror is required to review all sections of this exhibit to understand and provide the tenant improvements (TI) and servicing requirements of the leased space to the U.S. Department of Veterans Affairs (hereafter referred to as “VA”). It is planned the VA will lease space within an existing building with minimal required changes to the building shell and site improvements.

2. Location Requirements

In addition to the requirements of the Sources Sought/Request for Lease Proposal document, the offered space must meet the following additional requirements:

2.1. The offered space shall be Class A Office Space as defined by Building Owners and Managers Association (BOMA) [https://www.boma.org/BOMA/Research-Resources/Industry_Resources/BuildingClassDefinitions.aspx].

2.2. The offered space shall be approximately 16,500 NUSF total.

2.3. At least 150 overnight stay rooms within either a single hotel or a combination of hotels shall be within 5 miles as shown on a trip mapping system (such as Google Maps, Expedia or MapQuest).

2.4. At least three restaurants and/or grocery stores with a food court shall be within 2 miles as shown on a trip mapping system (such as Google Maps, Expedia or MapQuest).

3. Space Planning and Function Layout

The conceptual floor plan provided in this solicitation shall be used as the basis for the planning and functional layout of the facility. The final layout, design development documents, and construction documents shall be in accordance with this solicitation and the VA Outpatient Clinic (SOC/CBOC) Design Guide which may be found at <https://www.cfm.va.gov/til/dGuide/dgPACT.pdf> . PACT (Patient Aligned Care Team).

Lessor shall provide accurate space layout drawings (floor plans) with offer and during design and construction document phases. Plans shall include sufficient information for the Government to compute the net area of each function (room), and to compute Building Gross Area and Net Usable Area in order to determine compliance with solicitation requirements.

4. Tenant Improvement Requirements

Section headers are organized utilizing MasterFormat 2004 (MF04). VA utilizes MF04 for construction project specifications and listing tenant improvement requirements in this manner will assist the Offeror with preparing the tenant improvement cost summary (TICS). The following link to the VA Technical Information Library (TIL), which contains Program Guide 18-1 (PG-18-1) *Master Construction Specifications*, is provided for further reference: <https://www.cfm.va.gov/til/index.asp>.

4.1. Division 00 – Special Sections

4.1.1. 00 20 00 Building Codes and Standards

For the purposes of this lease, the adopted building codes of the political jurisdiction in which the offered space is physically located shall apply to the design of the TI, unless noted below where VA requires compliance with the most recent version of VA or other Federal standards at the time of lease award. Details on these requirements can be found in detail on the VA TIL *Building Requirements for Leased Spaces* [<https://www.cfm.va.gov/til/leasing.asp>].

Where a conflict exists between locally adopted codes and required Federal standards, the Offeror shall bring this to attention of the VA for resolution. Reference VA Program Guide 18-3 (PG-18-3) *Design and Construction Procedures, Topic 1 Codes, Standards and Executive Orders* [<https://www.cfm.va.gov/TIL/cPro.asp>] for additional information on seeking resolution.

A table listing all used codes, standards, manuals and other documents (including revision/publication date) used during TI design shall be incorporated into the drawing set.

4.1.2. 00 20 00 Accessibility

TI shall comply with the requirements of the *Architectural Barriers Act Accessibility Standard* (ABAAS) for Federal Facilities [<https://www.cfm.va.gov/til/accessibility.asp>] and [<https://www.access-board.gov/guidelines-and-standards/buildings-and-sites/about-the-aba-standards/aba-standards>]. While similar, the accessibility standards set by the *Americans with Disabilities Act (ADA)* only apply to the building shell and site improvements, unless local building codes are more stringent than the ADA.

4.1.3 00 20 00 Life Safety

In the absence of a State or Local fire code, TI shall comply with the requirements of *NFPA 101: Life Safety Code* [<https://www.nfpa.org/codes-and-standards/all->

[codes-and-standards/list-of-codes-and-standards/detail?code=101](#)]. The Offeror shall provide a valid building Certificate of Occupancy issued by the local jurisdiction. However, if the building Certificate of Occupancy is not available or a local jurisdiction does not issue a building Certificate of Occupancy, the Offeror must obtain the services of a licensed fire protection engineer to verify the offered space and building meets all applicable local codes and ordinances to ensure an acceptable level of safety is provided.

4.1.4. 00 20 00 Seismic Safety

New construction which consists of new buildings or the construction of an addition to an existing building shall conform to the International Building Code [\[https://www.iccsafe.org/products-and-services/i-codes/2018-i-codes/ibc/\]](https://www.iccsafe.org/products-and-services/i-codes/2018-i-codes/ibc/).

Existing buildings shall meet the seismic requirements of the Interagency Committee on Seismic Safety in Construction's (ICSSC) *RP-8 Standards of Seismic Safety for Existing Federally Owned or Leased Building and Commentary* [\[https://www.gsa.gov/node/84082\]](https://www.gsa.gov/node/84082).

4.1.5. 00 20 00 Physical Security and Resiliency

TI shall comply with the requirements of both *VA Real Property Policy Memorandum 2018-02 Physical Security Standards for Leased Facilities (Existing Space and Lease Construction Projects)* (VAIQ 7866496) dated Feb 26, 2018 [\[https://www.cfm.va.gov/TIL/Leasing/ORP-PolicyMemo2018-02.pdf\]](https://www.cfm.va.gov/TIL/Leasing/ORP-PolicyMemo2018-02.pdf) and *The Risk Management Process for Federal Facilities: An Interagency Security Committee (ISC) Standard* [\[https://www.dhs.gov/interagency-security-committee\]](https://www.dhs.gov/interagency-security-committee) for Facility Security Level (FSL) 2 protected facilities. A summary of these baseline ISC requirements can be found on the TIL [\[https://www.cfm.va.gov/til/leasing/VA-Lease-AppD1-FacilityRqmts.pdf\]](https://www.cfm.va.gov/til/leasing/VA-Lease-AppD1-FacilityRqmts.pdf).

During lease proposal negotiation, the VA and the Offeror shall complete a risk assessment of the proposed leased suite(s), building shell and site improvements to determine what countermeasures are required in the TI design so an accurate TICS table can be developed. This checklist, once complete, shall be protected as For Official Use Only (FOUO) information and shared only with those that have a need to know to perform work related to this lease.

The *VA Physical Security Design Manual for VA Life-Safety Protected Facilities* [\[https://www.cfm.va.gov/til/spclRqmts.asp#PHS\]](https://www.cfm.va.gov/til/spclRqmts.asp#PHS) is no longer required to be used to design TI drawings, but may be referenced for guidance if the ISC standard does not contain requirements for a specific planned item.

FSL 2

4.1.6. 00 40 00 Drawing Format

The Offeror has the option of providing TI drawings in the VA standard format. Reference VA Program Guide 18-3 (PG-18-3) *Design and Construction Procedures, Topic 2 Drawings* [<https://www.cfm.va.gov/TIL/cPro.asp>], VA BIM and CAD Standards [<https://www.cfm.va.gov/til/projReq.asp#cad>], and VA Program Guide 18-15 (PG-18-15) *A/E Submission Requirements, Volume C, Minor and NRM Projects* [<https://www.cfm.va.gov/til/aeDesSubReq.asp>] for format information.

4.1.7. 00 90 00 Record Drawings and Operations and Maintenance Manuals

In addition to other require plans, checklists and reports listed below, the Offeror shall provide to the VA at beneficial occupancy a complete set of record drawings and an operations and maintenance (O&M) manual for the suite(s) constructed for VA use. The drawings shall include a room schedule with the name and square footage size listed and contact information for the signage manufacture/supplier. A paper set and electronic files (both PDF and RVT formats) shall be provided.

4.2. Division 01 – General Requirements

4.2.1. 01 81 13 Sustainable Construction Requirements

Sustainable design strives to enhance VA's mission by incorporating sustainable design practices into the design and construction of VA facilities. Driven by numerous Federal mandates and VA policies, the program encourages design strategies that reduce energy and water consumption, integrate cost-effective renewable energy, promote healthy work environments, and protect vital natural resources.

TI shall comply with the requirements of VA Handbook 0056 *VA Sustainable Buildings Program* [https://www.va.gov/vapubs/viewPublication.asp?Pub_ID=640&FType=2], the *Guiding Principles for Sustainable Federal Buildings and Associated Instructions* [https://www.sustainability.gov/pdfs/guiding_principles_for_sustainable_federal_buildings.pdf] and [<https://www.energy.gov/eere/femp/guiding-principles-sustainable-federal-buildings>], and the *VA Sustainable Design Manual* [<https://www.cfm.va.gov/til/sustain/dmSustain.pdf>].

The Offeror shall complete a *VA Guiding Principles Checklist for New Construction and Modernization* [<https://www.cfm.va.gov/til/sustain/GPChecklist02-VA2016.xlsx>]. Draft checklists shall be submitted with each TI submittal and a final checklist at the completion of TI construction before the VA takes beneficial occupancy.

4.2.2. 01 91 00 Commissioning

The Offeror shall employ commissioning tailored to the size and complexity of the lease space and its building system components in order to optimize and verify performance of building systems supporting the VA suite(s). At a minimum, commissioning shall include a commissioning plan developed during TI design, verification of the installation and performance of systems being commissioned at the completion of TI construction, and a commissioning report that confirms identified issues were appropriately addressed.

The report shall be updated ten months into the VA's beneficial occupancy to verify commissioned systems are operating as designed after performing throughout the heating and cooling seasons. VA staff interviews will also be conducted to ensure all potential issues are identified and corrected. The Offeror shall correct any issues identified with the systems and update O&M manuals as needed to document changes. The final report shall be submitted no later than twelve months after VA beneficial occupancy.

Follow *Energy Independence and Security Act of 2007 Section 432* [<https://sftool.gov/learn/about/161/energy-independence-security-act-eisa>], associated *Federal Energy Management Program (FEMP)* commissioning guidance [<https://www.energy.gov/eere/femp/eisa-federal-covered-facility-management-and-benchmarking-data>] and the *VA Whole Building Commissioning Process Manual* [<https://www.cfm.va.gov/til/spclRqmts.asp#Cx>].

4.3. Division 08 – Doors and Windows

4.3.1. 08 00 00 Doors

Doors for TI shall comply with the requirements of VA Program Guide 18-14 (PG-18-14) *Room Finishes, Door and Hardware Schedule* [<https://www.cfm.va.gov/til/room/RoomFinishes.pdf>]; references to VA master specification sections need not be followed. Reference the space plan exhibit for the applicable chapter and room code for each door's material, size and finish. The Offeror shall submit during TI design a finishes board containing no less than three door finish samples for VA to consider and select from.

Exam rooms – doors shall be sliding on the patient hallway, swinging on the team room side. Doors should swing into the patient room.

Entry/exit doors to the VA leased suite(s) are considered part of the building shell but shall be altered if required to meet identified physical security level of protection countermeasures in *3.1.5. 00 20 00 Physical Security and Resiliency*.

4.3.2. 08 00 00 Windows

Interior/exterior windows along the perimeter of the VA leased suite(s) are considered part of the building shell but shall be altered if required to meet identified physical security level of protection countermeasures in 3.1.5. 00 20 00 *Physical Security and Resiliency*.

4.3.3. 08 71 00 Door Hardware

“Door hardware for TI shall comply with the requirements of VA Program Guide 18-14 (PG-18-14) *Room Finishes, Door and Hardware Schedule* [<https://www.cfm.va.gov/ti/room/RoomFinishes.pdf>]; references to VA master specification sections need not be followed. Reference the *VISN 10-NCOD – Space Plan (May 27, 2020)* document for the applicable chapter and room code for each door’s hardware requirements.

Entry/exit doors to the VA leased suite(s) are considered part of the building shell but shall be altered if required to meet identified physical security level of protection countermeasures in 3.1.5. 00 20 00 *Physical Security and Resiliency* and 3.13.2. 28 13 00 / 28 13 16 *Physical Access Control System* requirements.

All locksets to come with blank cylinders and two (2) blank keys each. VA Locksmith will key each lockset upon project completion.

Locksets to be Corbin Russwin, 7 pin large format interchangeable cores (LFIC). Key way options are 59A1, 59A2, 59B1, 59B2, 59C1, 59C2, 59D1, & 59D2. Coordinate keyway type with VA Locksmith. Handle to be “Newport” style.

Mortised guards are now permitted on rated doors – as long as the doors are mortised at the factory. If surface mounted edge guards are specified for rated doors, they MUST go full height.

Wall stops are preferred over floor stops. All wall stops should be solid spheres, not hollow.

Use offset “Swing-away” type hinges on all high traffic doors.

If lockset with combination keypad is desired, would prefer Corbin Russwin.

When Card Readers are called for – use an electronic lockset (in lieu of electronic strike or magnetic locks).

On double doors that have astragals, specify a full height edge guard on one leaf, and a combination full height edge guard/astragal on the other leaf.

Stainless Steel door protection to be installed using the following criteria:

- a) Full height stainless steel armor plates shall be installed on doors with high traffic of beds, carts, equipment, etc. Door protection shall not be

- installed on doors that do not meet this traffic requirement.
- b) Stainless steel kickplates to be installed on doors to rooms with floors requiring machine cleaning
- c) Recessed stainless steel edge guards to be installed on all doors with door protection added
- d) Rated doors shall not have stainless steel door protection installed exceeding the maximum height permitted by NFPA

Door locks for the telecommunications room/IT closet shall be keyed solely under control of the VA. Closet shall also require card reader.

Door hardware for automatic doors installed to comply with accessibility requirements shall utilize touchless controls to the greatest extent possible. Use “high energy” type operators for cross corridor doors and building entrances. Use “low energy” type operators for public toilet room doors. Doors from waiting room to patient hallway to have auto-operators with handwave on secure side, card reader on unsecure side.

4.4. Division 09 – Finishes

4.4.1. 09 00 00 Flooring, Base, Walls, Paint, Wall Coverings, Wainscoting and Ceilings

Flooring, base, walls, paint, wall coverings, wainscoting and ceilings for TI shall comply with the requirements of the VA Program Guide 18-14 (PG-18-14) *Room Finishes, Door and Hardware Schedule* [<https://www.cfm.va.gov/til/room/RoomFinishes.pdf>]; references to VA master specification sections need not be followed. Reference the *VISN 10-NCOD – Space Plan (May 27, 2020)* document for the applicable chapter and room code for each room’s finish requirements. Additional requirements on finish colors is found in the *VA Interior Design Manual* [<https://www.cfm.va.gov/til/dManual/dmIDhnh.pdf>] and the *VA Architectural Design Manual* [<https://www.cfm.va.gov/til/dManual/dmARhosp.pdf>]; references to VA master specification sections need not be followed. The Offeror shall submit during TI design a finishes board containing no less than three finish samples of each type required for VA to consider and select from.

Changes in flooring shall have as minimal transition strips as possible, to reduce tripping hazards.

The telecommunications room/IT closet and the media control room shall be provided with finishes that comply with the requirements of *VA Standards Alert 017 OIT Infrastructure Standards for Telecommunications Spaces* dated Feb 2020 [<https://www.cfm.va.gov/til/sAlert/sAlert017.pdf>] to include all VA OIT Standards incorporated by reference

4.4.2. 09 00 00 Noise Transmission Control

TI shall design for a minimum Sound Transmission Class (STC) rating of 40 for all office rooms and an STC of 45 for all conference rooms. Patient care rooms and VA demising walls shall have floor to deck height walls.

These conditions are taken from the VA Program Guide 18-3 (PG-18-3) *Design and Construction Procedures, Topic 11 Noise Transmission Control* [<https://www.cfm.va.gov/TIL/cPro.asp>].

4.5. Division 10 - Specialties

4.5.1. 10 14 00 Signage

Signage for TI shall comply with the requirements of the *VA Signage Design Manual* [<https://www.cfm.va.gov/til/spclRqmts.asp#SIGN>], VA Directive 0023 *Tier 1 Graphics Standards* [https://www.va.gov/vapubs/viewPublication.asp?Pub_ID=695&FType=2], and VA Handbook *Tier 1 Graphics Standards Guide* [https://www.va.gov/vapubs/viewPublication.asp?Pub_ID=683&FType=2]. Individual graphics in multiple formats can be found at the VA Graphics Resource Center intranet site [https://vaww.va.gov/6102/graphics_resource_center.asp]; coordinate access of these files through the VA.

The Offeror shall submit during TI design a signage plan utilizing a background color of “New VA Blue” except for mandatory VA policy signage and regulatory/safety signage requiring a different color. The finishes board shall also contain no less than one complete sign and color samples for each sign background color.

The main door to the VA leased suite(s) shall be signed with mandatory VA policy signage visible outside the suite. Directional signage to each area of the suite(s) shall be provided. No fewer than three master room directory signs for the Event Center, VISN 10 and NCOD staff areas to indicate which rooms are in use shall be provided. Shared offices and conference rooms shall include a use indicator with their room signs.

The shared reception area shall include a large full color VA parent signature sign, space to display two floor based, pole mounted flags (to be provided by the VA), and 8 in by 10 in frames for pictures of the President of the United States, the Secretary of the VA, the Under Secretary for Health, the Deputy Under Secretary of Health for Operations and Management, the VISN 10 Network Director, the Assistant Deputy Under Secretary of Health for Workforce Services and the NCOD Director (position titles to be provided for each frame). If separate, each reception area will require a sign, flag space and five frames.

The VISN 10 and NCOD ELT conference rooms shall each be provided with space to display two floor based, pole mounted flags (to be provided by the VA), and a large office-level identifying sign directly opposite of where video teleconference equipment will be installed (i.e. the sign is visible to those watching the video feed).

The entry doors to the VA leased suite(s) may be signed utilizing the building shell signage scheme to maintain architectural compatibility with other signage. The VA shall also be identified on the building's tenant directory.

Security Signage – no weapons, 088 VA Form Rules & Regulations, Clinic Hours, alcoholic beverages

4.5.2. 10 21 23 Cubicle Curtain Tracks

VA will supply, install, and maintain fabric cubicle curtains. Curtains will be suspended from cubicle curtain track attached to the acoustic ceiling system. Cubicle curtain track to be supplied as part of TI. Cubicle curtains are required in every patient care room near each door or in each bay of a multi-patient care room.

4.5.3 10 73 00 Canopies

Provide canopies over patient entrances to outpatient clinic.

4.5.4 10 75 00 Flagpoles

If not already existing, site improvements shall include an exterior ground set flag pole no less than 25 ft [7.6 m] tall to facilitate the flying of the Flag of the United States of America. If the flag will be flown day and night, illumination of the flag shall be provided.

4.6. Division 11 – Equipment

4.6.1. 11 00 00 Kitchen Equipment

TI shall include for the shared kitchen the following installed equipment:

- a) An EnergyStar rated, large capacity undercounter dishwasher with an operating noise level not to exceed 50 decibels, capable of using 160 F water and a stainless steel tub.
- b) An under sink mounted 3/4 horsepower, continuous-feed garbage disposal with a stainless steel grinding chamber.
- c) A sink-top 750 watt, 1/2 gallon tank instant hot water dispenser.

TI shall plan for the following VA provided equipment:

- d) Three refrigerators (requiring electric and potable water connections).
- e) Three microwaves (requiring electric connections).
- f) One large capacity countertop coffee machine (requiring electric and potable water connections).

If there are two VA suites, two kitchens shall be provided with identical equipment, except two refrigerators and two microwaves per kitchen will be planned for.

4.6.2. 11 00 00 Restroom Equipment

If TI includes restrooms, soap and paper product dispensers shall utilize touchless controls to the greatest extent possible.

4.7. Division 12 – Furnishings

4.7.1. 12 20 00 Window Treatments

Interior/exterior windows along the perimeter of the VA leased suite(s) shall include fully retractable window treatments that allow for complete or partial blockage of light. Special attention will be given to conference rooms where video teleconferencing will occur.

4.7.2. 12 30 00 Manufactured Casework

TI shall include floor mounted casework with countertop along at least one wall of Event Center dividable conference room to facilitate two separate serving lines for food or materials during events.

TI shall additionally include lockable personal effects storage for the VISN 10 and NCOD staff areas. Each area shall be provided enough storage for 60 people.

Requirements on casework is found in the *VA Interior Design Manual* [<https://www.cfm.va.gov/til/dManual/dmIDhnh.pdf>]; references to VA master specification sections need not be followed. The Offeror shall submit during TI design a finishes board containing no less than three finish samples of the casework and countertop required for VA to consider and select from.

4.7.3. 12 50 00 Furniture

TI shall include wall mounted coat hooks for each office. An alcove with a wall mounted coat rack with hangers shall be provided for the Event Center conference

room. Submit during TI design a finishes board containing no less than three samples of the hooks required for VA to consider and select from.

4.8. Division 21 – Fire Suppression

- 4.8.1. Automatic Sprinkler System meeting requirements of NFPA 13 shall be provided throughout with quick response heads. Provide a fire pump to supplement flow and pressure if required meeting NFPA 20.
Recessed/concealed sprinkler heads are not permitted.

4.8.2 - 21 00 00 Telecommunications Room Fire Suppression

TI shall not run fire suppression piping above the telecommunications room/IT closet and the media control room, except to provide fire suppression for these spaces only. This requirement can be found in the *VA Office of Information and Technology Design Guide* [<https://www.cfm.va.gov/til/dguide/dgOIT.pdf>], and the *VA Telecommunications and Special Telecommunications System Design Manual* [<https://www.cfm.va.gov/til/dManual/dmTelecomm.pdf>].

Where allowed by State and Local codes, standard response sprinkler heads shall be used to minimize the chance of accidental discharge if struck by an object. This requirement can be found in the *VA Fire Protection Design Manual* [<https://www.cfm.va.gov/til/dManual/dmFire.pdf>].

4.9. Division 22 – Plumbing

4.9.1. 22 00 00 Telecommunications Room Moisture Protection

TI shall not permit any pipe or duct system foreign to the telecommunications room/IT closet and the media control room installation to enter or pass through that space. The Offeror shall ensure that foreign piping such as water pipes, steam pipes, gas pipes, sanitary waste pipes, roof drains, A/C ducts, and other unrelated piping systems containing liquids or gases are not installed, nor pass through, these rooms.

This requirement can be found in the *VA Office of Information and Technology Design Guide* [<https://www.cfm.va.gov/til/dguide/dgOIT.pdf>], and the *VA Telecommunications and Special Telecommunications System Design Manual* [<https://www.cfm.va.gov/til/dManual/dmTelecomm.pdf>].

4.9.2. 22 11 00 Facility Water Distribution

Legionella Mitigation

There are currently no EPA enforceable regulations governing the levels of *Legionella* bacteria in potable water systems; however, EPA has issued a

Maximum Contaminant Level Goal (MCLG) of 0 ppm [mg/L]. Municipal water supplies and wells can carry *Legionella*, so it is a given that the bacteria will be introduced into the facility potable water system at some time. The challenge is to limit the amplification of the bacteria to less than lethal levels.

Legionella bacterial amplification occurs when bio-films exist in water storage tanks and dead-end piping legs which allow for growth sites, and when temperature and pH levels are optimum for growth. Infection can occur when patients inhale atomized droplets while showering, drinking or receiving respiratory treatment.

Provide means to easily remove and disinfect all outlet devices such as showerheads and faucets, etc. Utilize programmable faucets – Chicago brand preferred – Basis of Design is 116.617.AB.1 HYTR GNECK FCT. Utilize automatic tempering valves with manual bypass. Utilize self-draining shower heads.

Provide a ¾" ball valve at the end of each piping section to drain heated (above 140 °F [60 °C]) flushing hot water that will be used for initial and supplemental disinfection. Hot water to be on a loop to include circulating pump. Ball valve shall be within 50 feet [15.24 meters] of a floor sink, floor drain, sink, or lavatory.

Mix hot/cold water as near the fixtures as possible.

Eliminate all dead legs in the piping system.

Disinfection Methods

- a) Subsequent to piping disinfection required per IPC, and as part of the commissioning process, disinfect the potable water systems against *Legionella* by one of the following methods:
 - a. Thermal Eradication: Flush 145°F water through all outlets for a period of at least 30 minutes.
 - b. Chlorine: Flush free chlorine at a level of 2 parts per million (PPM) or greater for a period of at least 2 hours. Provide signed documentation to show values recorded at all locations.

4.9.3. 22 44 00 Plumbing Fixtures

Plumbing fixtures shall utilize touchless controls to the greatest extent possible.

4.10. Division 23 – Heating, Ventilating, and Air Conditioning

4.10.1. 23 00 00 HVAC Common Design Conditions

TI shall utilize the following HVAC design conditions unless otherwise noted:

- a) Temperature Range: 70 F [21 C] to 75 F [24 C].

- b) Temperature Tolerance: +/- 1.0 F [0.6 C].
- c) Cooling Set Point: 75 F [24 C].
- d) Heating Set Point: 70 F [21 C].
- e) Dead-Band Room Temperature: 5 F [3 C], adjustable for VAV applications.
- f) Humidity Range: 20% to 60% RH.
- g) Humidity Tolerance: +/- 2.5% RH in humidification mode.
- h) Dehumidification Design Set Point: 5% below the maximum RH.

These conditions and additional requirements, such as minimum total air changes per hour (ACH), minimum outside air ACH, maximum room noise level/noise criteria curve (NC), room air balance pressurization, room temperature control and air flow volume can be found by room code in the *VA HVAC Design Manual* [<https://www.cfm.va.gov/til/dManual/dmHVAC.pdf>]; references to VA master specification sections need not be followed.

4.10.2. 23 00 00 HVAC Zoning

TI shall include, at a minimum, HVAC zones for the following areas (reference the space block diagram):

- a) VISN 10 ELT
- b) VISN 10 Staff Offices and Workstations
- c) NCOD ELT
- d) NCOD Staff Offices
- e) Event Center
- f) Small Conference Rooms/Breakout Rooms
- g) VISN 10/NCOD Reception, Administrative and Shared Spaces

Each thermostat for individual offices shall not control more than four offices.

4.10.3. 23 09 00 HVAC Controls

TI shall include to the greatest extent possible an energy use reduction HVAC controls strategy. Use of occupancy sensors, non-business hours setbacks, predictive analytics of heating/cooling loading and other similar tactics is highly encouraged.

4.10.4. 23 74 13 Computer-Room Air-Conditioners

TI shall include dedicated, thermostatically-controlled mechanical cooling equipment for the telecommunications room/IT closet and the media control room to maintain the following design criteria:

- a) Temperature Range: 64 F [18 C] to 75 F [24 C].
- b) Temperature Tolerance: +/- 1.0 F [0.6 C].
- c) Cooling Set Point: 75 F [24 C].
- d) Heating Set Point: 64 F [18 C].
- e) Dead-Band Room Temperature: 5 F [3 C], adjustable for VAV applications.
- f) Humidity Range: 30% to 55% RH.
- g) Humidity Tolerance: +/- 2.5% RH in humidification mode.
- h) Dehumidification Design Set Point: 5% below the maximum RH.
- i) Minimum Total Air Changes Per Hour: 2.
- j) Minimum Outside Air Changes Per Hour: N/A.
- k) Maximum Room Noise Level/Noise Criteria Curve: 45.
- l) Room Air Balance: Positive.
- m) Individual Room Temperature Control: Yes.
- n) Air Flow: Constant Volume.

Provide a water pan or barrier around the HVAC system to ensure water does not leak into the room as opposed to drain. Install a moisture detection system with a set of contacts in the pan to minimize water damage from condensate leaks.

These conditions are taken from the *VA Office of Information and Technology Design Guide* [<https://www.cfm.va.gov/til/dguide/dgOIT.pdf>], and the *VA HVAC*

Design Manual [<https://www.cfm.va.gov/til/dManual/dmHVAC.pdf>]; references to VA master specification sections need not be followed.

4.11. Division 26 – Electrical

4.11.1. 26 00 00 Telecommunications and Media Control Room Electrical

The telecommunications room/IT closet and the media control room shall be provided with electrical infrastructure and equipment that complies with the requirements of *VA Standards Alert 017 OIT Infrastructure Standards for Telecommunications Spaces* [<https://www.cfm.va.gov/til/sAlert/sAlert017.pdf>] to include all VA OIT Standards incorporated by reference.

4.11.2. 26 05 11 Requirements for Electrical Installations

TI shall include on all switches and receptacles the identification of the panelboard and circuit number it is fed by. Switches shall also identify which area/room/equipment it controls. Identification shall be printed directly on to the receptacle/switch faceplate; handwritten notes and adhesive labels are not acceptable.

4.11.3. 26 09 23 Lighting Controls

TI shall include to the greatest extent possible an energy use reduction lighting controls strategy. Use of occupancy sensors, daylight harvesting, time-specific schedules, task tuning/dimming controls and integration with the building automation/management system is highly encouraged. Light switches shall utilize touchless controls to the greatest extent possible.

4.11.4. 26 24 16 Panelboards

TI shall to the greatest extent possible separate electrically the VA leased suite(s) from the other suites of the building. Priority shall be given to circuits that VA supplied equipment and devices will be connected to (i.e. non-lighting or non-building service equipment circuits).

4.11.5. 26 27 26 Wiring Devices

TI shall include in each office quad duplex receptacle every 10 linear ft [3 m] as measured around the floor line, excluding doorways. For all linear wall space 5 ft [1.5 m] and greater, provide at least one receptacle for general and computer use.

Each workstation shall be provided one quad receptacle, or an appropriately rated receptacle to VA provided systems furniture. Underfloor raceways or tele/power poles shall be used if located away from a wall.

Each conference room shall include one quad receptacle every 10 linear ft [3 m] as measured around the floor line, excluding doorways. One floor quad receptacle shall be provided in each small conference room. Floor quad receptacles shall be provided in the Event Center conference room to ensure no one point in the room is further than 20 linear feet from a receptacle. Each presentation computer and lectern location shall be provided a receptacle within 5 ft [1.5 m] of its placement in the room.

Each waiting/reception space shall include one duplex receptacle every 8 ft [2.4 m].

Each copy and supply room shall be provided one duplex receptacle every 10 linear ft [3 m] as measured around the floor line, excluding doorways. Each copier shall be provided a receptacle within 5 ft [1.5 m] of its placement in the room.

Each file and storage room shall be provided one duplex receptacle every 10 linear ft [3 m] as measured around the floor line, excluding doorways.

The IT Specialist Office shall be provided quad receptacle every 5 linear ft [1.5 m] as measured around the floor line, excluding doorways. Along two walls, quad receptacles will be installed every 5 linear ft [1.5 m] and 4 ft [1.2 m] above the floor to support workbenches. These receptacles shall be on a dedicated circuits separate from other rooms.

In the lounge/kitchen, coordinate receptacle requirements with 3.6.1.11 00 00 *Kitchen Equipment*. Provide appropriate receptacles for each cord-connected piece of kitchen equipment, as well as duplex receptacles for convenience use (both at counter and floor heights). These receptacles shall be on a dedicated circuits separate from other rooms.

In corridors and open spaces, provide one duplex receptacle for cleaning machines at no more than 75 ft [23 M] spacing. These receptacles shall be on a dedicated circuit serving only these receptacles.

Provide a recessed receptacle in conjunction with each security camera, security camera monitor, video teleconference camera, wall/ceiling mounted speakers, ceiling mounted projector, wall mounted TV receiver, clock and wireless internet access point. Such receptacles are not necessary where the equipment is low-voltage, powered by headend equipment, battery powered, or Power over Ethernet (PoE). Coordinate receptacles during TI design with VA supplied equipment and required equipment in 3.12. *Division 27 – Communications* and 3.13. *Division 28 – Electronic Safety and Security*.

Receptacles shall be NEMA 5-20R devices, unless a specific application requires a different device. No more than six receptacles shall be installed on a single

circuit for general use. If a receptacle is on an emergency/backup/generator power circuit, the receptacle shall be colored red.

These requirements are based off the VA *Electrical Design Manual* [<https://www.cfm.va.gov/til/dManual/dmElec.pdf>]; references to VA master specification sections need not be followed.

4.11.6. 26 27 73 Door Chimes

The main door to the VA leased suite(s) shall be provided a door chime system that sounds in the reception area. The chime shall be integrated with an audio/visual intercom system that is located at the workstation(s) in the reception area and complies with the requirements of 3.1.5. 00 20 00 *Physical Security and Resiliency*. Utilize touchless controls to the greatest extent possible.

4.11.7. 26 43 13 Surge Protective Devices

TI shall to the greatest extent possible provide an NFPA 70/NEC Type 2 Surge Protective Device on the distribution circuit(s) supporting the VA leased suite(s).

4.11.8. 26 51 00 Interior Lighting

TI shall comply with the design parameters appropriate to the room listed in the VA *Lighting Design Manual, Appendix A* [<https://www.cfm.va.gov/til/dManual/dmLighting.pdf>]; references to VA master specification sections need not be followed. To the greatest extent possible utilize LED luminaires and illuminated signs.

Provide the Event Center lighting with dimmable luminaries for the entire space, including independent switches for the lectern and presentation screen(s) from the audience space.

4.12. Division 27 – Communications

4.12.1. 27 00 00 Telecommunications and Media Control Room Communications

The telecommunications room/IT closet and the media control room shall be physically located and provided with telecommunications infrastructure and equipment (excluding VA provided network switches) that complies with the requirements of VA *Standards Alert 017 OIT Infrastructure Standards for Telecommunications Spaces* [<https://www.cfm.va.gov/til/sAlert/sAlert017.pdf>] to include all VA OIT Standards incorporated by reference.

The VA shall provide and install network switches for VA local area networks (wired and wireless) prior to beneficial occupancy.

4.12.2. 27 15 00 Communications Structured Cabling

TI shall utilize plenum rated Category 6A cable and Cat 6A rated patch panels, connectors and RJ 45 jacks for structured cabling. These components shall not be manufactured in whole or in part by companies incorporated in the People's Republic of China (PRC); reference Federal Acquisition Regulation (FAR) Subpart 4.21 *Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment* [<https://www.acquisition.gov/content/subpart-421-prohibition-contracting-certain-telecommunications-and-video-surveillance-services-or-equipment>]. T568A pinout will be used for all connectors. Include on all wall outlet jacks the identification of the rack, patch panel and port number it is fed by. Identification shall be printed onto a label and inserted into an ID window in the faceplate; handwritten and adhesive labels are not acceptable.

TI shall include in each office one wall outlet with four jacks every 10 linear ft [3 m] as measured around the floor line, excluding doorways. For all linear wall space 5 ft [1.5 m] and greater, provide at least one outlet for general and computer use.

Each workstation shall be provided one wall outlet with four jacks. Underfloor raceways or tele/power poles shall be used if located away from a wall.

Each conference room shall include one wall outlet with four jacks every 10 linear ft [3 m] as measured around the floor line, excluding doorways. One floor outlet with four jacks shall be provided in each small conference room. Floor outlets with four jacks shall be provided in the Event Center conference room to ensure no one point in the room is further than 20 linear feet from an outlet. Each presentation computer and lectern location shall be provided a wall outlet with four jacks within 5 ft [1.5 m] of its placement in the room.

Each copy and supply room shall be provided one wall outlet with two jacks every 10 linear ft [3 m] as measured around the floor line, excluding doorways. Each copier shall be provided an outlet within 5 ft [1.5 m] of its placement in the room.

Each file and storage room shall be provided one wall outlet with two jacks every 10 linear ft [3 m] as measured around the floor line, excluding doorways.

The IT Specialist Office shall be provided a wall outlet with two jacks every 5 linear ft [1.5 m] as measured around the floor line, excluding doorways. Along two walls, outlets will be installed every 5 linear ft [1.5 m] and 4 ft [1.2 m] above the floor to support workbenches.

Provide one recessed wall outlet with two jacks in conjunction with each security camera, security camera monitor, video teleconference camera, wall/ceiling mounted speakers, ceiling mounted projector, wall mounted TV receiver, clock and wireless internet access point. Coordinate outlets during TI design with VA

supplied equipment and required equipment in 3.13. *Division 28 - Electronic Safety and Security*.

4.12.3. 27 15 01.23 Audio-Video Communications Horizontal Cabling

TI shall provide in each conference room audio-video device connection ports (such as VGA, HDMI, Display Port and USB-C) in wall outlets to support connecting ceiling mounted projectors and wall mounted TV receivers to guest computers and presentation devices.

4.12.4. 27 21 29 Data Communications Switches and Hubs

The Offeror shall conduct a survey of the VA leased suite(s) to identify the number and locations of wireless internet access points (WAPs) for the VA Wireless Local Area Network (WLAN) and provide the required infrastructure to support them. The survey and infrastructure shall conform to the requirements of VA *Telecommunications and Special Telecommunications System Design Manual* [<https://www.cfm.va.gov/til/dManual/dmTelecomm.pdf>] and Appendix A VA *Leased Facility Wireless Access Point Installation Survey* dated Apr 2019. The VA shall provide and install the VA WLAN WAPs prior to beneficial occupancy.

TI shall provide in the suite reception area(s) and each conference room a public wi-fi network separate from the VA WLAN for non-VA staff visitors (i.e. vendors, other government agency officials and official guests). All infrastructure (to include WAPs and switches) for this wi-fi network shall be provided and maintained by the Offeror, but administered by the VA.

4.12.5. 27 24 23 Audio-Video Devices

TI shall provide infrastructure to support the installation of two Creston DigitalMedia Systems (Model DM-MD 8x8) with associated equipment in the Event Center conference room and media control room. Equipment data and listing is found at <https://www.creston.com/> and in Appendix B (*Email*) *OIT Closet specs for move* dated Apr 8, 2019.

Procurement and installation of the system will be done by VA to maintain an existing system warranty. The Offeror shall notify VA two months prior to beneficial occupancy to facilitate system installation.

4.12.6. 27 31 00 Voice Communications Switching and Routing Equipment

TI shall provide a single Plain Old Telephone Service (POTS) wall mounted RJ11 jack in the media control room connected to the building shell's telephone equipment room.

4.12.7. 27 41 31 Master Antenna Television and Equipment Systems

TI shall provide all wall mounted TV receivers with a female SMA coaxial cable connection in a recessed outlet to an over-the-air digital television signal antenna. The Offeror shall provide and maintain the antenna, or a cable/satellite television signal if at no additional cost to the VA.

4.12.8. 27 51 16 Public Address and Mass Notification Systems

TI shall provide a zoned overhead public address system for the VA leased suite(s). The control station shall be located at the workstation(s) in the reception area.

4.12.9. 27 52 23 Nurse Call and Code Blue Systems

Provide nurse call system(s) in restrooms, lab, and others as required. System(s) shall be as manufactured by Rauland Borg, Hill-Rom, General Electric, Simplex, or approved equivalent, as updated to most current technology or manufacturer. Provide in all procedure rooms and patient toilet rooms. Annunciation shall be at main reception. Nurse Call infrastructure shall comply with the requirements of the *VA Master Specification 27 52 23 Nurse Call and Code Blue Systems* [<https://www.cfm.va.gov/TIL/spec/275223.doc>].

4.12.10 27 53 19 Distributed Radio Antenna (Within Building) Equipment and System

TI shall provide for the VA leased suite(s) a carrier neutral cellular phone repeaters/signal booster system capable of supporting at a minimum 4G broadband cellular capabilities. The system shall not utilize equipment manufactured in whole or in part by companies incorporated in the People's Republic of China (PRC); reference Federal Acquisition Regulation (FAR) Subpart 4.21 *Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment* [<https://www.acquisition.gov/content/subpart-421-prohibition-contracting-certain-telecommunications-and-video-surveillance-services-or-equipment>]. The system additionally shall conform to the requirements of *VA Telecommunications and Special Telecommunications System Design Manual* [<https://www.cfm.va.gov/til/dManual/dmTelecomm.pdf>].

Provide an exterior antenna and remote connection in the VA leased suite shared reception area, the ELT conference rooms and the Event Center conference room to receive reception from the National Oceanographic and Atmospheric Administration (NOAA) Weather Radio All Hazards (NWR) network [<https://www.nws.noaa.gov/nwr/>]. Provide signal boosting equipment as needed to ensure reception of the radio signal. Provide two reception area connections if the VA is split between two suites. VA shall provide the NWR receivers.

Provide an exterior antenna and remote connection VA suite reception area(s), the ELT conference rooms and the Event Center conference room for AM/FM/SW

commercial broadcast signals. Provide signal boosting equipment as needed to ensure reception. VA shall provide the radio receivers.

Provide four, 6 in conduits between the media control room and the roof to facilitate future VA emergency communications equipment installations (such as high frequency radio and/or satellite phone/SATCOM systems). A 20 ft by 20 ft area on the roof with an unobstructed 365 degree view of the surrounding area, a 90 degree view of the sky, and at least 50 ft away from any other roof mounted communications antenna (such as cellular network towers/repeater systems and satellite dishes) shall be reserved for VA antenna use.

4.13. Division 28 – Electronic Safety and Security

4.13.1. 28 00 00 Electronic Safety and Security Systems

All systems designed and installed under this division shall comply with the requirements of 3.1.5. *00 20 00 Physical Security and Resiliency* and the below mentioned standards. The systems shall not utilize equipment manufactured in whole or in part by companies incorporated in the People's Republic of China (PRC); reference Federal Acquisition Regulation (FAR) Subpart 4.21 *Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment* [<https://www.acquisition.gov/content/subpart-421-prohibition-contracting-certain-telecommunications-and-video-surveillance-services-or-equipment>]. They will also be integrated with the existing systems of the Cincinnati VA Medical Center (3200 Vine St, Cincinnati, OH 45220) for remote monitoring by the United States Department of Veterans Affairs Police.

4.13.2. 28 13 00 / 28 13 16 Physical Access Control System

TI shall provide for all doors from common building shell space into the VA leased suite(s), into the telecommunications room/IT closet and patient to staff areas that is integrated with the Federal physical access control system (PACS). PACS infrastructure shall comply with the requirements of the *VA Master Specification 28 13 16 Physical Access Control System and Database Management* [<https://www.cfm.va.gov/TIL/spec/281316.doc>] and *VA Master Specification 28 13 00 Physical Access Control System* [<https://www.cfm.va.gov/TIL/spec/281300.doc>]. System shall be interconnected with video surveillance and intrusion detection. Johnson Controls Inc. shall be sole sourced for this equipment to allow for connection to existing Cincinnati VAMC system.

PACs reader required for IT rooms.

P2000/ACM

4.13.3. 28 16 00 Intrusion Detection System

TI shall provide for all doors from common building shell space into the VA leased suite(s) and into the telecommunications room/IT closet intrusion detection system (IDS) infrastructure. IDS infrastructure shall comply with the requirements of the *VA Master Specification 28 16 00 Intrusion Detection System* [<https://www.cfm.va.gov/TIL/spec/281600.doc>]. Third party central monitoring of the intrusion detection system shall be included in the rental agreement. System shall be interconnected with video surveillance and physical access control system. Johnson Controls Inc. shall be sole sourced for this equipment to allow for connection to existing Cincinnati VAMC system.

4.13.4. 28 23 00 Video Surveillance

TI shall provide near all doors from common building shell space into the VA leased suite(s) and the telecommunications room/IT closet a video surveillance camera that observes the door from the interior of the suite(s)/room. The reception and parking area(s) shall also be provided a camera(s) to cover the entirety of the space. All structured cabling supporting cameras shall be terminated in a punch panel in the telecommunications room/IT closet separate from all other cables (i.e. wired networking wall jacks, wireless access points, etc.). Camera infrastructure shall comply with the requirements of the *VA Master Specification 28 23 00 Video Surveillance* [<https://www.cfm.va.gov/TIL/spec/282300.doc>] and *VA Telecommunications and Special Telecommunications System Design Manual* [<https://www.cfm.va.gov/til/dManual/dmTelecomm.pdf>]. System shall be interconnected with Intrusion Detection system and physical access control system. Johnson Controls Inc. shall be sole sourced for this equipment to allow for connection to existing Cincinnati VAMC system.

4.13.5. 28 26 00 Electronic Personal Protection System

TI shall provide a wireless capable duress alarm and emergency notification panic system with visual and audible annunciation throughout the VA space and at the main VA Reception Area which is primarily used to alert the staff and internal response team within the VA space of a duress alarm at the place where it is activated. Alarms are initiated from wireless devices under the desk mounted device. System identifies in the annunciation the alarm location. Under no circumstance shall the telephone system be used to provide duress alarm functions. Any regularly needed preventive maintenance to the system shall be the responsibility of the owner or owner's representative and costs accounted for in the rental contract. The protection system shall comply with the requirements of the *VA Master Specification 28 26 00 Electronic Personal Protection System* [<https://www.cfm.va.gov/TIL/spec/282600.doc>]. Johnson Controls Inc. shall be sole sourced for this equipment to allow for connection to existing Cincinnati VAMC system.

4.13.6. 28 31 00 Fire Detection and Alarm

The Fire Command Center (FCC) and secure house key box for emergency responders shall be located near the main entrance door.

4.14. Division 32 – Exterior Improvements

4.14.1. 32 00 00 Parking Spaces

A minimum of 150 parking spaces for VA staff and visitors shall be provided on site.

At least 35 parking slots are exclusive to VA patients and their families. These are to be conveniently located near the main public entrance to the VA space. Patient Handicap parking is to be provided with appropriate paint marking and metal signage. Handicap parking is to be 10% of the overall parking spaces or per the local building code, whichever is more. Included in the handicap parking spaces, 10 spaces are required to be van accessible.

Another 35 parking slots shall be provided at a place that gives access to the employee entrance, reasonable walking distance is safe, 10% will be marked for handicap use.

Additionally, 15 parking spots shall be signed “U.S. Government Owned Vehicles (GOV) Only” at a place that gives access to the employee entrance. Signs shall be formatted according to the VA signage standard or the existing site improvements sign standard.

4.14.2 Parking Safety

Landscaping and site circulation patterns should be employed to prevent and deter criminal activity, loitering and trespassing.

Vendor will enforce parking requirements and take the necessary steps to safeguard the VA used parking space from encroachment or inappropriate use.

Lighting will be sufficient to illuminate the parking areas and pathways to/from the VA space entrances to/from the parking areas.

Camera surveillance of all parking areas is required. The vendor will install, maintain and manage the recommended number of cameras for parking areas.

Vendor will not allow abandoned or junk vehicles or illegally parked vehicles or items to be present in or near VA parking spaces.

Vendor will protect the building and sidewalks from vehicles striking pedestrians or the building.

Vendor will not allow any vehicle parking within 25 feet from the building

5. Lease Servicing Requirements

Upon VA beneficial occupancy, the Offeror shall provide the following services as part of the lease:

5.1. Utilities and Monitoring Services

Electric

Natural gas

Potable water

Sanitary sewer

Storm sewer

Telecommunications (telephone and internet) service

HVAC

Fire monitoring

Security monitoring (limited to building shell and site improvements)

5.2. Janitorial Services

Description Of Services. The contractor shall furnish all personnel, equipment and materials necessary to perform the janitorial services. A meeting with VA's EMS service to discuss supplies, products, and cleaning expectations can be coordinated at the request of the contractor.

- a. **BASIC CLEANING SERVICES.** The contractor shall maintain the facility in a state of physical and biological cleanliness. The facility's appearance must fully meet the sanitary and aesthetic requirements for beneficiary healthcare. This includes but not limited to exam rooms, bathrooms, staff break rooms, kitchenettes, lobby and offices.
 - i. **Maintain Floors.** All floors shall be cleaned of dust, dirt, and scuffs per the requirements of the flooring manufacturer. Baseboards, corners, and wall/floor edges shall also be clean. "Wet Floor" signs shall be posted in all areas having received service in order to avoid

mishaps. Easily movable items shall be relocated to maintain floors beneath them and returned to their original position once service has been completed.

- ii. Vacuum Carpets and Walk-Off Mats. High Efficiency Particulate Air (HEPA) Filter type vacuum cleaners shall be used to clean all carpeted areas/walk-off mats. After vacuuming, carpet areas/walk-off mats shall be free of all visible dirt, debris, and other foreign matter. Carpet shall be spot cleaned using carpet manufacturer's approved method to remove spills as needed. All tears and unraveling of carpet shall be brought to the attention of the Contracting Officer Representative (COR) upon discovery.
- iii. Waste Collection and Removal. All refuses, trash and garbage containers shall be emptied and returned to their initial location. Any obviously soiled or torn plastic trash receptacle liners shall be replaced. Trash receptacles shall be left clean, free of foreign matter, and free of odors.
- iv. Recyclable Waste Removal. All cardboard boxes shall be broken down and disposed. Mixed office paper shall be emptied into large containers and transported to a central collection point for recycling.
- v. Medical Waste and Sharps Collection and Removal. VA contract through EMS service will be responsible for this work.
- vi. Clean Interior Glass/Mirrors. Clean all interior glass, including glass in doors, partitions, walls, display cases, directory boards, etc. After glass cleaning, there shall be no traces of film, dirt, smudges, water, or other foreign matter.
- vii. Clean Drinking Fountains, Ice Machines and Sinks. Contractor shall clean and sanitize all surfaces of drinking fountains, ice machines/sinks to include the orifice, cofferdam and drain. Surfaces shall be free of streaks, smudges, fingerprints, marks film/residue, stains, spots, scale, soil, and other foreign matter once service has been completed. All metal surfaces shall be cleaned and polished and have a uniform appearance. All cofferdams surrounding ice machines shall be cleaned and free of standing water. Paper towel/soap dispensers associated with sinks/kitchens shall be cleaned, sanitized, and restocked.
- viii. Spot Cleaning. Perform spot cleaning on a continual basis. Spot cleaning includes, but is not limited to removing, or cleaning cobwebs, smudges, fingerprints, marks, streaks, spills, etc., from washable surfaces of all walls, partitions, vents, grillwork, doors, door

guards, wall guards, door handles, push bars, kick plates, light switches, and fixtures. After spot cleaning, the surface shall have a clean, uniform appearance, free of streaks, spots, and other evidence of soil.

- ix. General Dusting. All horizontal surfaces must be dusted or cleaned to eliminate dust collection.
- x. Exam Table Cleaning. Completely clean and disinfect all surfaces of the exam tables using a germicidal detergent. Exam tables shall be left clean and free of foreign matter.

b. BASIC RESTROOMS/ LOCKER ROOM CLEANING SERVICES. The contractor shall accomplish all cleaning tasks to meet the requirements of this SOW.

- i. Clean and Disinfect. Completely clean and disinfect all surfaces of sinks, toilet bowls, urinals, lavatories, showers, shower mats, dispensers, plumbing fixtures, partitions, dispensers, doors, walls, and other such surfaces, using a germicidal detergent. After cleaning, receptacles will be free of deposits, dirt, streaks, and odors. Disinfect all surfaces of partitions, stalls, stall doors, entry doors, (including handles, kick plates, ventilation grates, metal guards, etc.), and wall areas adjacent to wall mounted lavatories, urinals, and toilets.
- ii. De-scale Sinks, Toilet Bowls and Urinals. All surfaces of sinks, toilets, urinals, plumbing fixtures, dispensers, stalls, stall doors, entry/exit doors, handles, drains, kick plates, ventilation grates, and all wall surfaces to include grout shall be de-scaled as needed. Surfaces shall be free from streak, stains, scale, soap film, scum, mineral deposits, and rust stains and have a uniform, polished appearance upon completion of service.
- iii. Sweep and Mop Floor. After sweeping and mopping, the entire floor surface, including grout, shall be free from litter, dirt, dust and debris. Grout on wall and floor tiles shall be free of dirt, mildew, residue, etc. Floors shall have a uniform appearance without streaks, swirl marks, detergent residue, or any evidence of soil, stain, film or standing water. Moveable items shall be tilted or moved to sweep and damp mop underneath. Floors shall be stripped, scrubbed, waxed, etc., as necessary to maintain sanitary conditions and a clean, uniform appearance.

- iv. Restock Restroom Supplies. Contractor shall ensure restrooms are stocked sufficiently so that supplies including soap for the soap dispensers do not run out. Supplies shall be stored in designated areas. No overstocking shall be allowed. If supplies run out prior to the next service date, contractor shall refill within one hour of notification.
- v. Trash Removal. All trash receptacles shall be emptied, cleaned, and returned to their original position once service has been completed. Soiled or torn plastic trash receptacle liners shall be replaced at time of service. Trash shall be disposed of in secured plastic bags and placed in the appropriate outside dumpster/compactor.
- vi. Glass and Mirror Cleaning. All glass/mirrors shall be cleaned in such a manner that all trace of film/residue, dirt, dust, smudges/fingerprints, streak, watermark, and other foreign matter are eliminated.

c. PERIODIC CLEANING SERVICES.

- i. Clean Interior Windows. Clean all interior glass window surfaces quarterly. After surfaces have been cleaned, all traces of film, dirt, smudges, water and other foreign matter shall be removed from frames, casings, sills, and glass.
- ii. Main Restrooms Deep Cleaning. The contractor is to provide labor and equipment to perform overall sanitizing and grout cleaning to all surfaces, sinks, and commodes semi-annually for all public/staff restrooms. Work to include high pressure cleaning to remove buildup on surfaces, treat urinals, commodes, sinks, and floors with anti-bacteria and follow up with fresh water rinse. Water, bacteria, and soil are to be vacuumed away allowing floors to dry quickly. All fixtures are blown dry ensuring that the restrooms are ready for immediate use.
- iii. Strip, Scrub, and Seal Floors. Strip, scrub, and seal floors semi-annually or as recommended by flooring manufacturer's written instructions for proper care for flooring installed.
- iv. Wall Cleaning. Wall cleaning to remove routine spills, stains, splatters, marks, etc. shall be provided by the contractor as a part of routine space cleaning under the fixed-price portion of the contract. However, when the entire wall surface of a space must be cleaned due to potential infectious or other health hazardous conditions, the

work will be ordered under the indefinite quantity portion of the contract. Walls shall be thoroughly and completely cleaned and sanitized with an approved solution to eliminate the hazardous conditions.

- v. Light Fixture Cleaning. Light fixtures shall be cleaned, when ordered by the Government, to achieve a "free of soil" state. The light cover shall be removed, and the light fixtures shall be cleaned of debris inside and out.
- vi. Clean/Shampoo Carpet. All carpets shall be cleaned in accordance with standard commercial practices at a minimum of annually. A heavy-duty spot remover may be required in heavily soiled areas. After shampooing, the carpeted area will be uniform in appearance and free of stains and discoloration. All cleaning solutions shall be removed from baseboards, furniture, trash receptacles, chairs, and other similar items. Chairs, trash receptacles, and other items shall be moved to clean carpets underneath and returned to their original location.

d. SPECIAL REQUIREMENTS

- i. Equipment Operation. All housekeepers shall adhere to the manufacturers or established operating procedures when operating battery-powered or electrical floor machines, wet/dry vacuums, scrubbers, etc.
- ii. Equipment Cleaning. Wheelchairs, stretchers, and Hoyer lifts in storage for patient escort use shall all be cleaned with a germicidal monthly or as needed.
- iii. Emergency or Special Event Cleaning Services. Upon notification, the contractor shall perform emergency or special event cleaning required in any area or room covered under this contract. An example of an emergency includes but is not limited to carpet cleaning and extraction after floods. An example of a special event includes but is not limited to weekend open houses or high profile visits. The contracting officer shall order cleaning services through issuance of a delivery order for the appropriate and required work task(s). Contractor shall begin emergency work, as determined by the contracting officer, within one hour of notification, which may be verbal. The contracting officer or designated representative will notify the contractor as soon as a special event requirement is

known, but not less than 24 hours prior to the event. Completion schedule shall be determined for each delivery order.

- iv. Exterior Window Cleaning. Exterior windows shall be cleaned semi-annually, to achieve a "free of soil" state. This includes cleaning of the frame, the areas immediately adjacent to the frame, ledges, and removing, cleaning, and replacing window screens. Where storm windows exist, exterior window cleaning shall include both sides of the storm window and the outside of the exterior glass, and shall be counted as three separate surfaces for reimbursement purposes.
- v. Blind Cleaning. Blinds shall be removed and cleaned when ordered by the Government or a minimum annually, to achieve a "free of soil" state. Privacy curtains in examination rooms shall be the responsibility of the government.

e. JANITORIAL SERVICE PERSONNEL MANAGEMENT

- i. Employee Discipline. The Contractor shall take prompt, appropriate action in all instances of employee misbehavior that may reflect adversely upon the Government. The Contractor shall furnish to the CO or COR, for review, a written report of disciplinary action taken in those instances where an infraction of a Government regulation has been reported and substantiated.
- ii. Training. The Contractor shall develop an employee-training plan and be responsible for the cost and provision of initial and developmental training programs for Contractor employees, including VA required training (i.e. Privacy Training). The Contractor shall maintain and update the plan throughout the life of this contract and shall submit the plan to the COR for review when requested. A copy of the cleaning requirements shall be maintained in the janitorial closet.
- iii. Contractor List. The Contractor shall maintain a list of all employees with access to the facility that whenever updated will be provided to the CO or COR.
- iv. Uniforms. All employees shall wear Contractor provided standard uniforms and identification badge.
- v. Health Requirements.
 - a. Infection Control. The contractor shall comply with Standard Precautions as defined by the Centers for Disease Control

and Prevention in the performance of this contract. The contractor must have orientation on all applicable policies and procedures specified by the Veterans Affairs Maryland Health Care System that deal with infection control. The Contractor must have documented proof of training in infection control. A copy of the documented proof will be made available to the CO or COR upon request. The infection control training and associated cost is the responsibility of the Contractor. The Contractor employees and subcontractors must follow JCAHO approved policies regarding infection surveillance, prevention, and control.

- b. Reporting Requirements. The Contractor shall report to the COR all-occupational health and preventive medicine information required by the Government and for complying with current JCAHO health records documentation requirements.

Janitorial Service Work Hours

The services covered by this contract shall be furnished by the contractor as defined herein. CBOC's normal hours of operation are from 7:00a.m. to 5:00p.m. Shift hours may change based on the needs of the facility.

Work Hours: CBOC - Monday thru Friday (except federal holidays) one shift - 5:00p.m. to 9:00p.m.

Federal Holidays: The ten holidays observed by the Federal Government, i.e., New Year's Day, Martin Luther King Jr.'s Birthday, President's Day, Memorial Day, Juneteenth, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day and any other day specifically declared by the President of the United States to be a federal holiday.

Janitorial Supplies

Cleaning Contractor Furnished Items. The Contractor shall furnish and maintain all equipment and supplies, other than those specified as Government furnished items section, necessary to perform all services required in this contract. Supplies and cleaning products to be approved by VA's EMS service.

Government Furnished Items. The government will provide the following materials and equipment to be used by the Contractor only in performing the services required by this contract:

- a) Hand sanitizer for distribution throughout the clinic.

- b) Keys for areas to receive housekeeping services.

Handling of Supplies and Equipment. Specific routine infection control requirements are as follows:

- a) All containers of cleaning chemicals and similar products shall be marked with a factory label, to identify contents, and all other labels shall be removed or defaced. Materials bearing Department of Transportation red labels shall not be used.
- b) Contractor furnished supplies and equipment not in immediate use shall be stored in designated storage areas provided by the Government.
- c) Supplies All supplies shall be furnished by the contractor to fit existing infrastructure.

Material Safety Data Sheets (MSDS). The contractor will be required to furnish the VA with MSDS sheets for all chemicals that are used in the clinic. This list will be kept current at all times. This information is required by the VA for emergency treatment in the event of ingestion of and/or contact with the material by humans, and is required by OSHA regulations. Contractor must maintain a binder of all MSDS sheets within the onsite janitorial closet for use and inspection at all times.

5.3. Leased Space Maintenance and Upkeep

Paint refresh, every five years

Paint touchup, as needed

Technology refresh of Offeror provided 3.12.9. 27 53 19 *Distributed Radio Antenna (Within Building) Equipment and System* equipment, as needed but not to exceed every five years

Repair and/or replacement of signage, walls, ceilings, lighting, window treatments, building service equipment and building shell elements, as needed

Repair and/or replacement of Offeror provided equipment, as needed

Exterior flag replacement, as needed to maintain compliance with 4 USC, Chapter 1 (reference 4.6 *Display of the U.S. Flag*).

5.4. Pest Control

Preventative control, twice a year in spring and autumn

Emergent control, as needed

5.5. Grounds Maintenance and Snow/Ice Removal

Seasonal services to provide and maintain a safe and attractive exterior site for the building the VA's leased space is in.

5.6. Display of the U.S. Flag

The Offeror shall provide a flag of the United States of America, maintain it in good order and fly it from a flagpole it throughout the duration of the lease. Display of the flag shall comply with the United States Code Title 4, Chapter 1: The Flag, also known as the "Flag Code" [<http://uscode.house.gov/browse/prelim@title4/chapter1&edition=prelim>].

5.7. Utility Consumption Reports

If the building shell contains utility submeters for each suite (currently or in the future), the Offeror shall either provide VA read-only access to the metering system(s) or monthly consumption reports to the VA for each utility measured. Reports shall be submitted no later than seven calendar days after the end of each month.

SECURITY REQUIREMENTS - FACILITY SECURITY LEVEL II

THESE PARAGRAPHS CONTAIN ADDITIONAL SECURITY REQUIREMENTS. WHERE THEY ARE IN CONFLICT WITH ANY OTHER REQUIREMENTS ON THIS LEASE, THE STRICTEST SHALL APPLY.

DEFINITIONS:

CRITICAL AREAS - The areas that house systems that if damaged or compromised could have significant adverse consequences for the facility, operation of the facility, or mission of the agency or its occupants and visitors. These areas may also be referred to as "limited access areas," "restricted areas," or "exclusionary zones." Critical areas do not necessarily have to be within Government-controlled space (e.g., generators, air handlers, electrical feeds which could be located outside Government-controlled space).

SENSITIVE AREAS – Sensitive areas include vaults, SCIFs, evidence rooms, war rooms, and sensitive documents areas. Sensitive areas are primarily housed within Government-controlled space.

FACILITY ENTRANCES, LOBBY, COMMON AREAS, NON-PUBLIC, AND UTILITY AREAS.

FACILITY ENTRANCES AND LOBBY

EMPLOYEE ACCESS CONTROL AT ENTRANCES (SHELL)

The Lessor shall provide key or electronic access control for the entrance to this building. All Government employees, under this lease, shall be allowed access to the leased space (including after-hours access).

COMMON AREAS, NON-PUBLIC, AND UTILITY AREAS.

PUBLIC RESTROOM ACCESS (SHELL)

The Government reserves the right to control access to public restrooms located within the Space.

SECURING CRITICAL AREAS (SHELL)

The Lessor shall secure areas designated as Critical Areas to restrict access:

- A. Keyed locks, keycards, or similar security measures shall strictly control access to mechanical areas. Additional controls for access to keys, keycards, and key codes shall be strictly maintained. The Lessor shall develop and maintain accurate HVAC diagrams and HVAC system labeling within mechanical areas.
- B. Roofs with HVAC systems shall also be secured. Fencing or other barriers may be required to restrict access from adjacent roofs based on a Government Building Security Assessment. Roof access shall be strictly controlled through keyed locks, keycards, or similar measures. Fire and life safety egress shall be carefully reviewed when restricting roof access.
- C. At a minimum, Lessor shall secure building common areas including sprinkler rooms, electrical closets, telecommunications rooms.

VISITOR ACCESS CONTROL (SHELL)

Entrances are open to the public during business hours. After hours, visitor entrances are secured, and have a means to verify the identity of persons requesting access prior to allowing entry into the Space.

INTERIOR (GOVERNMENT SPACE)

DESIGNATED ENTRANCES (SHELL)

The Government shall have a designated main entrance.

IDENTITY VERIFICATION (SHELL)

The Government reserves the right to verify the identity of persons requesting access to the Space prior to allowing entry.

FORMAL KEY CONTROL PROGRAM (SHELL)

The Government reserves the right to implement a formal key control program. The Lessor shall have a means of allowing the electronic disabling of lost or stolen access media, if electronic media is used.

SITES AND EXTERIOR OF THE BUILDING

SIGNAGE

POSTING OF SIGNAGE IDENTIFYING THE SPACE AS GOVERNMENTAL (SHELL)

The Lessor shall not post sign(s) or otherwise identify the facility and parking areas as a Government, or specific Government tenant, occupied facility, including during construction, without written Government approval.

POSTING OF REGULATORY SIGNAGE (SHELL)

The Government may post or request the Lessor to post regulatory, statutory, sensitive areas and site specific signage.

LANDSCAPING

LANDSCAPING REQUIREMENTS (SHELL)

Lessor shall maintain landscaping (trees, bushes, hedges, land contour, etc,) around the facility. Landscaping shall be neatly trimmed in order to minimize the opportunity for concealment of individuals and packages/containers. Landscaping shall not obstruct the views of security guards and CCTV cameras, or interfere with lighting or IDS equipment.

CRIME PREVENTION THROUGH ENVIRONMENTAL DESIGN (SHELL)

The Lessor shall separate from public access, restricted areas as designated by the Government, through the application of Crime Prevention Through Environmental Design (CPTED) principles by using trees, hedges, berms, or a combination of these or similar features, and by fences, walls, gates and other barriers, where feasible and acceptable to the Government.

HAZMAT STORAGE

If there is HAZMAT storage, Lessor shall locate it in a restricted area or storage container away from loading docks, entrances, and uncontrolled parking.

PLACEMENT OF RECEPTACLES, CONTAINERS, AND MAILBOXES

Trash receptacles, containers, mailboxes, vending machines, or other fixtures and/or features that could conceal packages, brief cases, or other portable containers shall be located 10 feet away from building.

SECURITY SYSTEMS

CLOSED CIRCUIT TELEVISION SYSTEM (CCTV)

LESSOR PROVIDED DESIGN, INSTALLATION, AND MAINTENANCE

The lessor shall design, install, and maintain a Closed Circuit Television (CCTV) system as described in this section. The CCTV system will support the entry control system (at entrances and exits to the space), with time lapse video recording, that will allow Government employees to view and communicate remotely with visitors before allowing access to the Space. As

determined by the Government the CCTV system shall provide unobstructed coverage of designated pedestrian entrances and exits. Technical review of the proposed system shall be coordinated with the Government security representative, at the direction of the Contracting Officer, prior to installation. CCTV system testing and acceptance shall be conducted by the Government prior to occupancy. The CCTV system shall comply with the Architectural Barriers Act, section F230.0. The Government will centrally monitor the CCTV system. Government specifications are available from the Lease Contracting Officer. CCTV system components which fail or require maintenance or which fail during testing should be serviced in accordance with the Security System Maintenance Criteria listed below.

Security System Maintenance Criteria: The Lessor, in consultation and coordination with a security provider, either internal or external, as determined by the Lease Contracting Officer, and the Government security representative, shall implement a preventive maintenance program for all security systems the Lessor has installed. Any critical component that becomes inoperable must be replaced or repaired by the Lessor within 5 business days. Critical components are those required to provide security (IDS, CCTV, access control, etc.) for a perimeter access point or critical area. "Replacement" may include implementing other temporary measures in instances where the replacement or repair is not achievable within the specified time frame (e.g. a temporary barrier to replace an inoperable pop-up vehicle barrier, etc.). Failure by the Lessor to provide sufficient replacement measures within the timeframe identified above may result in the Government's providing guard service, the cost of which must be reimbursed by the Lessor.

INTRUSION DETECTION SYSTEM (IDS)

LESSOR PROVIDED DESIGN, INSTALLATION, AND MAINTENANCE

The Lessor shall design, install, and maintain an Intrusion Detection System (IDS) as described in this section. The Government requires an IDS, which will cover perimeter entry and exit doors, and operable ground-floor windows. Basic Security-in-Depth IDS components include: magnetic door switch(s), alarm system keypad, passive infrared sensor(s) (PIR), an alarm panel (to designated monitoring center) and appropriate communication method i.e. telephone and/or Internet connection, glass-break detector, magnetic window switches or shock sensors. Technical review of the proposed system shall be coordinated with the Government security representative, at the direction of the Lease Contracting Officer, prior to installation. System testing and acceptance shall be conducted by the Government prior to occupancy.

Emergency notification lists shall be coordinated with the monitoring station to include all applicable Government and lessor points of contact. Monitoring shall be designed to facilitate a real-time detection of an incident, and to coordinate an active response to an incident. Components which fail or require maintenance or which fail during testing shall be serviced in accordance with the Security System Maintenance Criteria listed below..

Security System Maintenance Criteria: The Lessor, in consultation and coordination with a security provider, either internal or external, as determined by the Lease Contracting Officer,

and the Government security representative, shall implement a preventive maintenance program for all security systems the Lessor has installed. Any critical component that becomes inoperable must be replaced or repaired by the Lessor within 5 business days. Critical components are those required to provide security (IDS, CCTV, access control, etc.) for a perimeter access point or critical area. "Replacement" may include implementing other temporary measures in instances where the replacement or repair is not achievable within the specified time frame (e.g. a temporary barrier to replace an inoperable pop-up vehicle barrier, etc.). Failure by the Lessor to provide sufficient replacement measures within the timeframe identified above may result in the Government's providing guard service, the cost of which must be reimbursed by the Lessor.

DURESS ALARM

LESSOR PROVIDED DESIGN, INSTALLATION, AND MAINTENANCE

The Lessor shall design, install, and maintain a duress alarm system as described. Technical review shall be coordinated with the Government security representative, at the direction of the Contracting Officer, prior to installation. System testing and acceptance shall be conducted by the Government prior to occupancy. This system shall comply with the Architectural Barriers Act, section F230.0.

The Lessor in consultation and coordination with the security provider and Government shall conduct security system performance testing annually. Testing must be based on established, consistent agency-specific protocols, documented and furnished to the Contracting Officer. Components which fail or require maintenance or which fail during testing should be serviced in accordance with the Security System Maintenance Criteria listed below.

Security System Maintenance Criteria: The Lessor in consultation and coordination with a security provider, either internal or external, as determined by the Lease Contracting Officer, and the Government security representative shall implement a preventive maintenance program for all security systems they have installed. Any critical component that becomes inoperable must be replaced or repaired within 5 business days. Critical components are those required to provide security (IDS, CCTV, access control, etc.) for a perimeter access point or critical area. "Replacement" may include implementing other temporary measures in instances where the replacement or repair is not achievable within the specified time frame (e.g. a temporary barrier to replace an inoperable pop-up vehicle barrier, etc.). Failure by the Lessor to provide sufficient replacement measures within the timeframe identified above may result in the Government's providing guard service, the cost of which must be reimbursed by the Lessor.

STRUCTURE

WINDOWS

SHATTER-RESISTANT WINDOW PROTECTION

The Lessor shall provide and install, shatter-resistant material not less than 0.18 millimeters (7 mil) thick on all exterior windows in Government-occupied space meeting the following properties - Film composite strength and elongation rate measured at a strain rate not exceeding 50% per minute shall not be less than the following:

- Yield Strength: 12,000 psi
- Elongation at yield: 3%
- Longitudinal Tensile strength: 22,000 psi
- Traverse Tensile strength: 25,000 psi
- Longitudinal Elongation at break: 90%
- Traverse Elongation at break: 75%

THE ALTERNATIVE METHOD is for the Lessor to provide a window system that conforms to a minimum glazing performance condition of "3b" for a high protection level and a low hazard level. Window systems shall be certified as prescribed by WINGARD PE 4.3 or later to GSA performance condition 3b (in accordance with the GSA Standard Test Method for Glazing and Window Systems Subject to Dynamic Loadings or Very Low Hazard (in accordance with ASTM F 1642, Standard Test Method for Glazing or Glazing Systems Subject to Air Blast Loading) in response to air blast load of 4 psi/28 psi-msec.

If the Lessor chooses the Alternative Method, they shall provide a description of the shatter-resistant window system and provide certification from a licensed professional engineer that the system as offered meets the above standard. Prior to installation, this will be provided for evaluation by the Government, whose approval shall not be unreasonably withheld.

OPERATIONS AND ADMINISTRATION

LESSOR TO WORK WITH FACILITY SECURITY COMMITTEE (FSC) (SHELL)

The Lessor shall cooperate and work with the buildings Facility Security Committee (FSC) throughout the term of the lease.

ACCESS TO BUILDING INFORMATION (SHELL)

Building Information—including mechanical, electrical, vertical transport, fire and life safety, security system plans and schematics, computer automation systems, and emergency operations procedures—shall be strictly controlled. Such information shall be released to authorized personnel only, approved by the Government, by the development of an access list

and controlled copy numbering. The Contracting Officer may direct that the names and locations of -Government tenants not be disclosed in any publicly accessed document or record. If that is the case, the Government may request that such information not be posted in the building directory.

Lessor shall have emergency plans and associated documents readily available in the event of an emergency.

Requirements by Service

General

- PACs readers and cameras basis of design to be Johnson Controls for continuity of existing systems
- Basis of Design for wall mounted exam casework to be Herman Miller
- Patient hallways to be in line with waiting room, not perpendicular
- 3 staff hallways – for 9-10 PACT teams
- Flooring to be vinyl plank for hallways/exam rooms/waiting and reception
- Flooring to be tile in restrooms

Audiology

- To be on perimeter walls in patient hallway, not to be included in PACT team hallways
- Cannot be near podiatry due to machine noise
- Exam/Consult Rooms
 - o 6 Quad electrical outlets
 - o 2 Telecommunication outlets
 - o Sink with thermostatic mixing valve but independent temp controls
- Booth
 - o Prep for installation of custom audiometric test suite – basis of design is Acoustic Systems by ETS Lindgren
 - o Booth must be sunken into the floor to provide flat threshold from hallway to inside of booth – no ramps permitted

Eye Clinic

- To be on perimeter walls in patient hallway, not to be included in PACT team hallways
- Mock up drawings of exam/treatment room included
- Exam/Treatment Room
 - o 6 Quad electrical outlets
 - o Connection harness for eye exam station (contractor installed)
 - o Light switches by door and computer station, with dimmers
 - o Outlets on wall at VA specified heights for monitors

Home Based Primary Care

- To be on perimeter walls in patient hallway, not to be included in PACT team hallway
- Office/Storage Space
 - o 2 Quad Electrical outlets
 - o 2 telecommunication outlets

Logistics

- Following rooms to have card reader access in addition to physical key
 - o Clean Supply
 - o Medication Rooms
 - o Bio Waste Rooms
- Power and data to be in Clean Supply and Medication room

Requirements by Service

- One large clean supply and medication room to be combined and centrally located between team hallways

Mental Health

- To be on perimeter walls in patient hallway, not to be included in PACT team hallway
- Each room to have windows
- Each room to have 2 exits for safety – doors to have windows with optional shade

PACT

- Reception
 - o Telecommunication outlet and quad electrical outlet at each reception desk
 - o Duress alarms at each reception desk
- Work Room
 - o Telecommunication outlet at each work station
 - o 3 Team Hallways (10 PACT Teams)
- Waiting
 - o Two duplex electrical outlets at 72" AFF
 - o Two coaxial connectors at 72" AFF
 - o Two telecommunication outlets at 72" AFF
 - o Card readers to patient and staff hallways from waiting room
 - o Automatic operators on doors to patient hallways
 - o Vending area required
 - o Male, Female, and Unisex restroom in waiting area
- Public Toilet
 - o One public unisex restroom in each patient hallway
 - o Mirror (Contractor provided, Contractor Installed)
 - o Paper towel dispenser (VA provided, Contractor installed)
 - o Soap Dispenser (VA provided, Contractor installed)
 - o Sanitary Napkin dispenser (VA provided, Contractor installed)
 - o Pull chord emergency alert audible and visual in conjunction with duress alarm
 - o One GFI duplex outlet
 - o Automatic door opener
 - o Double roll toilet paper holder
 - o Coat hook
- Exam Rooms
 - o One duplex electrical outlet at 46" AFF
 - o One quad electrical outlet
 - o Paper Towel Dispenser (VA provided, Contractor installed)
 - o Soap Dispenser (VA provided, Contractor installed)
 - o Sharps Container Holder (VA provided, Contractor installed)
 - o Casework with solid surface countertops including integral back/side splashes and undermount sink
 - o Cubicle curtain track at each door to not interfere with swing
 - o Wireless duress alarms (system approved by VA)

Requirements by Service

- Women's health exam rooms to have attached private restroom
- Multipurpose Conference Room/Classroom/Shared Appt
 - Blocking reinforcement for wall mounted TV
 - 1 Quad Electrical Outlet at 48" AFF
 - One telecommunication outlet at 48" AFF
 - Wireless duress alarm (system approved by VA)
- Medication Rooms
 - 2 Quad Electrical outlets
 - 2 Telecommunications outlets
 - Independent thermostat to maintain temp between 65-72 degrees at all times
 - Card reader on door
 - Camera required on any medication room/alcove
- Staff Toilet
 - Mirror (Contractor provided, Contractor Installed)
 - Paper towel dispenser (VA provided, Contractor installed)
 - Soap Dispenser (VA provided, Contractor installed)
 - Sanitary Napkin dispenser (VA provided, Contractor installed)
 - Pull chord emergency alert audible and visual in conjunction with duress alarm
 - One GFI duplex outlet
 - Double roll toilet paper holder
 - Coat hook
- Office
 - 2 Quad Electrical Outlets & Data
- Storage/Alcoves
 - Provide dedicated space for storage of Arjo Sara Plus (to be near weight stations and waiting room)
 - Crash carts
 - Height and Weight stations

Podiatry

- Must be close to lobby in patient hallways
- Can be perimeter room
- Two rooms, about 200 SFT each

PMR

- Wall plugs around room for therapy equipment/machines
- Does not need to be in PACT area, but would be nice to be in or close to the PACT area
- Need 9-10 ft ceilings for clearances when patients on machines
- Require closet storage within area for equipment storage

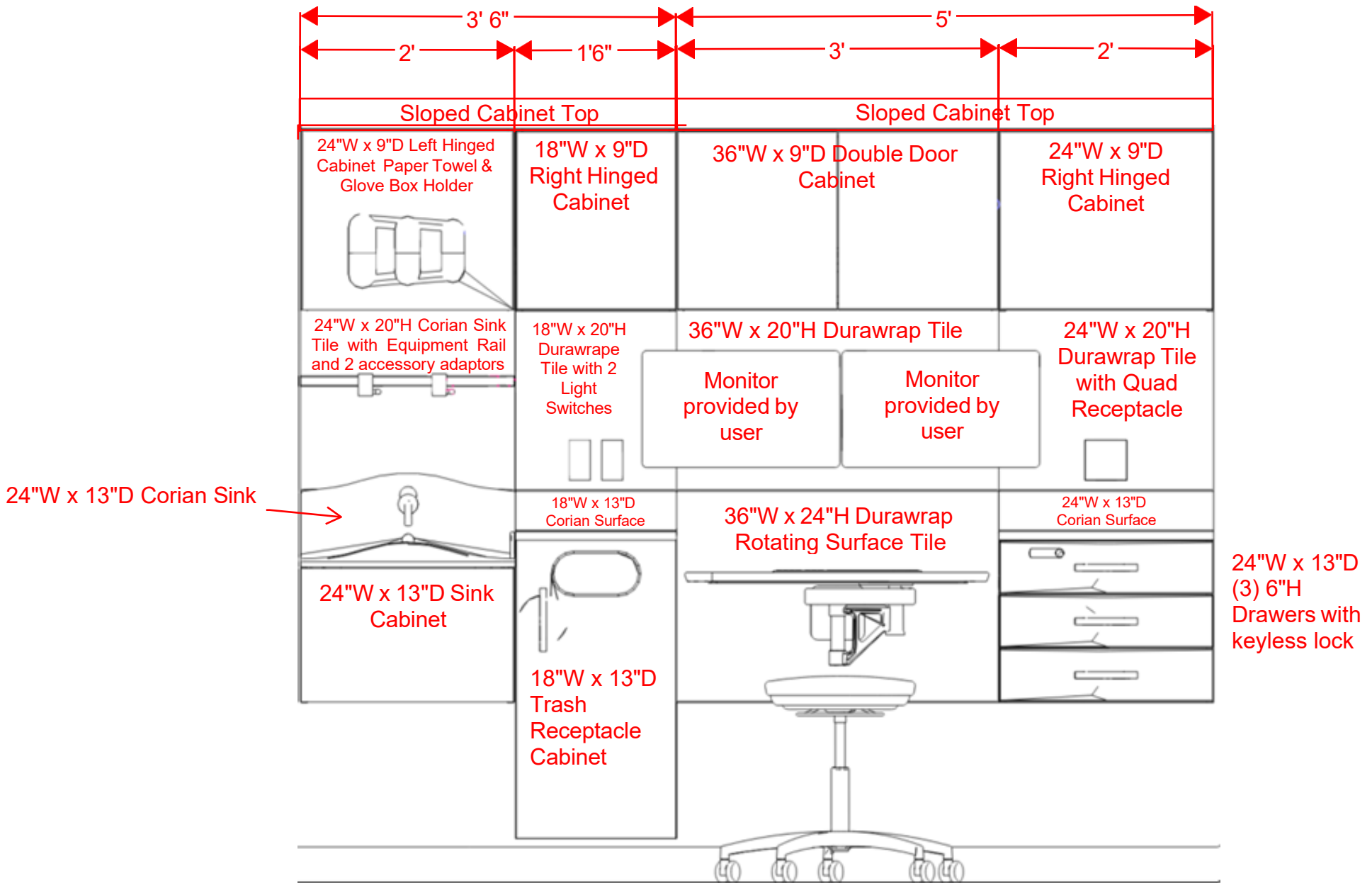
Telehealth

- Must be in PACT area at end of hallways
- Set up like clinical exam rooms – required to have sinks

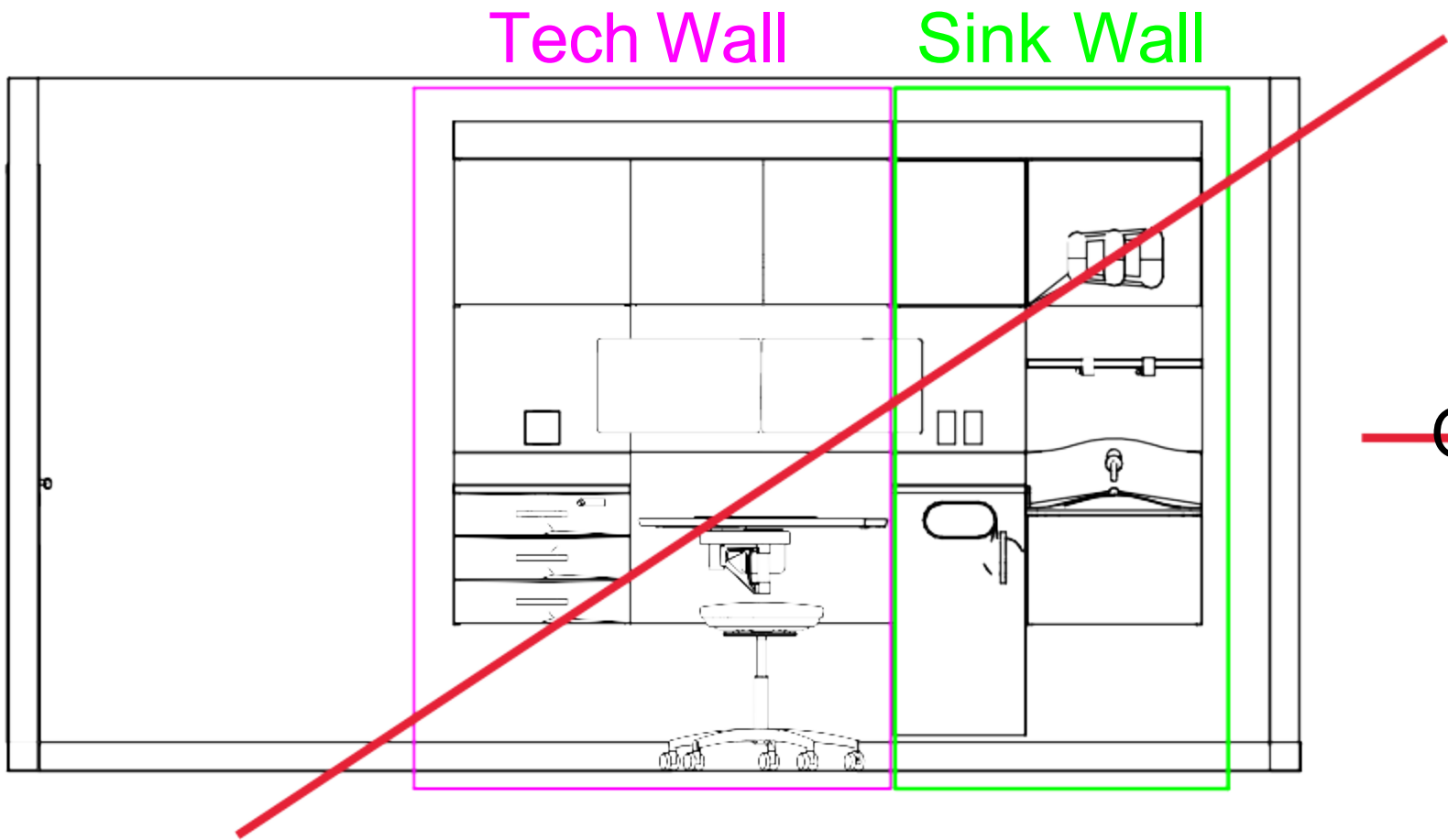
Requirements by Service

Sink Wall Section

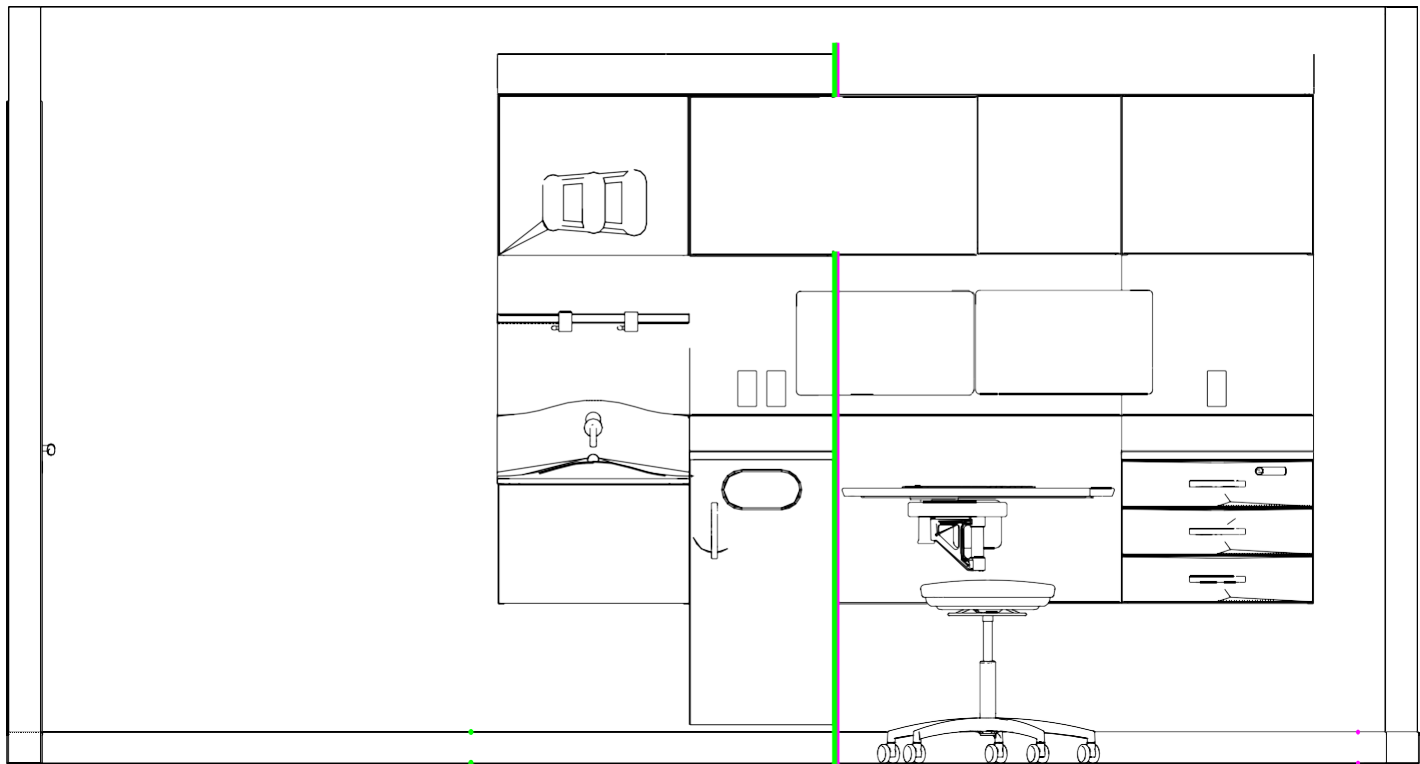
Tech Wall Section



Eye Clinic Exam Room Layout



~~Option A- Right~~



Option A- Left



Compass Rotating Worsurface
Not Height adjustable
34"W x 12"D

**Monitors, Keyboard & Doctor Stool not provided by APG

VA Medical Center
Clermont/Hamilton Eye Lanes
Option A

ORDER NUMBER:
495970

ACCOUNT MANAGER:
Lisa Warner

DESIGNER:
Kristy Myers

SCALE:

REVISION(S):
5.1.24

PRELIMINARY
DRAWING

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- Glove & Paper Combo Cabinet (TW326.)
 - o Available Depths: 9", 13"
 - o Available Widths: 24", 30", 36"
 - o This cabinet will hold 3 boxes of gloves and a field supplied paper towel dispenser. Please verify the size of the paper towel dispenser will fit.
 - o There is extra storage space on the top shelf of the cabinet that will hold 2 additional boxes of gloves.
- Waste Receptacle Cabinet (TW316.)
 - o Available Depths: 13", 21"
 - o Available Widths: 18", 24"
 - o Trash bin is not included
- Upper Storage Cabinets
 - o Available Depths: 6", 9", 13"
 - I used 9" deep for your cabinets to match the depth of the glove & paper combo cabinet
 - o Available Widths: 18", 24", 30", 36"
- Rotating Work Surface Top (TW222.)
 - o Size: 12"D x 34"W
 - o Available in Corian, Durawrap 3D laminate, or 3D laminate
 - o The surface is not height adjustable but can be mounted at seated or standing height.
 - o The arm extends and the surface rotates which allows the user to sit pretty far from the wall.
- Drawer Module (TW310.)
 - o Available Depths: 13", 21"
 - I used 13" deep in your drawings to match the depth of the sink
 - o Available Widths: 18", 24"
 - o Drawers: (2) 9" high drawers, (3) 6" high drawers
 - o Would you like drawer liners? They help with infection control because they have radius edges for easy wipe down.
- Accessory Rail
 - o Included adaptor brackets for a soap dispenser and sharps container
- We will need to choose a drawer pull for the cabinets
 - o Flex pull, Bow pull, Arc pull
- Do you need any receptacles behind the monitors to plug them in?
- Where will you be storing the CPU for those monitors?
 - o Sometimes people will store them in the cabinets above the monitors but we will need to add grommets for cords, and a vent to keep the CPU from overheating.
- We have task lights that can be installed to the underside of the upper cabinets.
 - o Twist LED Task Lights
 - These lights can be daisy-chained together which is nice because you will only have to plug them in at one location
 - They attach using brackets with screws
 - They have a small footprint



Bow Pull in Brushed Nickel



Arc Pull in Brushed Nickel



Flex Pull in Fog



Flex Pull in Java

Janitorial Services

Description Of Services. The contractor shall furnish all personnel, equipment and materials necessary to perform the janitorial services. A meeting with VA's EMS service to discuss supplies, products, and cleaning expectations can be coordinated at the request of the contractor.

- a. BASIC CLEANING SERVICES. The contractor shall maintain the facility in a state of physical and biological cleanliness. The facility's appearance must fully meet the sanitary and aesthetic requirements for beneficiary healthcare. This includes but not limited to exam rooms, bathrooms, staff break rooms, kitchenettes, lobby and offices.
 - i. Maintain Floors. All floors shall be cleaned of dust, dirt, and scuffs per the requirements of the flooring manufacturer. Baseboards, corners, and wall/floor edges shall also be clean. "Wet Floor" signs shall be posted in all areas having received service in order to avoid mishaps. Easily movable items shall be relocated to maintain floors beneath them and returned to their original position once service has been completed.
 - ii. Vacuum Carpets and Walk-Off Mats. High Efficiency Particulate Air (HEPA) Filter type vacuum cleaners shall be used to clean all carpeted areas/walk-off mats. After vacuuming, carpet areas/walk-off mats shall be free of all visible dirt, debris, and other foreign matter. Carpet shall be spot cleaned using carpet manufacturer's approved method to remove spills as needed. All tears and unraveling of carpet shall be brought to the attention of the Contracting Officer Representative (COR) upon discovery.
 - iii. Waste Collection and Removal. All refuses, trash and garbage containers shall be emptied and returned to their initial location. Any obviously soiled or torn plastic trash receptacle liners shall be replaced. Trash receptacles shall be left clean, free of foreign matter, and free of odors.
 - iv. Recyclable Waste Removal. All cardboard boxes shall be broken down and disposed. Mixed office paper shall be emptied into large containers and transported to a central collection point for recycling.
 - v. Medical Waste and Sharps Collection and Removal. VA contract through EMS service will be responsible for this work.
 - vi. Clean Interior Glass/Mirrors. Clean all interior glass, including glass in doors, partitions, walls, display cases, directory boards, etc. After

glass cleaning, there shall be no traces of film, dirt, smudges, water, or other foreign matter.

- vii. Clean Drinking Fountains, Ice Machines and Sinks. Contractor shall clean and sanitize all surfaces of drinking fountains, ice machines/ sinks to include the orifice, cofferdam and drain. Surfaces shall be free of streaks, smudges, fingerprints, marks film/residue, stains, spots, scale, soil, and other foreign matter once service has been completed. All metal surfaces shall be cleaned and polished and have a uniform appearance. All cofferdams surrounding ice machines shall be cleaned and free of standing water. Paper towel/soap dispensers associated with sinks/kitchens shall be cleaned, sanitized, and restocked.
 - viii. Spot Cleaning. Perform spot cleaning on a continual basis. Spot cleaning includes, but is not limited to removing, or cleaning cobwebs, smudges, fingerprints, marks, streaks, spills, etc., from washable surfaces of all walls, partitions, vents, grillwork, doors, door guards, wall guards, door handles, push bars, kick plates, light switches, and fixtures. After spot cleaning, the surface shall have a clean, uniform appearance, free of streaks, spots, and other evidence of soil.
 - ix. General Dusting. All horizontal surfaces must be dusted or cleaned to eliminate dust collection.
 - x. Exam Table Cleaning. Completely clean and disinfect all surfaces of the exam tables using a germicidal detergent. Exam tables shall be left clean and free of foreign matter.
- b. BASIC RESTROOMS/ LOCKER ROOM CLEANING SERVICES. The contractor shall accomplish all cleaning tasks to meet the requirements of this ASR
- i. Clean and Disinfect. Completely clean and disinfect all surfaces of sinks, toilet bowls, urinals, lavatories, showers, shower mats, dispensers, plumbing fixtures, partitions, dispensers, doors, walls, and other such surfaces, using a germicidal detergent. After cleaning, receptacles will be free of deposits, dirt, streaks, and odors. Disinfect all surfaces of partitions, stalls, stall doors, entry doors, (including handles, kick plates, ventilation grates, metal guards, etc.), and wall areas adjacent to wall mounted lavatories, urinals, and toilets.

- ii. De-scale Sinks, Toilet Bowls and Urinals. All surfaces of sinks, toilets, urinals, plumbing fixtures, dispensers, stalls, stall doors, entry/exit doors, handles, drains, kick plates, ventilation grates, and all wall surfaces to include grout shall be de-scaled as needed. Surfaces shall be free from streak, stains, scale, soap film, scum, mineral deposits, and rust stains and have a uniform, polished appearance upon completion of service.
- iii. Sweep and Mop Floor. After sweeping and mopping, the entire floor surface, including grout, shall be free from litter, dirt, dust and debris. Grout on wall and floor tiles shall be free of dirt, mildew, residue, etc. Floors shall have a uniform appearance without streaks, swirl marks, detergent residue, or any evidence of soil, stain, film or standing water. Moveable items shall be tilted or moved to sweep and damp mop underneath. Floors shall be stripped, scrubbed, waxed, etc., as necessary to maintain sanitary conditions and a clean, uniform appearance.
- iv. Restock Restroom Supplies. Contractor shall ensure restrooms are stocked sufficiently so that supplies including soap for the soap dispensers do not run out. Supplies shall be stored in designated areas. No overstocking shall be allowed. If supplies run out prior to the next service date, contractor shall refill within one hour of notification.
- v. Trash Removal. All trash receptacles shall be emptied, cleaned, and returned to their original position once service has been completed. Soiled or torn plastic trash receptacle liners shall be replaced at time of service. Trash shall be disposed of in secured plastic bags and placed in the appropriate outside dumpster/compactor.
- vi. Glass and Mirror Cleaning. All glass/mirrors shall be cleaned in such a manner that all trace of film/residue, dirt, dust, smudges/fingerprints, streak, watermark, and other foreign matter are eliminated.

c. PERIODIC CLEANING SERVICES.

- i. Clean Interior Windows. Clean all interior glass window surfaces quarterly. After surfaces have been cleaned, all traces of film, dirt, smudges, water and other foreign matter shall be removed from frames, casings, sills, and glass.

- ii. Main Restrooms Deep Cleaning. The contractor is to provide labor and equipment to perform overall sanitizing and grout cleaning to all surfaces, sinks, and commodes semi-annually for all public/staff restrooms. Work to include high pressure cleaning to remove buildup on surfaces, treat urinals, commodes, sinks, and floors with anti-bacteria and follow up with fresh water rinse. Water, bacteria, and soil are to be vacuumed away allowing floors to dry quickly. All fixtures are blown dry ensuring that the restrooms are ready for immediate use.
- iii. Strip, Scrub, and Seal Floors. Strip, scrub, and seal floors semi-annually or as recommended by flooring manufacturer's written instructions for proper care for flooring installed.
- iv. Wall Cleaning. Wall cleaning to remove routine spills, stains, splatters, marks, etc. shall be provided by the contractor as a part of routine space cleaning under the fixed-price portion of the contract. However, when the entire wall surface of a space must be cleaned due to potential infectious or other health hazardous conditions, the work will be ordered under the indefinite quantity portion of the contract. Walls shall be thoroughly and completely cleaned and sanitized with an approved solution to eliminate the hazardous conditions.
- v. Light Fixture Cleaning. Light fixtures shall be cleaned, when ordered by the Government, to achieve a "free of soil" state. The light cover shall be removed, and the light fixtures shall be cleaned of debris inside and out.
- vi. Clean/Shampoo Carpet. All carpets shall be cleaned in accordance with standard commercial practices at a minimum of annually. A heavy-duty spot remover may be required in heavily soiled areas. After shampooing, the carpeted area will be uniform in appearance and free of stains and discoloration. All cleaning solutions shall be removed from baseboards, furniture, trash receptacles, chairs, and other similar items. Chairs, trash receptacles, and other items shall be moved to clean carpets underneath and returned to their original location.

d. SPECIAL REQUIREMENTS

- i. Equipment Operation. All housekeepers shall adhere to the manufacturers or established operating procedures when

operating battery-powered or electrical floor machines, wet/dry vacuums, scrubbers, etc.

- ii. Equipment Cleaning. Wheelchairs, stretchers, and Hoyer lifts in storage for patient escort use shall all be cleaned with a germicidal monthly or as needed.
- iii. Exterior Window Cleaning. Exterior windows shall be cleaned semi-annually, to achieve a "free of soil" state. This includes cleaning of the frame, the areas immediately adjacent to the frame, ledges, and removing, cleaning, and replacing window screens. Where storm windows exist, exterior window cleaning shall include both sides of the storm window and the outside of the exterior glass, and shall be counted as three separate surfaces for reimbursement purposes.
- iv. Blind Cleaning. Blinds shall be removed and cleaned when ordered by the Government or a minimum annually, to achieve a "free of soil" state. Privacy curtains in examination rooms shall be the responsibility of the government.

e. JANITORIAL SERVICE PERSONNEL MANAGEMENT

- i. Employee Discipline. The Contractor shall take prompt, appropriate action in all instances of employee misbehavior that may reflect adversely upon the Government.
- ii. Training. The Contractor shall develop an employee-training plan and be responsible for the cost and provision of initial and developmental training programs for Contractor employees, including VA required training (i.e. Privacy Training). The Contractor shall maintain and update the plan throughout the life of this contract and shall submit the plan to the COR for review when requested. A copy of the cleaning requirements shall be maintained in the janitorial closet.
- iii. Contractor List. The Contractor shall maintain a list of all employees with access to the facility that whenever updated will be provided to the CO or COR.
- iv. Uniforms. All employees shall wear Contractor provided standard uniforms and identification badge.
- v. Health Requirements.
 - a. Infection Control. The contractor shall comply with Standard Precautions as defined by the Centers for

Disease Control and Prevention in the performance of this contract. The contractor must have orientation on all applicable policies and procedures specified by the Veterans Affairs Maryland Health Care System that deal with infection control. The Contractor must have documented proof of training in infection control. A copy of the documented proof will be made available to the CO or COR upon request. The infection control training and associated cost is the responsibility of the Contractor. The Contractor employees and subcontractors must follow JCAHO approved policies regarding infection surveillance, prevention, and control.

- b. Reporting Requirements. The Contractor shall report to the COR all-occupational health and preventive medicine information required by the Government and for complying with current JCAHO health records documentation requirements.

Janitorial Service Work Hours

The services covered by this contract shall be furnished by the contractor as defined herein. CBOC's normal hours of operation are from 7:00a.m. to 5:00p.m. Shift hours may change based on the needs of the facility.

Work Hours: CBOC - Monday thru Friday (except federal holidays) one shift - 5:00p.m. to 9:00p.m.

Federal Holidays: The ten holidays observed by the Federal Government, i.e., New Year's Day, Martin Luther King Jr.'s Birthday, President's Day, Memorial Day, Juneteenth, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day and any other day specifically declared by the President of the United States to be a federal holiday.

Janitorial Supplies

Cleaning Contractor Furnished Items. The Contractor shall furnish and maintain all equipment and supplies, other than those specified as Government furnished items section, necessary to perform all services required in this contract. Supplies and cleaning products to be approved by VA's EMS service.

Government Furnished Items. The government will provide the following materials and equipment to be used by the Contractor only in performing the services required by this contract:

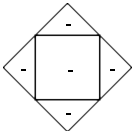
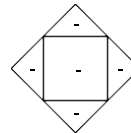
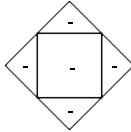
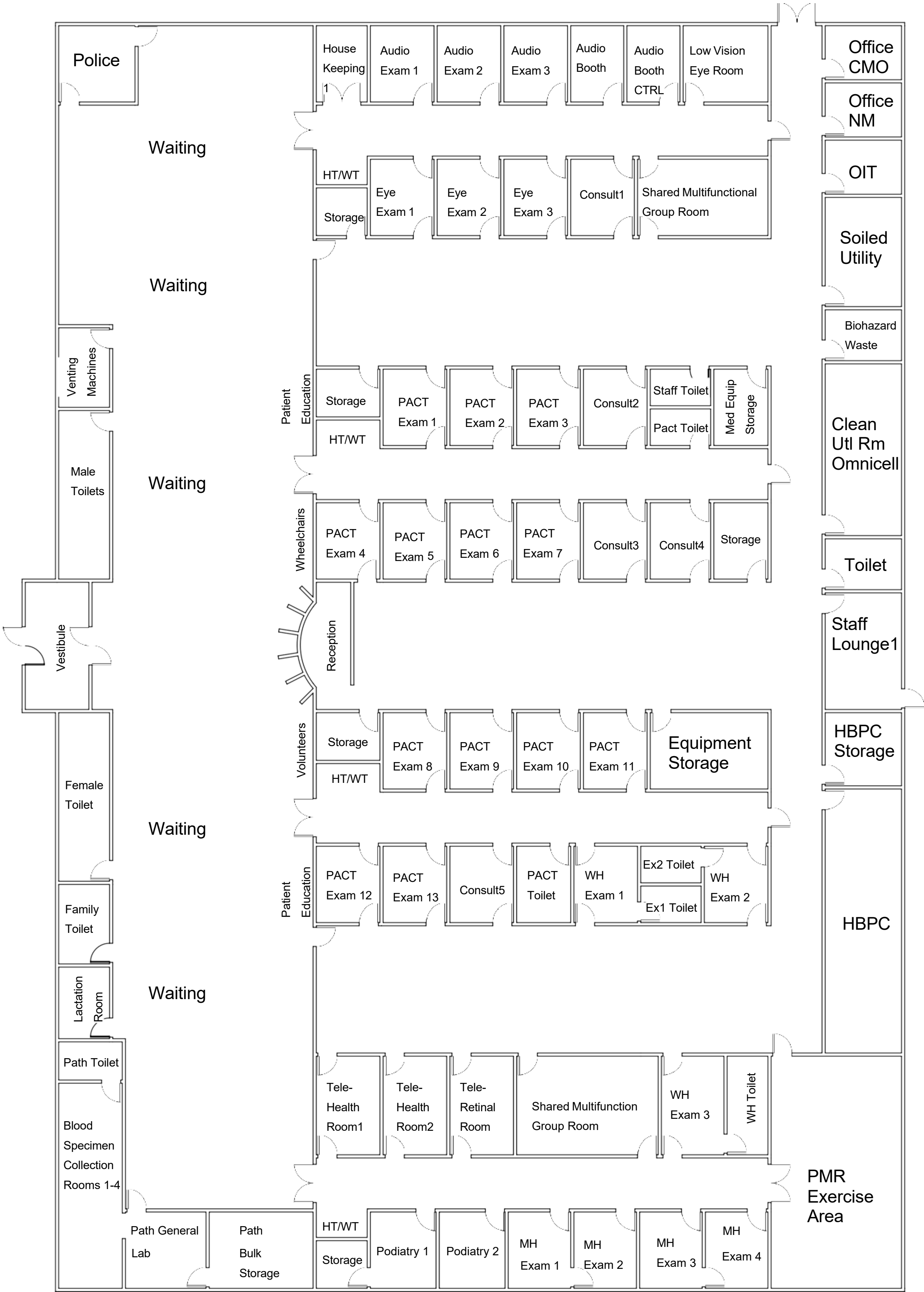
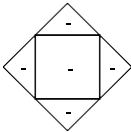
- a) Hand sanitizer for distribution throughout the clinic.
- b) Keys for areas to receive housekeeping services.

Handling of Supplies and Equipment. Specific routine infection control requirements are as follows:

- a) All containers of cleaning chemicals and similar products shall be marked with a factory label, to identify contents, and all other labels shall be removed or defaced. Materials bearing Department of Transportation red labels shall not be used.
- b) Contractor furnished supplies and equipment not in immediate use shall be stored in designated storage areas provided by the Government.
- c) Supplies All supplies shall be furnished by the contractor to fit existing infrastructure.

Material Safety Data Sheets (MSDS). The contractor will be required to furnish the VA with MSDS sheets for all chemicals that are used in the clinic. This list will be kept current at all times. This information is required by the VA for emergency treatment in the event of ingestion of and/or contact with the material by humans, and is required by OSHA regulations. Contractor must maintain a binder of all MSDS sheets within the onsite janitorial closet for use and inspection at all times.

Exhibit D



SECURITY REQUIREMENTS - FACILITY SECURITY LEVEL II

THESE PARAGRAPHS CONTAIN ADDITIONAL SECURITY REQUIREMENTS WHICH ARE TO BE PRICED AS PART OF EITHER **SHELL** OR **TENTANT IMPROVEMENT ALLOWANCE**. WHERE THERE IS A CONFLICT BETWEEN A SPECIFIC REQUIREMENT AND A MORE GENERAL REQUIREMENT, THE SPECIFIC REQUIREMENT SHALL APPLY.

DEFINITIONS:

CRITICAL AREAS - The areas that house systems that if damaged or compromised could have significant adverse consequences for the facility, operation of the facility, or mission of the agency or its occupants and visitors. These areas may also be referred to as "limited access areas," "restricted areas," or "exclusionary zones." Critical areas do not necessarily have to be within Government-controlled space (e.g., generators, air handlers, electrical feeds which could be located outside Government-controlled space).

SENSITIVE AREAS - Sensitive areas include vaults, SCIFs, evidence rooms, war rooms, and sensitive documents areas. Sensitive areas are primarily housed within Government-controlled space.

1. FACILITY ENTRANCES, LOBBY, COMMON AREAS, NON-PUBLIC, AND UTILITY AREAS

A. FACILITY ENTRANCES AND LOBBY

(1) EMPLOYEE ACCESS CONTROL AT ENTRANCES (SHELL**)**

The Lessor shall provide key or electronic access control for all Government Spaces under this Lease. All Government employees shall have access to the entrance to the building (including after-hours access).

B. COMMON AREAS, NON-PUBLIC, AND UTILITY AREAS

(1) PUBLIC RESTROOM ACCESS (SHELL**)**

The Government reserves the right to control access to public restrooms located within the Space.

(2) SECURING CRITICAL AREAS (SHELL**)**

The Lessor shall secure areas designated as Critical Areas to restrict access:

(A) Keyed locks, Keycards, or similar security measures shall strictly control access to mechanical areas. Additional controls for access to keys, keycards, and key codes shall be strictly maintained. The Lessor shall develop and maintain accurate HVAC diagrams and HVAC system labeling within mechanical areas.

(B) Roofs with HVAC systems shall also be secured. Fencing or other barriers may be required to restrict access from adjacent roofs based on a Government Building Security Assessment. Roof access shall be strictly controlled through keyed locks, keycards, or similar measures. Fire and life safety egress shall be carefully reviewed when restricting roof access.

(C) Lessor shall secure building common areas including sprinkler rooms, electrical closets, and telecommunications rooms.

(3) VISITOR ACCESS CONTROL (*SHELL*)

Main entrances are open to the public during business hours. After hours, visitor entrances are secured, and have a means to verify the identity of persons requesting access prior to allowing entry into the Space.

2. INTERIOR (GOVERNMENT SPACE)

A. DESIGNATED ENTRANCES (*SHELL*)

The Government shall have a designated main entrance.

B. IDENTITY VERIFICATION (*SHELL*)

The Government reserves the right to verify the identity of persons requesting access to the Space prior to allowing entry.

C. FORMAL KEY CONTROL PROGRAM (*SHELL*)

The Government will implement a formal key control program. The Lessor shall have a means of allowing the electronic disabling of lost or stolen access media, if electronic media is used.

D. IT CLOSETS (*TENANT IMPROVEMENT ALLOWANCE*)

The lessor shall provide an IT closet that meets the following requirements:

Walls: Exterior walls of brick and masonry construction are acceptable. Exterior walls which are composed of wood frame and siding require an interior backing of steel security screen mesh or sheet partition. Perimeter walls shall be full height, floor to underside of slab above.

Doors and Door Locks: The locking requirements (including access-controlled egress doors) outlined in National Fire Protection Association (NFPA) Life Safety Code standard, latest edition, 101-7.2.1.5 and 7.2.1.6 must be followed.

Door Construction: Doors are of 45 mm (1-3/4 in.) solid core hardwood or hollow steel construction. Dutch or half doors are unacceptable. Removable hinge pins on door exteriors must be retained with set pins or spot welded, preventing their removal. This applies only if the hinge pins

are on the outside of the doors and door frames. Hinge pins will be on the outside if the door opens outward.

Mechanical locking systems. Where mechanical lock systems are used, installed lock sets must allow for single motion egress. The installation of high security exit devices meeting NFPA Life Safety Code standards is appropriate.

Glass doors or doors with glass panes must have one lock set that is key operated from the interior of the protected area.

Note: Fire code prohibits locks from being locked from the inside that require a key to exit. The intent is that there must be two locks, one of which must be key operated. The other lock can be key, combination or electronic. (NFPA 101, 7.2.1.5.2 Locks if provided, shall not require the use of a key, a tool or special knowledge or effort for the operations from the egress side)

Steel doors will not be set into wooden frames.

Doors set in steel frames must be fitted with a mortise lock with a deadlock feature. IAW ANSI/BHMA A 156.13 American National Standards for Mortise Locks

The day lock on the main door must be automatically locking, with a minimum 19 mm (3/4 in.) dead bolt and inside thumb latch. Combinations or keys to day locks will be restricted to service employees and combinations changed immediately on the termination or reassignment of an employee. See paragraph 8 of this appendix for a detailed description of key control systems.

Electronic/Magnetic locking systems. Where installed, electronic locking systems will include an automatic "request to exit" sensor and a "push to exit" manual lock release switch. Refer to the NFPA Life Safety Code for details.

Other Room Access Means: Interstitial overhead areas which enable entry into a secure room from an unsecured room must be barricaded by the installation of a suitable partition in the interstitial space which prevents "up and over" access. Openings in construction above ceilings or below raised access floors shall be protected as below requirement. All vents, ducts, and similar openings in excess of 96 square inches (620 cm²) that enter or pass through space shall be protected with either bars or grills. If one dimension of the duct measures less than six inches (150 mm) or duct is less than 96 square inches (620 cm²), bars are not required; however, all ducts must be treated to provide sufficient sound attenuation. If bars are used, they must be 1/2 inch (12.7 mm) diameter steel welded vertically and horizontally six (6) inches (150 mm) on center; if grills are used, they must be of 9-gauge expanded steel.

Special Key Control: Access to this room will be limited by keying the closet to the VA OIT keyway. The lessor will not be able to access this room without be accompanied by a VA OIT employee.

Electronic Physical Access Controls Systems (PACS): Access to this room will also be limited by a PACS card reader at the discretion of the Government.

E. PEEPHOLES (*TENTANT IMPROVEMENT ALLOWANCE*)

The Lessor shall provide and install peepholes in all solid interior or exterior doors entering the Government-occupied space, as identified by the demising walls, to serve as an effective visual recognition system. This system shall comply with the Architectural Barriers Act, section F230.1

3. SITE AND EXTERIOR OF THE BUILDING

A. SIGNAGE

(1) POSTING OF SIGNAGE IDENTIFYING THE SPACE AS GOVERNMENTAL (SHELL)

The Lessor shall post signage as required in the elsewhere in the lease document.

(2) POSTING OF REGULATORY SIGNAGE (SHELL)

The Government may post or request the Lessor to post regulatory, statutory, sensitive areas and site specific signage.

B. LANDSCAPING

(1) LANDSCAPING REQUIREMENTS (SHELL)

Lessor shall maintain landscaping (trees, bushes, hedges, land contour, etc.,) around the facility. Landscaping shall be neatly trimmed in order to minimize the opportunity for concealment of individuals and packages/containers. Landscaping shall not obstruct the views of security guards and CCTV cameras, or interfere with lighting or IDS equipment.

(2) CRIME PREVENTION THROUGH ENVIRONMENTAL DESIGN (SHELL)

The Lessor shall separate from public access, restricted areas as designated by the Government, through the application of Crime Prevention Through Environmental Design (CPTED) principles by using trees, hedges, berms, or a combination of these or similar features, and by fences, walls, gates and other barriers, where feasible and acceptable to the Government.

(3) HAZMAT STORAGE (TENTANT IMPROVEMENT ALLOWANCE)

If there is HAZMAT storage, lessor shall locate it in a restricted area or storage container away from loading docks, entrances, and uncontrolled parking.

(4) PLACEMENT OF RECEPTACLES, CONTAINERS, AND MAILBOXES (TENTANT IMPROVEMENT ALLOWANCE)

Trash receptacles, containers, mailboxes, vending machines, or other fixtures and/or features that could conceal packages, brief cases, or other portable containers shall be located 10 feet away from building.

4. SECURITY SYSTEMS

A. CLOSED CIRCUIT TELEVISION SYSTEM (CCTV)

(1) LESSOR PROVIDED DESIGN, INSTALLATION, AND MAINTENANCE (TENTANT IMPROVEMENT ALLOWANCE)

The lessor shall design, install, and maintain a Closed Circuit Television (CCTV) system as described in this section. The CCTV system will support the entry control system (at entrances and exits to the space), with time lapse video recording, that will allow Government employees to view and communicate remotely with visitors before allowing access to the Space. As determined by the Government the CCTV system shall provide unobstructed coverage of designated pedestrian entrances and exits. Technical review of the proposed system shall be coordinated with the Government security representative, at the direction of the Contracting Officer prior to installation. CCTV system testing and acceptance shall be conducted by the Government prior to occupancy. The CCTV system shall comply with the Architectural Barriers Act, section F230.0. The Government will centrally monitor the CCTV system. Government specifications are available from the Lease Contracting Officer. CCTV system components which fail or require maintenance or which fail during testing should be serviced in accordance with the Security System Maintenance Criteria listed below.

Security System Maintenance Criteria: The Lessor, in consultation and coordination with a security provider, either internal or external, as determined by the Lease Contracting Officer, and the Government security representative, shall implement a preventive maintenance program for all security systems the Lessor has installed. Any critical component that becomes inoperable must be replaced or repaired by the Lessor within 5 business days. Critical components are those required to provide security (IDS, CCTV, access control, etc.) for a perimeter access point or critical area. ~ Replacement may include implementing other temporary measures in instances where the replacement or repair is not achievable within the specified time frame (e.g. a temporary barrier to replace an inoperable pop-up vehicle barrier, etc.). Failure by the Lessor to provide sufficient replacement measures within the timeframe identified above may result in the Government's providing guard service, the cost of which must be reimbursed by the Lessor.

B. INTRUSION DETECTION SYSTEM (IDS)

(1) LESSOR PROVIDED DESIGN, INSTALLATION, AND MAINTENANCE (TENTANT IMPROVEMENT ALLOWANCE)

The Lessor shall design, install, and maintain an Intrusion Detection System (IDS) as described in this section. The Government requires an IDS, which will cover perimeter entry and exit doors, and operable ground-floor windows. Basic Security-in-Depth IDS components include: magnetic door switch(s), alarm system keypad, passive infrared sensor(s) (PIR), an alarm panel (to designated monitoring center) and appropriate communication method i.e. telephone and/or Internet connection, glass-break detector, magnetic window switches or shock sensors. Technical review of the proposed system shall be coordinated with the Government security

representative, at the direction of the Lease Contracting Officer, prior to installation. System testing and acceptance shall be conducted by the Government prior to occupancy.

Basic Security-in-Depth IDS shall be connected to and monitored at a central station operated by the Cincinnati VA Medical Center Police. Emergency notification lists shall be coordinated with the monitoring station to include all applicable Government and lessor points of contact. Monitoring shall be designed to facilitate a real-time detection of an incident and to coordinate an active response to an incident. The Lessor must coordinate with VA Medical Center Police to meet the monitoring requirements for functional IDS. Components which fail or require maintenance or which fail during testing shall be serviced in accordance with the Security System Maintenance Criteria listed below.

Security System Maintenance Criteria: The Lessor, in consultation and coordination with a security provider, either internal or external, as determined by the Lease Contracting Officer, and the Government security representative, shall implement a preventive maintenance program for all security systems the Lessor has installed. Any critical component that becomes inoperable must be replaced or repaired by the Lessor within 5 business days. Critical components are those required to provide security (IDS, CCTV, access control, etc.) for a perimeter access point or critical area. Replacement' may include implementing other temporary measures in instances where the replacement or repair is not achievable within the specified time frame (e .g. a temporary barrier to replace an inoperable pop-up vehicle barrier, etc.). Failure by the Lessor to provide sufficient replacement measures within the timeframe identified above may result in the Government's providing guard service, the cost of which must be reimbursed by the Lessor.

C. DURESS ALARM

(1) LESSOR PROVIDED DESIGN, INSTALLATION, AND MAINTENANCE (TENTANT IMPROVEMENT ALLOWANCE)

The Lessor shall design, install, and maintain a duress alarm system as described:

Technical review shall be coordinated with the Government security representative, at the direction of the Contracting Officer, prior to installation. System testing and acceptance shall be conducted by the Government prior to occupancy. This system shall comply with the Architectural Barriers Act, section F230.0.

The lessor in consultation and coordination with the security provider and Government shall conduct security system performance testing annually. Testing must be based on established, consistent agency specific protocols, documented and furnished to the Contracting Officer. Components which fail or require maintenance or which fail during testing should be serviced in accordance with the Security System Maintenance Criteria listed below.

Duress Alarm Maintenance Criteria: The Lessor in consultation and coordination with a security provider, either internal or external, as determined by the Lease Contracting Officer, and the Government security representative shall implement a preventive maintenance program for all security systems they have installed. Any critical component that becomes inoperable must be replaced or repaired within 5 business days. Critical components are those required to provide security (IDS, CCTV, access control, etc.) for a perimeter access point or critical area.

Replacement may include implementing other temporary measures in instances where the replacement or repair is not achievable within the specified time frame (e.g. a temporary barrier to replace an inoperable popup vehicle barrier, etc.). Failure by the Lessor to provide sufficient replacement measures within the timeframe identified above may result in the Government's providing guard service the cost of which must be reimbursed by the Lessor.

D. PHYSICAL ACCESS CONTROLS SYSTEM

(1) LESSOR PROVIDED DESIGN, INSTALLATION, AND MAINTENANCE (TENTANT IMPROVEMENT ALLOWANCE)

The lessor shall provide a system for monitoring and controlling access to areas identified as requiring high or medium levels of assurance. PACS systems are not used for recording employee time and attendance.

- (a) Access Safeguard. To prevent learning codes through keypad observations or use of stolen or found access cards.
- (b) Time Sensitive. The ability to program access by user, by shift and day.
- (c) Area Sensitive. The ability to program access by door and area for each individual user.
- (d) Fail-Safe. The ability to maintain access security if the system goes down (i.e. bypass key).
- (e) Access Record/Audit Trail. The ability to provide for periodic or on demand print-out of names and time/dates of individual accessing. Records of access or audit trails will not be used for employee time and attendance purposes.
- (f) User Coverage. The number of individual access codes that the system will accommodate.
- (g) Personal Identifier Number (PIN) Codes. Access control systems protecting PACS high security areas, such as controlled substance storage, primary computer and communications rooms, research or clinical laboratories that store, use or develop bio hazardous materials, require a PIN number as a secondary personal authentication to be used in addition to card readers. "Scramble Pad" type PIN readers are recommended when PIN systems are installed. See the table below for specific VA identified required locations.
- (h) Biometric Systems. Biometric security systems are those that use a personal measurement, such as fingerprints, hand geometry, facial geometry or iris scans, as authentication. Biometric devices can be used in lieu of PIN systems in PACS high protected spaces, but only

as a secondary form of authentication. Biometric measurements may also be used in addition to a PIN in high security applications.

- (i) Compliance with Federal Standards. New installations or retrofitted access control systems will be compliant with technology described in Federal Information Processing Standard (FIPS) Publication 201, Personal Identity Verification of Federal Employees and Contractors, and the document "PACS Implementation Guidance, Version 2.2 (July 30, 2004), published by the Physical Access Interagency Interoperability Working Group of the GSA Government Smart Card Interagency Advisory Board. This requires that such systems will meet the ISO/IEC 14443 a, Parts 1-4 standard for contactless (proximity) card systems, or the ISO/IEC 7816 Standard for contact-type cards. Facilities may continue to use existing PACS that operate on older technology (Magnetic Stripe, 2ND Generation bar code, etc.) as an interim measure until replacement systems are acquired and installed as part of normal equipment lifecycles. Further information on VA Smart Card operated PACS requirements can be found in the most recent edition of the document: "Physical Access Control Recommendations for the Department of Veterans Affairs." Guidance and assistance with the standards can be obtained from the OS&LE.
- (j) PACS Assurance Level Designations. PACS provide a level of assurance regarding the identity of persons entering a protected space. The levels of assurance required are determined as a result of vulnerability or risk assessments and physical security surveys. In addition, the following chart indicates minimum requirements for specified VA protected activities. For purposes of this policy, levels of assurance are defined as:

High: Entry requires a valid access card used in conjunction with a secondary form of authentication. Either a Personal Identification Number (PIN) known only to the card holder, or a biometric measurement, or both, is used as the secondary authenticator.

Medium: Entry requires the use of a valid access card.

Low: Entry requires the visual authentication of a valid access card or facility identification card. The card may be inspected by a police officer or other designated staff upon entry into the protected space, or may just require that it is worn at all times in a visible manner; see VA Directive 0730, paragraph 2.n.

Facilities may choose to use a more stringent protection level for any of these locations. In addition, facilities may choose to protect other activities with PACS.

(2) TEMPORARY SECURITY UPGRADE DUE TO IMMEDIATE THREAT (*TENTANT IMPROVEMENT ALLOWANCE*)

The Government reserves the right, at its own expense and with its own personnel, to temporarily heighten security in the building under lease during heightened security conditions due to emergency situations such as terrorist attacks, natural disaster, and civil unrest.

5. STRUCTURE

A. WINDOWS

(1) SHATTER-RESISTANT WINDOW PROTECTION (TENTANT IMPROVEMENT ALLOWANCE)

The Lessor shall provide and install, shatter-resistant material not less than 0.18 millimeters (7 mil) thick on all exterior windows in Government-occupied space meeting the following properties - Film composite strength and elongation rate measured at a strain rate not exceeding 50% per minute shall not be less than the following:

- Yield Strength: 12,000 psi
- Elongation at yield: 3%
- Longitudinal Tensile strength: 22,000 psi
- Traverse Tensile strength: 25,000 psi
- Longitudinal Elongation at break: 90%
- Traverse Elongation at break: 75%

THE ALTERNATIVE METHOD is for the Lessor to provide a window system that conforms to a minimum glazing performance condition of "3b" for a high protection level and a low hazard level. Window systems shall be certified as prescribed by WINGARD PE 4.3 or later to GSA performance condition 3b in accordance with the GSA Standard Test Method for Glazing and Window Systems Subject to Dynamic loadings or Very low Hazard (in accordance with ASTM F 1642, Standard Test Method for Glazing or Glazing Systems Subject to Air Blast loading) in response to air blast load of 4 psi/128 psi-msec.

If the lessor chooses the Alternative Method, they shall provide a description of the shatter resistant window system and provide certification from a licensed professional engineer that the system as offered meets the above standard. Prior to installation, this will be provided for evaluation by the Government whose approval shall not be unreasonably withheld.

6. OPERATIONS AND ADMINISTRATION

A. LESSOR TO WORK WITH FACILITY SAFETY COMMITTEE (SHELL)

The Lessor shall cooperate and work with the VAMC Cincinnati, Safety Committee, throughout the term of the lease. The member of this committee that would engage with the Lessor is the VAMC Chief of Security, currently Chief David Bartos (513-475-6591).

B. ACCESS TO BUILDING INFORMATION (SHELL)

Building Information-including mechanical, Electrical, vertical transport, fire and life safety, security system plans and schematics, computer automation systems, and emergency operations procedures-shall be strictly controlled. Such information shall be released to authorized personnel only, approved by the Government, by the development of an access list and controlled copy numbering. The Contracting Officer may direct that the names and locations of -

Government tenants not be disclosed in any public accessed document or record. If that is the case, the Government may request that such information not be posted in the building directory.

Lessor shall have emergency plans and associated documents readily available in the event of an emergency.

C. EMERGENCY POWER TO CRITICAL SYSTEMS (*TENANT IMPROVEMENT ALLOWANCE*)

Lessor shall provide emergency power backup for all alarm systems, CCTV monitoring devices, fire detection systems, entry control devices, lighting, etc., and special equipment, as identified.

END OF DOCUMENT

Exhibit F

SOLICITATION PROVISIONS (Acquisition of Leasehold Interests in Real Property)

1. 552.270-1 INSTRUCTIONS TO OFFERORS – ACQUISITION OF LEASEHOLD INTERESTS IN REAL PROPERTY (JUN 2011)

(a) Definitions. As used in this provision—

“Discussions” are negotiations that occur after establishment of the competitive range that may, at the Contracting Officer’s discretion, result in the offeror being allowed to revise its proposal.

“In writing, writing or written” means any worded or numbered expression that can be read, reproduced, and later communicated, and includes electronically transmitted and stored information.

“Proposal modification” is a change made to a proposal before the solicitation’s closing date and time, or made in response to an amendment, or made to correct a mistake at any time before award.

“Proposal revision” is a change to a proposal made after the solicitation closing date, at the request of or as allowed by a Contracting Officer as the result of negotiations.

“Time,” if stated as a number of days, is calculated using calendar days, unless otherwise specified, and will include Saturdays, Sundays, and legal holidays. However, if the last day falls on a Saturday, Sunday, or legal holiday, then the period shall include the next working day.

(b) Amendments to solicitations. If this solicitation is amended, all terms and conditions that are not amended remain unchanged. Offerors shall acknowledge receipt of any amendment to this solicitation by the date and time specified in the amendment(s).

(c) Submission, modification, revision, and withdrawal of proposals.

(1) Unless other methods (e.g., electronic commerce or facsimile) are permitted in the solicitation, proposals and modifications to proposals shall be submitted in paper media in sealed envelopes or packages. Offers must be:

(i) Submitted on the forms prescribed and furnished by the Government as a part of this solicitation or on copies of those forms, and

(ii) Signed. The person signing an offer must initial each erasure or change appearing on any offer form. If the offeror is a partnership, the names of the partners composing the firm must be included with the offer.

(2) Late proposals and revisions.

(i) The Government will not consider any proposal received at the office designated in the solicitation after the exact time specified for receipt of offers unless it is received before the Government makes award and it meets at least one of the following conditions:

(A) It was sent by registered or certified mail not later than the fifth calendar day before the date specified for receipt of offers (e.g., an offer submitted in response to a solicitation requiring receipt of offers by the 20th of the month must have been mailed by the 15th).

(B) It was sent by mail (or telegram or facsimile, if authorized) or hand-carried (including delivery by a commercial carrier) if it is determined by the Government that the late receipt was due primarily to Government mishandling after receipt at the Government installation.

(C) It was sent by U.S. Postal Service Express Mail Next Day Service-Post Office to Addressee, not later than 5:00 p.m. at the place of mailing two working days prior to the date specified for receipt of proposals. The term “working days” excludes weekends and U.S. Federal holidays.

(D) It was transmitted through an electronic commerce method authorized by the solicitation and was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of proposals.

(E) There is acceptable evidence to establish that it was received at the activity designated for receipt of offers and was under the Government’s control prior to the time set for receipt of offers, and

that the Contracting Officer determines that accepting the late offer would not unduly delay the procurement.

(F) It is the only proposal received.

(ii) Any modification or revision of a proposal or response to request for information, including any final proposal revision, is subject to the same conditions as in paragraphs (c)(2)(i)(A) through (c)(2)(i)(E) of this provision.

(iii) The only acceptable evidence to establish the date of mailing of a late proposal or modification or revision sent either by registered or certified mail is the U.S. or Canadian Postal Service postmark both on the envelope or wrapper and on the original receipt from the U.S. or Canadian Postal Service. Both postmarks must show a legible date or the proposal, response to a request for information, or modification or revision shall be processed as if mailed late. "Postmark" means a printed, stamped, or otherwise placed impression (exclusive of a postage meter machine impression) that is readily identifiable without further action as having been supplied and affixed by employees of the U.S. or Canadian Postal Service on the date of mailing. Therefore, offerors or respondents should request the postal clerk to place a legible hand cancellation bull's eye postmark on both the receipt and the envelope or wrapper.

(iv) Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the proposal wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.

(v) The only acceptable evidence to establish the date of mailing of a late offer, modification or revision, or withdrawal sent by Express Mail Next Day Service-Post Office to Addressee is the date entered by the post office receiving clerk on the "Express Mail Next Day Service-Post Office to Addressee" label and the postmark on both the envelope or wrapper and on the original receipt from the U.S. Postal Service. "Postmark" has the same meaning as defined in paragraph (c)(2)(iii) of this provision, excluding postmarks of the Canadian Postal Service. Therefore, offerors or respondents should request the postal clerk to place a legible hand cancellation bull's eye postmark on both the receipt and the envelope or wrapper.

(vi) Notwithstanding paragraph (c)(2)(i) of this provision, a late modification or revision of an otherwise successful proposal that makes its terms more favorable to the Government will be considered at any time it is received and may be accepted.

(vii) An offeror may withdraw its proposal by written notice or telegram (including mailgram) received at any time before award. If the solicitation authorizes facsimile proposals, an offeror may withdraw its proposal via facsimile received at any time before award, subject to the conditions specified in the provision entitled "Facsimile Proposals." Proposals may be withdrawn in person by an offeror or an authorized representative, if the representative's identity is made known and the representative signs a receipt for the proposal before award.

(viii) If an emergency or unanticipated event interrupts normal Government processes so that proposals cannot be received at the office designated for receipt of proposals by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of proposals will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume. If no time is specified in the solicitation, the time for receipt is 4:30 p.m., local time, for the designated Government office.

(3) Any information given to a prospective offeror concerning this solicitation will be furnished promptly to all other prospective offerors, if that information is necessary in submitting offers or if the lack of it would be prejudicial to any other prospective offeror.

(4) Offerors may submit modifications to their proposals at any time before the solicitation closing date and time, and may submit modifications in response to an amendment, or to correct a mistake at any time before award.

(5) Offerors may submit revised proposals only if requested or allowed by the Contracting Officer.

(6) The Government will construe an offer to be in full and complete compliance with this solicitation unless the offer describes any deviation in the offer.

(7) Offerors may submit proposals that depart from stated requirements. Such a proposal shall clearly identify why the acceptance of the proposal would be advantageous to the Government. The proposal must clearly identify and explicitly define any deviations from the terms and conditions of the solicitation, as well as the comparative advantage to the Government. The Government reserves the right to amend the solicitation to allow all offerors an opportunity to submit revised proposals based on the revised requirements.

(d) Restriction on disclosure and use of data. An offeror that includes in its proposal data that it does not want disclosed to the public for any purpose, or used by the Government except for evaluation purposes, must meet both of the following conditions:

(1) Mark the title page with the following legend:

This proposal includes data that shall not be disclosed outside the Government and shall not be duplicated, used, or disclosed—in whole or in part—for any purpose other than to evaluate this proposal. If, however, a lease is awarded to this offeror as a result of—or in connection with—the submission of this data, the Government shall have the right to duplicate, use, or disclose the data to the extent provided in the resulting contract. This restriction does not limit the Government's right to use information contained in this data if it is obtained from another source without restriction. The data subject to this restriction are contained in sheets *[insert numbers or other identification of sheets]*.

(2) Mark each sheet of data it wishes to restrict with the following legend:

Use or disclosure of data contained on this sheet is subject to the restriction on the title page of this proposal.

(e) Lease award.

(1) The Government intends to award a lease resulting from this solicitation to the responsible offeror whose proposal represents the best value after evaluation in accordance with the factors and subfactors in the solicitation.

(2) The Government may reject any or all proposals if such action is in the Government's interest.

(3) The Government may waive informalities and minor irregularities in proposals received.

(4) The Government intends to evaluate proposals and award a lease after conducting discussions with offerors whose proposals have been determined to be within the competitive range. If the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals. Therefore, the offeror's initial proposal should contain the offeror's best terms from a price and technical standpoint.

(5) Exchanges with offerors after receipt of a proposal do not constitute a rejection or counteroffer by the Government.

(6) The Government may determine that a proposal is unacceptable if the prices proposed are materially unbalanced between line items or subline items. Unbalanced pricing exists when, despite an acceptable total evaluated price, the price of one or more contract line items is significantly overstated or understated as indicated by the application of cost or price analysis techniques. A proposal may be rejected if the Contracting Officer determines that the lack of balance poses an unacceptable risk to the Government.

(7)) The execution and delivery of the Lease contract by the Government establishes a valid award and contract.

(8) The Government may disclose the following information in postaward debriefings to other offerors:

- (i) The overall evaluated cost or price and technical rating of the successful offeror;
- (ii) The overall ranking of all offerors, when any ranking was developed by the agency during source selection; and
- (iii) A summary of the rationale for award.

(f) Paperwork collection. The information collection requirements contained in this solicitation/contract are either required by regulation or approved by the Office of Management and Budget pursuant to the Paperwork Reduction Act and assigned OMB Control No. 3090-0163.

2. 52.222-24 PREAWARD ON-SITE EQUAL OPPORTUNITY COMPLIANCE EVALUATION (FEB 1999)

If a contract in the amount of \$10 million or more will result from this solicitation, the prospective Contractor and its known first-tier subcontractors with anticipated subcontracts of \$10 million or more shall be subject to a preaward compliance evaluation by the Office of Federal Contract Compliance Programs (OFCCP), unless, within the preceding 24 months, OFCCP has conducted an evaluation and found the prospective Contractor and subcontractors to be in compliance with Executive Order 11246.

3. 552.270-3 PARTIES TO EXECUTE LEASE (JUN 2011)

(a) If the lessor is an individual, that individual shall sign the lease. A lease with an individual doing business as a firm shall be signed by that individual, and the signature shall be followed by the individual's typed, stamped, or printed name and the words, "an individual doing business as _____ [insert name of firm]."

(b) If the Lessor is a partnership, the lease must be signed in the partnership name, followed by the name of the legally authorized partner signing the same, and a copy of either the partnership agreement or current Certificate of Limited Partnership shall accompany the lease.

(c) If the Lessor is a corporation, the lease must be signed in the corporate name, followed by the signature and title of the officer or other person signing the lease on its behalf, duly attested, and, if requested by the Government, evidence of this authority to so act shall be furnished.

(d) If the Lessor is a joint venture, the lease must be signed by each participant in the joint venture in the manner prescribed in paragraphs (a) through (c) of this provision for each type of participant. When a corporation is participating in the joint venture, the corporation shall provide evidence that the corporation is authorized to participate in the joint venture.

(e) If the lease is executed by an attorney, agent, or trustee on behalf of the Lessor, an authenticated copy of the power of attorney, or other evidence to act on behalf of the Lessor, must accompany the lease.

4. 52.233-2 SERVICE OF PROTEST (SEP 2006) (VARIATION)

(Applies to leases over the Simplified Lease Acquisition Threshold.)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer by obtaining written and dated acknowledgment of receipt from the Contracting Officer at the address shown elsewhere in this solicitation.

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

5. 52.215-5 FACSIMILE PROPOSALS (OCT 1997)

(a) Definition. "Facsimile proposal," as used in this provision, means a proposal, revision or modification of a proposal, or withdrawal of a proposal that is transmitted to and received by the Government via facsimile machine.

- (b) Offerors may submit facsimile proposals as responses to this solicitation. Facsimile proposals are subject to the same rules as paper proposals.
- (c) The telephone number of receiving facsimile equipment is: [insert telephone number].
- (d) If any portion of a facsimile proposal received by the Contracting Officer is unreadable to the degree that conformance to the essential requirements of the solicitation cannot be ascertained from the document--
 - (1) The Contracting Officer immediately shall notify the offeror and permit the offeror to resubmit the proposal;
 - (2) The method and time for resubmission shall be prescribed by the Contracting Officer after consultation with the offeror; and
 - (3) The resubmission shall be considered as if it were received at the date and time of the original unreadable submission for the purpose of determining timeliness, provided the offeror complies with the time and format requirements for resubmission prescribed by the Contracting Officer.
- (e) The Government reserves the right to make award solely on the facsimile proposal. However, if requested to do so by the Contracting Officer, the apparently successful offeror promptly shall submit the complete original signed proposal.

6. 552.270-35 SYSTEM FOR AWARD MANAGEMENT – LEASING (JUL 2021)

(a) Definitions. As used in this provision—

“Electronic Funds Transfer (EFT) indicator means a four-character suffix to the unique entity identifier. The suffix is assigned at the discretion of the commercial, nonprofit, or Government entity to establish additional System for Award Management records for identifying alternative EFT accounts (see [subpart 32.11](#)) for the same entity.

“Registered in the System for Award Management (SAM)” means that—

- (1) The Offeror has entered all mandatory information, including the unique entity identifier and the EFT indicator, if applicable, the Commercial and Government Entity (CAGE) code, as well as data required by the Federal Funding Accountability and Transparency Act of 2006 (see [subpart 4.14](#)) into SAM
- (2) The offeror has completed the Core, Assertions, and Representations and Certifications, and Points of Contact sections of the registration in SAM;
- (3) The Government has validated all mandatory data fields, to include validation of the Taxpayer Identification Number (TIN) with the Internal Revenue Service (IRS). The offeror will be required to provide consent for TIN validation to the Government as a part of the SAM registration process; and
- (4) The Government has marked the record “Active”.

“Unique entity identifier” means a number or other identifier used to identify a specific commercial, nonprofit, or Government entity. See www.sam.gov for the designated entity for establishing unique entity identifiers.

- (b)
 - (1) An Offeror is required to be registered in SAM prior to award, and shall continue to be registered during performance, and through final payment of any contract, basic agreement, basic ordering agreement, or blanket purchasing agreement resulting from this solicitation.
 - (2) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation “Unique Entity Identifier” followed by the unique entity identifier that identifies the Offeror's name and address exactly as stated in the offer. The Offeror also shall enter its EFT indicator, if applicable. The unique entity identifier will be used by the Contracting Officer to verify that the Offeror is registered in the SAM.

(c) If the Offeror does not have a unique entity identifier, it should contact the entity designated at www.sam.gov for establishment of the unique entity identifier directly to obtain one. The Offeror should be prepared to provide the following information:

- (1) Company legal business name.
- (2) Tradestyle, doing business, or other name by which your entity is commonly recognized.
- (3) Company physical street address, city, state, and Zip Code.
- (4) Company mailing address, city, state and Zip Code (if separate from physical).
- (5) Company telephone number.
- (6) Date the company was started.
- (7) Number of employees at your location.

- (8) Chief executive officer/key manager.
- (9) Line of business (industry).
- (10) Company headquarters name and address (reporting relationship within your entity).

(d) If the Offeror does not become registered in the SAM database in the time prescribed by the Contracting Officer, the Contracting Officer will proceed to award to the next otherwise successful registered Offeror.

(e) Processing time should be taken into consideration when registering. Offerors who are not registered in SAM should consider applying for registration immediately upon receipt of this solicitation. See <https://www.sam.gov> for information on registration.

7. 52.204-6 UNIQUE ENTITY IDENTIFIER (OCT 2016)

This provision is incorporated by reference.

See <https://www.sam.gov> for information on registration.

8. 52.204-29 FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS – REPRESENTATION AND DISCLOSURES (DEC 2023)

(a) *Definitions.* As used in this provision, *Covered article*, *FASCSA order*, *Intelligence community*, *National security system*, *Reasonable inquiry*, *Sensitive compartmented information*, *Sensitive compartmented information system*, and *Source* have the meaning provided in the clause 52.204–30, Federal Acquisition Supply Chain Security Act Orders—Prohibition.

(b) *Prohibition.* Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the prohibition is set out in an applicable Federal Acquisition Supply Chain Security Act (FASCSA) order, as described in paragraph (b)(1) of FAR 52.204–30, Federal Acquisition Supply Chain Security Act Orders—Prohibition.

(c) *Procedures.* (1) The Offeror shall search for the phrase “FASCSA order” in the System for Award Management (SAM)(<https://www.sam.gov>) for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (b)(1) of FAR 52.204–30, Federal Acquisition Supply Chain Security Act Orders—Prohibition.

(2) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM, but are effective and do apply to the solicitation and resultant contract (see FAR 4.2303(c)(2)).

(3) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(d) *Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (e).

(e) *Disclosures.* The purpose for this disclosure is so the Government may decide whether to issue a waiver. For any covered article, or any products or services produced or provided by a source, if the covered article or the source is subject to an applicable FASCSA order, and the Offeror is unable to represent compliance, then the Offeror shall provide the following information as part of the offer:

(1) Name of the product or service provided to the Government;

(2) Name of the covered article or source subject to a FASCSA order;

(3) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Offeror;

(4) Brand;

(5) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(6) Item description;

(7) Reason why the applicable covered article or the product or service is being provided or used;

(f) *Executive agency review of disclosures.* The contracting officer will review disclosures provided in paragraph (e) to determine if any waiver may be sought. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise subject to a FASCSA order and may instead make an award to an offeror that does not require a waiver.

Exhibit G

GENERAL CLAUSES (Acquisition of Leasehold Interests in Real Property)

CATEGORY	CLAUSE NO.	48 CFR REF.	CLAUSE TITLE
GENERAL	1	GSAR 552.270-4	DEFINITIONS (DEVIATION)
	2	GSAR 552.270-5	SUBLETTING AND ASSIGNMENT (DEVIATION)
	3	GSAR 552.270-11	SUCCESSORS BOUND
	4	GSAR 552.270-23	SUBORDINATION, NON-DISTURBANCE AND ATTORNMEN
	5	GSAR 552.270-24	STATEMENT OF LEASE
	6	GSAR 552.270-25	SUBSTITUTION OF TENANT AGENCY
	7	GSAR 552.270-26	NO WAIVER
	8	GSAR 552.270-27	INTEGRATED AGREEMENT (DEVIATION)
	9	GSAR 552.270-28	MUTUALITY OF OBLIGATION
PERFORMANCE	10	GSAR 552.270-10	DEFAULT BY LESSOR (DEVIATION)
	11	GSAR 552.270-9	INSPECTION – RIGHT OF ENTRY
	12	GSAR 552.270-17	DELIVERY AND CONDITION (DEVIATION)
	13	GSAR 552.270-19	PROGRESSIVE OCCUPANCY
	14	GSAR 552.270-6	MAINTENANCE OF THE PROPERTY, RIGHT TO INSPECT (DEVIATION)
	15	GSAR 552.270-7	FIRE AND CASUALTY DAMAGE (DEVIATION)
	16	GSAR 552.270-8	COMPLIANCE WITH APPLICABLE LAW (DEVIATION)
	17	GSAR 552.270-12	ALTERATIONS
	18	GSAR 552.270-29	ACCEPTANCE OF SPACE AND CERTIFICATE OF OCCUPANCY (DEVIATION)
PAYMENT	19	FAR 52.204-13	SYSTEM FOR AWARD MANAGEMENT MAINTENANCE
	20	GSAR 552.270-31	PROMPT PAYMENT
	21	FAR 52.232-23	ASSIGNMENT OF CLAIMS
	22	GSAR 552.270-20	PAYMENT (DEVIATION)
	23	FAR 52.232-33	PAYMENT BY ELECTRONIC FUNDS TRANSFER—SYSTEM FOR AWARD MANAGEMENT
STANDARDS OF CONDUCT	24	FAR 52.203-13	CONTRACTOR CODE OF BUSINESS ETHICS AND CONDUCT
	25	GSAR 552.270-32	COVENANT AGAINST CONTINGENT FEES
	26	FAR 52.203-7	ANTI-KICKBACK PROCEDURES

LESSOR: _____ GOVERNMENT: _____

	27	FAR 52.223-6	DRUG-FREE WORKPLACE
	28	FAR 52.203-14	DISPLAY OF HOTLINE POSTER(S)
ADJUSTMENTS	29	GSAR 552.270-30	PRICE ADJUSTMENT FOR ILLEGAL OR IMPROPER ACTIVITY
	30	FAR 52.215-10	PRICE REDUCTION FOR DEFECTIVE CERTIFIED COST OR PRICING DATA
	31	GSAR 552.270-13	PROPOSALS FOR ADJUSTMENT
	32	GSAR 552.270-14	CHANGES (DEVIATION)
AUDITS	33	GSAR 552.215-70	EXAMINATION OF RECORDS BY GSA
	34	FAR 52.215-2	AUDIT AND RECORDS—NEGOTIATION
DISPUTES	35	FAR 52.233-1	DISPUTES
LABOR STANDARDS	36	FAR 52.222-26	EQUAL OPPORTUNITY
	37	FAR 52.222-21	PROHIBITION OF SEGREGATED FACILITIES
	38	FAR 52.219-28	POST-AWARD SMALL BUSINESS PROGRAM REREPRESENTATION
	39	FAR 52.222-35	EQUAL OPPORTUNITY FOR VETERANS
	40	FAR 52.222-36	EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES
	41	FAR 52.222-37	EMPLOYMENT REPORTS ON VETERANS
SMALL BUSINESS	42	FAR 52.209-6	PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, OR PROPOSED FOR DEBARMENT
	43	FAR 52.215-12	SUBCONTRACTOR CERTIFIED COST OR PRICING DATA
	44	FAR 52.219-4	NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS
	45	FAR 52.219-8	UTILIZATION OF SMALL BUSINESS CONCERNS
	46	FAR 52.219-9	SMALL BUSINESS SUBCONTRACTING PLAN
	47	FAR 52.219-16	LIQUIDATED DAMAGES—SUBCONTRACTING PLAN
	48	FAR 52.204-10	REPORTING EXECUTIVE COMPENSATION AND FIRST-TIER SUBCONTRACT AWARDS
CYBERSECURITY	49	FAR 52.204-2	SECURITY REQUIREMENTS
	50	FAR 52.204-9	PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL

LESSOR: _____ GOVERNMENT: _____

	51	GSAR 552.204-9	PERSONAL IDENTITY VERIFICATION REQUIREMENTS
	52	FAR 52.204-21	BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS
	53	FAR 52.204-23	PROHIBITION ON CONTRACTING FOR HARDWARE, SOFTWARE, AND SERVICES DEVELOPED OR PROVIDED BY KASPERSKY LAB AND OTHER COVERED ENTITIES
	54	FAR 52.204-25	PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT
	55	FAR 52.204-27	PROHIBITION ON A BYTEDANCE COVERED APPLICATION
	56	FAR 52.204-30	FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS - PROHIBITION
OTHER	57	FAR 52.204-19	INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS
	58	FAR 52.252-2	CLAUSES INCORPORATED BY REFERENCE

The information collection requirements contained in this solicitation/contract that are not required by regulation have been approved by the Office of Management and Budget (OMB) pursuant to the Paperwork Reduction Act and assigned the OMB Control No. 3090-0086.

GENERAL CLAUSES
(Acquisition of Leasehold Interests in Real Property)

1. GSAR 552.270-4 DEFINITIONS (AUG 2023) (DEVIATION)

When a solicitation or contract uses a word or term that is defined in the Federal Acquisition Regulation (FAR) or General Services Acquisition Manual (GSAM), the word or term has the same meaning as the definition in FAR 2.101, GSAM 502.101, or GSAM 570.102 in effect at the time the solicitation was issued or lease contract was awarded, unless

- (a) The solicitation, amended solicitation, or lease contract provides a different definition (e.g., R100, L100);
- (b) An applicable part, subpart, or section of the FAR or GSAM provides a different meaning.

2. GSAR 552.270-5 SUBLETTING AND ASSIGNMENT (SEP 2022) (DEVIATION)

The Government may sublet any part of the premises but shall not be relieved from any obligations under this lease by reason of any such subletting. The Government may at any time assign this lease, and be relieved from all obligations to Lessor under this lease excepting only unpaid rent and other liabilities, if any, that have accrued to the date of said assignment. Any subletting or assignment shall be subject to prior written consent of the Lessor, which shall not be unreasonably withheld.

3. GSAR 552.270-11 SUCCESSORS BOUND (SEP 1999)

This lease shall bind, and inure to the benefit of, the parties and their respective heirs, executors, administrators, successors, and assigns.

4. GSAR 552.270-23 SUBORDINATION, NON-DISTURBANCE AND ATTORNMENT (SEP 1999)

- (a) Lessor warrants that it holds such title to or other interest in the premises and other property as is necessary to the Government's access to the premises and full use and enjoyment thereof in accordance with the provisions of this lease. Government agrees, in consideration of the warranties and conditions set forth in this clause, that this lease is subject and subordinate to any and all recorded mortgages, deeds of trust and other liens now or hereafter existing or imposed upon the premises, and to any renewal, modification or extension thereof. It is the intention of the parties that this provision shall be self-operative and that no further instrument shall be required to effect the present or subsequent subordination of this lease. Government agrees, however, within twenty (20) business days next following the Contracting Officer's receipt of a written demand, to execute such instruments as Lessor may reasonably request to evidence further the subordination of this lease to any existing or future mortgage, deed of trust or other security interest pertaining to the premises, and to any water, sewer or access easement necessary or desirable to serve the premises or adjoining property owned in whole or in part by Lessor if such easement does not interfere with the full enjoyment of any right granted the Government under this lease.
- (b) No such subordination, to either existing or future mortgages, deeds of trust or other lien or security instrument shall operate to affect adversely any right of the Government under this lease so long as the Government is not in default under this lease. Lessor will include in any future mortgage, deed of trust or other security instrument to which this lease becomes subordinate, or in a separate non-disturbance agreement, a provision to the foregoing effect. Lessor warrants that the holders of all notes or other obligations secured by existing mortgages, deeds of trust or other security instruments have consented to the provisions of this clause, and agrees to provide true copies of all such consents to the Contracting Officer promptly upon demand.
- (c) In the event of any sale of the premises or any portion thereof by foreclosure of the lien of any such mortgage, deed of trust or other security instrument, or the giving of a deed in lieu of foreclosure, the Government will be deemed to have attorned to any purchaser, purchasers, transferee or transferees of the premises or any portion thereof and its or their successors and assigns, and any such purchasers and transferees will be deemed to have assumed all obligations of the Lessor under this lease, so as to establish direct privity of

LESSOR: _____ GOVERNMENT: _____

estate and contract between Government and such purchasers or transferees, with the same force, effect and relative priority in time and right as if the lease had initially been entered into between such purchasers or transferees and the Government; provided, further, that the Contracting Officer and such purchasers or transferees shall, with reasonable promptness following any such sale or deed delivery in lieu of foreclosure, execute all such revisions to this lease, or other writings, as shall be necessary to document the foregoing relationship.

- (d) None of the foregoing provisions may be deemed or construed to imply a waiver of the Government's rights as a sovereign.

5. GSAR 552.270-24 STATEMENT OF LEASE (SEP 1999)

- (a) The Contracting Officer will, within thirty (30) days next following the Contracting Officer's receipt of a joint written request from Lessor and a prospective lender or purchaser of the building, execute and deliver to Lessor a letter stating that the same is issued subject to the conditions stated in this clause and, if such is the case, that (1) the lease is in full force and effect; (2) the date to which the rent and other charges have been paid in advance, if any; and (3) whether any notice of default has been issued.
- (b) Letters issued pursuant to this clause are subject to the following conditions:
- (1) That they are based solely upon a reasonably diligent review of the Contracting Officer's lease file as of the date of issuance;
 - (2) That the Government shall not be held liable because of any defect in or condition of the premises or building;
 - (3) That the Contracting Officer does not warrant or represent that the premises or building comply with applicable Federal, State and local law; and
 - (4) That the Lessor, and each prospective lender and purchaser are deemed to have constructive notice of such facts as would be ascertainable by reasonable pre-purchase and pre-commitment inspection of the Premises and Building and by inquiry to appropriate Federal, State and local Government officials.

6. GSAR 552.270-25 SUBSTITUTION OF TENANT AGENCY (SEP 1999)

The Government may, at any time and from time to time, substitute any Government agency or agencies for the Government agency or agencies, if any, named in the lease.

7. GSAR 552.270-26 NO WAIVER (SEP 1999)

No failure by either party to insist upon the strict performance of any provision of this lease or to exercise any right or remedy consequent upon a breach thereof, and no acceptance of full or partial rent or other performance by either party during the continuance of any such breach shall constitute a waiver of any such breach of such provision.

8. GSAR 552.270-27 INTEGRATED AGREEMENT (SEP 2022) (DEVIATION)

This lease, upon execution, contains the entire agreement of the parties and no prior written or oral agreement, express or implied, shall be admissible to contradict the provisions of the lease. Except as expressly attached to and made a part of the lease, neither the request for lease proposals nor any pre-award communications by either party shall be incorporated in the lease.

9. GSAR 552.270-28 MUTUALITY OF OBLIGATION (SEP 1999)

The obligations and covenants of the Lessor, and the Government's obligation to pay rent and other Government obligations and covenants, arising under or related to this Lease, are interdependent. The Government may, upon

LESSOR: _____ GOVERNMENT: _____

issuance of and delivery to Lessor of a final decision asserting a claim against Lessor, set off such claim, in whole or in part, as against any payment or payments then or thereafter due the Lessor under this lease. No setoff pursuant to this clause shall constitute a breach by the Government of this lease.

10. GSAR 552.270-10 DEFAULT BY LESSOR (JUL 2023) (DEVIATION)

Occurrence of the following constitutes default by the Lessor and gives rise to the following rights and remedies of the Government:

- (a) *Prior to acceptance of the space.* Failure by the Lessor to perform diligently any obligations required for acceptance of the space or other required improvements within the times specified, other than due to an excusable delay, shall constitute a default by the Lessor. Subject to provision of notice of default to the Lessor, and provision of a reasonable opportunity for the Lessor to cure its default, the Government may, in its sole discretion, terminate the lease on account of the Lessor's default.
- (b) *After acceptance of the space.* Failure by the Lessor to perform any service, to provide any item, or satisfy any requirement of this lease, other than due to an excusable delay, constitutes a default by the Lessor. Subject to provision of notice of default to the Lessor, and provision of a reasonable opportunity for the Lessor to cure its default, the Government may, in its sole discretion, take one or more of the following actions:
 - (1) Perform the service, provide the item, or obtain satisfaction of the requirement by its own employees or contractors. If the Government elects to take such action, the Government may deduct from rental payments its costs, including administrative costs, incurred in connection with taking the action;
 - (2) Reduce the rent by an amount reasonably calculated to approximate the cost or value of the service not performed, item not provided, or requirement not satisfied, such reduction effective as of the date of the commencement of the default condition. If default renders the leased premises untenable, the reduction of rent may be calculated as the prorated portion of the monthly rent represented by all such days the leased premises is untenable;
 - (3) Terminate the lease if:
 - (i) The Lessor's default persists notwithstanding provision of notice and reasonable opportunity to cure by the Government, or
 - (ii) The Lessor fails to take such actions as are necessary to prevent the recurrence of default conditions, and such conditions substantially impair the safe and healthful occupancy of the premises, or render the premises unusable for its intended purposes.
- (c) *Damages.* The Lessor and the Lessor sureties, if any, are jointly and severally liable for any damages to the Government resulting from default or termination, as provided in this clause.
 - (1) Damages include all costs associated with the replacement lease(s), which include but are not limited to the following: the Government's aggregate rent, estimated real estate taxes, operating costs, administrative costs, or other procurement costs.
 - (2) If the Government procures replacement premises for a term (including all option terms) in excess of this lease term, the Lessor is not liable for excess Government rent or adjustments during such excess lease term.
 - (3) Damages to which the Government is entitled to under this clause are due and payable thirty (30) days following the date the Lessor receives notice from the Contracting Officer specifying such damages.

LESSOR: _____ GOVERNMENT: _____

(d) *Excusable delays.*

- (1) The Government shall not terminate this lease under this clause nor charge the Lessor with damages under this clause, if:
 - (i) the delay in substantially completing any work or performing any services arises from excusable delays, and
 - (ii) the Lessor, within ten (10) days from the beginning of any such delay (unless extended in writing by the Contracting Officer) provides notice to the Contracting Officer of the causes of delay.
- (2) The Contracting Officer shall ascertain the facts and the extent of delay. If the facts warrant, the Contracting Officer shall extend the delivery date commensurate with the delay at no additional costs to the Government. A time extension is the sole remedy of the Lessor.
- (e) No deduction from rent, termination of lease, or any other action pursuant to this clause will constitute a default by the Government under this lease.
- (f) The rights and remedies specified in this clause are in addition to any and all remedies to which the Government may be entitled as a matter of law.

11. GSAR 552.270-9

INSPECTION – RIGHT OF ENTRY (SEP 1999)

- a) At any time and from time to time after receipt of an offer (until the same has been duly withdrawn or rejected), after acceptance thereof and during the term, the agents, employees and contractors of the Government may, upon reasonable prior notice to Offeror or Lessor, enter upon the offered premises or the premises, and all other areas of the building access to which is necessary to accomplish the purposes of entry, to determine the potential or actual compliance by the Offeror or Lessor with the requirements of the solicitation or this lease, which purposes shall include, but not be limited to:
 - (1) Inspecting, sampling and analyzing suspected asbestos-containing materials and air monitoring for asbestos fibers;
 - (2) Inspecting the heating, ventilation and air conditioning system, maintenance records, and mechanical rooms for the offered premises or the premises;
 - (3) Inspecting for any leaks, spills, or other potentially hazardous conditions which may involve tenant exposure to hazardous or toxic substances; and
 - (4) Inspecting for any current or past hazardous waste operations, to ensure that appropriate mitigative actions were taken to alleviate any environmentally unsound activities in accordance with Federal, State and local law.
- b) Nothing in this clause shall be construed to create a Government duty to inspect for toxic materials or to impose a higher standard of care on the Government than on other lessees. The purpose of this clause is to promote the ease with which the Government may inspect the building. Nothing in this clause shall act to relieve the Lessor of any duty to inspect or liability which might arise as a result of Lessor's failure to inspect for or correct a hazardous condition.

12. GSAR 552.270-17

DELIVERY AND CONDITION (SEP 2022) (DEVIATION)

- (a) Unless the Government elects to have the space occupied in increments, the space must be delivered ready for occupancy as a complete unit.
- (b) The Government may elect to accept the space notwithstanding the Lessor's failure to deliver the space substantially complete; if the Government so elects, it may reduce the rent payments.

LESSOR: _____ GOVERNMENT: _____

13. GSAR 552.270-19**PROGRESSIVE OCCUPANCY (SEP 1999)**

The Government shall have the right to elect to occupy the space in partial increments prior to the substantial completion of the entire leased premises, and the Lessor agrees to schedule its work so as to deliver the space incrementally as elected by the Government. The Government shall pay rent commencing with the first business day following substantial completion of the entire leased premise unless the Government has elected to occupy the leased premises incrementally. In case of incremental occupancy, the Government shall pay rent pro rata upon the first business day following substantial completion of each incremental unit. Rental payments shall become due on the first workday of the month following the month in which an increment of space is substantially complete, except that should an increment of space be substantially completed after the fifteenth day of the month, the payment due date will be the first workday of the second month following the month in which it was substantially complete. The commencement date of the firm lease term will be a composite determined from all rent commencement dates.

14. GSAR 552.270-6**MAINTENANCE OF THE PROPERTY, RIGHT TO INSPECT (SEP 2022) (DEVIATION)**

The Lessor shall maintain the property, including the building, building systems, and all equipment, fixtures, and appurtenances furnished by the Lessor under this lease, in good repair and tenantable condition so that they are suitable in appearance and capable of supplying such heat, air conditioning, light, ventilation, safety systems, access and other things to the premises, without reasonably preventable or recurring disruption, as is required for the Government's access to, occupancy, possession, use and enjoyment of the premises as provided in this lease.

- (a) For the purpose of so maintaining the premises, the Lessor may at reasonable times enter the premises with the approval of the authorized Government representative in charge.
- (b) Upon request of the Lease Contracting Officer (LCO), the Lessor shall provide written documentation that building systems have been properly maintained, tested, and are operational within manufacturer's warranted operating standards.
- (c) The Lessor shall maintain the premises in a safe and healthful condition according to applicable OSHA standards and all other requirements of this lease, including standards governing indoor air quality, existence of mold and other biological hazards, presence of hazardous materials, etc.
- (d) The Government shall have the right, at any time after the lease award date and during the term of the lease, to inspect all areas of the property to which access is necessary for the purpose of determining the Lessor's compliance with this clause.

15. GSAR 552.270-7**FIRE AND CASUALTY DAMAGE (SEP 2022) (DEVIATION)**

- (a) If the building in which the premises are located is totally destroyed or damaged by fire or other casualty, this lease shall immediately terminate.
- (b) If the building in which the premises are located are only partially destroyed or damaged, so as to render the premises untenable, or not usable for their intended purpose:
 - (1) The Lessor shall have the option to elect to repair and restore the premises or terminate the lease.
 - (2) Unless otherwise approved by the Lease Contracting Officer, the Lessor shall be permitted a reasonable amount of time, not to exceed 270 days from the event of destruction or damage, to repair or restore the premises, provided that the Lessor submits to the Government a reasonable schedule for repair of the premises within 60 days of the event of destruction or damage.
 - (i) If the Lessor fails to timely submit a reasonable schedule for completing the work, the Government may elect to terminate the lease effective as of the date of the event of destruction or damage.
 - (ii) If the Lessor elects to repair or restore the premises, but fails to repair or restore the premises within 270 days from the event of destruction or damage, or fails to diligently pursue such repairs or restoration so as to render timely completion commercially impracticable, the Government may terminate the lease effective as of the date of the destruction or damage.

- (3) During the time that the premises are unoccupied, rent shall be abated. Termination of the lease by either party under this clause shall not give rise to liability for either party.
- (4) Nothing in this lease shall be construed as relieving Lessor from liability for damage to or destruction of property of the United States of America caused by the willful or negligent act or omission of Lessor.

16. GSAR 552.270-8

COMPLIANCE WITH APPLICABLE LAW (SEP 2022) (DEVIATION)

Lessor shall comply with all Federal, state, tribal, and local laws applicable to its ownership and leasing of the property, including, without limitation, laws applicable to the construction, ownership, alteration or operation of all buildings, structures, and facilities located thereon, and obtain all necessary permits, licenses and similar items at its own expense. The Government will comply with all Federal, state, tribal, and local laws applicable to and enforceable against it as a tenant under this lease, provided that nothing in this lease shall be construed as a waiver of the sovereign immunity of the Government. This lease shall be governed by Federal law.

17. GSAR 552.270-12

ALTERATIONS (SEP 1999)

The Government shall have the right during the existence of this lease to make alterations, attach fixtures, and erect structures or signs in or upon the premises hereby leased, which fixtures, additions or structures so placed in, on, upon, or attached to the said premises shall be and remain the property of the Government and may be removed or otherwise disposed of by the Government. If the lease contemplates that the Government is the sole occupant of the building, for purposes of this clause, the leased premises include the land on which the building is sited and the building itself. Otherwise, the Government shall have the right to tie into or make any physical connection with any structure located on the property as is reasonably necessary for appropriate utilization of the leased space.

**18. GSAR 552.270-29
(DEVIATION)**

ACCEPTANCE OF SPACE AND CERTIFICATE OF OCCUPANCY (SEP 2022)

- (a) Ten (10) working days prior to the completion of the space, the Lessor shall issue written notice to the Government to schedule the inspection of the space for acceptance. The Government shall accept the space only if the construction of building shell and tenant improvements conforming to this lease and the approved design intent drawings (DIDs) is substantially complete, and a certificate of occupancy has been issued as set forth below.
- (b) The space shall be considered substantially complete only if the space may be used for its intended purpose and completion of remaining work will not unreasonably interfere with the Government's enjoyment of the space. Acceptance shall be final and binding upon the Government with respect to conformance of the completed tenant improvements to the approved DIDs, with the exception of items identified on a punchlist generated as a result of the inspection, concealed conditions, latent defects, or fraud, but shall not relieve the Lessor of any other lease requirements.
- (c) The Lessor shall provide a valid certificate of occupancy, issued by the local jurisdiction, for the intended use of the Government. If the local jurisdiction does not issue certificates of occupancy or if the certificate of occupancy is not available, the Lessor may satisfy this condition by providing a report prepared by a licensed fire protection engineer that indicates that the premises and building are compliant with all applicable local codes and ordinances and all fire protection and life safety-related requirements of this lease to ensure an acceptable level of safety is provided. Under such circumstances, the Government shall only accept the space without a certificate of occupancy if a licensed fire protection engineer determines that the offered space is compliant with all applicable local codes and ordinances and fire protection and life safety-related requirements of this lease.

LESSOR: _____ GOVERNMENT: _____

This clause is incorporated by reference.

The Government will make payments under the terms and conditions specified in this clause. Payment shall be considered as being made on the day a check is dated or an electronic funds transfer is made. All days referred to in this clause are calendar days, unless otherwise specified.

(a) *Payment due date—*

- (1) *Rental payments.* Rent shall be paid monthly in arrears and will be due on the first workday of each month, and only as provided for by the lease.
 - (i) When the date for commencement of rent falls on the 15th day of the month or earlier, the initial monthly rental payment under this contract shall become due on the first workday of the month following the month in which the commencement of the rent is effective.
 - (ii) When the date for commencement of rent falls after the 15th day of the month, the initial monthly rental payment under this contract shall become due on the first workday of the second month following the month in which the commencement of the rent is effective.
- (2) *Other payments.* The due date for making payments other than rent shall be the later of the following two events:
 - (i) The 30th day after the designated billing office has received a proper invoice from the Contractor.
 - (ii) The 30th day after Government acceptance of the work or service. However, if the designated billing office fails to annotate the invoice with the actual date of receipt, the invoice payment due date shall be deemed to be the 30th day after the Contractor's invoice is dated, provided a proper invoice is received and there is no disagreement over quantity, quality, or Contractor compliance with contract requirements.

(b) *Invoice and inspection requirements for payments other than rent.*

- (1) The Contractor shall prepare and submit an invoice to the designated billing office after completion of the work. A proper invoice shall include the following items:
 - (i) Name and address of the Contractor.
 - (ii) Invoice date.
 - (iii) Lease number.
 - (iv) Government's order number or other authorization.
 - (v) Description, price, and quantity of work or services delivered.
 - (vi) Name and address of Contractor official to whom payment is to be sent (must be the same as that in the remittance address in the lease or the order).
 - (vii) Name (where practicable), title, phone number, and mailing address of person to be notified in the event of a defective invoice.

- (2) The Government will inspect and determine the acceptability of the work performed or services delivered within seven days after the receipt of a proper invoice or notification of completion of the work or services unless a different period is specified at the time the order is placed. If actual acceptance occurs later, for the purpose of determining the payment due date and calculation of interest, acceptance will be deemed to occur on the last day of the seven day inspection period. If the work or service is rejected for failure to conform to the technical requirements of the contract, the seven days will be counted beginning with receipt of a new invoice or notification. In either case, the Contractor is not entitled to any payment or interest unless actual acceptance by the Government occurs.

(c) *Interest Penalty.*

- (1) An interest penalty shall be paid automatically by the Government, without request from the Contractor, if payment is not made by the due date.
- (2) The interest penalty shall be at the rate established by the Secretary of the Treasury under Section 12 of the Contract Disputes Act of 1978 (41 U.S.C. 611) that is in effect on the day after the due date. This rate is referred to as the "Renegotiation Board Interest Rate," and it is published in the **Federal Register** semiannually on or about January 1 and July 1. The interest penalty shall accrue daily on the payment amount approved by the Government and be compounded in 30-day increments inclusive from the first day after the due date through the payment date.
- (3) Interest penalties will not continue to accrue after the filing of a claim for such penalties under the clause at 52.233-1, Disputes, or for more than one year. Interest penalties of less than \$1.00 need not be paid.
- (4) Interest penalties are not required on payment delays due to disagreement between the Government and Contractor over the payment amount or other issues involving contract compliance or on amounts temporarily withheld or retained in accordance with the terms of the contract. Claims involving disputes, and any interest that may be payable, will be resolved in accordance with the clause at 52.233-1, Disputes.

(d) *Overpayments.* If the Lessor becomes aware of a duplicate payment or that the Government has otherwise overpaid on a payment, the Contractor shall—

- (1) Return the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the—
 - (i) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);
 - (ii) Affected lease number; (iii) Affected lease line item or sub-line item, if applicable; and
 - (iii) Lessor point of contact.
- (2) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

21. FAR 52.232-23

ASSIGNMENT OF CLAIMS (MAY 2014)

(Applicable to leases over the micro-purchase threshold.)

- (a) The Contractor, under the Assignment of Claims Act, as amended, [31 U.S.C. 3727](#), [41 U.S.C. 6305](#) (hereafter referred to as "the Act"), may assign its rights to be paid amounts due or to become due as a result of the performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency. The assignee under such an assignment may thereafter further assign or

LESSOR: _____ GOVERNMENT: _____

reassign its right under the original assignment to any type of financing institution described in the preceding sentence.

- (b) Any assignment or reassignment authorized under the Act and this clause shall cover all unpaid amounts payable under this contract, and shall not be made to more than one party, except that an assignment or reassignment may be made to one party as agent or trustee for two or more parties participating in the financing of this contract.
- (c) The Contractor shall not furnish or disclose to any assignee under this contract any classified document (including this contract) or information related to work under this contract until the Contracting Officer authorizes such action in writing.

22. GSAR 552.270-20 PAYMENT (AUG 2023) (DEVIATION)

- (a) When space is offered and accepted, ANSI/BOMA Occupant Area (ABOA) square footage delivered will be confirmed by either:
 - (1) The Government's measurement of plans submitted by the successful offeror as approved by the Government, and an inspection of the space to verify that the delivered space conforms with such plans; or
 - (2) A mutual on-site measurement of the space if the Contracting Officer determines it necessary.
- (b) The Government will not pay for space in excess of the amount of ABOA square footage stated in the lease.
- (c) If the amount of ABOA square footage delivered is less than the amount agreed to in the lease, the lease will be modified to reflect the amount of ABOA space delivered and the annual rental will be adjusted as follows:

ABOA square feet not delivered multiplied by one plus the common area factor (CAF), multiplied by the rate per rentable square foot (RSF). That is:

$$(1 + \text{CAF}) \times \text{Rate per RSF} = \text{Reduction in Annual Rent}$$

- (d) Common Area Factor (CAF). The CAF is expressed as a percentage of the difference between the amount of rentable square feet (SF) and ABOA SF, divided by the ABOA SF. For example 11,500 RSF and 10,000 ABOA SF will have a CAF of 15% $(11,500 \text{ RSF} - 10,000 \text{ ABOA SF}) / 10,000 \text{ ABOA SF}$.
- (e) Rentable Square Footage (RSF). The RSF is calculated using the following formula for each type of space (e.g., office, warehouse, etc.) included in the premises: $\text{ABOA SF of Space} \times (1 + \text{CAF}) = \text{RSF}$.

23. FAR 52.232-33 PAYMENT BY ELECTRONIC FUNDS TRANSFER—SYSTEM FOR AWARD MANAGEMENT (OCT 2018)

This clause is incorporated by reference.

24. FAR 52.203-13 CONTRACTOR CODE OF BUSINESS ETHICS AND CONDUCT (NOV 2021)

(Applicable to leases over \$6 million total contract value and performance period is 120 days or more.)

This clause is incorporated by reference.

25. GSAR 552.270-32 COVENANT AGAINST CONTINGENT FEES (JUN 2011)

(Applicable to leases over the Simplified Lease Acquisition Threshold.)

- (a) The Contractor warrants that no person or agency has been employed or retained to solicit or obtain this contract upon an agreement or understanding for a contingent fee, except a bona fide employee or agency. For breach or violation of this warranty, the Government shall have the right to annul this contract without liability or, in its discretion, to deduct from the contract price or consideration, or otherwise recover the full amount of the contingent fee.
- (b) *Bona fide agency*, as used in this clause, means an established commercial or selling agency (including licensed real estate agents or brokers), maintained by a Contractor for the purpose of securing business, that neither exerts nor proposes to exert improper influence to solicit or obtain Government contracts nor holds itself out as being able to obtain any Government contract or contracts through improper influence.
 - (1) *Bona fide employee*, as used in this clause, means a person, employed by a Contractor and subject to the Contractor's supervision and control as to time, place, and manner of performance, who neither exerts nor proposes to exert improper influence to solicit or obtain Government contracts nor holds out as being able to obtain any Government contract or contracts through improper influence.
 - (2) *Contingent fee*, as used in this clause, means any commission, percentage, brokerage, or other fee that is contingent upon the success that a person or concern has in securing a Government contract.
 - (3) *Improper influence*, as used in this clause, means any influence that induces or tends to induce a Government employee or officer to give consideration or to act regarding a Government contract on any basis other than the merits of the matter.

26. FAR 52.203-7 ANTI-KICKBACK PROCEDURES (JUN 2020)

(Applicable to leases over \$150,000 total contract value.)

This clause is incorporated by reference.

27. FAR 52.223-6 DRUG-FREE WORKPLACE (MAY 2001)

(Applicable to leases over the Simplified Lease Acquisition Threshold, as well as to leases of any value awarded to an individual.)

This clause is incorporated by reference.

28. FAR 52.203-14**DISPLAY OF HOTLINE POSTER(S) (NOV 2021)**

(Applicable to leases over \$6 Million total contract value.)

This clause is incorporated by reference.

29. GSAR 552.270-30**PRICE ADJUSTMENT FOR ILLEGAL OR IMPROPER ACTIVITY (JUN 2011)**

(Applicable to leases over the Simplified Lease Acquisition Threshold.)

- (a) If the head of the contracting activity (HCA) or his or her designee determines that there was a violation of subsection 27(a) of the Office of Federal Procurement Policy Act, as amended (41 U.S.C. 423), as implemented in the Federal Acquisition Regulation, the Government, at its election, may—
 - (1) Reduce the monthly rental under this lease by five percent of the amount of the rental for each month of the remaining term of the lease, including any option periods, and recover five percent of the rental already paid;
 - (2) Reduce payments for alterations not included in monthly rental payments by five percent of the amount of the alterations agreement; or
 - (3) Reduce the payments for violations by a Lessor's subcontractor by an amount not to exceed the amount of profit or fee reflected in the subcontract at the time the subcontract was placed.
- (b) Prior to making a determination as set forth above, the HCA or designee shall provide to the Lessor a written notice of the action being considered and the basis thereof. The Lessor shall have a period determined by the agency head or designee, but not less than 30 calendar days after receipt of such notice, to submit in person, in writing, or through a representative, information and argument in opposition to the proposed reduction. The agency head or designee may, upon good cause shown, determine to deduct less than the above amounts from payments.
- (c) The rights and remedies of the Government specified herein are not exclusive, and are in addition to any other rights and remedies provided by law or under this lease.

**30. FAR 52.215-10
2011)****PRICE REDUCTION FOR DEFECTIVE CERTIFIED COST OR PRICING DATA (AUG 2011)**

(Applicable when cost or pricing data are required for work or services over \$2,000,000.)

This clause is incorporated by reference.

31. GSAR 552.270-13**PROPOSALS FOR ADJUSTMENT (OCT 2016)**

This clause is incorporated by reference.

32. GSAR 552.270-14**CHANGES (SEP 2022) (DEVIATION)**

- (a) The Lease Contracting Officer (LCO) may at any time, by written order, direct changes to the tenant improvements within the space, building security requirements, or the services required under the lease.
- (b) If any such change causes an increase or decrease in Lessor's cost or time required for performance of its obligations under this lease, whether or not changed by the order, the Lessor shall be entitled to an amendment to the lease providing for one or more of the following:
 - (1) An adjustment of the delivery date.
 - (2) An equitable adjustment in the rental rate.

LESSOR: _____ GOVERNMENT: _____

- (3) A lump sum equitable adjustment. or
- (4) An adjustment of the operating cost base, if applicable.
- (c) The Lessor must assert its right to an amendment under this clause within 30 days from the date of receipt of the change order and must submit a proposal for adjustment. Failure to agree to any adjustment shall be a dispute under the Disputes clause. However, the pendency of an adjustment or existence of a dispute shall not excuse the Lessor from proceeding with the change as directed.
- (d) Absent a written change order from the LCO, or from a Government official to whom the LCO has explicitly and in writing delegated the authority to direct changes, the Government is not liable to Lessor under this clause.

33. GSAR 552.215-70 EXAMINATION OF RECORDS BY GSA (JUN 2016)

(Applicable to leases over the Simplified Lease Acquisition Threshold.)

This clause is incorporated by reference.

34. FAR 52.215-2 AUDIT AND RECORDS—NEGOTIATION (JUN 2020)

(Applicable to leases over the Simplified Lease Acquisition Threshold.)

This clause is incorporated by reference.

35. FAR 52.233-1 DISPUTES (MAY 2014)

This clause is incorporated by reference.

36. FAR 52.222-26 EQUAL OPPORTUNITY (SEP 2016)

This clause is incorporated by reference.

37. FAR 52.222-21 PROHIBITION OF SEGREGATED FACILITIES (APR 2015)

This clause is incorporated by reference.

38. FAR 52.219-28 POST-AWARD SMALL BUSINESS PROGRAM REREPRESENTATION (SEP 2023)

(Applicable to leases exceeding the micro-purchase threshold.)

This clause is incorporated by reference.

39. FAR 52.222-35 EQUAL OPPORTUNITY FOR VETERANS (JUN 2020)

(Applicable to leases \$150,000 or more, total contract value.)

- (a) *Definitions.* As used in this clause-

“Active duty wartime or campaign badge veteran,” “Armed Forces service medal veteran,” “disabled veteran,” “protected veteran,” “qualified disabled veteran,” and “recently separated veteran” have the meanings given at Federal Acquisition Regulation (FAR) [22.1301](#).

- (b) Equal opportunity clause. The Contractor shall abide by the requirements of the equal opportunity clause at 41 CFR 60-300.5(a), as of March 24, 2014. This clause prohibits discrimination against qualified protected veterans, and requires affirmative action by the Contractor to employ and advance in employment qualified protected veterans.

LESSOR: _____ GOVERNMENT: _____

- (c) Subcontracts. The Contractor shall insert the terms of this clause in subcontracts valued at or above the threshold specified in FAR [22.1303](#)(a) on the date of subcontract award, unless exempted by rules, regulations, or orders of the Secretary of Labor. The Contractor shall act as specified by the Director, Office of Federal Contract Compliance Programs, to enforce the terms, including action for noncompliance. Such necessary changes in language may be made as shall be appropriate to identify properly the parties and their undertakings.

40. FAR 52.222-36 EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES (JUN 2020)

(Applicable to leases over \$15,000 total contract value.)

- (a) Equal opportunity clause. The Contractor shall abide by the requirements of the equal opportunity clause at 41 CFR 60-741.5(a), as of March 24, 2014. This clause prohibits discrimination against qualified individuals on the basis of disability, and requires affirmative action by the Contractor to employ and advance in employment qualified individuals with disabilities.
- (b) Subcontracts. The Contractor shall include the terms of this clause in every subcontract or purchase order in excess of the threshold specified in Federal Acquisition Regulation (FAR) [22.1408](#)(a) on the date of subcontract award, unless exempted by rules, regulations, or orders of the Secretary, so that such provisions will be binding upon each subcontractor or vendor. The Contractor shall act as specified by the Director, Office of Federal Contract Compliance Programs of the U.S. Department of Labor, to enforce the terms, including action for noncompliance. Such necessary changes in language may be made as shall be appropriate to identify properly the parties and their undertakings.

41. FAR 52.222-37 EMPLOYMENT REPORTS ON VETERANS (JUN 2020)

(Applicable to leases \$150,000 or more, total contract value.)

This clause is incorporated by reference.

42. FAR 52.209-6 PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, OR PROPOSED FOR DEBARMENT (NOV 2021)

(Applicable to leases over \$35,000 total contract value.)

This clause is incorporated by reference.

43. FAR 52.215-12 SUBCONTRACTOR CERTIFIED COST OR PRICING DATA (JUN 2020)

(Applicable if over \$2,000,000 total contract value.)

This clause is incorporated by reference.

44. FAR 52.219-4 NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS (OCT 2022)

This clause is incorporated by reference.

45. FAR 52.219-8 UTILIZATION OF SMALL BUSINESS CONCERNS (SEP 2023)

(Applicable to leases over the Simplified Lease Acquisition Threshold.)

This clause is incorporated by reference.

LESSOR: _____ GOVERNMENT: _____

46. FAR 52.219-9 SMALL BUSINESS SUBCONTRACTING PLAN (SEP 2023) ALTERNATE III (JUN 2020)

(Applicable to leases over \$750,000 total contract value.)

This clause is incorporated by reference.

47. FAR 52.219-16 LIQUIDATED DAMAGES—SUBCONTRACTING PLAN (SEP 2021)

(Applicable to leases over \$750,000 total contract value.)

This clause is incorporated by reference.

48. FAR 52.204-10 REPORTING EXECUTIVE COMPENSATION AND FIRST-TIER SUBCONTRACT AWARDS (JUN 2020)

(Applicable if over \$30,000 total contract value.)

This clause is incorporated by reference.

49. FAR 52.204-2 SECURITY REQUIREMENTS (MAR 2021)

(Applicable when the contract may require access to classified information.)

This clause is incorporated by reference.

50. FAR 52.204-9 PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL (JAN 2011)

This clause is incorporated by reference.

51. GSAR 552.204-9 PERSONAL IDENTITY VERIFICATION REQUIREMENTS (APR 2023)

This clause is incorporated by reference.

52. FAR 52.204-21 BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS (NOV 2021)

(a) *Definitions.* As used in this clause—

Covered contractor information system means an information system that is owned or operated by a contractor that processes, stores, or transmits Federal contract information.

Federal contract information means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government, but not including information provided by the Government to the public (such as on public websites) or simple transactional information, such as necessary to process payments.

Information means any communication or representation of knowledge such as facts, data, or opinions, in any medium or form, including textual, numerical, graphic, cartographic, narrative, or audiovisual (Committee on National Security Systems Instruction (CNSSI) 4009).

Information system means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information ([44 U.S.C. 3502](#)).

LESSOR: _____ GOVERNMENT: _____

Safeguarding means measures or controls that are prescribed to protect information systems.

(b) Safeguarding requirements and procedures.

- (1) The Contractor shall apply the following basic safeguarding requirements and procedures to protect covered contractor information systems. Requirements and procedures for basic safeguarding of covered contractor information systems shall include, at a minimum, the following security controls:
 - (i) Limit information system access to authorized users, processes acting on behalf of authorized users, or devices (including other information systems).
 - (ii) Limit information system access to the types of transactions and functions that authorized users are permitted to execute.
 - (iii) Verify and control/limit connections to and use of external information systems.
 - (iv) Control information posted or processed on publicly accessible information systems.
 - (v) Identify information system users, processes acting on behalf of users, or devices.
 - (vi) Authenticate (or verify) the identities of those users, processes, or devices, as a prerequisite to allowing access to organizational information systems.
 - (vii) Sanitize or destroy information system media containing Federal Contract Information before disposal or release for reuse.
 - (viii) Limit physical access to organizational information systems, equipment, and the respective operating environments to authorized individuals.
 - (ix) Escort visitors and monitor visitor activity; maintain audit logs of physical access; and control and manage physical access devices.
 - (x) Monitor, control, and protect organizational communications (*i.e.*, information transmitted or received by organizational information systems) at the external boundaries and key internal boundaries of the information systems.
 - (xi) Implement subnetworks for publicly accessible system components that are physically or logically separated from internal networks.
 - (xii) Identify, report, and correct information and information system flaws in a timely manner.
 - (xiii) Provide protection from malicious code at appropriate locations within organizational information systems.
 - (xiv) Update malicious code protection mechanisms when new releases are available.
 - (xv) Perform periodic scans of the information system and real-time scans of files from external sources as files are downloaded, opened, or executed.
- (2) *Other requirements.* This clause does not relieve the Contractor of any other specific safeguarding requirements specified by Federal agencies and departments relating to covered contractor information systems generally or other Federal safeguarding requirements for controlled unclassified information (CUI) as established by Executive Order 13556.

- (c) *Subcontracts.* The Contractor shall include the substance of this clause, including this paragraph (c), in subcontracts under this contract (including subcontracts for the acquisition of commercial products or commercial services, other than commercially available off-the-shelf items), in which the subcontractor may have Federal contract information residing in or transiting through its information system.

53. FAR 52.204-23 PROHIBITION ON CONTRACTING FOR HARDWARE, SOFTWARE, AND SERVICES DEVELOPED OR PROVIDED BY KASPERSKY LAB AND OTHER COVERED ENTITIES (DEC 2023)

This clause is incorporated by reference.

54. FAR 52.204-25 PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)

This clause is incorporated by reference.

55. FAR 52.204-27 PROHIBITION ON A BYTEDANCE COVERED APPLICATION (JUN 2023)

This clause is incorporated by reference.

56. FAR 52.204-30 FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS – PROHIBITION (DEC 2023)

(a) *Definitions.* As used in this clause—

Covered article, as defined in [41 U.S.C. 4713\(k\)](#), means—

- (1) Information technology, as defined in [40 U.S.C. 11101](#), including cloud computing services of all types;
- (2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 ([47 U.S.C. 153](#));
- (3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see [32 CFR part 2002](#)); or
- (4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring the removal of covered articles from executive agency information systems or the exclusion of one or more named sources or named covered articles from executive agency procurement actions, as described in [41 CFR 201–1.303\(d\)](#) and [\(e\)](#):

- (1) The Secretary of Homeland Security may issue FASCSA orders applicable to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.
- (2) The Secretary of Defense may issue FASCSA orders applicable to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.
- (3) The Director of National Intelligence (DNI) may issue FASCSA orders applicable to the intelligence community and sensitive compartmented information systems, to the extent not covered by

paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Intelligence community, as defined by [50 U.S.C. 3003\(4\)](#), means the following—

- (1) The Office of the Director of National Intelligence;
- (2) The Central Intelligence Agency;
- (3) The National Security Agency;
- (4) The Defense Intelligence Agency;
- (5) The National Geospatial-Intelligence Agency;
- (6) The National Reconnaissance Office;
- (7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;
- (8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;
- (9) The Bureau of Intelligence and Research of the Department of State;
- (10) The Office of Intelligence and Analysis of the Department of the Treasury;
- (11) The Office of Intelligence and Analysis of the Department of Homeland Security; or
- (12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

National security system, as defined in [44 U.S.C. 3552](#), means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

- (1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or
- (2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Reasonable inquiry means an inquiry designed to uncover any information in the entity's possession about the identity of any covered articles, or any products or services produced or provided by a source. This applies when the covered article or the source is subject to an applicable FASCSA order. A reasonable inquiry excludes the need to include an internal or third-party audit.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

(b) *Prohibition.*

- (1) Unless an applicable waiver has been issued by the issuing official, Contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA orders as follows:
 - (i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.
 - (ii) For all other solicitations and contracts DHS FASCSA orders apply.
- (2) The Contractor shall search for the phrase "FASCSA order" in the System for Award Management (SAM) at <https://www.sam.gov> to locate applicable FASCSA orders identified in paragraph (b)(1).
- (3) The Government may identify in the solicitation additional FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resultant contract.
- (4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR [4.2304\(c\)](#)). However, see paragraph (c) of this clause.
- (5)
 - (i) If the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification, then the Contractor shall disclose the following:
 - (A) Name of the product or service provided to the Government;
 - (B) Name of the covered article or source subject to a FASCSA order;
 - (C) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied or supplies the covered article or the product or service to the Offeror;
 - (D) Brand;
 - (E) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);
 - (F) Item description;
 - (G) Reason why the applicable covered article or the product or service is being provided or used;

- (ii) *Executive agency review of disclosures.* The contracting officer will review disclosures provided in paragraph (b)(5)(i) to determine if any waiver is warranted. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise covered by a FASCSA order and to instead pursue other appropriate action.

(c) *Notice and reporting requirement.*

- (1) During contract performance, the Contractor shall review *SAM.gov* at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (b) of this clause.
- (2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance.
- (3)
 - (i) The Contractor shall submit a report to the contracting office as identified in paragraph (c)(3)(ii) of this clause, if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s) identified in paragraph (b) of this clause, or a new FASCSA order identified in paragraph (c)(2) of this clause. For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.
 - (ii) If a report is required to be submitted to a contracting office under (c)(3)(i) of this clause, the Contractor shall submit the report as follows:
 - (A) If a Department of Defense contracting office, the Contractor shall report to the website at <https://dibnet.dod.mil>.
 - (B) For all other contracting offices, the Contractor shall report to the Contracting Officer.
- (4) The Contractor shall report the following information for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order, pursuant to paragraph (c)(3)(i) of this clause:
 - (i) Within 3 business days from the date of such identification or notification:
 - (A) Contract number;
 - (B) Order number(s), if applicable;
 - (C) Name of the product or service provided to the Government or used during performance of the contract;
 - (D) Name of the covered article or source subject to a FASCSA order;
 - (E) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Contractor;

(F) Brand;

(G) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(H) Item description; and

(I) Any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the information in paragraph (c)(4)(i) of this clause:

(A) Any further available information about mitigation actions undertaken or recommended.

(B) In addition, the Contractor shall describe the efforts it undertook to prevent submission or use of the covered article or the product or service produced or provided by a source subject to an applicable FASCSA order, and any additional efforts that will be incorporated to prevent future submission or use of the covered article or the product or service produced or provided by a source that is subject to an applicable FASCSA order.

(d) *Removal.* For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that is subject to an applicable FASCSA order.

(e) *Subcontracts.*

(1) The Contractor shall insert the substance of this clause, including this paragraph (e) and excluding paragraph (c)(1) of this clause, in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products and commercial services.

(2) The Government may identify in the solicitation additional FASCSA orders that are not in SAM, which are effective and apply to the contract and any subcontracts and other contractual instruments under the contract. The Contractor or higher-tier subcontractor shall notify their subcontractors, and suppliers under other contractual instruments, that the FASCSA orders in the solicitation that are not in SAM apply to the contract and all subcontracts.

57. FAR 52.204-19 INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS (DEC 2014)

This clause is incorporated by reference.

58. FAR 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>

<https://www.acquisition.gov/browse/index/gsam>.

LESSOR: _____ GOVERNMENT: _____

PROPOSAL TO LEASE SPACE (See Paperwork Reduction Act Statement in Section V)		This Offer is in response to Request for Lease Proposals (RLP) Number:		OMB Control Number: 3090-0086 Expiration Date: 1/31/2026	
SECTION I - BUILDING OVERVIEW					
1. Building Name			2. Building Street Address		
3. City, State and 9-Digit ZIP Code				4. Number of Floors in Building	
5. Total Rentable Square Feet (RSF) in Building <u>Building Space Breakout</u> a. General Purpose/Office: b. Warehouse: c. Other:			6. Total ANSI/BOMA Occupant Area (ABOA) Square Feet (SF) in Building		7. Building Common Area Factor (CAF)
8. Total Building Parking Under Offeror's Control a. Total Surface b. Total Structured c. Is all the parking onsite? d. Number of spaces required by local code, if applicable: ☐ YES ☐ NO (Parking spaces and associated costs offered to meet the requirements outlined in the RLP shall be detailed in Box 20).					
SECTION II - PRIMARY OFFER DETAILS					
9. ABOA SF of Offered Space		10. RSF of Offered Space		11. CAF of Offered Space	
12. Floor(s) and/or Suite(s) of Offered Space					
13. Full Term of the Lease _____ Months		14. Firm Term of the Lease _____ Months		15. Number of Days Notice _____	
RENT TABLE Enter initial rental figures only. Scheduled step rents for Shell rent and Parking rates must be entered in Section VI, Addendum.				X. Annual Rent	Y. Annual Rate \$ Per RSF
16. <u>Shell Rent</u> The initial Shell Rent is a total annual dollar amount of _____ Does the initial Shell Rent offered change during the term of the lease? ☐ YES ☐ NO					
17. <u>Operating Costs</u> (Refer to Line 27 on the GSA 1217) The Operating Cost base is a total annual dollar amount of _____					
18. <u>Tenant Improvement (TI) Rent</u> a. TI Allowance per ABOA SF: \$ _____ (stated in RLP; leave blank for turnkey) b. Total TI: \$ _____ ('a' above multiplied by offered ABOA SF or turnkey price) c. Amortization Interest Rate: _____ % d. Amortization Period in Months: _____					
19. <u>Building Specific Amortized Capital (BSAC) Rent</u> a. BSAC Amount per ABOA SF: \$ _____ (if stated in RLP) b. Total BSAC: \$ _____ ('a' above multiplied by offered ABOA SF or total cost) c. Amortization Interest Rate: _____ % d. Amortization Period in Months: _____					
20. <u>Parking Required by the RLP</u> a. General Surface: \$ _____ per space per month b. Number of Spaces Offered: _____ c. General Structured: \$ _____ per space per month d. Number of Spaces Offered: _____ e. Reserved Surface: \$ _____ per space per month f. Number of Spaces Offered: _____ g. Reserved Structured: \$ _____ per space per month h. Number of Spaces Offered: _____				\$0.00	
21. <u>Rent for Non-Standard Circumstances</u> The RLP requires a non-standard rental component applicable only under specific conditions outlined in the Lease called: Not Applicable					
22. TOTAL INITIAL RENT					
23. <u>Fee Schedule</u> The RLP outlines how fees may apply. Fees are not applicable for turnkey pricing. a. Architectural/Engineering fees will be (choose one): ☐ Percent of Total Construction Costs: _____ % ☐ Dollar Amount per ABOA SF: \$ _____ ☐ Flat Fee: \$ _____ b. Lessor's Project Management fee will be: Percent of Total Construction Costs _____ %					

SECTION III - ADDITIONAL FINANCIAL ASPECTS OF THE OFFER

24. Are you offering free rent? ☐ YES ☐ NO			
a. If yes, enter the number of free months being offered. _____ months		b. What rent components are included in the free rent? ☐ Shell ☐ TI ☐ Parking ☐ Operating Costs ☐ BSAC ☐ Non-Standard	
25. Are you offering free space? ☐ YES ☐ NO			
a. If yes, how much free space, <u>in addition</u> to the space offered in Box 9 above, is being offered? _____ ABOA SF		26. Are you offering renewal options? ☐ YES ☐ NO	
27. Commissions If applicable, enter the commission distribution and ATTACH BROKER COMMISSION AGREEMENT.			
a. Tenant's Representative Commission _____ %		b. Owner's Representative Commission _____ %	
28. Adjustment for Vacant Premises \$ _____ per ABOA SF		29. Adjustment for Reduced Services \$ _____ per ABOA SF	
30. Tax Parcel Percent of Government Occupancy a. RSF of Tax Parcel _____ RSF b. Percent of Occupancy _____ %		Explain complex tax parcel arrangements in Section VI, Addendum.	
31. Heating, Ventilation, and Air Conditioning (HVAC) Overtime Rate			
a. \$ _____ rate per hour -PER-		b. Select one of the options below: ☐ Zone ☐ Floor ☐ Space	
		c. Total Number of Zones, Floors, or Spaces _____	
		d. If the Government used 1 hour of overtime HVAC for the entire offered space, it would owe: _____ (Multiply 31a times 31c)	

SECTION IV - BUILDING AND PROPERTY INFORMATION

32. In what year was the original building construction completed and ready for initial occupancy? _____

33. Provide the year and a brief description of the last major building renovation, if applicable.

34. Select the approximate level of construction necessary to meet the building shell requirements:

☐ a. Improvements to the existing Building will be required to meet the Lease shell requirements.
The total approximate construction cost to achieve Lease shell standards is: \$ _____

☐ b. The Building already meets all the Lease shell requirements; no improvements are necessary.

☐ c. The requirements of the Lease will be satisfied through the construction of a new building.

Land Site Size: _____ ☐ SF or ☐ Acres
(Choose one)

Total Land Costs: \$ _____

35. What are the Building's normal hours of operations for HVAC included in the Operating Costs?

Monday - Friday	Saturday	Sunday
Start _____	Start _____	Start _____
End _____	End _____	End _____

36. With regard to Fire Protection and Life Safety:

☐ a. The Property meets the Lease fire protection/life safety standards.

☐ b. The Property will be improved to meet the Lease fire protection/life safety standards.

☐ c. The Property does NOT meet the Lease fire protection/life safety standards and will NOT be upgraded.

37. With regard to Accessibility (Architectural Barriers Act Accessibility Standard - ABAAS):

☐ a. The Property meets the Lease accessibility standards.

☐ b. The Property will be improved to meet the Lease accessibility standards.

☐ c. The Property does NOT meet the Lease accessibility standards and will NOT be upgraded.

38. With regard to Asbestos-Containing Material (ACM): (Select all that apply)

☐ a. The Building contains no ACM.

☐ b. The Building contains undamaged, nonfriable ACM.

☐ c. The Building contains thermal system insulation ACM which is not damaged or subject to damage by routine operations.

☐ d. The Building contains ACM that does not fall within any of the above categories.

☐ e. The Building contains ACM; abatement will be completed prior to occupancy.

39. With regard to Flood Plains:

☐ a. The Property is in a base (100 year) floodplain.

☐ b. The Property is in a 500 year floodplain.

☐ c. The Property is NOT in a floodplain.

40. With regard to Seismic Safety of the Building:

- ☐ a. The RLP does NOT contain seismic requirements.
- ☐ b. The Building either fully meets RLP seismic requirements or meets an exemption.
- ☐ c. The Building will be retrofitted to meet RLP seismic requirements it does not currently meet.
- ☐ d. The Building will be constructed to meet RLP seismic requirements.
- ☐ e. The Building will NOT meet RLP seismic requirements.

41. With regard to ENERGY STAR®:

- ☐ a. The Property has received the ENERGY STAR® Label within the past twelve months.
- Date (MM/DD/YYYY): _____
- ☐ b. The Property has NOT received the ENERGY STAR® Label within the past twelve months but falls into one of the following categories:
- ☐ i. New construction
- ☐ ii. Existing building that cannot obtain label due to insufficient occupancy
- ☐ iii. Meets one of the statutory exceptions below:
- ☐ (1) The agency would remain in the building it currently occupies.
- ☐ (2) The Lease would be in a building of historical, architectural, or cultural significance listed or eligible to be listed on the National Register of Historic Places.
- ☐ (3) The Lease is for 10,000 RSF or less.
- With regard to offerors falling into a statutory exception category above, the Offeror has evaluated energy efficiency and conservation improvements and has determined:*
- ☐ (i) Cost effective improvements have been identified and are attached to this offer.
- ☐ (ii) There are no cost effective improvements. Supporting documentation is attached to this offer.

42. With regard to Historic Preference:

- a. Is the Building a Historic Property? ☐ YES ☐ NO
- b. Is the Building within an Historic District? ☐ YES ☐ NO

43. With regard to Historically Underutilized Business Zones (HUBZone) Price Evaluation Preference:

- ☐ a. I am a HUBZone Small Business Concern (SBC) Offeror and I elect to waive the price evaluation preference.
- ☐ b. I am a HUBZone SBC Offeror and I do NOT waive the price evaluation preference.
- ☐ c. I am NOT a HUBZone SBC Offeror. The question does not apply.

SECTION V - OWNER IDENTIFICATION AND OFFEROR CERTIFICATION

44. Recorded Owner Name	45. Owner Street Address	46. City, State and 9-Digit ZIP Code	47. Unique Entity Identifier (UEI)
48. Offeror Name	49. Offeror Street Address	50. City, State and 9-Digit ZIP Code	51. Contact Information a. Email b. Telephone _____

52. Offeror's Interest in the Property ☐ Owner (*Offeror and Recorded Owner are the same person*) ☐ Agent / Broker
- ☐ Other (*Explain if Other is selected*)

By submitting this offer, the offeror agrees to lease the premises described within the offer to the United States of America upon the Lease Contracting Officer's acceptance of the offer. The offeror acknowledges they have read and fully understand the Request for Lease Proposals and agrees to honor the terms and conditions specified in their offer and to full compliance with and acceptance of the Request for Lease Proposals and its attachments.

By signing this form, you acknowledge having read the RLP with attachments in its entirety. No deviations are allowed unless authorized by the Lease Contracting Officer (LCO).

53. Does your offer request any deviation from the RLP? ☐ NO ☐ YES - I request a deviation from the LCO

Offeror's Signature	Date Signed
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PAPERWORK REDUCTION ACT STATEMENT

This information collection meets the requirements of 44 U.S.C. § 3507, as amended by section 2 of the Paperwork Reduction Act of 1995. You do not need to answer these questions unless we display a valid Office of Management and Budget (OMB) control number. The OMB control number for this collection is 3090-0086. We estimate that it will take 2.3 hours to read the instructions, gather the facts, and answer the questions. Send only comments relating to our time estimate, including suggestions for reducing this burden, or any other aspects of this collection of information to: U.S. General Services Administration, Regulatory Secretariat Division (M1V1CB), 1800 F Street, NW, Washington, DC 20405.

SECTION VI - ADDENDUM**A. Step Rent**

Shell Rent and Parking steps should be detailed if the initial amount stated in the Rent Table above does NOT remain the same for the full term of the Lease. Shell Rent step amounts should be stated in Annual Rent for the entire Leased space. Parking step rents should be stated as a dollar amount per space per month.

<u>Rent Type</u>	<u>Beginning Year</u>	<u>Through Year</u>	<u>Amount Will Be (\$)</u>	<u>Per</u>

Add a Step Rent

Remove a Step Rent

B. Renewal Options

Renewal Options are optional unless required by the RLP. Only renewal options that are required by the RLP will factor into the Government's financial analysis of the Offer.

<u>Option Number</u>	<u>Duration in Years</u>	<u>Annual Shell Rate per RSF</u>	<u>Number of Days Notice to Exercise Option</u>

Add an Option

Remove an Option

C. Additional Tax Parcel Information

Is the offered space part of multiple tax bills or multiple buildings on a single tax parcel? ☐ YES ☐ NO

If 'YES', use the boxes below to account for the total number of buildings, associated RSF, and tax parcel associated with the overall space offered to the Government. Attach the legal description(s) of the offered property/properties as part of your overall RLP submission.

<u>Building</u>	<u>Building RSF</u>	<u>Tax Parcel</u>	<u>Tax Parcel ID Number</u>

Add a Building/Tax Parcel

Remove a Building/Tax Parcel

D. Additional Remarks or Conditions with Respect to this Offer

Any deviations from the RLP requirements must be requested prior to the request for final proposal revisions. If the Offeror requests any deviations, GSA at its sole discretion will make the decision whether to accept the deviation.

LESSOR'S ANNUAL COST STATEMENT*Important - Read attached "Instructions"***OMB Control Number: 3090-0086****Expiration Date: 1/31/2026**

Paperwork Reduction Act Statement - This information collection meets the requirements of 44 U.S.C. § 3507, as amended by section 2 of the Paperwork Reduction Act of 1995. You do not need to answer these questions unless we display a valid Office of Management and Budget (OMB) control number. The OMB control number for this collection is 3090-0086. We estimate that it will take 2 hours to read the instructions, gather the facts, and answer the questions. Send only comments relating to our time estimate, including suggestions for reducing this burden, or any other aspects of this collection of information to: U.S. General Services Administration, Regulatory Secretariat Division (M1V1CB), 1800 F Street, NW, Washington, DC 20405.

1. Request for Lease Proposals (RLP)		2. Statement Date
3. Rental Area (Square Feet)	3A. Entire Building	3B. Leased by Government
4. Building Name and Address (<i>Number, Street, City, State, and Zip Code</i>)		

**SECTION I - ESTIMATED ANNUAL COST OF SERVICES AND UTILITIES
FURNISHED BY LESSOR AS PART OF RENTAL CONSIDERATION**

SERVICES AND UTILITIES	LESSOR'S ANNUAL COST FOR		FOR GOVERNMENT USE ONLY
	(a) Entire Building	(b) Government-Leased Area	
A. CLEANING, JANITOR AND/OR CHAR SERVICE			
5. Salaries			
6. Supplies (<i>Wax, cleaners, cloths, etc.</i>)			
7. Contract Services (<i>Window washing, waste and snow removal</i>)			
B. HEATING			
8. Salaries			
9. Fuel (" <i>X</i> " one) ☐ Oil ☐ Gas ☐ Coal ☐ Electric			
10. System Maintenance and Repair			
C. ELECTRICAL			
11. Current for Light and Power			
12. Replacement of Bulbs, Tires, Starters			
13. Power for Special Equipment			
14. System Maintenance and Repair (<i>Ballasts, Fixtures, etc.</i>)			
D. PLUMBING			
15. Water (<i>For all purposes</i>) (<i>Include Sewage Charges</i>)			
16. Supplies (<i>Soap, towels, tissues not in 6 above</i>)			
17. System Maintenance and Repair			
E. AIR CONDITIONING			
18. Utilities (<i>Include electricity, if not in C11</i>)			
19. System Maintenance and Repair			
F. ELEVATORS			
20. Salaries (<i>Operators, starters, etc.</i>)			
21. System Maintenance and Repair			

G. MISCELLANEOUS (To the extent not included on Page 1)			
22. Building Engineer and/or Manager			
23. Security (<i>Watchperson, guards, not janitors</i>)			
24. Social Security Tax and Workperson's Compensation Insurance			
25. Lawn and Landscaping Maintenance			
26. Other (<i>Explain on separate sheet</i>)			
27. TOTAL			

SECTION II - ESTIMATED ANNUAL COST OF OWNERSHIP EXCLUSIVE OF CAPITAL CHARGES

28. Real Estate Taxes			
29. Insurance (<i>Hazard, Liability, etc.</i>)			
30. Building Maintenance and Reserves for Replacement			
31. Lease Commission			
32. Management			
33. TOTAL			

LESSOR'S CERTIFICATION - The amounts entered in Columns (a) and (b) represent my best estimate as to the annual costs of services, utilities, and ownership.

34. Signature of: ☐ Owner ☐ Legal Agent

TYPED NAME AND TITLE	SIGNATURE	DATE
34A.	34B.	34C.
35A.	35B.	35C.

INSTRUCTIONS

In acquiring space by lease, it is the established policy of GSA to enter into leases only at rental charges which are consistent with prevailing scales in the community for facilities.

ITEM NUMBER

1. Enter the Government lease or Request for Lease Proposals (RLP) number, if available.
2. Enter the date that your statement was prepared and signed.
3. A. Enter in this block a computation of the rentable area (*multiple tenancy basis*) for the entire building. The rentable area shall be computed by measurement to the inside finish of permanent outer building walls to the inside finish of corridor walls (*actual or proposed*) or to other permanent partitions, or both. Rentable space is the area for which a tenant is charged rent. It is determined by the building owner and may vary by city or by building within the same city. The rentable space may include a share of building support/common areas such as elevator lobbies, building corridors, and floor service areas. Floor services areas typically include restrooms, janitor rooms, telephone closets, electrical closets, and mechanical rooms. The rentable space generally does not include the vertical building penetrations and their enclosing walls, such as stairs, elevator shafts, and vertical ducts.
3. B. Enter in this block a computation of the rentable area to be rented to the Government. For this area, follow the procedure as outlined above, except that measurements are to be made only to the center of the partitions which separate the area to be rented by the Government from adjoining rented or rentable areas.
4. Identify the property by name and address.

SECTION I

ESTIMATED ANNUAL COST OF SERVICES AND UTILITIES

5. - 26. The services and utilities listed in this section are required in most of our rented space whether furnished by the Government or the Lessor.

Carefully review the Request for Lease Proposals (RLP) and/or the proposed lease to identify those services and utilities to be furnished by you as part of the rental consideration. Then enter your best cost estimate, or the actual cost from the previous year, for each of these services and utilities in column (a) for the entire building and in column (b) for the area to be rented to the Government. If any service or utility furnished for the space rented by the Government is not furnished throughout the building, or the cost of a service or utility furnished to the Government space exceeds the cost of the same service or utility furnished to other rented space, explain on a separate sheet. For convenience, each major category has been divided into separate items such as salaries and supplies so that they may be entered when applicable. However, in the event that your records are not maintained for each item contained in Section I, 5 through 26, the total for a major category (A through F) may be entered under the category heading in columns (a) and (b) in lieu of the specific items. System maintenance and repairs includes the annual cost of such items as oiling, inspecting, cleaning, regulating, and routine replacement costs.

SECTION II

ESTIMATED ANNUAL COST OF OWNERSHIP EXCLUSIVE OF CAPITAL CHARGES

Items 28 through 32 will be useful in the Government's determination of the fair market value of the space to be rented and shall be completed irrespective of whether Section I is applicable, as follows:

28. Include all applicable real estate taxes imposed upon the property.
29. Enter the annual cost of fire, liability, and other insurance carried on the real estate.
30. Enter the annual cost of wages, materials, and outside services used in repairs and maintenance of the building itself and all similar repairs and maintenance of the building itself and all similar repairs and maintenance costs not included in Section I above (Heating, Electrical, Plumbing, Air Conditioning, and Elevators). This includes major repairs and changes in the nature of a permanent improvement such as annual cost to replace relatively short-lived items such as boiler, compressors, elevators, and roof coverings.
31. Enter any lease commission which you may be responsible for due to the Government leasing action.
32. Include administrative expenses such as agency fees, legal fees, auditing, and advertising. Do not include financial charges such as income or corporate taxes or organization expense.
34. - 35. Complete Lessor certification.

RELEASE

FIRE PROTECTION AND LIFE SAFETY EVALUATION FOR AN OFFICE BUILDING

The prelease form contains two parts that must be completed depending on which floor the proposed offered space is located within a building. Part A must be completed when an offered space is located below the 6th floor of a building. Part A shall be completed by the Offeror or their authorized representative. Part B must be completed when an offered space is located on or above the 6th floor of a building. Part B shall be completed by a professional engineer. The Fundamental Code Requirements apply to Part A and Part B.

Fundamental Code Requirements

- a. The offered building shall be evaluated for compliance with the most recent edition of the building and fire code adopted by the jurisdiction in which the building is located; with the exception that the technical egress requirements of the building shall be evaluated based on the egress requirements of the most recent edition of the National Fire Protection Association (NFPA) 101, *Life Safety Code*. (Note: a building with a Certificate of Occupancy indicating that a building fully complies with the International Building Code shall be deemed to comply with this requirement.) All areas that do not meet the above stated criteria shall be identified as to the extent that they do comply.
- b. A fire escape located on the floor(s) where the offered space is located shall not be counted as an approved exit stair.
- c. An interlocking or scissor stair located on the floor(s) where the offered space is located shall only count as one exit stair.
- d. The number of floors used to determine when Part A or Part B is applicable is based on counting the number of floors starting from the street floor.

RELEASE FIRE PROTECTION AND LIFE SAFETY EVALUATION FOR AN OFFICE BUILDING

PART A

The Offeror or their representative shall complete Part A. Part A consists of a series of short answer and yes/no/not applicable questions related to general building information and fire protection and life safety systems. Upon completion of Part A, the Offeror must sign and date the "Offeror's Statement". Part A is applicable to offered space located below the 6th floor of the building.

I. BUILDING ADDRESS

Building Name:
Building Address:
City:
State:
9-Digit Zip Code:

II. GENERAL BUILDING INFORMATION

a. Identify each floor on which space is offered and the square footage of space on each floor offered to Government:

Floor						
Sq. Ft. Per Floor						

b. Identify the total number of floors in the building starting at the street floor:

c. Identify the total number of floors in the building below the street floor:

d. Identify which floor(s) in the building permit reentry from the exit stair enclosure to the interior of the building:

III. OTHER USES IN BUILDING (Check All That Apply)

☐ Restaurants	☐ Laboratories	☐ Storage	☐ Retail	☐ Parking Garage	☐ Other (list)
--------------------------------------	---------------------------------------	----------------------------------	---------------------------------	---	---------------------------------------

IV. AUTOMATIC FIRE SPRINKLER SYSTEM

Please Check YES, NO, or N/A to the following questions:	YES	NO	N/A
a. Is an automatic fire sprinkler system installed throughout the building?			
b. If automatic fire sprinklers are installed within the building, is the automatic fire sprinkler system maintained in accordance with the applicable local codes or NFPA 25, <i>Standard for the Inspection, Testing, and Maintenance of Water-Based Fire Protection Systems</i> ?			

V. FIRE ALARM SYSTEM

Please Check YES, NO, N/A to the following questions:	YES	NO	N/A
a. Is a fire alarm system installed in the building?			
b. Is an emergency voice/alarm communication system installed in the building?			
c. If a fire alarm system is installed in the building, are audible devices (e.g., horns, bells, speakers, etc.) installed on the floor in which the offered space is located in the building?			
d. If a fire alarm system is installed in the building, are strobe devices installed on the floor in which the offered space is located in the building?			
e. If a fire alarm system is installed in the building, is the fire alarm system over 25 years old?			
f. If a fire alarm system is installed in the building, does the operation of the fire alarm system automatically notify the local fire department via any of the following means: directly to the local fire department, to the (911) public communications center, to a central station, to a remote supervising station, or to a proprietary supervising station?			
g. If a fire alarm system is installed in the building, is the fire alarm system maintained in accordance with the applicable local codes or NFPA 72, <i>National Fire Alarm and Signaling Code</i> ?			

RELEASE

FIRE PROTECTION AND LIFE SAFETY EVALUATION FOR AN OFFICE BUILDING

VI. EXIT SIGNS & EMERGENCY LIGHTING			
Please Check YES, NO, or N/A to the following questions:	YES	NO	N/A
a. Are exit signs installed in the paths of egress travel to the exit stairs or exits?			
b. Is emergency lighting installed in the paths of egress travel to the exit stairs or exits?			
c. If an emergency lighting system is installed in the building, is the emergency lighting system arranged to provide illumination automatically in the event of any interruption of the building's normal lighting system?			
VII. ELEVATORS			
Please Check YES, NO, or N/A to the following questions:	YES	NO	N/A
Are elevators installed in the building?			
If elevators are installed in the building, are the elevator cars equipped with a telephone or another two-way communication system?			
If elevators are installed in the building, are the elevators recalled by smoke detectors located in the elevator lobbies and elevator machine rooms?			
VIII. ADDITIONAL INFORMATION			

OFFEROR'S STATEMENT	
I hereby attest that the above information is complete and accurate to the best of my knowledge.	
Signature: _____	Date: _____
Printed Name: _____	
Title: _____	
Name of Firm: _____	

RELEASE

FIRE PROTECTION AND LIFE SAFETY EVALUATION FOR AN OFFICE BUILDING

PART B

The Offeror's professional engineer shall complete Part B when an offered space is located on the 6th floor or higher of a building. Part B consists of a detailed narrative report based on an evaluation of the entire building that also includes a walk-through of the building and the review of the preventive maintenance records of the building's fire alarm system and automatic fire sprinkler system. The fire protection engineer shall prepare a detailed narrative report. The detailed narrative report shall address at a minimum the items noted below as they apply to the offered space in the building, with specific attention to fire safety conditions that affect the floor(s) where the offered space to the Government is located, including those floors located below the offered space. In addition, the detailed narrative report shall include all deficiencies that do not meet the specified criteria (see Fundamental Code Requirements), the associated code reference(s), as well as any recommended corrective action(s).

NOTES:

- a. *The professional engineer must be licensed as a fire protection engineer in the same State in which the subject building is located unless the subject State does not formally recognize fire protection engineering. In such cases, GSA will accept the services of any professional engineer in the subject State provided the professional engineer is also recognized as a fire protection engineer in any other U.S. State or Territory.*
- b. *Upon completion of Part B, the Offeror's fire protection engineer must sign and date the "Fire Protection Engineer Statement."*
- c. *Upon completion of Part B, the Offeror must sign and date the "Offeror's Statement of Correction."*
- d. *The accepted GSA Form 12000, Part B is valid for a time period of 5 years from the noted date on the completed and accepted Part B. This acceptance is conditional in that no major modifications or construction has occurred associated with the building.*

The detailed narrative report shall address at a minimum the items noted below as they apply to the offered space in the building.

1. General Information.

- a. Identify all current citations or violations noted by the local jurisdiction regarding the building.
- b. Provide digital pictures of the building. Include exterior views showing the front of the building and all sides of the building.
- c. Identify the number of floors in the building (above and below grade).
- d. Identify the approximate gross square footage per floor in the building.
- e. Identify the gross square footage and associated floor of offered space proposed to the Government to occupy.
- f. Identify by location and describe hazardous/significant fuel load areas (greater than normal for the type of occupancy).
- g. Identify and describe potential fire ignition sources in hazardous/significant fuel load areas in the building.

2. Occupancy Classifications.

- a. Identify all the different types of occupancies and particular uses on each floor of the subject building. For example, include retail, restaurants, mechanical equipment areas, storage areas, inside parking areas, etc.

3. Building Construction.

- a. Identify the building construction type.

4. Vertical Openings.

- a. Identify by location and describe the enclosure of vertical openings through floors, such as stairways, atriums, hoistways for elevators, escalators, and shafts.
- b. Identify any deficiencies in the rated vertical enclosures that affect the integrity of the enclosure.

5. Means of Egress.

- a. Identify the number of enclosed exit stairs on each floor of the building.
- b. For each exit stair, describe:
 - i. The clear width of each stair tread and location of measurement.
 - ii. The egress capacity of each exit stair.
 - iii. The location of where each exit stair discharges.
 - iv. Identify and describe the operation and application of the exit stair re-entry provisions to the interior of the building, if provided.

RELEASE

FIRE PROTECTION AND LIFE SAFETY EVALUATION FOR AN OFFICE BUILDING

- v. Any penetrations into and openings through each exit stair enclosure assembly.
 - vi. Any headroom obstruction within each exit stair enclosure.
 - vii. If any exit stair has been compromised in such a way to have the potential to interfere with its use as an exit; and
 - viii. The exit stair remoteness arrangement.
 - ix. Identify and describe if all exit stair doors are self-closing and self-latching.
 - c. Identify and describe all exit doors that do not swing in the direction of exit travel.
 - d. Identify and describe if all fire doors are in proper working order. Provide location of noted fire door and purpose.
 - e. Identify by floor and describe any concerns regarding the exit access system (i.e., corridor or open plan office concept), as it applies to the proposed offered space.
 - f. Identify by location and describe any concern regarding the exit signage within the building.
 - g. Describe the building's emergency lighting system.
 - h. Identify and describe if emergency power is provided within the building.
 - i. If emergency power for life safety systems is provided by generator(s) or UPS systems describe if they are tested and maintained in accordance with NFPA 110, *Standard for Emergency and Standby Power Systems* or NFPA 111, *Standard on Stored Electrical Energy Emergency and Standby Power Systems* as applicable. If not complying with the applicable NFPA Standards; identify and evaluate the procedures being used.
6. Automatic Fire Suppression Systems.
- a. Identify and describe if the building is protected or not protected throughout by an automatic fire sprinkler system. If the building is not protected throughout by an automatic fire sprinkler system, identify those areas of the building where partial fire sprinkler protection is provided.
 - b. Identify and describe the different types of automatic fire sprinkler systems (e.g., dry, wet, pre-action, etc.) that are installed within the building and their respective locations.
 - c. Identify and describe any other fire suppression systems installed within the building.
 - d. Identify and describe the types of standpipes installed in the building.
 - e. If automatic fire sprinkler systems are installed in the building, describe if they are tested and maintained in accordance with the applicable local codes or NFPA 25, *Standard for the Inspection, Testing, and Maintenance of Water-Based Fire Protection Systems*. If not complying with the applicable NFPA Standards; identify and evaluate the procedures being used. If not complying with the applicable NFPA Standard; identify and evaluate the procedures being used.
7. Fire Alarm System.
- a. Identify and describe the fire alarm system, as a minimum, the date of installation, type, manufacturer and model, and components such as manual pull stations, etc.
 - b. Describe if the fire alarm system automatically notifies the local fire department via any of the following means: directly to the local fire department, to the (911) public communications center, to a central station, to a remote supervising station, or to a proprietary supervising station.
 - c. Describe in detail the operation of the fire alarm system, including if it has emergency voice/alarm communication capabilities.
 - d. Describe if the fire alarm system is tested and maintained in accordance with NFPA 72, *National Fire Alarm and Signaling Code*. If not complying with the applicable NFPA Standard; identify and evaluate the procedures being used.
8. Elevators.
- a. Verify the elevators have a current certificate (date of inspection) of elevator inspection from the local jurisdiction.
 - b. Identify and describe the emergency recall operation features of the elevators. Describe all differences with the requirements of ASME/A17.1, *Safety Code for Elevators and Escalators*, Phase I Emergency Recall Operation requirements.
 - c. Identify and describe the emergency in car operation features of the elevators. Describe all differences with the requirements of ASME/A17.1, *Safety Code for Elevators and Escalators*, Phase II Emergency In-Car Operation requirements.
 - d. Identify and describe if the elevators are equipped with telephones or other two-way emergency signaling systems connected to an emergency communication location staffed 24 hours per day, 7 days per week.

RELEASE
FIRE PROTECTION AND LIFE SAFETY EVALUATION FOR AN OFFICE BUILDING

STATEMENT OF FIRE PROTECTION ENGINEER

I hereby attest that I have performed a full assessment of the subject premises; and that the above information is complete and accurate to the best of my knowledge. I have initialed at the bottom of each page. My official seal, professional license information, and signature are affixed below.

I have included findings, recommended corrective action(s), and made specific references to the applicable code sections as an attachment to this report. Such findings specifically identify instances where the building does not comply with the specified criteria, and recommendations have been made in order to rectify the situation and assure substantial compliance of the building to all applicable criteria.

(If no deficiencies were identified, during the evaluation, please explicitly state so in the findings and recommendations portion of the report.)

Signature: _____ Date: _____

Printed Name: _____

Name of Firm: _____ Phone #: _____ () - _____

License Number: _____

Stamp Here: _____

OFFEROR'S STATEMENT OF CORRECTION

In the event any of the offered space does not meet the above criteria, the Offeror shall attest below that all work required to bring the offered space into full compliance with all applicable criteria will be completed at the Offeror's sole cost and expense prior to the Government's acceptance of the offered space under the terms of any prospective lease agreement.

NOTE: REPORTS SUBMITTED WITHOUT THE FPE'S FINDINGS, RECOMMENDED CORRECTIVE ACTIONS AND CODE REFERENCES WILL BE RETURNED WITHOUT REVIEW BY THE GSA REGIONAL FIRE PROTECTION ENGINEERING OFFICE.

Signature: _____ Date: _____

Printed Name: _____

Title: _____

Name of Firm: _____

	TENANT IMPROVEMENTS COST SUMMARY (TICS)			
	for 36C25025R0029		ABOA SF=	-
	Agency: VHA 539		TIA PER ABOA SF= \$	-
January 0, 1900	Location: Florence, KY		TOTAL TIA \$	-
RU Factor #DIV/0!		RSF=		-
Masterformat CSI	System Elements		TI*	SHELL**
Div 1	General Requirements		\$ -	\$ -
Div 2	Site work & Demolition		\$ -	\$ -
Div 3	Concrete		\$ -	\$ -
Div 4	Foundations / Masonry		\$ -	\$ -
Div 5	Metals		\$ -	\$ -
Div 6	Woods & Plastics		\$ -	\$ -
Div 7	Thermal & Moisture		\$ -	\$ -
Div 8	Doors & Windows		\$ -	\$ -
Div 9	Finishes		\$ -	\$ -
Div 10	Specialties		\$ -	\$ -
Div 11	Equipment		\$ -	\$ -
Div 12	Furnishings		\$ -	\$ -
Div 13	Special Construction		\$ -	\$ -
Div 15	General Construction		\$ -	\$ -
Div 21	Fire Suppression		\$ -	\$ -
Div 22	Plumbing		\$ -	\$ -
Div 23	HVAC		\$ -	\$ -
Div 26.1	Electrical		\$ -	\$ -
Div 26.2	Lighting		\$ -	\$ -
Div 27	Communications, Security & Other Elec. Systems		\$ -	\$ -
Div 28.1	Electrical safety & Security		\$ -	\$ -
Div 28.2	Security		\$ -	\$ -
Div 32	Exterior		\$ -	\$ -
Subtotal	Trade Costs		\$ -	\$ -
Subtotal	General Contractor Fee	Percent	\$ -	\$ -
	Construction Costs		\$ -	\$ -
Subtotal	Architectural & Engineering Fees (NIC DID costs)	lump sum	\$ -	\$ -
	Other Lessor Costs Established Under the Lease		\$ -	\$ -
	Lessor's Costs:		\$ -	\$ -
Total	Lessor's Project Management Fee	Percent	\$ -	
	Price to Government:		\$ -	
		Cost per ABOA SF	#DIV/0!	#DIV/0!
		Cost per RSF	#DIV/0!	#DIV/0!
Notes: * Include all subcontractors' costs. ** Shell and core work items within tenant space will include those items for a warm lit shell. Please refer to the SHELL DEFINITIONS tab, and the lease for further information.				

INFORMATION NEEDED TO COMPLETE TICS TABLE		
LEASE GS-XXX-XXXXX or Project	36C25025R0029	
Agency	VHA 539	
Location: City, State	Florence, KY	
ABOA SF =		
TENANT IMPROVEMENT ALLOWANCE PER ABOA SF =		
RSF=		
DATE:		
Tenant Improvement General Contractor Fee	percent	
Shell General Contractor Fee	percent	
Tenant Improvement A/E Fees (per Lease)	lump sum	
Shell A/E Fees	lump sum	
Lessor's TI Project Management Fee (per Lease)	percent	
Other Lessor Costs Established Under the Lease	TI	Shell
TOTAL	\$ -	\$ -

General contractor fee, A/E Fee and Lessor's Project Management Fee fields are structured to allow you to choose percentage or a lump sum.

For A/E fees established as a cost per ABOA sf, convert rate to lump sum.

INSTRUCTIONS

Read and understand SHELL DEFINITION tab.

Input project specific information as appropriate in the INPUT PROJECT INFO worksheet, in order to auto-populate the TICS worksheet. This includes ANSI-BOMA Office Area (ABOA) square footage, General Contractor Fee, Lessor's Project Management Fee, and A/E Fees. Note that some of these fees are already established under the lease agreement and must be used when completing this worksheet.

Fill in each line for all Shell and TI items in the corresponding division tabs included in the Tenant Improvement Cost Summary (TICS). Include all subcontractors' soft costs. Example shown below.

Material

Description

Accurately describe each item being priced.

Quantity

List the quantity e.g., 1,2, 3, etc.

Unit

(Example) LS,EA,GAL,LF, SF, etc.

Cost

Amount

Total

Total cost of all material.

Labor

Hours

Time projected to perform the task.

Labor Rate

Cost per hour of labor.

Total

Cost of labor.

TOTAL

Combines overall materials and labor.

Shell

1.

Fill out light green fields titled (SHELL), inputting only cost associated with shell as defined in the SHELL DEFINITION'S tab.

2.

Fill each division tab 1-32 as needed for the construction to be preformed under the (SHELL) cost as indicated above.

Tenant Improvements (TI)

TIs include the finishes and fixtures that take space from the shell condition to a finished, usable condition.

1.

Fill out fields titled (TI), inputting only costs associated with (TI).

2.

Fill each division tab 1-32 as needed for the construction to be performed under the (TI) costs as indicated above.

CONSTRUCTION COST ESTIMATE

DATE PREPARED

January 0, 1900

DIVISION 9 - FINISHES (TI)

DESCRIPTION

QUAN.

UNIT

COST

TOTAL

HOURS

Labor Rate

TOTAL

XYZ Paint

1

GAL.

\$25.00

\$25.00

2.5

\$36.25

\$90.63

\$0.00

\$0.00

\$0.00

\$0.00

Total

\$25.00

Total

\$90.63

TOTAL

\$115.63

DIVISION 9 - FINISHES (SHELL)

DESCRIPTION

QUAN.

UNIT

COST

TOTAL

HOURS

Labor Rate

TOTAL

ABC Paint

10

GAL.

\$27.00

\$270.00

6.0

\$36.25

\$217.50

\$0.00

\$0.00

\$0.00

\$0.00

Total

\$270.00

Total

\$217.50

TOTAL

\$487.50

Table 2-2. Shell Definition

Base Building	Tenant Areas
Base structure and building enclosure components (windows with exterior finishes) are complete.	Broom-clean concrete floor slab, with level floor not varying more than ¼ inch over 10-foot horizontal run, in accordance with American Concrete Institute Standards.
Base building electrical and mechanical systems (e.g., central fire alarm, chiller plant, cooling tower) are complete and functional.	Gypsum wallboard, spackled and prime painted, on exterior perimeter walls and interior core walls, is installed.
All common areas, such as lobbies, elevators, fire egress corridors and stairwells, garages, and service areas are complete. (Circulation corridors are provided as part of the base building only on multi-tenanted floors where the corridor is common to more than one tenant. On single tenant floors, only the fire egress corridor necessary to meet code is provided as part of the shell.)	2 by 2 feet suspended acoustical ceiling with 2 by 2 feet parabolic fluorescent (or other building standard, such as 2 by 4 feet fixtures) installed in the ceiling grid for an open office plan at the rate of one fixture per 80 USF, is installed.
Building common restrooms are complete and operational.	Common corridor stud walls, without gypsum board on demised tenant premises side and without suite entry door, are installed.
Building cores on each floor with assignable space contain the following: tappable domestic water riser, service sanitary drain, sanitary vent, ready for extension to tenant-demised areas. Electrical power distribution panels and circuit breakers available in an electrical closet, with capacity at 277/480 volt and 120/208 volt, 3-phase, 4-wire providing 7 watts per USF. Designated connection point to the central fire alarm system for extension to tenant-demised areas. Distribution backboard within a wire closet for connection to tenant’s telephone lines. Vertical conduit (empty sleeve) through building core, available for tenant wiring and cabling.	Central heating, ventilation, and air conditioning (HVAC) systems are installed and operational, including, as appropriate, main and branch lines, variable air volume boxes, dampers, flex ducts and diffusers, for open office layout. Conditioned air through medium pressure ductwork at a rate of .75 cfm per square foot of usable area is provided. Sprinkler mains and distribution piping in a protection layout (open plan) with heads turned down, concealed with an escutcheon or trim plate, are installed.

GSA Pricing Desk Guide's reference to minimum power distribution of 7 watts per USF is outdated; lease requirement is minimum of 4 watts per ABOA SF

CONSTRUCTION COST ESTIMATE						DATE PREPARED	
						January 0, 1900	
DIVISION 2 - SITE WORK AND DEMOLITION (TI)							
			MATERIAL		LABOR		
DESCRIPTION	QUAN.	UNIT	COST	TOTAL	HOURS	Labor Rate	TOTAL
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
DIVISION 2 - SITE WORK AND DEMOLITION (SHELL)						TOTAL	\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
						TOTAL	\$0.00

CONSTRUCTION COST ESTIMATE						DATE PREPARED	
						January 0, 1900	
DIVISION 3 - CONCRETE (TI)							
			MATERIAL		LABOR		
DESCRIPTION	QUAN.	UNIT	COST	TOTAL	HOURS	Labor Rate	TOTAL
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
DIVISION 3 - CONCRETE (SHELL)						TOTAL	\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
						TOTAL	\$0.00

CONSTRUCTION COST ESTIMATE						DATE PREPARED	
						January 0, 1900	
DIVISION 4 - MASONRY (TI)							
			MATERIAL		LABOR		
DESCRIPTION	QUAN.	UNIT	COST	TOTAL	HOURS	Labor Rate	TOTAL
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
DIVISION 4 - MASONRY (SHELL)						TOTAL	\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
						TOTAL	\$0.00

CONSTRUCTION COST ESTIMATE					DATE PREPARED	
					Jan	
DIVISION 5 - METALS (TI)						
			MATERIAL		LABOR	
DESCRIPTION	QUAN.	UNIT	COST	TOTAL	HOURS	Labor Rate
				\$0.00		
				\$0.00		
				\$0.00		
				\$0.00		
				\$0.00		
				\$0.00		
				\$0.00		
				\$0.00		
				\$0.00		
				\$0.00		
				\$0.00		
				\$0.00		
			TOTAL	\$0.00		TOTAL
DIVISION 5 - METALS (SHELL)					TOTAL	
				\$0.00		
				\$0.00		
				\$0.00		
				\$0.00		
				\$0.00		
				\$0.00		
				\$0.00		
				\$0.00		
				\$0.00		
				\$0.00		
				\$0.00		
				\$0.00		
				\$0.00		
			TOTAL	\$0.00		TOTAL
					TOTAL	

[illegible]

CONSTRUCTION COST ESTIMATE						DATE PREPARED	
						January 0, 1900	
DIVISION 6 - WOOD AND PLASTICS (TI)							
			MATERIAL		LABOR		
DESCRIPTION	QUAN.	UNIT	COST	TOTAL	HOURS	Labor Rate	TOTAL
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
DIVISION 6 - WOOD AND PLASTICS (SHELL)						TOTAL	\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
						TOTAL	\$0.00

CONSTRUCTION COST ESTIMATE						DATE PREPARED	
						January 0, 1900	
DIVISION 7 - THERMAL & MOISTURE (TI)							
			MATERIAL		LABOR		
DESCRIPTION	QUAN.	UNIT	COST	TOTAL	HOURS	Labor Rate	TOTAL
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
DIVISION 7 - THERMAL & MOISTURE (SHELL)						TOTAL	\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
						TOTAL	\$0.00

CONSTRUCTION COST ESTIMATE						DATE PREPARED	
						January 0, 1900	
DIVISION 8 - DOORS & WINDOWS (TI)							
			MATERIAL		LABOR		
DESCRIPTION	QUAN.	UNIT	COST	TOTAL	HOURS	Labor Rate	TOTAL
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
DIVISION 8 - DOORS & WINDOWS (SHELL)						TOTAL	\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
						TOTAL	\$0.00

CONSTRUCTION COST ESTIMATE						DATE PREPARED	
						January 0, 1900	
DIVISION 9 - FINISHES (TI)							
			MATERIAL		LABOR		
DESCRIPTION	QUAN.	UNIT	COST	TOTAL	HOURS	Labor Rate	TOTAL
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
DIVISION 9 - FINISHES (SHELL)						TOTAL	\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
						TOTAL	\$0.00

CONSTRUCTION COST ESTIMATE						DATE PREPARED	
						January 0, 1900	
DIVISION 10 - SPECIALTIES (TI)							
			MATERIAL		LABOR		
DESCRIPTION	QUAN.	UNIT	COST	TOTAL	HOURS	Labor Rate	TOTAL
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
DIVISION 10 - SPECIALTIES (SHELL)						TOTAL	\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
						TOTAL	\$0.00

CONSTRUCTION COST ESTIMATE						DATE PREPARED	
						January 0, 1900	
DIVISION 11 - EQUIPMENT (TI)							
			MATERIAL		LABOR		
DESCRIPTION	QUAN.	UNIT	COST	TOTAL	HOURS	Labor Rate	TOTAL
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
DIVISION 11 - EQUIPMENT (SHELL)						TOTAL	\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
						TOTAL	\$0.00

CONSTRUCTION COST ESTIMATE						DATE PREPARED	
						January 0, 1900	
DIVISION 12 - FURNISHINGS & EQUIPMENT (TI)							
			MATERIAL		LABOR		
DESCRIPTION	QUAN.	UNIT	COST	TOTAL	HOURS	Labor Rate	TOTAL
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
DIVISION 12 - FURNISHINGS & EQUIPMENT (SHELL)						TOTAL	\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
						TOTAL	\$0.00

CONSTRUCTION COST ESTIMATE						DATE PREPARED	
						January 0, 1900	
DIVISION 13 - SPECIAL CONSTRUCTION (TI)							
			MATERIAL		LABOR		
DESCRIPTION	QUAN.	UNIT	COST	TOTAL	HOURS	Labor Rate	TOTAL
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
DIVISION 13 - SPECIAL CONSTRUCTION (SHELL)						TOTAL	\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
						TOTAL	\$0.00

CONSTRUCTION COST ESTIMATE						DATE PREPARED	
						January 0, 1900	
DIVISION 15 - GENERAL CONSTRUCTION (TI)							
			MATERIAL		LABOR		
DESCRIPTION	QUAN.	UNIT	COST	TOTAL	HOURS	Labor Rate	TOTAL
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
DIVISION 15 - GENERAL CONSTRUCTION (SHELL)						TOTAL	\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
						TOTAL	\$0.00

CONSTRUCTION COST ESTIMATE						DATE PREPARED	
						January 0, 1900	
DIVISION 21 - FIRE SUPPRESSION SYSTEMS (TI)							
			MATERIAL		LABOR		
DESCRIPTION	QUAN.	UNIT	COST	TOTAL	HOURS	Labor Rate	TOTAL
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
DIVISION 21 - FIRE SUPPRESSION SYSTEMS (SHELL)						TOTAL	\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
						TOTAL	\$0.00

CONSTRUCTION COST ESTIMATE						DATE PREPARED	
						January 0, 1900	
DIVISION 22 - PLUMBING (TI)							
			MATERIAL		LABOR		
DESCRIPTION	QUAN.	UNIT	COST	TOTAL	HOURS	Labor Rate	TOTAL
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
DIVISION 22 - PLUMBING (SHELL)						TOTAL	\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
						TOTAL	\$0.00

CONSTRUCTION COST ESTIMATE						DATE PREPARED	
						January 0, 1900	
DIVISION 23 - HVAC (TI)							
			MATERIAL		LABOR		
DESCRIPTION	QUAN.	UNIT	COST	TOTAL	HOURS	Labor Rate	TOTAL
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
DIVISION 23 - HVAC (SHELL)						TOTAL	\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
						TOTAL	\$0.00

CONSTRUCTION COST ESTIMATE						DATE PREPARED	
						January 0, 1900	
DIVISION 26.1 - ELECTRICAL (TI)							
			MATERIAL		LABOR		
DESCRIPTION	QUAN.	UNIT	COST	TOTAL	HOURS	Labor Rate	TOTAL
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
DIVISION 26.2 - ELECTRICAL (SHELL)						TOTAL	\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
						TOTAL	\$0.00

CONSTRUCTION COST ESTIMATE						DATE PREPARED	
						January 0, 1900	
DIVISION 26.2 - LIGHTING (TI)							
			MATERIAL		LABOR		
DESCRIPTION	QUAN.	UNIT	COST	TOTAL	HOURS	Labor Rate	TOTAL
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
DIVISION 26.2 - LIGHTING (SHELL)						TOTAL	\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
						TOTAL	\$0.00

CONSTRUCTION COST ESTIMATE						DATE PREPARED	
						January 0, 1900	
DIVISION 27 - COMMUNICATIONS (TI)							
			MATERIAL		LABOR		
DESCRIPTION	QUAN.	UNIT	COST	TOTAL	HOURS	Labor Rate	TOTAL
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
DIVISION 27 - COMMUNICATIONS (SHELL)						TOTAL	\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
						TOTAL	\$0.00

CONSTRUCTION COST ESTIMATE						DATE PREPARED	
						January 0, 1900	
DIVISION 28.1- ELECTRICAL SAFETY (TI),							
			MATERIAL		LABOR		
DESCRIPTION	QUAN.	UNIT	COST	TOTAL	HOURS	Labor Rate	TOTAL
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
DIVISION 28.1 - ELECTRICAL, SAFETY (SHELL)						TOTAL	\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
						TOTAL	\$0.00

CONSTRUCTION COST ESTIMATE				
DIVISION 28.2 - SECURITY (TI)				
			MATERIAL	
DESCRIPTION	QUAN.	UNIT	COST	TOTAL
				\$0.00
				\$0.00
				\$0.00
				\$0.00
				\$0.00
				\$0.00
				\$0.00
				\$0.00
				\$0.00
				\$0.00
				\$0.00
				\$0.00
				\$0.00
				\$0.00
			TOTAL	\$0.00
DIVISION 28.2 - SECURITY (SHELL)				
				\$0.00
				\$0.00
				\$0.00
				\$0.00
				\$0.00
				\$0.00
				\$0.00
				\$0.00
				\$0.00
				\$0.00
				\$0.00
				\$0.00
				\$0.00
				\$0.00
			TOTAL	\$0.00

[illegible]

CONSTRUCTION COST ESTIMATE						DATE PREPARED	
						January 0, 1900	
DIVISION 32 - EXTERIOR (TI)							
			MATERIAL		LABOR		
DESCRIPTION	QUAN.	UNIT	COST	TOTAL	HOURS	Labor Rate	TOTAL
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
DIVISION 32 - EXTERIOR (SHELL)						TOTAL	\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
				\$0.00			\$0.00
			TOTAL	\$0.00		TOTAL	\$0.00
						TOTAL	\$0.00

Exhibit L

"General Decision Number KY20250044 01/03/2025

Superseded General Decision Number KY20240044

State Kentucky

Construction Type Building

County Boone County in Kentucky&

BJILDING CONSTRJCTION PROJECTS (does not include single family homes or apartments up to and including 4 stories)&

Note Contracts subject to the Davis-Bacon Act are generally required to pay at least the applicable minimum wage rate required under Executive Order 14026 or Executive Order 13658& Please note that these Executive Orders apply to covered contracts entered into by the federal government that are subject to the Davis-Bacon Act itself, but do not apply to contracts subject only to the Davis-Bacon Related Acts, including those set forth at 29 CFR 5&1(a)(1)&

??

. If the contract is entered .& Executive Order 14026 .
. into on or after January 30, . generally applies to the .
. 2022, or the contract is . contractl .
. renewed or extended (e&g&, an .& The contractor must pay .
. option is exercised) on or . all covered workers at .
. after January 30, 2022 . least \$17&75 per hour (or .
. . the applicable wage rate .
. . listed on this wage .
. . determination, if it is .
. . higher) for all hours .
. . spent performing on the .
. . contract in 2025& .

. ???
. If the contract was awarded on.& Executive Order 13658 .
. or between January 1, 2015 and. generally applies to the .
. January 29, 2022, and the . contractl .
. contract is not renewed or .& The contractor must pay all .
. extended on or after January . covered workers at least .
. 30, 2022 . \$13&30 per hour (or the .
. . applicable wage rate listed .
. . on this wage determination, .
. . if it is higher) for all .
. . hours spent performing on .
. . that contract in 2025& .
. ???

The applicable Executive Order minimum wage rate will be adjusted annually. If this contract is covered by one of the Executive Orders and a classification considered necessary for performance of work on the contract does not appear on this wage determination, the contractor must still submit a conformance request.

Additional information on contractor requirements and worker protections under the Executive Orders is available at [http //www& dol& gov/whd/govcontracts&](http://www.dol.gov/whd/govcontracts)

Modification Number Publication Date
0 01/03/2025

ASBE 0008-011 03/01/2024

	Rates	Fringes
ASBESTOS WORKER/HEAT & FROST INSULATOR.	34.23	21.94

BOIL 0040-002 01/01/2021

	Rates	Fringes
BOILERMAKER.	37.60	27.49

BRKY0018-001 06/01/2023

	Rates	Fringes
BRICKLAYER.	33.48	15.92

BRKY0018-002 09/01/2022

	Rates	Fringes
TILE SETTER.	31.21	15.37

BRKY0018-003 09/01/2022

	Rates	Fringes
TILE FINISHER.	26.66	15.80

ELEC0212-015 06/05/2024

	Rates	Fringes
ELECTRICIAN (Includes Low Voltage Wiring).	35.43	22.05

ELEV0011-001 01/01/2023

	Rates	Fringes
ELEVATOR MECHANIC.	52.72	37.335+a+b

PAID HOLIDAYS8

a New Year's Day, Memorial Day, Independence Day, Labor Day,
Veteran's Day, Thanksgiving Day, the Friday after
Thanksgiving, and Christmas Day.

b Employer contributes 8% of regular hourly rate to vacation
pay credit for employee who has worked in business more
than 5 years; 6% for less than 5 years' service.

ENXI 0181-054 07/01/2024

	Rates	Fringes
POWER EQUIPMENT OPERATOR (Drill).	37.83	19.10

ENXI 0181-079 07/01/2024

Rates	Fringes
-------	---------

POWER EQUIP'ENT OPERATOR (Loader)	37. 83	1 9 . 1 0

ENXI 0181 - 090 07/01/2024		
	Rates	Fringes
POWER EQUIP'ENT OPERATOR (Crane)	37. 83	1 9 . 1 0
CRANES WITH 000' 150 FEET & OVER, INCL UDINX JIO, SHALL RECEIVE .. 50 AOOVE THE WAXE RATE.		

ENXI 0181 - 091 07/01/2024		
	Rates	Fringes
POWER EQUIP'ENT OPERATOR (Forklift)	37. 83	1 9 . 1 0

ENXI 0181 - 093 07/01/2024		
	Rates	Fringes
POWER EQUIP'ENT OPERATOR (Oiler)	32. 45	1 9 . 1 0

IRON0044- 016 06/01/2024		
	Rates	Fringes
IRONWORKE R, STRUCTURAL AND ORNA'E NTAL.	35. 37	23. 00

IRON0044- 018 06/01/2024		
	Rates	Fringes
IRONWORKE R, RE INF ORCINX.	35. 37	23. 00

LAO00265 - 013 06/01/2024		
	Rates	Fringes
LAOORE R (Common or Xeneral)	26. 80	1 8 . 2 5

LAO01445 - 002 06/01/2024		
	Rates	Fringes
LAOORE R (Power Tool Operator)	31. 10	2 1 . 83

PAI N0123 - 002 05/01/2024		
	Rates	Fringes
PAINTER (Or;sh and Roller)	28. 29	1 4. 01

PAI N0387 - 003 11/01/2023		
	Rates	Fringes
XL AZI E R.....	3 1 . 95	16. 65

PLAS0132-015 06/01/2020

	Rates	Fringes
CEMENT MASON/CONCRETE FINISHER. . . .	27. 54	18. 59

PLLM0452-015 11/01/2024

	Rates	Fringes
PLUMBER.	41. 00	21. 66

PLLM0452-020 11/01/2024

	Rates	Fringes
PIPEFITTER.	41. 00	21. 66

ROOF 0042-008 08/01/2024

	Rates	Fringes
ROOFER.	33. 00	18. 86

SF KY0669-002 04/01/2024

	Rates	Fringes
SPRINKLER FITTER.	41. 33	25. 49

SHEE0024-031 06/01/2023

	Rates	Fringes
SHEET METAL WORKER (Includes H-AC Duct Installation).	33. 53	26. 71

SLKY2015-025 06/02/2015

	Rates	Fringes
CARPENTER (Form Work Only).	23. 87	9. 66
CARPENTER, Excludes Form Work.	22. 25	11. 41
LABORER Mason Tender - Brick.	22. 65	9. 04
LABORER Mason Tender - Cement/Concrete.	25. 10	13. 67
LABORER Pipelayer.	20. 36	9. 90
OPERATOR Backhoe/Excavator/Trackhoe.	24. 66	10. 81
OPERATOR Bulldozer.	19. 69	4. 71
OPERATOR Paver (Asphalt, Aggregate, and Concrete).	22. 52	4. 00
OPERATOR Roller.	23. 60	12. 65
PAINTER Spray.	22. 81	11. 87

WELDERS - Receive rate prescribed for craft performing operation to which welding is incidental.

Note Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors applies to all contracts subject to the Davis-Bacon Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year.

Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is a victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at

<https://www.dol.gov/agencies/whd/government-contracts>.

Unlisted classifications needed for work not included within the scope of the classifications listed may be added after award only as provided in the labor standards contract clauses (29CFR 5.5 (a) (1) (iii)).

The body of each wage determination lists the classifications and wage rates that have been found to be prevailing for the type(s) of construction and geographic area covered by the wage determination. The classifications are listed in alphabetical order under rate identifiers indicating whether the particular rate is a union rate (current union negotiated rate), a survey rate, a weighted union average rate, a state adopted rate, or a supplemental classification rate.

Union Rate Identifiers

A four-letter identifier beginning with characters other than " "SU" ", " "UAVG" ", ? SA? , or ? SC? denotes that a union rate was prevailing for that classification in the survey. Example PLUM0198-005 07/01/2024. PLUM is an identifier of the union whose collectively bargained rate prevailed in the survey for this classification, which in this example would be Plumbers. 0198 indicates the local union number or district council number where applicable, i.e., Plumbers Local 0198. The next number, 005 in the example, is an internal number used in processing the wage determination. The date, 07/01/2024 in the example, is the effective date of the most current negotiated rate.

Union prevailing wage rates are updated to reflect all changes over time that are reported to WHD in the rates in the collective bargaining agreement (CBA) governing the classification.

Union Average Rate Identifiers

The UAVG identifier indicates that no single rate prevailed for those classifications, but that 100% of the data reported for the classifications reflected union rates. EXAMPLE# UAVG-OH-0010 01/01/2024. UAVG indicates that the rate is a weighted union average rate. OH indicates the State of Ohio. The next number, 0010 in the example, is an internal number used in producing the wage determination. The date, 01/01/2024 in the example, indicates the date the wage determination was updated to reflect the most current union average rate.

A UAVG rate will be updated once a year, usually in January, to reflect a weighted average of the current rates in the collective bargaining agreements on which the rate is based.

Survey Rate Identifiers

The " "SU" " identifier indicates that either a single non-union rate prevailed (as defined in 29 CFR 1.2) for this classification in the survey or that the rate was derived by computing a weighted average rate based on all the rates reported in the survey for that classification. As a weighted average rate includes all rates reported in the survey, it may include both union and non-union rates. Example# SUFL2022-007 6/27/2024. SU indicates the rate is a single non-union prevailing rate or a weighted average of survey data for that classification. FL indicates the State of Florida. 2022 is the year of the survey on which these classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 6/27/2024 in the example, indicates the survey completion date for the classifications and rates under that identifier.

?SU? wage rates typically remain in effect until a new survey is conducted. However, the Wage and Hour Division (WHD) has the discretion to update such rates under 29 CFR 1.6(c)(1).

State Adopted Rate Identifiers

The " "SA" " identifier indicates that the classifications and prevailing wage rates set by a state (or local) government were adopted under 29 C. F. R 1.3(g)-(h). Example# SAME2023-007 01/03/2024. SA reflects that the rates are state adopted. ME refers to the State of Maine. 2023 is the year during which the state completed the survey on which the listed classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 01/03/2024 in the example, reflects the date on which the classifications and rates under the ?SA? identifier took effect under state law in the state from which the rates were adopted.

----- WAGE DETERMINATION APPEALS PROCESS

1) Has there been an initial decision in the matter? This can be#

 a) a survey underlying a wage determination
 b) an existing published wage determination
2) an initial WHD letter setting forth a position on a wage determination matter
3) an initial conformance (additional classification and rate) determination

**Offering Entity Acknowledgement for RLP No.: 36C25025R0029
Florence, KYCBOC**

The Offeror attests that the information provided below is accurate and shall be a basis for evaluation in RLP No.: 36C25024R0068. Failure to provide the required information may deem the proposal non-responsive.

Offeror Information

Offering Entity Name:

Address:

Offering Entity Unique Entity Identifier (SAM UEI):

Offering Entity DUNS Number:

Offering Entity Tax Identification Number:

Authorized Official Name:

Authorized Official Phone Number:

Authorized Official E-mail:

Authorized Official is Listed in Entity SAM Representations: ☐ Yes ☐ No

Authorized Official is Listed in Entity Operating Agreement: ☐ Yes ☐ No

Date of Submission:

Time Specified for Receipt of Offers:

Offering Entity/Prime Contractor Size Status:

SDVOSB ☐ **VOSB** ☐ **SB** ☐

Offering Entity Currently Certified in SAM under NAICS 531120 as defined at FAR 52.219-1 Small Business Program Representations ☐

Offering Entity Currently Verified in VetCert: **YES** ☐ **NO** ☐ **N/A** ☐

Offering Entity POC Signature

Date

Offering Entity POC Name

REQUEST FOR LEASE
PROPOSALS (RLP)

Florence, KY VA Clinic
Florence, KY VA Clinic

DATE: _____
RLP No. 36C25025R0029

CONFIDENTIALITY CERTIFICATE VA Contractor

Florence, KY VA Clinic

VA Lease Title

36C25025L0015-36C25025R0029

VA Contract Number

The Physical Security Design Standards Data Definitions are for Official Use Only. I certify that I will not disclose the contents of these documents nor transmit electronically or in hard copy the documents to any other persons or firms. A limited number of other members of your firm, directly involved on this VA contract, can request access to these documents. Prior to receipt of these documents, they must provide justification and their signed Confidentiality Certificate to the VA Project Manager (COR) for approval.

I also certify that appropriate precautions are in place to protect these documents from theft or inadvertent disclosure, and access is limited to the person signing the Certificate

Contractor's Name

Contractor Employee Name

Signature

Title

Date

Contact information: Address/telephone/email address

Fax number

Lessor _____ Gov't. _____ of _____ Pages

Exhibit Q
Department of Veterans Affairs
Provision Addendum
to
GSA Template 3516/3516A - SOLICITATION PROVISIONS

VA ALTERNATIVE PROTEST PROCEDURE – REAL PROPERTY LEASE
PROCUREMENTS (MARCH 2024)

(a) As an alternative to filing a protest with the Lease Contracting Officer, an interested party may file a protest by mail or electronically with: Executive Director, Office of Construction and Facilities Management (003C), Department of Veterans Affairs, 425 I Street, NW, Washington, DC 20420 or CFMORP@va.gov.

(b) The protest will not be considered if the interested party has a protest on the same or similar issue(s) pending with the Lease Contracting Officer.

(End of provision)

**Past Performance Survey
36C25025R0029**

NOTE: This Past Performance Survey Form is Exhibit N of Request for Lease Proposal (RLP) 36C25025R0029 and must be received via e-mail to kenneth.staiduhar@va.gov and lee.grant@va.gov from the reference(s) prior to the closing date and time stated in Section 3.02 of the RLP.

Rating	Abbreviation	Description
Exceptional	E	Performance meets lease requirements and exceeds many to the lessee's benefit. The lease performance of the element or sub-element being evaluated was accomplished with few minor problems for which corrective actions taken by the lessor were highly effective.
Satisfactory	S	Performance meets lease requirements. The lease performance of the element or sub-element contains some minor problems for which corrective actions taken by the Lessor appear or were satisfactory.
Marginal	M	Performance does not meet some lease requirements. The lease performance of the element or sub-element being evaluated reflects a serious problem for which the Lessor has not yet identified corrective actions. The Lessor's proposed actions appear only marginally effective or were not fully implemented.
Unsatisfactory	U	Performance does not meet some lease requirements. The lease performance of the element or sub-element being evaluated reflects a serious problem for which the Lessor has not yet identified corrective actions. The Lessor's proposed actions appear only marginally effective or were not fully implemented.
Neutral	N	Not Applicable or No performance record identifiable.

For the following elements select a rating from the chart above and CIRCLE the appropriate LETTER:

Management of Leased Space

Lessor provided experienced/qualified staff or personnel to meet lease requirements: E S M U N

Lessor maintained the leased building in a professional manner that was considered sound and substantial with the facade in good condition per the terms of the lease. E S M U N

Lessor maintained the grounds / parking in an attractive and professional manner and in good condition per the terms of the lease. E S M U N

Lessor provided services (janitorial, snow removal, utilities, repairs) per the terms of the lease. E S M U N

Customer Satisfaction

The quality of construction and materials used were acceptable and per the terms of the lease. E S M U N

The Lessor was responsive to service requests. E S M U N

The lessor was responsive to communications pertaining to the lease administration. E S M U N

Lessor resolved issues to the lessee's satisfaction and in accordance with the terms of the lease. E S M U N

Lessor / subcontractor provided all services in a courteous and professional manner. E S M U N

Past Performance Survey
36C25025R0029

Type text here

Timeliness

Construction project management met the lease agreement timeline. E S M U N

The leased space was delivered in a timely manner. E S M U N

Punch list items from the construction phase were completed in a timely manner. E S M U N

Lessor / subcontractor provided all services in a prompt manner. E S M U N

Provide any explanation you may feel is required to clarify any of the above responses:

Narrative Summary

What were the Lessor's greatest strengths in the performance of the lease/lease?

What were the Lessor's greatest opportunity for improvement in the performance of the lease?

Were there any compliance difficulties experienced during performance of this lease/lease?

Would you have any reservations about soliciting this Lessor in the future or having their subcontractors' perform one of your critical requirements?

Are there any other issues not covered you feel important to note about performance of this Lessor/lease?

Past Performance Survey
36C25025R0029

Government leases only: Has/was this lease partially or completely terminated for default or convenience or are there any pending terminations?

Yes _____ Default _____ Convenience _____ Pending Terminations _____ NO _____

If yes, explain (e.g., inability to meet price, performance, or delivery schedules, etc.)

Considering all the information provided above, by selecting one of the rating descriptions, please rate the Lessor's performance overall . E S M U N.

Printed Name of Evaluator

Signature

Name of Company

Phone Number

Date

Lease/Lease Name

Period of Performance

Exhibit Q

Ability One Certification

An entity of the Federal Government intending to procure a service listed on the AbilityOne Procurement List is required to procure the service from a qualified nonprofit agency (NPA) for the blind or a qualified NPA for other severely disabled in accordance with the regulations of the AbilityOne Commission, if there is a qualified NPA that is ready and able to perform the services on the AbilityOne Procurement List. See 41 U.S.C. §8504. The procurement list is located at <https://www.abilityone.gov/>.

Where a lease includes custodial services on the AbilityOne Procurement List, the Lessor SHALL procure the custodial services from a qualified NPA designated by the AbilityOne Commission that is ready and able to perform services on the AbilityOne Procurement List for this lease. If there is no qualified NPA, or a qualified NPA is unable to provide the service included on the AbilityOne Procurement List, Offeror shall complete the below certification and submit along with proposal. If services are available, no certification is required.

Certification

Contacted AbilityOne (date/method/person):

Services for RLP# 36C25025R0029 are unavailable.

Explanation:

Signature

Date

CERTIFICATION OF BUILDING ENERGY PERFORMANCE

LOCATION: _____

PROJECT TITLE: _____

PROJECT NUMBER: _____

PROJECT MANAGER: _____

I certify that the energy performance of the above project fully satisfies/ will satisfy the energy efficiency requirements of DOE regulations, 10 CFR Part 435. "Energy Conservation Voluntary Performance Standards for Commercial and Multi-Family High Rise Residential Buildings; Mandatory for New Federal Buildings."

Name & Title

Date

Name and Address of Architect-Engineer Firm: _____

Title/Position: _____

Professional Registration No.: _____

State Where Registered (use seal): _____

Exhibit S

52.204-24 Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment.

As prescribed in [4.2105\(a\)](#):

REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (Nov 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at [52.204-26](#), Covered Telecommunications Equipment or Services—Representation, or in paragraph (v)(2)(i) of the provision at [52.212-3](#), Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at [52.204-26](#), or in paragraph (v)(2)(ii) of the provision at [52.212-3](#).

(a) *Definitions.* As used in this provision—

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition.*

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) *Representation.* The Offeror represents that—

(1) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that—

It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures.*

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

52.204-26 Covered Telecommunications Equipment or Services-Representation.

As prescribed in 4.2105(c):

Covered Telecommunications Equipment or Services-Representation (Oct 2020)

(a) *Definitions.* As used in this provision, "covered telecommunications equipment or services" and "reasonable inquiry" have the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(c) (1) *Representation.* The Offeror represents that it ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)